4TH ORDINARY ELECTIONS TO GRAM PANCHAYATS ANDHRA PRADESH 2013

ELECTION REPORT

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CHAPTER - I

INTRODUCTION

Article 243K of the Constitution of India, the State Election Commission is vested with the responsibility of conduct of elections to the Panchayat Raj Institutions. Further, Article 243E of the Constitution of India stipulates that an election to constitute a Panchayat shall be completed before the expiry of its term. The term of elected bodies of Mandal Praja Parishads, Zilla Praja Parishads and Gram Panchayats expired on 21.07.2011, 22.07.2011 and 23.08.2011 respectively.

The State Election Commission had drawn attention of the Government of Andhra Pradesh on several occasions (from April, 2011) to the Judgment delivered by the Hon'ble Supreme Court in W.P. (Civil) No. 356 of 1994 dtd. 11.5.2010 in Dr. K. Krishna Murthy Vs. Union of India, in which the Hon'ble Court defined the principles of reservation including fixing an upper ceiling of 50% on vertical reservations in favour of SCs, STs and BCs in the context of local self-government. Copies of the judgment were made available to the senior officials of the Panchayat Raj Department during the meetings convened by the State Election Commission to review pre-election exercises and letters were also addressed to the Chief Secretary to Government, Principal Secretary to Governor and the Principal Secretary to Panchayat Raj advising the Government to formulate the reservation policy in terms of the said judgment. However, the Government chose to continue the existing policy of reservation by issuing G.O.Ms.No.128, P.R. & R.D. (E&R) Dept., dtd. 08.06.2011 which provide for reservation of seats and offices to SCs, STs and BCs in PR bodies to the tune of 60.55% which is in excess of ceiling fixed at 50% in the said judgment. The reservations were finalized and communicated to the State Election Commission on 11.06.2011 by the Commissioner of Panchayat Raj & Rural Employment, Andhra Pradesh.

Aggrieved by this action of the Government in reserving 60.55% of seats and offices in PR Bodies for SCs, STs and BCs, some groups and individuals approached the Hon'ble High Court of Andhra Pradesh. A Single Judge of the Hon'ble High Court in W.P.M.P.No.18791 of 2011 in W.P. No.15682 of 2011 dtd. 14.06.2011 declined to give an interim direction to limit the total reservation to 50% and dismissed the W.P.M.P. paving the way to set the election process in motion. However, on the next day i.e., on 15.06.2011, a Division Bench of the Hon'ble High Court passed interim orders in W.P.No.16473 of 2011 stayed G.O.Ms.No.128, P.R. & R.D. (E&R) Dept., dtd. 08.06.2011 and all consequential proceedings thereof. The same Division Bench in another interim order dtd. 16.06.2011 in W.P.No.16560 stayed G.O.Ms.No.128, P.R. & R.D. (E&R) Dept., dtd. 08.06.2011 and all consequential proceedings thereof including elections. These orders disabled the State Election Commission from notifying elections to Panchayat Raj Bodies.

In the light of the aforesaid interim orders passed by the Hon'ble High Court dtd. 15.06.2011 and 16.06.2011, the State Election Commission also addressed the State Government on 22.06.2011 to review the reservation policy keeping in view the principles defined by the Hon'ble Supreme Court in its judgment in W.P. (Civil) No. 356 of 1994 dtd. 11.5.2010 in Dr. K. Krishna Murthy Vs. Union of India and furnish revised reservation information as early as possible so as to facilitate the Commission to conduct ordinary elections to P.R. Bodies without much delay. However, the Government have not furnished the revised reservation information.

The Hon'ble High Court disposed of all the writ petitions pending before it on matters relating to reservation of seats and offices in PR Bodies and also appointment of Special Officers delivering the judgment on 4.9.2012. Mainly the Hon'ble High Court has given the following directions:-

i) For the purpose present elections, the State shall fix the reservation in favour of Backward Classes at such percentage so that it comes within 50% when the aggregate reservation in favour of Scheduled Castes, Scheduled Tribes and Backward Classes put together;

ii) The State shall conduct a detailed investigation with regard to backwardness of the population, collect data, invite objections from the general public, analyse the same and then fix the reservation in favour of Backward Classes in accordance with the constitutional scheme. It shall also review the reservation from time to time;

iii) The State Election Commission shall commence the process of elections to the local bodies in the State of Andhra Pradesh immediately and shall complete the elections within a period of three months from the date of finalisation of the reservation percentage by the State.

iv) All the writ petitions challenging the validity of amending Acts, providing for appointment of Special Officers for local bodies shall stand dismissed.

Sending a copy of the judgment to the Government, the State Election Commission requested the Government to comply with the directions given by the Hon'ble High Court with regard to reservation of seats and offices in Panchayat Raj Bodies and furnish revised reservation information in terms of the said judgment as early as possible so as to enable the State Election Commission to comply with the direction specifically given to the State Election Commission to commence the election process of Panchayat Raj Bodies and complete it within 3 months from the date of furnishing such revised reservation information by the Government.

The Government informed the Commission on 12.12.2012 that the State Government had constituted a "Group of Ministers" to examine and to go in detail about the conduct of elections for local bodies in light of judgment of the Hon'ble High Court dtd. 4.9.2012 in W.P.No.31369 of 2011 and the judgment of the Hon'ble Supreme Court dtd. 11.5.2010. It was also informed that the Government decided to file Special Leave Petition before the Hon'ble Supreme Court. Accordingly, Government filed SLP (C) Nos. 38951-38956 of 2012 in the Hon'ble Supreme Court challenging the judgment of the Hon'ble High Court dtd. 4.9.2012. Some other groups and individuals also filed SLPs in the Hon'ble Supreme Court on the issue of reservation of seats and conduct of elections to Panchayat Raj Institutions.

The Hon'ble Supreme Court of India in its interim orders dtd. 18.02.2013 in all the said SLPs as under:

> *"As an interim measure all the parties to the above proceedings are agreeable that the State of Andhra Pradesh/Election Commission is to proceed with the election with the existing system. The main issue will be decided at a later stage.*
>
> *In view of the above direction, the directions contained in clauses (i) and (iii) of paragraph 60 of the impugned judgment of the High Court are hereby stayed until further orders.*
>
> *Post these special leave petitions for final disposal after completion of service and pleadings in the normal course."*

Soon after receipt of the interim orders, the Commission and the Government initiated steps for conduct of elections to PRIs. Initially, both the State Election Commission and the State Government contemplated to conduct elections to the PRIs based on Census figures of 2001. After the Census figures of 2011 were released on 03.05.2013, the Government decided to adopt Census-2011 figures for delimitation and reservation of seats in Gram Panchayats, Mandal Praja Parishads and Zilla Praja Parishads and proceeded accordingly.

The reservation particulars in respect of Sarpanch and Ward Members of Gram Panchayats in the State were furnished by the Government to the State Election Commission vide Lr.No.19839/ E&R/2012-9, dtd. 01.07.2013.

The Commission issued Election Notification on 03.07.2013 for conduct of 4th ordinary elections to Gram Panchayats in the State in 3 phases on 23.07.2013, 27.07.2013 and 31.07.2013.

CHAPTER - II
ELECTORAL ROLLS

Section 11 of A.P. Panchayat Raj Act, 1994 and A.P.P.R. (Preparation and Publication of Electoral Rolls) Rules, 2000 issued in G.O.Ms.No.254, P.R. & R.D. (Elecs.) Dept., dtd.04.8.2000 provide for adopting the latest Assembly electoral rolls in toto for preparation of Gram Panchayat electoral rolls. The latest Assembly electoral rolls are rearranged Gram Panchayat-wise and published on the date notified by the State Election Commission. Any inclusions or deletions ordered under section 22 or 23 as the case may be of the Representation of People Act, 1950, by the ERO concerned in assembly electoral rolls upto the date of the election notification shall be carried out in the electoral roll of Gram Panchayat concerned. Any such inclusions are added to the part relating to the last ward and deletions are carried out at appropriate place in the Gram Panchayat electoral rolls by the District Panchayat Officers concerned.

The Commission decided to have **Gram Panchayat Photo Electoral Rolls** for conduct of elections emulating practice that is followed during elections to State Legislative Assembly and the House of People in Andhra Pradesh by the Election Commission of India.

The Commission issued procedural instructions for preparation, publication and printing of Gram Panchayat photo electoral rolls with reference to 01.01.2013 as qualifying date in Circular No.91/SEC-B2/2013, dtd.23.02.2013 **(Annexure I)**. The Commission gave one month time to District Panchayat Officers to complete the process for preparation of electoral rolls and periodically reviewed the progress by conducting Video Conference on 16.03.2013.

After ensuring that the preparation process was completed, the Commission issued a Notification in Ref No.91/SEC-B2/2013-8, dtd.19.03.2013 for publication of ward-wise Photo Electoral Rolls in all Gram Panchayat with reference to 01.01.2013 as qualifying date on 26.03.2013 (**Annexure II)**.

Further in Notification No.91/SEC-B2/2013-14, dtd.28.03.2013 (**Annexure II-A),** the Commission ordered for publication of Photo electoral rolls of 38 Gram Panchayats in Ranga Reddy District on 30.03.2013, as the District Panchayat Officer, Rangareddy could not publish the electoral rolls of those Gram Panchayats on 26.03.2013 due to pendency of proposals for their merger with GHMC. Yet another Notification was issued by the Commission in Ref No.91/SEC-B2/2013-15, dtd. 03.04.2013 (**Annexure II-B)** for publication of electoral rolls of few more newly constituted / reconstituted Gram Panchayats on 06.04.2013. The Gram Panchayat electoral rolls were published on 26.03.2013, 30.03.2013 and 06.4.2013 in pursuance of the said three Notifications duly indicating ward division based on the strength of elected members fixed under Section 7 of A.P.P.R. Act, 1994 as per **2001 Census figures**.

After the Census-2011 figures were released on 03.05.2013, the Government decided to adopt these figures for fixation of strength of members, delimitation of wards and reservations. The Commissioner of Panchayat Raj & Rural Employment refixed the strength of wards in all Gram Panchayats based on Census-2011 figures. After ensuring that all the formalities connected to refixation of strength of members of all Gram Panchayats and delimitation of wards was completed by the DPOs, he made a request to the Commission vide his Letter dtd. 31.05.2013 to order for rearrangement and republication of electoral rolls of all Gram Panchayats under Section 12 of A.P.P.R. Act, 1994 in order to give effect to the delimitation of wards.

The Commission considered the request and issued Notification in Ref No. 91/SEC-B2/2013-20, dtd. 11.06.2013 for rearrangement and republication of ward-wise Photo electoral rolls of all Gram Panchayats by the DPOs concerned on 15.06.2013. The electoral rolls were accordingly republished in all Gram Panchayats on 15.06.2013.

The Commission issued instructions to all DPOs for printing required number of copies of Gram Panchayat Photo electoral rolls for conduct of elections. On a proposal sent by the Commissioner of Panchayat Raj, the Government released Rs.13.77 crores to all the 22 Districts in the State for preparation, publication and printing of electoral rolls **(Annexure II-C)**. The DPOs completed the printing of required number of copies of electoral rolls by 3rd week of June 2013 and kept them ready for conduct of Gram Panchayat elections.

The district wise electorate as on the date of issue of Gram Panchayat election notification on 03.07.2013 is indicated in the **Annexure III.**

CHAPTER - III
RESERVATIONS

As per the provisions of the A.P. Panchayat Raj Act, 1994, the Government is vested with the responsibility of finalization of reservations of seats and offices of Sarpanch and Ward Members of Gram Panchayats to SC, ST, BC and Women. The Government enhanced the quantum of reservation for women in PRIs from 1/3rd to 50% before the 4th ordinary elections. The Government also decided to adopt Census figures of 2011 which were released in the 1st week of May 2013 for finalization of reservations. The Government also issued Reservation rules and detailed guidelines to all the designated authorities (RDOs and MPDOs) for finalization of reservations. The designated authorities have finalized the reservations and notified them as prescribed in the relevant rules. The Government consolidtd. reservation information in respect of all districts and communicated it to the State Election Commission on 01.07.2013. Soon thereafter, the Commission issued Election Notification on 03.07.2013 for conduct of 4th Ordinary elections to Gram Panchayats in the State.

Reservation figures of Sarpanch, Gram Panchayat:

The State-wide figures of number of offices of Sarpanch reserved for various categories are given below.

ST (Men/Women)	1,248
ST (Women)	1,249
SC (Men/Women)	1,979
SC (Women)	1,979
BC (Men/Women)	3,463
BC (Women)	3,463
General (Women)	4,104
Unreserved	4,105
Total	**21,590**

The District-wise number of offices reserved to various categories is indicated in the **Annexure IV.**

Reservation figures of Ward Member, Gram Panchayats:

The State-wide figures of number of offices of Ward Member reserved for various categories are given below.

ST (Men/Women)	14,321
ST (Women)	6,295
SC (Men/Women)	27,645
SC (Women)	14,009
BC (Men/Women)	48,003
BC (Women)	25,058
General (Women)	27,890
Un-reserved	55,089
Total	**2,18,310**

The District-wise number of offices reserved for various categories for the offices of ward members is indicated in the **Annexure IV-A.**

CHAPTER - IV

ELECTION RELATED REVIEW MEETINGS

After the Hon'ble Supreme Court passed interim orders on 18.02.2013 to proceed with the election process of Panchayat Raj Institutions with the existing system, the State Election Commission initiated steps soon after receipt of the order to conduct elections as early as possible. The Commission conducted several meetings with Senior officials of Panchayat Raj Department, Police Department, Excise Department, Education Department, etc., to chalk out the election programme and also reviewed the election preparedness of the District Administration by conducting Regional Conferences at eight places in the State and Video Conferences at frequent intervals. These meetings and conferences enabled the Commission to gather valuable inputs from various quarters on divergent matters connected with conduct of elections and paved the way for chalking out an elaborate and effective plan of action for conducting elections to Gram Panchayats in 3-Phases smoothly and successfully with very few incidents of electoral malpractices and repolls.

The meetings and conferences conducted by the Commission are listed below in chronological order.

Date	Meeting / Video Conference / Regional Conference
26.02.2013	Meeting with Principal Secretary (Panchayat Raj), Principal Secretary (Municipal Administration), Commissioner of Panchayat Raj and Commissioner & Director of Municipal Administration to discuss about withholding the process of upgradation / merger of Gram Panchayats before 4th ordinary elections to PRIs.
16.03.2013	Video Conference with District Collectors, CEOs of ZPPs, DPOs and RDOs from NIC, Hyderabad.
28.03.2013	Meeting with Principal Secretary (Higher Education), Principal Secretary (School Education), Commissioner of Intermediate Education, Commissioner of Collegiate Education and Commissioner of School Education regarding deployment of Lecturers and Teachers on election duty during summer vacation and other contingencies.

15.4.2013	Regional Conference at Visakhapatnam with District Collectors, SPs, Urban SPs, CPs, CEOs of ZPPs, DPOs and RDOs of Srikakulam, Vizianagaram and Visakhapatnam Districts.
17.4.2013	Regional Conference at Eluru with District Collectors, SPs, Urban SPs, CPs, CEOs of ZPPs, DPOs and RDOs of East Godavari, West Godavari and Krishna Districts.
18.4.2013	Regional Conference at Guntur with District Collectors, SPs, Urban SPs, CPs, CEOs of ZPPs, DPOs and RDOs of Guntur, Nellore and Prakasam Districts.
20.4.2013	Regional Conference at Nizamabad with District Collectors, SPs, Urban SPs, CPs, CEOs of ZPPs, DPOs and RDOs of Adilabad, Nizamabad and Medak Districts.
26.4.2013	Regional Conference at Mahabubnagar with District Collectors, SPs, Urban SPs, CPs, CEOs of ZPPs, DPOs and RDOs of Mahabubnagar and Kurnool Districts.
30.4.2013	Regional Conference at Tirupati with District Collectors, SPs, Urban SPs, CPs, CEOs of ZPPs, DPOs and RDOs of Chittoor, Anantapur and YSR Kadapa Districts.
03.05.2013	Regional Conference at Warangal with District Collectors, SPs, Urban SPs, CPs, CEOs of ZPPs, DPOs and RDOs of Warangal, Khammam and Karimnagar Districts.
07.05.2013	Regional Conference at Hyderabad (Ranga Reddy Collectorate) with District Collectors, SPs, Urban SPs, CPs, CEOs of ZPPs, DPOs and RDOs of Ranga Reddy and Nalgonda Districts.
22.06.2013	Meeting with Principal Secretary and Commissioner of Prohibition and Excise Department regarding restrictions on free flow of liquor and closure of belt shops during the election period.
24.06.2013	Video Conference from NIC, Hyderabad with District Collectors, SPs, Urban SPs, CPs, CEOs of ZPPs, DPOs and RDOs of all the districts, except Hyderabad.
28.06.2013	Meeting with Director General of Police, Principal Secretary (Home), Addl. DGP (L&O), Principal Secretary (Panchayat Raj), Secretary (Finance - W&P).
29.06.2013	Meeting with Political Parties (Recognised National and State Parties and Registered Parties with reserved symbol).
05.07.2013	Meeting with General Observers (IAS Officers) and Expenditure Observers (IFS Officers) at Moksha Hotel, Secunderabad.
12.07.2013	Video Conference from NIC, Hyderabad with District Collectors, SPs, Urban SPs, CPs, CEOs of ZPPs, DPOs and RDOs of all the districts, except Hyderabad.
20.07.2013	Video Conference with District Collectors, SPs, CPs, CEOs of ZPPs, DPOs and RDOs on Poll preparedness from NIC, Hyderabad.

Meetings with Senior Officials of Panchayat Raj Department, Home Department, Finance Department, Commissioner of Printing, Stationery and Stores Purchase, Education Department and Excise Department were conducted in the Conference Hall of the State Election Commission. The State Election Commissioner chaired all these meetings. The minutes were recorded and copies communicated to the officers concerned.

The Video Conferences were conducted by the State Election Commissioner from the National Informatics Centre (NIC), BRKR Bhavan, Hyderabad. Senior Officials of Panchayat Raj Department, Police Department, Printing and Stationery Department and Excise Department participated in these Video Conferences from NIC, Hyderabad.

The Regional Conferences conducted at eight places in the State mentioned above were also chaired by the State Election Commissioner. As the post of Secretary of the Commission was vacant, the Joint Secretary participated in all the Conferences. On the request of the Commission, either the Principal Secretary (Panchayat Raj) or the Commissioner of Panchayat Raj or senior officers from Panchayat Raj Department attended these Conferences. In all the Regional Conferences, the Commissioner followed a uniform pattern taking up the following items in serial order.

1. Powerpoint Presentation by the State Election Commissioner touching important features about the election process, implementation of Model Code of Conduct, Law and Order, sufficiency of ballot boxes, paper supplied for printing of ballot papers, arrangements for printing of ballot paper, availability of electoral rolls, publication of list of polling stations and redressal of complaints, if any, on the list published, arrangements for webcasting, issue of photo voter slips, etc.
2. Taking feedback from all the Collectors & DEAs and Superintendents of Police on the arrangements made for conduct of elections.

3. Opening the conference to clarify the doubts raised by any of the participants on any matter relating to election process including qualifications and disqualifications, implementation of MCC, etc.

Internal review meetings were also conducted on every Saturday at 3:30 PM by the State Election Commissioner from the middle of May 2013 till the completion of election process with the Secretary, Joint Secretary, Joint Directors, Assistant Secretaries and IT Consultant to take stock of election related activities and to make course corrections wherever necessary for their timely completion and effective coordination.

CHAPTER - V

ADMINISTRATIVE MACHINERY

The State Election Commission appointed the administrative machinery for conduct of elections to Panchayat Raj Institutions in the State vide Notification No.335/SEC-B1/2006, dtd. 24.4.2006 and in Notification No.141/SEC-B1/2011, dtd. 28.2.2011 **(Annexure V).**

1. The Commissioner of Panchayat Raj was appointed as the Election Authority.

2. The District Collectors were appointed as District Election Authorities. The functions of the Election Authority under conduct of election rules may also be performed, unless specifically otherwise provided, by the District Election Authority within his jurisdiction. Subject to the general superintendence, direction and control of the State Election Commissioner, the District Election Authority shall be responsible for the conduct, co-ordination and supervision of all items of work connected with the conduct of election of Member of the Mandal Parishad and the Member of the Zilla Parishad within his jurisdiction.

3. The Joint Collector of the District, Chief Executive Officer of Zilla Parishad and District Panchayat Officer have been appointed as Additional District Election Authorities. The Revenue Divisional Officers or Sub-Collectors in the District were appointed as Deputy District Election Authorities. The Additional District Election Authorities and Deputy District Election Authorities shall perform such functions as may be assigned to them by the District Election Authority.

4. The District Election Authorities were authorised to appoint Tahsildars, Mandal Parishad Development Offocers or any other Gazetted officer as Assistant District Election Authority to perform any function, as may be, assigned to them by the District Election Authority in connection with the conduct of elections to Panchayat Raj Institutions as per the provisions of A.P. Panchayat Raj (Conduct of elections) Rules, 2006.

5. The District Election Authorities were authorized to appoint Returning Officers and Assistant Returning Officers in connection with conduct of elections to Zilla Parishads, Mandal Parishads and Gram Panchayats.

6. Every Assistant Returning Officer shall, subject to the control of the Returning Officer, is competent to perform all or any functions of the Returning Officer except those relating to scrutiny of nominations.

7. The District Election Authority or any Officer authorized by him were empower to appoint a Presiding Officer for each polling station and such other polling personnel as deemed necessary.

CHAPTER - VI

RETURNING OFFICERS AND ASST. RETURNING OFFICERS

Under Rule 2(1)(l) of the A.P. Panchayat Raj (Conduct of Election) Rules, 2006, the Collector & District Election Authority is authorized to appoint an officer of the local authority or the Government as Returning Officer for one or more Gram Panchayats in connection with conduct of Gram Panchayat elections.

Under the same rule, the Collector & DEA is also authorized to appoint officers of the State Government or local authority as Assistant Returning Officers to assist the Returning Officer in the performance of his functions. Every Assistant Returning Officer so appointed shall, subject to the control of the Returning Officer, be competent to perform all or any functions of the Returning Officer. However, no Assistant Returning Officer shall perform any of the function of the Returning Officer relating to the scrutiny of nominations unless the Returning Officer is unavoidably prevented from performing the said function.

The State Election Commission issued the following instructions to all the Collectors & DEAs in connection with appointment of Returning Officers for conduct of Gram Panchayat elections.

Division of election process into two stages:

For the purpose of appointment of Returning Officers, the election process of Gram Panchayats is divided into two stages viz., Stage-I and Stage-II.

The election process starting from the stage of publication of election notice under Rule 6 of conduct of election rules and ending with the publication of list of contesting candidates for Members and Sarpanch Gram Panchayats and allotment of symbols to them is called as Stage-I. The election process comprising of all other subsequent election process upto the conduct of the special meeting for election of Upa-Sarpanch is called as Stage-II.

Criteria for appointment of Returning Officers:

The Collector & DEA or Officer authorised by him appointed Returning Officers as indicated below.

1. A Returning Officer was appointed for a group of two to four contiguous minor Gram Panchayats to perform election process comprised in Stage-I, and another Returning Officer for each such Gram Panchayats to perform election process comprised in Stage-II.
2. However, in respect of bigger Gram Panchayats having a population of not less than 10,000 a Returning Officer was appointed exclusively to perform the functions comprised in both Stage-I and Stage-II.

Broad outlines of the duties of the Returning Officer in Gram Panchayat elections:

The Returning Officer is primarily responsible for the following items of election work.

Returning Officer Stage – I

1. Issue of public notice of election under Rule 5 of conduct of election rules
2. Reception of nomination papers,
3. Publication of list of nominations received,
4. Scrutiny of nominations received,
5. Recording of reasons in brief for rejecting any nomination paper;
6. Publication of list of validly nominated candidates
7. Receipt of notice of withdrawal of candidates
8. Publication of list of contesting candidates
9. Allotment of symbols to contesting candidates;

Returning Officer Stage – II

1. Despatch of postal ballot papers and issue of EDC.
2. Visiting the Gram Panchayat and inspecting the polling stations
2. Giving training to the polling staff allotted to Gram Panchayat
4. Establishing contact with the contesting candidates and political parties to ensure free, fair and smooth elections,
5. Receiving the entire polling material required for conduct of elections to the office of Sarpanch and member Gram Panchayat for the distribution centre at the Mandal level and re-distribute the same to his presiding officers.
6. Supervise the setting up of polling station and other poll arrangement in his Gram Panchayats
7. Despatch of polling parties for the conduct of the poll and supply of election materials to them;
8. Effective supervision of the poll and sending reports to the Commission / Election Authority / District Election Authority.
9. Counting of Votes:
10. Declaration of results;
11. Conduct of election to Upa-Sarpanch
12. Issue of certificates of elections to the elected candidates
13. After completion of election handover of all sealed covers containing used and unused ballot papers and other stationery and prescribed covers to the election authority at Mandal level.

The Collectors & DEAs have given adequate training to the officers appointed as Returning Officers / Asst. Returning Officers. They were also provided with printed copies of the following material prepared by the State Election Commission to make them get acquainted with the election process.

1. Handbook of Returning Officers.
2. Compendium of Instructions.
3. A.P.P.R. (Conduct of Elections) Rules, 2006.

The Commission reviewed the process of selection and appointment of Returning Officers / Asst. Returning Officers with the Collectors & DEAs in all the Regional Conferences, Video Conferences conducted by the Commission to assess the election preparedness of the District Administration.

One of the important stipulations made by the Commission to ensure free, fair and unbiased functioning of the Returning Officers / Asst. Returning Officers was that they should not be appointed to perform election duty in their native Mandals or in the Mandals they reside or work. This contributed in a long way to eliminate scope for complaints against ROs / AROs.

There are a few cases of erroneous allotment of symbols by the Returning Officers Stage-I and the Commission issued instructions to make course corrections in the respective Gram Panchayats to bring the election process back on rails as per election law and issued instructions for initiating disciplinary action against the errant officials.

The number of ROs / AROs appointed in each District is indicated in the statement enclosed as **Annexure VI.**

CHAPTER - VII

POLLING PERSONNEL

The State Election Commission placed the responsibility on the Collectors and District Election Authorities to appoint Presiding Officers and Polling Personnel for conduct of Gram Panchayat elections as per the yardstick given below.

Voting Strength of Polling Station	Deployment of Polling Personnel
Upto 200 Voters	One Presiding Officer + One Polling Officer
201 to 400 Voters	One Presiding Officer + Two Polling Officers
More than 400 Voters	One Presiding Officer + Three Polling Officers

In Circular No.240/SEC-B2/2011, dtd.30.5.2011 and 11.06.2013 (**Annexure VII)** detailed instructions were issued on selection, appointing of Returning Officers and polling personnel and training for Gram Panchayat elections.

In Gram Panchayat elections, each Ward is a constituency. At least one Polling Station has to be set up in each Ward. Where the voting strength of a ward exceeds 650, two Polling Stations are to be set up. In view of this, about 2,19,753 Polling Stations were set up requiring huge contingent of polling personnel for three phases of poll conducted Revenue Division-wise. As nearly 3,00,000 polling personnel were available in the entire State for deployment on election duty, some of the polling personnel deployed on poll duty in the 1st phase were redeployed in the subsequent phases and to facilitate this arrangement, three clear days of gap is give between the two consecutive phases of poll.

The Commission did an elaborate exercise on deployment of polling personnel. As elections were contemplated to be conducted in the summer vacation of the educational institutions, the Commission took advance action by

convening a meeting with the senior officials of the Education Department on 28.03.2013 and discussed all issues relating to deployment of Lecturers and Teachers on election duty during the vacation period. Some important decisions were taken in the said meeting. A copy of the Minutes of the said meeting is enclosed as **Annexure VIII.**

Some of the important steps taken by the Commission on deployment of polling personnel are listed below.

1. No employee deployed on polling duty shall be posted in his/her native Mandal or the Mandal in which he/she works or resides.

2. The Commission developed the required application for data entry of the polling personnel and also provided the software for Randomization to all the districts and the IT Consultant and System Analyst of the Commission supervised the entire process. Instructions issued by the Commission for 3-Stage Randomization and data entry are appended as **Annexure IX.**

3. Randomization facilitated formation of polling parties in a systematic manner without giving scope for complaints relating to posting of seniors under juniors particularly in teaching community.

4. Randomization procedure ensured that Head Masters, Junior Lecturers and Degree College Lecturers were not posted to work under Teachers. No polling party comprised of two employees from the same department, except Education Department. In Education Department, no two teachers from the same school were posted in the same polling station.

5. Randomization also provided for revealing the details of the polling station to the polling party concerned just before their departure from the distribution centre to eliminate any scope for any complaints of bias.

6. The Commission reviewed arrangements made by the District Administration for selection, deployment and randomization of polling personnel in the Regional Conferences and Video Conferences.

Disciplinary action against evaders of election duty:

It was brought to the notice of the State Election Commission that some Polling Personnel drafted on election duty failed to report at training classes and/or at distribution centres compelling the District Administration. The Commission took a serious view of this matter and issued directions to all the Collectors & DEAs to file criminal cases and also initiate disciplinary action against the Polling Personnel who failed to report for the election duty under Sections 210 and 222 of the A.P. Panchayat Raj Act, 1994 and Section 174 of the Indian Penal Code 1860 (extracts enclosed) vide Letter No.1504/SEC-B2/2013-2, dtd. 28.07.2013 **(Annexure X).**

CHAPTER - VIII
POLLING STATIONS

Each ward of a Gram Panchayat is a constituency. In view of this, a Polling Station shall be set up for each ward constituency of a Gram Panchayat. Further, for the Gram Panchayat elections, which are held on non-party basis, the entire election process including poll, counting and declaration of results is completed on the same day. The poll is held from 7:00 AM to 1:00 PM and the counting starts at 2:00 PM after bringing polled ballot boxes from all polling stations to a central place selected for counting in the Gram Panchayat itself. A voter has to cast two votes – one for the Sarpanch and the other for ward member. Keeping these requirements in view, the State Election Commission framed detailed circular instructions in connection with setting up polling stations. The responsibility of setting up of polling stations of required number at suitable locations conforming to the instructions issued by the Commission is vested with the Collector & District Election Authority.

In Circular No. 239/SEC-B2/2011, dtd.25.5.2011, detailed instructions were issued in connection with setting up of polling stations for Gram Panchayat elections **(Annexure XI)**. Some of the important instructions are reproduced below.

1) There shall be at least one polling station for each ward of a Gram Panchayat. The strength of a polling station is fixed at 600 voters subject to marginal adjustments upto 50 voters. If the strength of a ward is more than 650, two polling stations are to be set up and the voters are distributed equally between the two polling stations.

2) No voter should be required to move more than 2 Kms to reach the polling station.

3) Polling station should be located as far as possible in the Government buildings and construction of temporary structure should be avoided to the extent possible.

4) The publication of list of polling stations should be done as per the schedule given by the Commission and a meeting of leaders of local units of political parties should be convened on the date fixed to obtain their suggestions and views on the list published and their grievances should be redressed and suggestions should be examined so as to ensure that voter convenience which is of prime consideration is not compromised in the process.

The list of polling stations were first published as per the schedule given by the Commission in the month of April, 2013 on the basis of Gram Panchayat ward-wise electoral rolls published with reference to 1.1.2013 as qualifying date. This ward division was based strength of wards in each Gram Panchayat based on Census-2001 figures.

After the Census 2011 figures were published on 3.05.2013, the strength of wards in each Gram Panchayat was refixed by the Commissioner of Panchayat Raj as per latest Census-2011 figures. On the request made by the Commissioner of Panchayat Raj, the electoral rolls of the Gram Panchayats were republished ward-wise on 15.06.2013 based on revised strength of wards as per Census-2011 figures. In view of this development, the polling stations were also republished between 17.06.2013 and 21.06.2013 as per the schedule given by the Commission in Circular No.239/SEC-B2/2011-4, dtd. 12.06.2013.

The number of Polling Stations set up in each district for Gram Panchayat elections is indicated in the **Annexure XII.**

After completion of Stage-I election process in respect of all Gram Panchayats, the number of unanimously elected Sarpanches and Ward Members was finalised. The Commission then took up the exercise of merger of polling stations where there was unanimous election of ward members and poll is required for the office of Sarpanch only to reduce the expenditure on TA & DA to polling personnel. The Commission accorded permission to the Collectors & DEAs to merge polling stations where there is unanimous election for the office of ward members and poll is held only for Sarpanch subject to the following conditions.

1) Such merged polling stations shall not have a voting strength of more than 650 voters.
2) Only those polling stations which are located in the same premises or location shall be merged.
3) Photo voter slips should be generated as per the merger proposed and distributed.
4) Wide publicity should be given in the polling areas regarding merger.

The State Election Commission reviewed the subject of setting up of polling stations, their publication, inputs from political parties, redressal of complaints and action taken on suggestions made by political parties, individuals and groups in all the Regional Conferences and also during Video Conferences conducted by the Commission to review the election preparedness. This exercise has contributed in a long way to reduce the number of complaints to a minimum with regard to setting up of polling stations and ensured smooth conduct of elections.

CHAPTER - IX
ELECTION MATERIAL

As the term of elected bodies of Gram Panchayats was due to expire on 22.8.2011, the State Election Commission took advance action by addressing the Commissioner of Printing, Stationery and Stores Purchase to take up the exercise of procurement and printing of material required for conduct of elections. The established procedure that was followed since the inception of the Commission was that the Commissioner of Printing shall be entrusted with the responsibility of printing and procurement of material required for conduct of elections and the funds required for the jobs entrusted to him shall be released by the Government directly to him based on the proposal sent by him. For the 4th Ordinary elections to Gram Panchayats also, the same procedure was continued. Based on the proposals sent by him, the Government released Rs.10,65,00,000 for procurement of various election material for both Gram Panchayat elections and MPTC/ZPTC elections vide G.O.Rt.No.1343, Panchayat Raj & Rural Development (E&R) Dept., dtd. 20.8.2011. The Commissioner of Printing, Stationery and Stores Purchase got printed / procured items required for Gram Panchayat elections in the year 2011 with the funds released by the Government on the presumption that elections will be held in July/August 2011. However, elections were postponed due to interim orders passed by the Hon'ble High Court in June 2011. After getting clearance from the Hon'ble Supreme Court, elections were held in July 2013.

The Commissioner of Printing, Stationery and Stores Purchase had taken the following steps in connection with procurement of material required for conduct of Gram Panchayat elections.

Printing of Ballot Papers:

The Commissioner of Printing estimated the requirement of Pink wove paper required for printing of Sarpanch ballot paper and White wove paper required for printing of Ward Member ballot paper based on the inputs given by

the Commission, such as voting strength and estimated average number of contesting candidate for the offices of Sarpanch and Ward Members for the entire State and procured the paper following the established procedure at his end. He also got the paper delivered to the concerned Districts as the printing work was entrusted to the Collectors & District Election Authorities.

During the Regional Conferences and Video Conferences conducted by the Commission with the District Administration, some of the Collectors & DEAs have brought to the notice of the Commission that the quantity of paper supplied by the Commissioner of Printing was not adequate and requested for supply of additional quantity of paper. The Commission compiled the additional requirement and issued instructions to the Commissioner of Printing for procurement and supply of paper to the Districts. Accordingly, he procured and supplied additional requirement of paper to the needy districts well before the issue of Election Notification by the Commission facilitating early completion of the task of printing ballot paper for Gram Panchayat elections which contains only symbols without the names of the contesting candidates. He was also provided with additional funds for procurement of additional requirement.

Indelible Ink Phials:

The term of office of elected bodies of MPPs and ZPPs were due to expire on 21.7.2011 and 22.7.2011 and that of the Gram Panchayats on 22.8.2011. The State Election Commission placed an indent to the Commissioner of Printing on 19.5.2011 for procurement of 1,32,000 Indelible Ink Phials for MPTC/ZPTC elections by 10.6.2011. The Commission also placed another indent on 7.6.2011 for procurement of 2,17,000 Indelible Ink Phials for Gram Panchayat elections by 25.6.2011. The Commissioner of Printing took steps for procurement of Indelible Ink Phials and finalised the following three firms for the said procurement.

1) M/s Kores India Limited, Hyderabad .. 1,77,000 Phials
2) M/s O.S.S. Laboratories, Hyderabad .. 1,75,000 Phials
3) M/s Anisha Chemicals Ltd., Hyderabad .. 50,000 Phials

The Hon'ble High Court of Andhra Pradesh in its interim order dtd. 16.11.2011 in WPMP No. 19860 of 2011 in WP No. 16560 of 2011 stayed the elections disabling the Commission to proceed further in connection with conduct of elections to Panchayat Raj bodies just before issue of Election Notification. In view of this development, the Commission sent a fax message to the Commissioner of Printing requesting to put on hold procurement of Indelible Ink Phials indented by the Commission until further orders. However, the Commissioner of Printing took delivery of 2,40,000 Indelible Ink Phials of 10 ml each between 23.6.2011 and 1.7.2011 from the said three firms as per the details given below and paid Rs.2,61,60,000 to them.

1) M/s Kores India Limited, Hyderabad .. 1,77,000 Phials
2) M/s O.S.S. Laboratories, Hyderabad .. 13,000 Phials
3) M/s Anisha Chemicals Ltd., Hyderabad .. 50,000 Phials

The stock accepted from the three firms was preserved in the Government Central Press, Chanchalguda, Hyderabad at 24°C to extend their shelf life as per the understanding reached by the Commissioner of Printing with the firms, which undertook to pay the electricity charges @ Rs.1000/- per month as the elections were delayed due to Court litigation. It is to be noted that the Commissioner of Printing accepted the entire stock for which order was placed with Kores India Limited and Anisha Chemicals and accepted only 13,000 Phials out of the 1,75,000 Phials originally indented with OSS Laboratories. The stock indented and not accepted from OSS Laboratories was 1,62,000 Phials. The Commission addressed the Chief Electoral Officer, AP and also other State Election Commissions to use the stock of 2,40,000 Indelible Ink Phials procured for any elections in the State or in other States as elections were delayed due to litigation in High Court. However, they expressed their inability to use the stock already procured in June/July 2011 and it continued to be preserved in controlled conditions in the Government Central Press. However, a minor quantity of 1750 Phials were used for casual elections to Urban Local Bodies leaving the remaining

stock of 2,38,000 Phials preserved in controlled conditions in Government Central Press.

After the legal impediments were cleared for conduct of elections to PRIs with the interim directions of the Hon'ble Supreme Court dtd. 18.02.2013, the Government and the Commission initiated the steps for conduct of elections to PRIs. The Commission reviewed the preparations for conduct of elections in May/June 2013.

As nearly two years have expired from the date of procurement, the Commission requested the Commissioner of Printing sent random samples to the IICT, Hyderabad for chemical testing. The stock was also got checked physically by the team of officials deputed from the office of the Commissioner of Printing, Commissioner of Panchayat Raj and State Election Commission. Taking into consideration the chemical test reports and physical condition of the phials, the Commissioner of Printing expressed that nearly 1,75,000 phials procured from Kores India Limited are in usable condition without causing any harmful effects on the persons applied with ink. The Commission requested the Commissioner of Printing to distribute usable stock of 1,75,000 phials to the districts and also to procure 80,000 Indelible Ink Phials of 5 ml. size as elections were to be held in nearly 2,20,000 Polling Stations. The Commissioner of Printing procured 80,000 Indelible Ink Phials from Mysore Paints and Varnishes and the Commission arranged for release of funds to the tune of Rs.91,20,000 for this additional procurement. The Commission saved considerable money to the public exchequer by using 1,75,000 old phials for conduct of Gram Panchayat elections.

As the average number of voters per polling station was nearly 300 and the liquid available in the indelible ink phial of 10 ml. quantity can be applied for nearly 1000 voters, the Commission issued instructions for optimum utilization of the available fluid by passing on the phials containing left over fluid from 1st Phase to 2nd Phase and from 2nd Phase to 3rd Phase of poll. This exercise also contributed for saving considerable public money.

Hand Books:

The Commission prepared the following Handbooks / Instruction Booklets in connection with conduct of ordinary elections to Gram Panchayats.

1. **Handbook of Election Law (Panchayat Raj)** was prepared compiling all relevant provisions relating to conduct of elections to Panchayat Raj Bodies enshrined in the Constitution of India, Indian Penal Code, 1860, A.P. Panchayat Raj Act, 1994 and also all relevant rules relating to preparation and publication of Electoral Rolls, Conduct of direct elections, conduct of indirect elections, etc. As all the relevant provisions and rules scattered in different manuals and books were brought together, it facilitates the election authorities to refer to any election related provision quickly to take appropriate decisions in the election scenario without any loss of time.
2. **Compendium of Instructions** contains all the instructions issued by the Commission on various activities relation to election process including setting up of Polling Stations, appointment of Returning Officers, appointment of Polling Personnel, appointment of administrative machinery, restrictions on possession of arms, videography during election period and other allied matters.
3. **Hand Book for Returning Officers** containing detailed instructions on the duties and responsibilities entrusted to the Returning Officers and detailed guidelines on each of the activity performed by RO/ARO in connection with conduct of elections from the time of issue of Election Notice till the completion of election process.
4. **Hand Book for Presiding Officers** containing detailed instructions on the duties and responsibilities entrusted to the Presiding Officers and Polling Officers. It also contains guidelines on various steps to be taken in connection with conduct of poll process.

5. **Hand Book for Contesting Candidates** contains information relating to qualifications and disqualifications and the requirements to be fulfilled by the contesting candidates. It also encompasses important information relating to various stages of election process for the guidance of contesting candidates, such as nomination process, appointment of agents, campaign period, poll, counting, declaration of results, election of Upa-Sarpanch, DOs and Don'ts, rendering of accounts of election expenditure, etc.
6. **Model Code of Conduct** for the guidance of contesting candidates, political parties, ministers, government officials, local body officials, etc., so as to provide a level playing field to ensure free, fair and peaceful elections.

All these booklets were prepared by the Commission and got printed in the Government Central Press at Chanchalguda in required quantity. They were supplied to all the districts in adequate number. A distribution statement showing the scale of supply of each booklet to various districts is given in **Annexure XIII.**

Statutory and non-statutory forms and covers:

The statutory and non-statutory forms and covers required for Gram Panchayat elections were got printed in Government Central Press and supplied to the districts. The district wise supply for Gram Panchayat elections is indicated in the **Annexure XIV, XIV-A & XIV-B.**

Paper Seals:

For Gram Panchayat elections 9,70,000 paper seals containing serial numbers from P000001 to P970000 were got printed in Government Central Press and supplied to the districts as per the scale indicated in the **Annexure XV.**

Local procurement of other election material through District Purchase Committee:

Election material other than what is supplied by the Commission through Commissioner of Printing, Stationery and Stores Purchase was ordered to be procured locally through District Purchase Committees headed by the District Collector duly following the prescribed procedure.

CHAPTER - X

FINANCIAL ARRANGEMENTS

The funds required for conduct of elections can be categorized department-wise into the following segments:-

1) District election budget released to the Collectors & District Election Authorities for payment of TA / DA, POL, Publications, OOE, etc. This is projected district-wise by the Commissioner of Panchayat Raj and Rural Employment, Andhra Pradesh and a proposal is sent by him to the Government in Panchayat Raj & Rural Development Department which in turn obtains clearance from the Finance Department and issue orders releasing the budget.

2) Budget required for Commissioner of Printing, Stationery and Stores Purchase for the jobs entrusted to him in connection with elections, such as procurement of indelible ink, paper required for printing of ballot papers, procurement and printing of forms and covers, printing of instruction booklets/handbooks, printing of paper seals, etc. The proposals are sent by the Commissioner of Printing to the Government in Panchayat Raj Department for releasing required funds for the jobs of procurement and printing of election material entrusted to him. The Panchayat Raj Department in turn obtains clearance of the Finance Department and issues orders releasing funds directly to the Commissioner of Printing.

3) Budget required for Police Department for making bandobust arrangements for conduct of elections is projected by the Director General of Police after obtaining necessary inputs from the concerned Superintendents of Police / Commissioners of Police and proposals are sent by him to the Home (Police Budget) Department which in turn obtains clearance from the Finance Department and issues necessary orders sanctioning the budget for bandobust arrangements.

4) Whenever elections are held, additional budget required to the State Election Commission to meet election related expenditure is projected and a proposal is sent by the Commission to the Government in Panchayat Raj & Rural Development Department which in turn obtains clearance of the Finance Department and issues necessary orders releasing funds to the Commission. This is necessitated as the annual budget allocated to the Commission contains only the administrative expenditure to run the office. The additional funds are used for conducting Regional Conferences, Video Conferences, meetings with officials, meetings with political parties, meetings with Observers, daily press briefings, voter awareness campaign, procurement of computer systems, xerox machines, UPS, fax machines, audio systems in conference hall, stationery, set up of control room, media room, refreshments, legal expenses to deal with cases filed in High Court/Supreme Court, payment of honorarium to the officers and staff of the Commission, etc.

For the 4th ordinary elections to Gram Panchayats, funds released by the Government to various authorities are given in the table below.

S.No.	G.O. in which funds were released	Amount Released	Authority to whom funds were released	Purpose
1.	G.O.Rt.No.460, P.R. & R.D. (E&R) Dept., dtd. 16.03.2013	Rs.13,77,47,305	District Panchayat Officers	Preparation, publication and printing of Panchayat Electoral Rolls.
2.	G.O.Rt.No.849, P.R. & R.D. (E&R) Dept., dtd. 22.05.2013	Rs.1,07,97,000	District Panchayat Officers	Printing of Ballot Papers for Gram Panchayat elections
3.	G.O.Rt.No.1078, P.R. & R.D. (E&R) Dept., dtd. 01.07.2013	Rs.104,68,00,000	Commissioner of Panchayat Raj and Collectors & District Election Authorities	District election budget for conduct of Gram Panchayat elections.

4.	G.O.Rt.No.1343, P.R. & R.D. (E&R) Dept., dtd. 20.08.2011	Rs.10,64,69,900	Commissioner of Printing, Stationery and Stores Purchase	Procurement of paper, printing of books and forms, procurement of covers, indelible ink, etc.
5.	G.O.Rt.No.1126, P.R. & R.D. (E&R) Dept., dtd. 08.07.2013	Rs.2,19,55,140	Commissioner of Printing, Stationery and Stores Purchase	Procurement of additional quantity of paper for printing of ballot papers.
6.	G.O.Rt.No.1139, P.R. & R.D. (E&R) Dept., dtd. 09.07.2013	Rs.90,00,000	Commissioner of Printing, Stationery and Stores Purchase	Procurement of Indelible Ink
7.	G.O.Rt.No.1542, Home (Police Budget) Dept., dtd. 11.07.2013	Rs.40,06,00,000	Director General of Police	Election related bandobust arrangements.
8.	G.O.Rt.No.910, P.R. & R.D. (E&R) Dept., dtd. 04.06.2013	Rs.85,00,000	State Election Commission	Additional funds to meet election related expenditure.

CHAPTER - XI
ELECTION PROGRAMME

Rule 4 of Andhra Pradesh Panchayat Raj (Conduct of Election) Rules, 2006, specified the time limits for various stages of election process such as the last date for filing of nominations, date of scrutiny of nominations, date for filing an appeal against rejection, date of disposal of appeal, last date for withdrawal of candidature, date or dates of poll and counting of votes, etc.

The notification for conduct of 4th ordinary elections to Gram Panchayats was issued on 03.07.2013 and the poll was held in III phases on 23.07.2013, 27.07.2013 and 31.07.2013 and the counting was on the same date of poll.

Before finalising the election programme for fourth ordinary elections to Gram Panchayats in the year 2013, the State Election Commission held discussions with the District Election Authorities, Superintendents of Police, Chief Executive Officers of Zilla Parishads, District Panchayat Officers, Director General of Police, Principal Secretary to Government Panchayat Raj Department, Commissioner of Printing, Stationery and Stores purchases, Principal secretary to Government, Finance Department, Commissioner of Panchayat Raj and the Political Parties regarding various issues relating to the said elections.

In the meeting held with the political parties in the office of the State Election Commission on 29.06.2013, on the issue of finalization of schedule for elections to Mandal Parishads & Zilla Parishads and Gram Panchayats, all political parties unanimously accepted the proposal of the Commission for conduct of MPTC/ZPTC elections in two phases in such a manner that, 11 districts as a whole go for poll on a single date in I phase and the remaining 11 districts as a whole go for poll on a single date in II phase and Gram Panchayat elections in **three phases** in such a manner that, all the Gram Panchayats in a revenue division as a whole go for poll on a single date in a phase as was done during 3rd ordinary elections.

The State Election Commission issued notification for the conduct of elections to Gram Panchayats in three phases. Before finalizing the election programme for Fourth ordinary elections to Gram Panchayats, the State Election Commission conducted a videoconference with the District Election Authorities, Superintendent of Police, District Panchayat Officers, and other concerned officials and satisfied with their preparedness to hold Gram Panchayat elections. The elections were held in three phases as indicated below. The breakup of number of Gram Panchayats and wards notified for poll in each phase district wise is given in the **Annexure XVI.**

Phase	**No. of GPs Notified**	**No. of Wards Notified**
1st Phase (23.07.2013)	6863	69450
2nd Phase (27.07.2013	7738	78160
3rd Phase (31.07.2013)	6890	69968
Total	**21491**	**217578**

The State Election Commission finalized the following election programme for Fourth ordinary elections to Gram Panchayats and issued election notification No.757/SEC-B2/2013, on 03.07.2013 which was published in the extra ordinary issue of Andhra Pradesh Gazettee (**Annexure XVI-A**).

ELECTION PROGRAMME

1.	(a) Date of issue of Election Notice by the Returning Officer under Rule 6 of Andhra Pradesh Panchayat Raj (Conduct of Elections) Rules, 2006 in Form-I.	09.07.2013 (From this date nominations can be filed between 10:30 AM and 5:00 PM)
	(b) Display of ward wise electoral roll of Gram Panchayat by Returning Officer under Rule 5 of said rules.	09.07.2013
2.	Last date for filing of Nominations	13.07.2013 (Upto 5:00 PM)
3.	Scrutiny of Nominations	14.07.2013 (11:00 AM onwards)
4.	Appeal before Revenue Divisional Officer against the rejection of Nominations	15.07.2013 (Upto 5:00 PM)
5.	Disposal of Appeals by Revenue Divisional Officer	16.07.2013
6.	Last date for withdrawal of candidature	17.07.2013 (Not later than 3:00 PM)
7.	Publication of list of contesting candidates	17.07.2013 (After 3:00 PM)
8.	Dates of Poll: (Names of the Revenue Divisions, No. of Gram Panchayats and No. of Wards going for poll in each Revenue Division in the 3 Phases of poll are indicated in the Annexure-II appended to the Notification)	I-Phase : 23.07.2013 II-Phase : 27.07.2013 III-Phase : 31.07.2013 (From 7:00 AM to 1:00 PM)
9.	Dates of Counting of Votes	I-Phase : 23.07.2013 II-Phase : 27.07.2013 III-Phase : 31.07.2013 (From 2:00 PM onwards)
10.	Declaration of Results	Soon after the completion of counting of votes
11.	(a) Date of conduct of election of Upa-Sarpanch under Sec. 14(10) of A.P. Panchayat Raj, 1994.	On the same date on which results are declared.
	(b) If for any reason, the election of Upa-Sarpanch is not held on the date aforesaid, it shall be held on the next day, whether or not it is a holiday observed by the Gram Panchayat.	

Out of total number of 21590 Gram Panchayats in the state, elections were notified to 21441 Gram Panchayats. The remaining Gram Panchayats were notified for elections on different dates as and when their term was expired.

The date of poll of 322 Gram Panchayats in 45 Mandals and 11 Revenue Divisions in 9 Districts was rescheduled due to heavy rains. The list of those Gram Panchayats is indicated in the **Annexure XVI-B.**

CHAPTER - XII
NOMINATIONS

As per the election programme notified by the State Election Commission for fourth ordinary elections to Gram Panchayats, nominations were filed from 9.07.2013 to 13.07.2013 between 10:30 AM to 5:00 PM.

Sarpanch:

The total number of nominations filed till the last date of filing of nominations i.e, 13.07.2013 were 1,29,005 for the posts of Sarpanchas. The average number of nominations filed to each Sarpanch post is 6. The highest number of 9363 nominations were filed in Karimnagar District for 1207 Sarpanch posts. The lowest number of 3924 nominations were filed in Ranga Reddy district for 649 Sarpanch posts. No nominations were filed for 78 Sarpanch posts in 19 Districts.

District wise break up of number of nominations filed is indicated in the **Annexure XVII.**

Ward Members:

The total number of nominations filed till the last date of filing of nominations on 13.07.2013 were 566446 for the posts of 216988 Ward members. The average number of nominations filed to each Ward Members was 2.61. The highest number of 34329 nominations were filed in Mahabubnagar District for 13464 Ward member posts. The lowest number of 16734 nominations were filed in YSR District for 7724 Ward member posts. No nominations were filed for 1091 Ward member posts in all the Districts. The District wise breakup of nominations filed is indicated in the **Annexure XVI.**

Scrutiny of Nominations:

Sarpanch:

After completion of scrutiny of nominations on 14.07.2013 there were 116934 validly nominated candidates for 21441 Sarpanchas. The average number of validly nominated candidates for each Sarpanch post worked out to 5.45. The District wise breakup of validly nominated candidates is shown in **Annexure XVII-A.**

Ward Member:

After completion of scrutiny of nominations on 14.07.2013 there were 543208 valid nominated candidates for 216988 ward member posts. The average number of validly nominated candidates for each ward member posts worked out to 2.5. The District wise breakup of validly nominated candidates is shown in **Annexure XVII-A.**

Appeals against the rejection of Nominations:

A person whose nomination for the office of Sarpanch or ward member is rejected by the Returning Officer during scrutiny of nominations may file an appeal before the RDO concerned before 5.00 PM on the day following the scrutiny of nominations.

Withdrawal of candidature from contest:

As per the election programme, the last date for withdrawal of candidature was 17.07.2013 not later than 3.00 PM. The number of candidates withdrawn from contest from Sarpanch elections was 59076 and for ward member elections was 176011.

Contesting candidates:

As per the election programme, the list of contesting candidates was published on 17.07.2013 after 3.00 PM.

Sarpanch:

For 18721 Sarpanch posts there were 57858 candidates in the fray. The average number of contestants for each Sarpanch post is worked out to 3.09. In Karimnagar district there were the highest number of 4876 candidates in the contest for 1148 Sarpanch posts. The lowest number of 1787 candidates were in the contest in SPSR Nellore District for 724 Sarpanch posts. There was unanimous election to 2642 Sarpanch post in the entire State. District wise breakup of unanimous election is indicated in the **Annexure XVIII.** Maximum number of 293 Sarpanchas were unanimously elected in Chittoor District. District-wise breakup of contesting candidates is indicated in the **Annexure XVIII-A.**

Ward Members:

For 155942 ward member posts there were 367197 candidates in the fray. The average number of contestants for each ward member post is worked out to 2.35. In Mahabubnagar District there were the highest number of 27208 candidates in the contest for 11660 ward member posts. The lowest number of 9844 candidates were in the contest in YSR Kadapa district for 4469 ward member posts. There was unanimous election to 59955 ward member posts in the entire state. District wise breakup of unanimous election is indicated in the **Annexure XVIII-B.** Maximum number of 7335 Ward members were unanimously elected in Chittoor district. District breakup of contesting candidates is indicated in the **Annexure XVIII-C.**

CHAPTER - XIII
ELECTION SYMBOLS

Under Section 202 of the A.P. Panchayat Raj Act, 1994, the Stat Election Commission shall, by notification, specify the symbols that may be allotted to the candidates in elections to Gram Panchayats. It is specifically provided under the said section that in Gram Panchayat elections, symbols reserved for Recognised Political Party or a Registered Political Party shall not be allotted to any of the contesting candidates as the Gram Panchayats elections are held on non-party basis.

The State Election Commission identified required number of free symbols meeting the above stipulation so as to notify them for the purpose of conduct of Gram Panchayat elections.

In Notification No. 425/SEC-L/2011, dtd.08.06.2011 (**Annexure XIX**), the State Election Commission notified (20) free symbols for allotment to the contesting candidates for the office of Sarpanch and (15) free symbols for allotment to the contesting candidates for the office of Ward Member.

After the commencement of election process, the Commission noticed that in some Gram Panchayats, the number of symbols already notified for the office of Sarpanch and Ward Member were not sufficient and there was a requirement to notify additional free symbols for both Sarpanch and Ward Member.

In Notification No. 425/SEC-L/2011, dtd. 17.07.2013 (**Annexure XIX-A**), the Commission notified (25) additional free symbols for the office of Sarpanch and (25) additional free symbols for the office of Ward Member.

Procedure for allotment of Symbols:

The Returning Officer shall serially allot the symbols from the list of free symbols notified by the Commission to the contesting candidates for the office of Sarpanch or Ward Member, as the case may be.

In case of Sarpanch election, the first symbol in the list of free symbols notified for the office of Sarpanch should be allotted to the first candidate in the list of contesting candidates and symbol at Sl.No. 2 to the second candidate in the list of contesting candidates and so on. The same procedure shall be followed for allotment of symbols to Ward Members.

If symbols originally notified for the office of Sarpanch and Ward Member are not sufficient for the contesting candidates for the office of Sarpanch and Ward Member in any Gram Panchayat, then only additional symbols have to be taken up and allotted to candidates.

A Circular issued by the Commission in Ref.No.784/SEC-B2/2013, dtd.04.07.2013 containing detailed instructions and also an illustration on allotment of symbols to candidates in Gram Panchayat elections is appended as **Annexure XIX-B.**

CHAPTER - XIV
MODEL CODE OF CONDUCT

In order to ensure free, fair and peaceful elections to local bodies in the State, the State Election Commission issued Model Code of Conduct (MCC) (**Annexure XX**) for elections to Local Bodies in exercise of the plenary powers conferred on it under Article 243-K and 243-ZA of the Constitution of India. The Model Code of Conduct for local body elections is applicable to the political parties, contesting candidates, Ministers, Employees of State Government and Local Bodies and other public servants connected with local body elections. The Model Code of Conduct shall be in force from the date of issuance of Election Notification till the date of declaration of results.

The State Election Commission issued notification on 03.07.2013 for conduct of ordinary elections to Gram Panchayats in the State. Therefore, the Model Code of Conduct was in force with effect from 03.07.2013. The Model Code of Conduct ceased to be in force with the completion of the final phase of poll to Gram Panchayats on 31.07.2013. In this regard, the Commission clarified that the Model Code of Conduct ceased with effect from 31.07.2013, however in respect of Gram Panchayats, for which the election process has been re-notified / altered the MCC shall be enforced within the jurisdiction of those Gram Panchayats only till the completion of election process, vide Circular No.757/SEC-B2/2013, dtd. 31.07.2013 **Annexure XXI.**

Immediately after issue of election notification, the Commission sent copies of the election notification and MCC to the Principal Secretary to Governor, the Principal Secretary to the Chief Minister, the Chief Secretary to Government, the Director General of Police, all the Collectors and District Election Authorities and all the Superintendents of Police and Commissioners of Police for strict implementation of MCC during the election period.

The Commission issued instructions to the District Collectors (**Annexure XXII**) to constitute mobile teams headed by the zonal officers (preferably a Gazetted Officers) supported by one sub-inspector of police and two constables and a videographer to oversee the implementation of Model code of conduct in the area allotted to them from the date of publication of list of contesting candidates till the completion of election period and also the poll arrangements on the pre-poll day and the poll day. These mobile teams were also conferred magisterial powers to utilize the powers under section 144 Cr.PC by the government. This arrangement ensured free, fair and peaceful elections.

The following are the Circular/Orders issued by the Commission for strict implementation of MCC during the period of elections.

S.No.	Reference	Contents in brief	Annexure
1	Cir.169/SEC-B1/2011, dtd. 13.05.2011	Maintenance of Law and Order and prevention of electioneering within the prohibited area around polling stations – instructions regarding setting up Election Booths.	**XXIII**
2	Cir.170/SEC-B1/2011, dtd. 19.05.2011	Ban on electioneering during the period of 48 hours ending with the hour fixed for the conclusion of poll in case of elections to MPTCs/ ZPTCs and 44 hours ending with the hour fixed for the conclusion of poll in case of Gram Panchayat elections.	**XXIII-A**
3	Order No.171/ SEC B1/2011, dtd. 13.05.2011	Restrictions on the use of cellular phones in the vicinity of polling stations and counting centres	**XXIII-B**
4	Circular No.172/ SEC-B1/2011, dtd. 13.05.2011	Ministers, MPs MLAs and MLCs having security cover shall not be appointed as Election Agents or Polling Agents or Counting Agents – Instructions	**XXIII-C**
5	Ord.174/SEC-B1 /2011, dtd. 27.05.2011	Restrictions on the printing pamphlets, posters etc.,	**XXIII-D**
6	Ord.175/SEC-B1 /2011, dtd. 8.6.2011	Restrictions on possession of Arms during elections	**XXIII-E**
7	Cir.177/SEC-B1 /2011, dtd. 30.05.2011	Prevention of disfigurement of public and private places during elections	**XXIII-F**

8	Cir.178/SEC-B1 /2011, dtd. 30.05.2011	Videography to record the critical events.	**XXIII-G**
9	Dir.179/SEC-B1/2011, dtd. 23.05.2011	Use of loud speakers for election campaign.	**XXIII-H**
10	Dir.180/SEC-B1/2011, dtd. 13.05.2011	Instructions on use of vehicles during elections.	**XXIII-I**
11	Cir.181/SEC-B1 /2011, dtd. 10.05.2011	Complaints filed by candidates, political parties and citizens on violation of Model Code of Conduct, allegations against employees etc.	**XXIII-J**
12	Circular No.256/SEC-B2/2011, dtd. 30.5.2011	Instructions on use of vehicles during elections & Vehicle permits.	**XXIII-K**
13	Circular No.403/ SEC-B1/2011, dtd. 18.5.2011	Restriction on number of vehicles and people filing at the time of nominations.	**XXIII-L**
14	Cir.456/SEC-B1/2011, dtd. 28.5.2011	Action against violators of Model code of conduct	**XXIII-M**
15	Order No.241/ SEC-B2/2011, dtd. 3.07.2013	Ban on transfer of all officers / officials directly or indirectly connected with elections and also ban on recruitments/ appointments.	**XXIII-N**
16	Order No.616/ SEC-B1/2013, dtd. 7.07.2013	Curbs on flow of liquor during election period – closure of belt shops and monitoring of production, storage and distribution of liquor.	**XXIII-O**
17	Circular No.1283/ SEC-B2/2013, dtd. 19.07.2013	Restrictions on presence of political functionaries in the Gram Panchayats after the campaign period is over.	**XXIII-P**
18	Order No.1374/ SEC-B1/2013, dtd. 20.07.2013	Restrictions on using photographs of Political leaders etc. on the campaign material by the contesting candidates.	**XXIII-Q**

Every complaint received from political parties and general public was referred to the Collector and District Election Authority concerned for causing an enquiry into the allegations made and to send a report to the Commission. Wherever it is proved in the enquiry that, model code of conduct was violated, instructions were issued to the District Administration to launch prosecution against the violators as per the provisions of the act, 1994, IPC and other enactments.

STEPS TAKEN TO CURB AUCTIONING OF POSTS:

During the Gram Panchayat elections, reports appeared in the Press and Electronic media that in some Gram Panchayats posts of Sarpanch and Ward members were auctioned in public. Auctioning of posts is a corrupt practice under Sec. 211(1) of the A.P. Panchayat Raj Act, 1994. This is also an electoral malpractice under Sec. 171-B and 171-E of the Indian Penal Code, 1860 and in conviction the offender is liable to one year imprisonment and disqualification to contest elections for a period of six years. Auctioning of posts subverts the democratic election process by denying the level playing field to all sections and restricting the right to contest and get elected to only rich, influential and affluent sections.

The State Election Commission which is vested with the responsibility of conducting the elections in a free and fair manner issued the following directions to the Collectors & DEAs in Circular No. 792/SEC-B2/2013, dtd. 04.07.2013 to foil the nefarious designs of vested interests to manipulate the election process by indulging in auctioning of posts.

a) A Special Cell shall be opened to scan the reports published in the Press and Electronic Media about alleged incidents of auctioning of posts and to cause for conduct of an enquiry forthwith.

b) The Collectors and District Election Authorities shall take prompt action to file FIR and launch prosecution against the persons involved in auctioning of posts under the sections referred above.

c) The Collectors & DEAs shall send a report to the State Election Commission wherever there is prima facie case of auctioning of posts to enable the State Election Commission to stop the election process in the Gram Panchayat concerned.

d) By way of abundant caution, wherever there are allegations of auctioning of posts, the Collectors and DEAs shall give instructions to the Returning Officers concerned not to declare the result in case of unanimous election to any office in the Gram Panchayat concerned without obtaining clearance.

The State Election Commission has kept a watch on Gram Panchayats in the State in which allegations of auctioning of posts were reported in the Press and Electronic media and after expiry of the last date for withdrawal of candidature on 17.07.2013 at 3:00 PM, in (18) Gram Panchayats mentioned below, there was unanimous election to all the offices giving credence to the reported auctioning of posts and the results were not declared. The Collectors & DEAs concerned reported that there is a prima facie case of auctioning of posts in the Gram Panchayats indicated in the Annexure to this Notification. The Commission, after careful consideration of all relevant information, re-notified the election process in those (18) Gram Panchayats cancelling the earlier election process that was vitiated due to illegal activity of auctioning of posts by vested interests undermining the free and fair nature of the election process. A copy of the Notification issued by the Commission in this matter is appended as **Annexure XXIV.**

List of (18) Gram Panchayats where election process was re-notified due to Auctioning of posts:

Name of the District	Name of the Mandal	Name of the Gram Panchayat
SPSR Nellore	Sullurupet	Kudiri
	Thada	Irakam
	Thada	Karuru
Prakasham	Bestavaripeta	Chinna Obinenipalli
	Santhamaguluru	Makkenivaripalem
	Santhamaguluru	Pathamaguluru
	Maddipadu	Nelaturu

	Giddaluru	Kongalaveedu
Krishna	Pedana	Penumalli
Nalgonda	Dhamaracherla	Nadigadda
Nizamabad	Vailpoor	Komanpally
		Venkatapoor
Guntur	Vinukonda	Andugulapadu
	Savalyapuram	Erlapadu
	Gurazala	Gogulapadu
	Dachepalli	Sarangapalli
	Ipuru	Udijerla
YSR District	Rajupalem	Gopayapalli

CHAPTER - XV

LAW & ORDER AND BANDOBUST ARRANGEMENTS

The State Election Commission commenced the preparations for conduct of elections to Panchayat Raj Institutions soon after receipt of interim orders of the Hon'ble Supreme Court dtd. 18.02.2013. The first step the Commission took in connection with Law and Order and bandobust arrangement was to address a letter to the Director General of Police indicating the pattern of election of Gram Panchayats, number of phases in which polls were to be held, taking advance action for securing adequate budget for deployment of police and making an assessment of availability and adequacy of police force and plan for obtaining additional forces from outside the State, if required, based on such assessment by approaching the Government authorities.

The DGP was given information about 3-Phase poll for Gram Panchayats Revenue Division-wise. The DGP was also requested to prepare bandobust plans identifying sensitive, hypersensitive, extremist infested villages based on previous history of electoral malpractices, background of prospective candidates and the general political atmosphere in each village.

The State Election Commissioner meticulously reviewed in each of the Regional Conference and Video Conference the steps taken by the Superintendents of Police, Superintendents of Police (Urban) and Commissioners of Police (having jurisdiction over the rural areas) on the law and order front and identification of sensitive / hypersensitive polling stations. The Commissioner also carefully assessed every suggestion made by the Collectors & DEAs, SPs, CPs regarding identification of vulnerable areas and their requirements to make adequate bandobust arrangements. Initially, most of the districts have made a liberal assessment and projected considerably large number of sensitive / hypersensitive villages constituting nearly 80% of the total number of villages with a view not to take any chances. The Commissioner brought to the notice of

the District administration that in the last ordinary elections 15% of the offices of Sarpanch were elected unanimously and 30% of the seats of Ward Members were unanimous. In nearly 2400 Gram Panchayats, there was no election last time due to unanimous for the entire body. Revealing these facts, the Commissioner requested the senior district officials of Police department and Collectors to make a reassessment by constituting a team of officials at the Mandal level consisting of Tahsildar, MPDO and SHO to visit all the villages in their respective jurisdiction and objectively assess the sensitivity of each village and finalise the list of sensitive / hypersensitive villages. This exercise has yielded good results.

The senior Police officials particularly those dealing with law and order held series of meetings with the Commissioner and other senior officials of the Commission to arrive at the requirement of budget and deployment of forces for Gram Panchayat elections taking into consideration the inputs gathered during Regional Conferences, Video Conferences, interactions and meetings with officials.

In the meeting held in the Commission's office on 28.06.2013 with senior officials of the Government including Police Department, the availability of police force and scale of deployment for the Gram Panchayat elections was recorded. The availability of Police force is given below.

1) Civil Police	…	59,886
2) Armed Reserve	…	22,000
3) APSP	…	15,000
4) Home Guards	…	17,944
5) Cadet PCs	…	12,271

The senior Police officials honoured instructions issued by the State Election Commissioner on the scale of deployment of police force for the Gram Panchayat elections, which is given below.

1) Hypersensitive / extremist infested polling stations… 1+4
2) Sensitive Polling stations … 1+3
3) Normal Polling stations … 1+1 or 0+2

In addition to the above, Mobile Strike Force, Road Opening Parties and Route mobile were deployed on the scale followed during General Elections to APLA/HOP held in 2009 which is given below.

1) Check Posts … 1+5
2) Road Opening Parties … 1+5

The phasing of poll particularly distribution of Revenue Divisions in each phase was finalised based on the proposals sent by the Collectors & DEAs in consultation with the Superintendents of Police keeping in view the law and order requirements.

The Government released an amount of Rs.40,06,00,000/- to the Police Department for bandobust arrangements in connection with Gram Panchayat elections vide G.O.Rt.No.1542, Home (Police Budget) Dept., dtd. 11.07.2013.

Some of the salient features relating to Law & Order and bandobust arrangements are listed below.

1) In extremist infested areas, the Police parties have not despatched to the polling stations along with polling parties due to law and order situation. The polling parties and police parties moved independently and the police parties provided protection to the polling parties during their movement.

2) In non-extremist infested areas, the police parties and polling parties reached their destinations in the same vehicle.

3) After completion of counting process and declaration of results in the 1st Phase on 23.07.2013, there were reports of occurrence of disturbances and violence in some areas as the Police left the place after completion of election process. The Commission took note of this and suggested the Police Department to deploy the force in vulnerable areas to tackle post-election disturbances in the next two phases. Senior Police officials acted on this suggestion and made adequate bandobust arrangements to prevent post-poll violence.

4) The Commission issued orders in Ref.No.1118/SEC-B2/2013 dtd. 15.07.2013 **(Annexure XXV)** on standard operating procedures for Flying Squads, Static Surveillance Teams and Check Posts constituted for keeping vigil over excessive campaign expenses, distribution of items of bribe in cash or kind, movement of illegal arms, ammunition, liquor or anti-social elements in the districts during election process. This arrangement has worked effectively resulting in seizure of nearly Rs. 20 Crores of cash.

5) The Commission also issued orders for closure of belt shops and also imposed restrictions on flow of liquor during the election period vide Order No. 616/SEC-B1/2013, dtd. 07.07.2013 **(Annexure XXVI)**. The Commission reviewed this item regularly with the Excise and Police officials and they were asked to make a concerted effort to effectively control influence of liquor on election process. During the election period, a total number of 11,771 belt shops were closed and the production and off-take of liquor was monitored effectively following established procedures.

6) The number of sensitive / hypersensitive and extremist infested Gram Panchayats that went for elections in three phases in the entire State is given in the table below.

7) The Commission acted on the complaints received from the contesting candidates, political parties and general public about law and order problems and conduct of local police officials by obtaining reports quickly from the district officials concerned and took necessary action to ensure free and fair elections. Some police officials were also transferred or discharged from election related responsibilities as per the decision taken by the Commission based on the reports and inputs received.

8) By and large, the 3-Phase election of Gram Panchayats was conducted peacefully with minimum number of poll incidents and repolls ever recorded. There were also very few instances of electoral malpractices and violence.

CHAPTER - XVI

REPORTS AND RETURNS

The State Election Commission prescribed various reports and returns to be furnished by the District Collectors and District Panchayat Officers of all the districts on various items of election work relating to Gram Panchayat elections. A copy of the letter containing instructions issued by Commission in this regard is at **Annexure XXVII.**

The Commission issued instructions to send these reports by Fax (040-27544580 / 27544428) and email (**secy.apsec@gmail.com**). A Control Room was also set up in the Commission with additional phones taken on temporary basis to cope up with the additional work relating to elections and installed four additional fax machines to receive reports and returns from the districts.

The reports and returns furnished by the District Collectors / District Panchayat Officers were compiled in the control room and a consolidate report for the entire state was prepared and passed on to the press during daily press briefings.

In view of the arrangements, the flow of information in the form of reports and returns from the districts to the Commission was smooth during elections to Panchayat Raj bodies.

CHAPTER - XVII
BALLOT BOXES

In Gram Panchayat elections, a voter has to cast two votes – one for Sarpanch and the other for Ward Member of the Gram Panchayat. Under Rule 36(3) of A.P.P.R. (Conduct of Elections) Rules, 2006, where elections are held for Gram Panchayats only, there shall be only one ballot box inside the polling station at any point of time in which ballot papers of Sarpanch (Pink coloured) and Ward Member (White coloured) shall be dropped. Only after a ballot box used inside the polling station is full, it shall be closed, sealed and preserved and then another ballot box can be placed following the prescribed procedure.

Each Ward of a Gram Panchayat is a constituency requiring at least one polling station for it. Elections were notified to 2,16,988 Wards in 21,441 Gram Panchayats in the entire State and 2,19,753 polling stations were set up for conduct of polls. Further, the Commission was having only 15,465 Electronic Voting Machines of its own and the Election Commission of India expressed its inability to spare their EVMs in such a huge quantity. In view of this, the Commission decided to use ballot boxes for conduct of Gram Panchayat elections.

The Commission took advance action to complete repairs and overhaul of ballot boxes lying idle in the godowns for nearly seven years by issuing necessary instructions to the Collectors and District Election Authorities and closely monitoring this item in the Regional Conferences, Video Conferences and regular telephonic reviews. Funds required for overhaul and repairs were arranged by the Government to the Collectors & DEAs on the directions of the Government.

The Commission critically reviewed the availability and sufficiency of ballot boxes in each district for conduct of 3-Phase poll in the Regional Conferences and Video Conferences held before elections. The Gram Panchayat elections are

held on non-party basis. The entire election process including poll, counting and declaration of results will be completed on the same day. The ballot boxed used in the first phase of poll can be re-used in the next phases of poll. This arrangement was factored in while working out the requirement of ballot boxes. After conducting a thorough assessment on availability and sufficiency of ballot boxes, there was shortage of nearly 12,500 ballot boxes for conduct of elections to Gram Panchayats. A formal request was sent to the State Election Commission, Karnataka for providing additional ballot boxes required for Andhra Pradesh on loan basis. The State Election Commissioner, Andhra Pradesh spoke to his counterpart in Karnataka and obtained necessary permission. The State Election Commissioner, Andhra Pradesh also visited Karnataka in connection with this matter. Ballot boxes were arranged from districts in Karnataka located along the border with Andhra Pradesh. A senior officer of the cadre of Joint Director from the Commission was appointed as Liaison Officer and he visited Bangalore to ensure smooth transfer of ballot boxes. Ballot boxes of Big Size were arranged from Bidar, Gulbarga, Kolar, Raichur and Bellary districts. The total number of ballot boxes spared by the State Election Commission, Karnataka was 12,733. Elaborate arrangements were made for smooth transport of ballot boxes from Karnataka to the needy districts in Andhra Pradesh. Detailed instructions were issued by the Commission and also its counterpart in Karnataka to the District Collectors of source district (in Karnataka) and destination district (in Andhra Pradesh) to ensure smooth passage of ballot boxes. On every ballot box barrowed on loan basis from Karnata, a sticker in the format given below was prepared and pasted to facilitate easy identification and smooth return.

Source District	**Destination District**

Note: Source District is the district in Karnataka from which the ballot boxes were barrowed and the Destination District is the district in Andhra Pradesh in which the barrowed boxes were used.

The entire expenditure related to transportation, loading and unloading and other incidental expenditure were borne by the District Collectors of barrowing districts in Andhra Pradesh. On the request of the Commission, the Transport Commissioner, Andhra Pradesh issued necessary instructions to the Transport authorities in the border check-posts in Andhra Pradesh and ensured smooth passage.

The number of ballot boxes used district wise for conduct of Gram Panchayat elections, including the ballot boxes borrowed on loan basis from Karnataka State, is indicated in the **Annexure XXVIII**.

The barrowed ballot boxes were returned to their source districts in Karnataka in the month of December 2013.

CHAPTER - XVIII

PRINTING OF BALLOT PAPER

In Gram Panchayat elections, which are held on non-party basis, the ballot papers contain only symbols and the names of the candidates are not printed on the ballot paper. The State Election Commission decided that the colour of the ballot paper of Sarpanch shall be 'Pink' and that of Ward Member 'White'.

The Commission in consultation with the Commissioner of Printing, Stationery and Stores Purchase decided to entrust the responsibility of printing of ballot papers to the Collectors & District Election Authorities to get the work done locally on private printing presses as was done during the last ordinary elections to Gram Panchayats held in 2006.

The quantity of Pink and White wove paper required for printing of ballot papers of Sarpanch and Ward Members was worked out for the entire State based on the voting strength, average number of contesting candidates, specifications of the ballot paper and requirement of reserve. The paper was procured by Commissioner of Printing, Stationery and Stores Purchased following the prescribed procedure and the material was delivered to all the Districts in advance.

The Commission also supplied CDs containing notified free symbols for the office of Sarpanch and Ward Members to the Districts.

The Commission also issued detailed instructions containing specifications and model of ballot papers which varied depending upon the number of contesting candidates in Ref. No.438/SEC-B2/2011, dtd.27.05.2011 (**Annexure XXIX**).

The Collectors identified local offset printers who offered best rates for ballot papers of different denominations (2 symbols, 4 symbols, 6 symbols, etc.) and finalised the printers for assigning the work. Advance action was taken for

printing of ballot papers as they contained only symbols without names and also for the reason that the time between publication of list of contesting candidates and the date of poll is the minimum at five days.

The work relating to printing of ballot papers was completed in time and without any difficulties resulting in smooth conduct of elections.

The left over stock of ballot papers was preserved in all the districts after Gram Panchayat elections to use them in the subsequent ordinary and casual elections of Gram Panchayats notified by the Commission at regular intervals.

CHAPTER - XIX
WEBCASTING

Webcasting involves live-streaming of the proceedings at a polling station using Internet connection, webcamera, computer system preferably a laptop and a student or a computer professional. The proceedings at the polling station are captured in a webcamera and transmitted to designated locations i.e., Collectorate and the State Election Commission's office using internet connection. This procedure was first introduced in our State by the Election Commission of India in the by-elections held to Assembly and Parliamentary constituencies held in the last two/three years.

The State Election Commission decided to undertake webcasting in select sensitive / hypersensitive Gram Panchayats during 4th ordinary elections to Gram Panchayats to ensure that electoral process is conducted smoothly in vulnerable areas and any complaints of electoral malpractices can be verified and appropriate action can be taken instantly to ensure free and fair elections. The steps taken by the Commission in connection with the webcasting exercise are mentioned below.

1. The Collectors & DEAs were requested to identify the sensitive/hypersensitive Gram Panchayats in their respective districts for undertaking webcasting keeping in view the availability of electrical fittings, feasibility for BSNL internet connection, availability of webcameras, availability of students or persons with computer knowledge having a laptop and willing to participate in the exercise.

2. The Collectors were asked to constitute a team of local officials from Electricity Department, BSNL and Panchayat Raj to conduct a survey and finalise the locations / Gram Panchayats for undertaking webcasting.

3. The Collectors were given freedom to enroll either students from established Engineering colleges having laptops or by inviting applications from any computer professionals having laptops by giving advertisements in local district cable TV and in local newspapers to participate in the exercise. Each student / volunteer was paid Rs.500/- as honorarium besides giving a certificate of participation. They were also provided with transport, accommodation and food during the period they were deployed for webcasting work.

4. The webcameras and spikes that were already procured by the Chief Electoral Officer and preserved in the Districts were used after obtaining necessary permission from the CEO. Further, wherever required permission was given to Collectors to procure additional webcameras and spikes at reasonable rates.

5. The Commission finalised two software agencies, namely Sadhana and Greens to provide required training to the students / volunteers, uploading the required software into the laptops, providing usernames and passwords to all the volunteers and also facilitating smooth operation at the designated polling stations and reception of live pictures at the destinations besides transferring the entire data from the laptops of volunteers to DVD/External hard disks and handing them over to the District election officials.

6. The BSNL provided internet connections at all the polling stations selected by the District administration for undertaking webcasting.

7. The Commission has engaged the services of Sri D. Chiranjeevi, Project Manager (IT) in the CEO's Office as IT Consultant on part-time basis as he is having considerable experience in this exercise.

8. The Commission has taken a high-speed internet connection through APSWAN and also procured required computer servers and systems for this exercise. The Commission also procured two big LED TVs to view the live-streaming in the Conference Hall and in the Commissioner's chamber.

9. A coordinated effort by all the officials and agencies involved in webcasting exercise resulted in smooth capturing and live-streaming of proceedings at nearly 6200 polling stations in the entire State during the 3-Phases of elections enabling the Commission to verify any complaints at sensitive / hypersensitive polling station selected for webcasting spontaneously and give suitable instructions to ensure free and fair elections. This measure also created a sense of confidence among the voting public in vulnerable areas and widely appreciated by the Press and general public as it improved the electoral standards during Gram Panchayat elections.

10. The number of polling stations in each District where webcasting was undertaken is given in the **Annexure XXX**.

CHAPTER - XX
PHOTO VOTER SLIPS

The State Election Commission introduced a new initiative under which Photo Voter Slips are generated and distributed to the voters by the District Administration to the voters participating in Gram Panchayat elections. This measure is aimed at enhancing the voter turnout and also curtailing the scope for impersonation.

All the Collectors and DEAs were requested to generate Photo Voter Slips in respect of all voters in every Gram Panchayat notified for election in the format prescribed by the Commission using Gram Panchayat Electoral database with photographs generated from the Assembly Electoral database.

In the Video Conference conducted by the Commission on 22.06.2013, the Collectors expressed their views and suggestions on distribution of Photo Voter Slips. The Commission conducted a meeting with Political Parties at the State level on 29.06.2013. The representatives of Political Parties who attended the meeting expressed that Photo Voter Slips can be supplied to the voters without authentication so as to facilitate the voter to know the polling station where he/she should go and also facilitate the polling personnel present in the polling station to easily identify the serial number of the voter. They also expressed that such an exercise will curtail the scope for the candidates to indulge in influencing the voters in the guise of distribution of voter slips from their side. They also expressed that they are ready to cooperate with the Commission in this exercise.

Taking into consideration the views and suggestions expressed by the Collectors and also the representatives of Political Parties, the Commission decided that Photo Voter Slips without authentication shall be distributed to the voters in the Gram Panchayats to be notified for elections. The following instructions are issued in connection with distribution of Photo Voter Slips in the Gram Panchayat elections.

1) The Photo Voter Slips shall be generated in the format prescribed by the Commission. The Photo Voter Slips need not be authenticated.
2) This Photo Voter Slips should only be in the language in which the electoral roll is prepared for the Gram Panchayat concerned.
3) The agency that was engaged for generation of photo electoral rolls of Gram Panchayats may also be entrusted with this job. The Collectors are also given freedom to engage any other agency subject to conditions prescribed by ECI for utilization of its electoral database.
4) The Commission has no objection if some of the entries in the Photo Voter Slip are stamped or filled manually due to inadequacies in the database.
5) A meeting with the Political Parties shall be convened from District level to Panchayat level to convey to the public and local leaders the following information.
    a. Photo Voter Slips are distributed to voters by the official machinery only to facilitate voters to know their polling station and serial number in voter list.
    b. Production of Photo Voter Slip is not mandatory and any voter who does not possess Photo Voter Slips shall not become ineligible to exercise franchise.
    c. Every voter, whether he/she possesses a Photo Voter Slip or not, shall produce either EPIC or any of the 21 alternative identification documents already notified by the Commission to establish their identity at the polling station.
    d. Photo Voter Slip shall not be considered as an alternative identification document approved by the Commission.
    e. If a voter is not supplied with a Photo Voter Slip by the administrative machinery for any reason, an impression should not be created that he is excluded from exercising his/her franchise.

6) The Booth Level Officers or any employee working in the Gram Panchayat or any other employees of the Government or local bodies can be entrusted with the responsibility of distribution of Photo Voter Slips well in advance of the date of poll (The Chief Electoral Officer, Andhra Pradesh has already accorded permission for utilization of the services of BLOs for webcasting and any other activity relating to elections PRIs vide his Lr.No.1330/Elecs.A/2013-1, dtd. 02.05.2013).

7) On the date of poll, BLO or any other employee entrusted with the responsibility of distribution of Photo Voter Slips shall be available at the polling station premises to distribute the slips to those who have not been supplied with the slips before the date of poll.

All the Collectors have complied with the instructions given by the Commission and gave wide publicity in the Press and Electronic media about distribution of Photo Voter Slips to the voters by the official machinery.

The Photo Voter Slips were given to all the voters in all the Gram Panchayats notified for elections drawing appreciation from all quarters and curtailing scope for electoral malpractices and impersonation to a considerable extent contributing for smooth and peaceful elections.

Format of Photo Voter Slip:

ELECTIONS TO GRAM PANCHAYATS - 2013
Photo Voter Slip

1) Name of the Gram Panchayat :
2) Ward No. :
3) Name of Voter :
4) Father's/husband's Name :
5) Sex :
6) EPIC No. :
7) Gram Panchayat voter Sl.No. :
8) Polling Station No. & name :
9) Poll date, Day and Time :

PHOTO

CHAPTER - XXI

POLL

The State Election Commission issued Notification for conduct of polls to Gram Panchayats in the entire State in three phases on 23.07.2013, 27.07.2013 and 31.07.2013.

The phasing of polls was finalized by the State Election Commissioner in consultation with the Director General of Police and district officials in such a manner that, all the Gram Panchayats in a revenue division go to poll on a single date in a phase respecting the views expressed by various parties in the all parties meeting. Such an arrangement ensured movement of men and material (ballot boxes in particular) from one phase to another phase wherever required. The number of Gram Panchayats and wards went for poll in three phases is indicated below. The breakup of number of Gram Panchayats and wards went for poll is given in the **Annexure XXXI & Annexure XXXI(A).**

The poll shall take place on the date notified from 7:00 AM to 1:00 PM in all the polling stations. The people who are standing in queue lines at the polling stations at the time fixed for close of poll, i.e., 1:00 PM were given slips from the last persons standing in the queue and they were all allowed to vote. In Gram Panchayat elections, after completion of poll the ballot boxes containing polled ballot papers are closed and all statutory and non-statutory forms including Presiding Officer's diary are sealed in separate packets as per the procedure prescribed. The material is shifted to the counting centre located in the same Gram Panchayat for conducting counting of votes from 2:00 PM onwards on the same day.

The percentage of poll is recorded at regular intervals during the polling time by the Polling party and transmitted to the Mandal, Division, District and the Commission so as to disseminate it to the Press and Electronic media. The percentage of poll recorded at regular intervals is given in the statement

enclosed. In the first phase held on 23.07.2013, the percentage of poll was recorded as 83.96. In the second phase held on 27.07.2013, the percentage of poll was recorded as 87.32 and in the third phase held on 31.07.2013, it was 85.88. In all the three phases, the average percentage of poll in the entire State was recorded as 85.84.

Poll process affected by heavy rains and floods:

While the election schedule was underway, certain parts of the State were affected by heavy rains and floods. The Commission after obtaining reports from the Collectors & DEAs concerned, rescheduled the date of poll and subsequent election process in the rain or flood affected Gram Panchayats. The details are given in the table below.

S.No.	Name of the District	No. of GPs affected by rains/floods requiring rescheduling of date of poll	Original date of poll	Rescheduled date of poll
1	Adilabad	177	23.07.2013 & 27.07.2013	31.07.2013
2	Karimnagar	5	23.07.2013	31.07.2013
3	Khammam	117	23.07.2013	31.07.2013
4	Nizamabad	2	27.07.2013	31.07.2013
5	Warangal	4	23.07.2013	31.07.2013
6	Visakhapatnam	4	23.07.2013	31.07.2013
7	East Godavari	8	23.07.2013	31.07.2013
8	West Godavari	5	27.07.2013	31.07.2013
	Total	322		

Re-poll:

In order No.887/SEC-B2/2013-1, dtd. 9.07.2013 (**Annexure XXXII**), State Election Commission delegated powers to the Collectors & District Election Authorities to order for fresh poll (repoll) or continuation of adjourned poll at any

polling station located in the Gram Panchayats within their district after considering the report of the Presiding Officer/Returning Officer and to notify the date and time as deemed convenient for such continuation of adjourn poll or for taking a fresh poll (re-poll) in contingencies described in the said sections.

There are very few cases of repoll that was necessitated due to aberrations made by Returning Officers such as wrong allotment of symbols to the contesting candidates or erroneous supply of ballot papers not matching the number of candidates in the fray. The list of cases where repoll was ordered is given in the table below.

List of Gram Panchayats where Repoll was ordered due to errors committed by Returning Officers (Stage-I):

S.No.	Name of the District	Name of the Mandal	Name of the Gram Panchayat	Offices	Date of Repoll
1	Ananthapuram	Penukonda	Rampuram	12th Ward	27.07.2013
2	Ananthapuram	Mudigubba	Kodavandlapalli	4th, 5th & 6th Wards	27.07.2013
3	Visakhapatnam	G.K.Veedhi	Devarapalli	All offices	31.07.2013
4	Krishna	Chatrai	Somavaram	All offices	31.07.2013
5	Visakhapatnam	Paderu	Inada	All Offices	31.07.2013
6	East Godavari	Maredumilli	Chavadikota	9th Ward	31.07.2013
7	Adilabad	Indervelly	Indervelly	2nd Ward	31.07.2013
8	Adilabad	Kowthala	Gangapur	5th Ward	31.07.2013
9	Nizamabad	Nizamabad	Gundaram	4th Ward	31.07.2013
10	Nalgonda	Chandur	Kondapur	7th Ward	03.08.2013
11	Warangal	Kothaguda	Madaguda	Sarpanch	03.08.2013
12	Warangal	Kuravi	Seerole	3rd Ward	03.08.2013
13	Khammam	Tirumalayapalem	Sublaid	6th & 9th Wards	03.08.2013
14	YSR District	Pullampet	T. Kammapalli	All Offices	03.08.2013
15	Krishna	Pamulapadu	Pedaparupudi	All Offices	08.08.2013

List of Gram Panchayats where poll was countermanded due to death of contesting candidates:

S. No.	Name of the District	Name of the Mandal	Names of Gram Panchayats	Offices	Date of Poll
1	Chittoor	Yadamari	Varadarajulapalle	3rd Ward	08.08.2013
2	Guntur	Guntur	Challavaripalem	All Offices	08.08.2013
3	Krishna	Ibrahimpatnam	Kondapalli	19th Ward	08.08.2013
4	Medak	Medak	Maqdumpur	8th Ward	08.08.2013
5	Nalgonda	Thipparthy	Yellammagudem	Sarpanch	08.08.2013
6	Ananthapuram	Pamidi	Palyam	3rd Ward	13.08.2013
7	Ananthapuram	Guntakal	Chintalampalli	5th Ward	13.08.2013
8	Chittoor	Chowdepalle	Katiperi	Sarpanch & 4th Ward	13.08.2013
9	East Godavari	Kakinada Rural	Ganganapally	14th ward	13.08.2013
10	East Godavari	Kothapeta	Billakurru	10th Ward	13.08.2013
11	West Godavari	Undi	N.R.P.Agraharam	5th Ward	13.08.2013
12	West Godavari	Mogalthuru	Kalipatnam West	4th Ward	13.08.2013
13	Srikakulam	Santhabommali	Santhabommali	14th Ward	13.08.2013
14	YSR District	Lakkireddypalli	Lakkireddypalli	10th Ward	13.08.2013
15	Adilabad	Mudhole	Boregaon	3rd Ward	13.08.2013
16	Karimnagar	Bejjanki	Laxmipur	1st Ward	13.08.2013
17	Mahabubnagar	Gopalpet	Buddaram	6th Ward	13.08.2013
18	Medak	Raikode	Kusnoor	2ND Ward	13.08.2013
19	Warangal	Narsimhulpet	Vanthadpula	Sarpanch & All Wards	13.08.2013

List of Gram Panchayats in Visakhapatnam District where date of poll was rescheduled due to snatching away of nomination papers by Extremists:

Name of the Mandal	Names of Gram Panchayats	Offices	Date of Poll
G. Madugula	Boithili	All Offices	13.08.2013
	Killamkota	All Offices	13.08.2013
	Beeram	All Offices	13.08.2013
	Nurmathi	All Offices	13.08.2013
Pedabayalu	Jamiguda	All Offices	13.08.2013
	Ginnelakota	All Offices	13.08.2013

List of Gram Panchayats in Guntur District where date of poll was rescheduled due to law and order problem based on the reports of Collector and SP:

Sl. No.	Name of the Revenue Division	Name of the Mandal	Name of the Gram Panchayat	Date of Poll
1.	Narasaraopet	Rompicherla	Rompicherla	08.08.2013
2.	Narasaraopet	Rompicherla	Muttanapalli	08.08.2013
3.	Narasaraopet	Narasaraopet	Ikkurru	08.08.2013
4.	Narasaraopet	Nadendla	Tubadu	08.08.2013
5.	Gurazala	Veldurthy	Sirigiripadu	08.08.2013
6.	Gurazala	Veldurthy	Kandlakunta	08.08.2013

The 4th ordinary elections to Gram Panchayats held in July 2013 are marked by minimum number of repolls compared to the other three ordinary elections held so far. The reason is attributed to detailed and clear-cut instructions, close monitoring of election process and effective deployment of available forces to thwart any electoral malpractices or untoward incidents.

CHAPTER – XXII

COUNTING OF VOTES

Under Rule 56 of A.P. Panchayat Raj (Conduct of Elections) Rules, 2006, the counting of votes shall commence on the day and at the place and hour appointed in that behalf. The votes shall be counted by or under the supervision of the Returning Officer. The Postal Ballot Paper shall be counted first.

Each candidate, the Election Agent and the Counting Agent of each candidate shall have a right to be present at the time of counting. No other person shall be allowed to be present except such person as the Returning Officer may appoint to assist him in counting of votes.

Before commencement of counting of votes, the Returning Officer reads out provisions of Section 217 of the A.P. Panchayat Raj Act, 1994 (Maintenance of Secrecy of Voting) to such persons as may be present and shall then undertake counting of votes.

The Returning Officer shall allow the candidates, their election agents and counting agents present at the counting reasonable opportunities to inspect the ballot boxes and their seals for satisfying themselves that they are in order.

The State Election Commission notified in the election schedule that the counting of votes shall start at 2:00 PM in all the three phases of election held on 23.07.2013, 27.07.2013 and 31.07.2013. The counting process commenced accordingly in all the three phases at 2:00 PM in all the Gram Panchayats notified in those phases.

General procedure of counting:

The counting of ballot papers of Ward Members shall be done polling station-wise and the counting of ballot papers of Sarpanch shall be done by mixing after completion of counting of ballot papers of Members of all wards in the Gram Panchayat.

The While-coloured ballot papers of Ward Members are taken up one after another in the serial order.

The Pink-coloured Sarpanch ballot papers are segregated keeping their fold intact and kept near the Returning Officer to take up the counting by missing after completion of counting of ballot papers of all Wards.

Re-counting:

As per the Election rules, the Returning Officer is vested with powers to take a final decision on a written request made to him for re-count of votes by any contested candidate before the signing of the Result Sheet. The decision of the Returning Officer on the request for re-count is final and the Commission has no jurisdiction to influence his decision. Anybody aggrieved by his decision has to challenge it by means of an Election Petition after completion of election process.

The process of counting of votes was completed in all the three phases smoothly. Elaborate arrangements were made in all the Gram Panchayats where the counting process was undertaken by arranging for uninterrupted power supply and deployment of adequate forces to regulate orderly entry and exit of candidates, their agents and counting personnel into the counting hall. The Commission took adequate precautions to curb disturbances after completion of counting and declaration of results particularly in sensitive areas.

CHAPTER – XXIII
DECLARATION OF RESULTS

Rules 62, 63 and 64 of AP Panchayat Raj (Conduct of Elections) Rules, 2006 envisage the procedure for declaration of results, grant of election certificate to the elected candidate and publication of results on the notice board of the Gram Panchayat / Mandal Parishad / Zilla Parishad concerned, indicating the names of the elected candidates.

The State Election Commission also issued detailed instructions on declaration of results, issue of election certificate and publication of results in the handbook for Returning Officers.

The State Election Commission made elaborate arrangements in the office to gather information on declaration of results and to tabulate the results district wise before they are supplied to the media.

The State Election Commission opened a control room in its office with four fax machines and 3 telephones to compile the results of election and the control room and the computer centre worked round the clock from the time of commencement of counting process till the declaration of results of all Gram Panchayat elections in the state. The results were made available in the website of Commission (www.apsec.gov.in)

Details of number of Sarpanchas and all offices in Gram Panchayats declared elected unanimously district wise are given in the **Annexure XXXIII**.

CHAPTER – XXIV
ELECTION OF UPA-SARPANCH

Section 14 (10) of APPR Act, 1994 stipulates that, "a special meeting for the election of Upa-Sarpanch shall be called on the same date on which the results of the ordinary elections to the Gram Panchayats have been published. The notice of the meeting for election of Upa-Sarpanch shall be given to the members, so as elected by affixture of the same on the notice board in the office of Gram Panchayats, immediately after such publication".

Provided that if, for any reason, the election of Upa-Sarpanch is not held on the date as aforesaid, the special meeting for the election of Upa-Sarpanch shall be held on the next day, whether or not it is a holiday observed by the Gram Panchayat.

The Government have issued the Andhra Pradesh Panchayat Raj (conduct of elections of Upa-Sarpanch of Gram Panchayat) Rules, 2006 in G.O.Ms.No.172, Panchayat Raj and Rural Development, Dept, dtd. 10.5.2006.

The Gram Panchayat elections were conducted in three phases. The Upa-Sarpanch election was conducted on the same date of poll after declaration of results.

CHAPTER – XXV

OBSERVERS

A new Section 232 A was inserted in the APPR Act, 1994, by Act 22 of 2006 which provided statutory backing for appointment of observers to oversee the elections of local bodies. Their selection is on the same lines as the one existing in Representation Peoples Act, 1951.

In exercise of the powers conferred under Article 243-K of the Constitution of India read with section 232 A of APPR Act, 1994, the State Election Commission appointed 44 IAS Officers as General Observers and 22 IFS Officers as Expenditure Observers to oversee the election process in 22 districts in the State. In addition to this the Commission appointed 8 IAS officers as Additional Observers for 8 districts. The list of Officers appointed district-wise is indicated in the **Annexure XXXIV.**

The Observers were asked to oversee the elections to Gram Panchayats. The Expenditure Observers in particular were entrusted with the responsibilities to observe the expenditure incurred by various contesting candidates at various stages during the election process. They were expected to assist the State Election Commission for conduct of elections in a free and fair manner.

The State Election Commission issued instructions to the District Collectors to provide facilities to Observers during their visit to the districts in Letter No.660/SEC-B2/2013, dtd. 03.07.2013 (**Annexure XXXV**). The DO's and DON'Ts issued to the Observers by the Commission is appended at **Annexure XXXVI.**

The general observers and expenditure observers performed their duties satisfactorily.

MICRO OBSERVERS:

In the Regional Conferences conducted by the State Election Commission, the State Election Commissioner expressed that every sensitive / hypersensitive polling station is to be covered with one of the following measures in order to ensure free, fair and orderly poll.

1. Webcasting
2. Micro Observer
3. Videography
4. Deployment of Static force / Mobile strike force.

In Assembly and Parliament elections, the Election Commission of India introduced the procedure of appointment of Micro Observer for a group of polling stations located in the same premises or location so that he can observe entire poll process by oscillating between different polling stations in that location and report directly to the General Observer about any incidents or vitiation of poll process. The ECI appointed employees of Central Government / Central Public Sector Undertakings as Micro Observers.

The Commission have emulated this procedure to conduct free and fair poll in sensitive / hypersensitive polling stations to the extent of availability of employees of Central Government / Central PSUs and the Gazetted Officers of State Government having good track record and considerable experience in dealing with election matters and issued instructions in Circular No.600/SEC-B2/2013, dtd. 27.05.2013 (**Annexure XXXVII**).

CHAPTER – XXVI

ACCOUNTS OF ELECTION EXPENDITURE

Section 230-A(1) of the APPR Act, 1994 stipulates that, "every contesting candidate, at any election under APPR Act, 1994 shall, either by himself or by his election agent keep a separate and correct account of all expenditure incurred in connection with the election, between the date on which the candidate concerned has been nominated and the date of declaration of result of election, both days inclusive".

Section 230-A(2) stipulates that, "the account of election expenses shall contain its particulars, as may by order, be specified by the State Election Commission".

The State Election Commission issued Order No.168/SEC-B1/2011, dtd. 18.05.2011 (**Annexure XXXVIII**) containing detailed instructions for maintenance and scrutiny of election expenditure accounts by the candidates contesting in elections to MPTCs/ZPTCs and Gram Panchayats and also prescribed the proformas in which the day to day expenditure and periodically abstract of election expenditure shall be maintained.

Sub-section 3 of Section 230-A and rules issued thereunder empowers the State Election Commission to specify the ceiling limits of election expenditure to be incurred by the candidates for various seats in elections to PR Bodies. The ceiling limits fixed by Commission for various offices in PR bodies are indicated below.

Member, ZPTC	Rs. 2,00,000
Member, MPTC	Rs. 1,00,000
Sarpanch of Gram Panchayat having a Population of 10,000	Rs. 80,000
Sarpanch of Gram Panchayat having a population less than 10,000	Rs. 40,000
Ward member of Gram Panchayat having a Population of 10,000	Rs. 10,000
Ward member of Gram Panchayat having a Population les than 10,000	Rs. 6,000

A copy of the order issued by the Commission fixing maximum ceiling limits on election expenditure is enclosed as **Annexure XXXIX.**

Under Section 230-B of APPR Act, 1994 and rules issued thereunder every contesting candidate in elections to Panchayat Raj Bodies shall furnish final accounts of election expenses to the district election authority through the MPDO concerned within 45 days from the date of declaration of results.

Under section 19-B of APPR Act, 1994, if any contested candidate failed to render final accounts of election expenses within specified time and in the manner required liable to be disqualified by the State Election Commission for contesting any election held to any office under the APPR Act, 1994 for a period of 3 years and if he is an elected candidate for any seat, he shall be declared to have ceased to hold office with immediate effect.

Rules 100 to 103 of APPR (conduct of elections) Rules, 2006 issued in G.O.Ms.No. 142 RP & RD (Elecs,) Dept, dtd. 3.8.2006 stipulate the procedure to be followed and action to be taken where final returns of election expenditure are submitted and also where final returns of election expenditure are not submitted by the contested candidate within the stipulated time of 45 days and in the manner prescribed.

Gram Panchayat elections:

The Fourth Ordinary elections to Gram Panchayats were conducted in three phases in the month of July, 2013. The results were declared on 23.07.2013, 27.07.2013 and 31.07.2013 respectively. However, in respect of a few Gram Panchayats, the election process was altered and rescheduled to 03.08.2013, 08.08.2013 and 13.08.2013. A period of 45 days from the date of declaration of results expired by middle of September 2013.

Reports are being received from the Collectors & District Election Authorities and such reports are processed in the Commission as per the procedure prescribed. Show cause notices were given to defaulters who failed to lodge accounts of election expenses within the time and in the manner prescribed based on the reports sent by the Collectors & DEAs.

ANNEXURE -I

STATE ELECTION COMMISSION
3rd Floor, Buddha Bhavan, M G Road, Secunderabad – 500 003

Cir.No.91/SEC-B2/2013, **Date:23.02.2013**

CIRCULAR

Sub:- Elections – 4th Ordinary elections to PR Bodies – Preparation, publication and printing of Gram Panchayat photo electoral rolls with reference to 01.01.2013 as qualifying date – Procedural instructions - Issued – Reg.

Ref:- 1) Circular No.118/SEC-B2/2011, dtd. 28.02.2011 (copy enclosed).
2) Circular No.118/SEC-B2/2011-2, dtd.7.3.2011 (copy enclosed).
3) Order No.637/SEC-B1/2000-3, dtd.10.8.2000 (copy enclosed).

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The Gram Panchayat photo electoral rolls were published with reference to 1.1.2011 as qualifying date on 18.04.2011 for the purpose of conducting elections to Panchayat Raj Bodies that were due to be held before expiry of their term in July-August, 2011. However, the elections were postponed due to protracted court litigation. The Hon'ble Supreme Court of India in its interim orders dated 18.02.2013 directed to proceed with the elections as per the existing system. As two years time has elapsed from the date of last publication in 2011, the State Election Commission decided to order for preparation and publication of Gram Panchayat Photo electoral rolls with reference to 01.01.2013 as qualifying date duly adopting the recently published Assembly Photo electoral rolls for the purpose of conducting elections to P.R. Bodies. Detailed procedural instructions already issued by the Commission along with relevant rules in the references cited hold good for preparation of Photo Electoral Rolls with reference to 01.01.2013 as qualifying date for the ensuing elections to Panchayat Raj Bodies. The following further instructions are issued.

1. Electoral Rolls of Gram Panchayats have to be prepared with photographs with reference to 01.01.2013 as qualifying date adopting the latest Assembly Photo Electoral Rolls published with reference to 01.01.2013 as qualifying date. The

password-free Assembly Electoral Roll database with photographs in digital format is made available for this purpose.

2. The Collectors can engage the same computer agency which was entrusted with the work of preparation of Gram Panchayat photo electoral rolls in 2011 this time also. They are also given freedom to engage any other agency in order to see that the work is completed quickly and accurately subject to the conditions prescribed by ECI with regard to security of Assembly electoral roll database.
3. The format of the Photo electoral roll shall be as already specified in Circular 2nd cited. However, the title page shall be as prescribed in the reference 3rd cited.
4. The Chief Electoral Officer has already issued instructions to the District Election Officers(Collectors) in Memo.No.648/Elecs.E/A2/2013-1, dated 22.02.2013(copy enclosed) to supply hard and soft copies of the Assembly Photo Electoral Rolls published with reference to 01.01.2013 as qualifying date.
5. As per the information gathered from the office of the Chief Electoral Officer, the Assembly electoral rolls available polling station-wise have now been integrated dispensing with the earlier practice of having separate lists for men and women. This will facilitate easy generation of Gram Panchayat Photo Electoral Rolls. Further, the Gram Panchayat Photo electoral rolls earlier published with reference to 01.02.2011 as qualifying date will be useful for quick reference wherever necessary in preparation of Gram Panchayat Photo electoral rolls with reference to 01.01.2013 as qualifying date.
6. It must be ensured that all the names, photos and entries finding place in the latest Assembly electoral rolls published with reference to 01.01.2013 as qualifying date are truly and correctly reflected in the Gram Panchayat electoral rolls and the roll should be prepared accurately without giving scope for complaints and litigation.
7. In Memo.No.15863/Elections/2010, dated 22.2.2013, the Commissioner, Panchayat Raj & Rural Employment already issued instructions to the District Panchayat Officers to constitute teams for each Panchayat for preparation of Panchayat electoral rolls in order to prepare and publish panchayat electoral roll as per the instructions given by the SEC and to consult the Chief Executive Officer/Mandal

Parishad Development Officer concerned in places where adequate staff are not available, and see that required number of personnel from them are drafted so as to constitute teams for all panchayats.

8. Orders were issued in G.O.Ms.No.676, P.R. & R.D. (Mdl.II) Dept., dtd. 30.04.2011 permitting utilization of the services of Village Revenue Officers of Revenue Department for the limited purpose of 4th Ordinary elections to P.R. Bodies till the completion of election work in respect of those villages which do not have any Panchayat Secretaries. In view of these orders, the services of VROs can be used for preparation of Gram Panchayat Photo electoral rolls in the Panchayats having no Panchayat Secretaries.
9. The budget for preparation, publication and printing of required number of copies (100) already specified in the procedural instructions will be released by the Government based on the proposal sent by the Commissioner of Panchayat Raj & Rural Employment. The DPOs shall send the budget requirements of their respective districts directly to the Commissioner of P.R. & R.E. immediately. The Commissioner of PR & RE will fix the rates for preparation of master copy and extra copies to be xeroxed as was done earlier.
10. The preparation of Gram Panchayat Photo electoral rolls shall be completed by 20th March, 2013. Separate notification will be issued indicating the date of publication of the electoral rolls so prepared.

Sd/- P. Ramakanth Reddy
State Election Commissioner

To

All the District Panchayat Officers in the State.

All the Chief Executive Officers of Zilla Parishads in the State,

All the District Collectors in the State except Hyderabad,

Copy to:

The Commissioner of PR & RE, A.P., Hyderabad & Election Authority,

The Prl. Secretary to Govt. (PR), PR & RD, Dept., A.P.Secretariat, Hyderabad.

STATE ELECTION COMMISSION
3rd Floor, Buddha Bhavan, M G Road, Secunderabad – 500 003

Cir.No.118/SEC-B2/2011, **Dated:28.2.2011**

CIRCULAR

Sub:- Elections – 4th Ordinary elections to PR bodies, 2011 – Preparation and publication of electoral rolls for Panchayat Raj elections – Procedural instructions issued – Reg.

***

The term of elected members of Zilla Parishads and Mandal Parishads is due to expire on 21st and 22nd July, 2011. Similarly, the term of elected members and Sarpanch of Gram Panchayats is due to expire on 22nd August, 2011. Therefore, ordinary elections are to be held separately for Mandal Parishads/Zilla Parishads and Gram Panchayats before the expiry of their term. The Andhra Pradesh Panchayat Raj Act, 1994 mandates publication of electoral rolls of PR bodies before each ordinary election. The following procedural instructions are issued for preparation, publication and printing of electoral rolls for Panchayat Raj elections to be held shortly.

1. **Statutory provisions:-** Section 11 (2) of Andhra Pradesh Panchayat Raj Act, 1994, stipulates that, the electoral roll of a Gram Panchayat shall be prepared and published in the prescribed manner with reference to the qualifying date before each ordinary election. Section 11 (1) stipulates that the Assembly Electoral Roll published under RP Act, 1950 shall be adopted for preparation of electoral rolls of Gram Panchayats. The electoral roll of a gram panchayat shall consist of such part of the latest Assembly Electoral Roll as revised or amended under the said Act, upto the qualifying date, so far as it relates to the village or any portion thereof. The qualifying date as of now is 1.1.2011.

Section 151 (2) and Section 179 (2) of the Act stipulates that, for the purpose of preparation and publication of electoral rolls for elections to the office of Member, Mandal Parishad and Member, Zilla Parishad respectively, the provisions of section 11 and 12 shall, mutatis mutandis apply, subject to the rules as may be laid down.

The Government have issued Andhra Pradesh Panchayat Raj (Preparation and publication of electoral rolls) Rules, 2000, in G.O.Ms.No.254, PR & RD (Elecs) Dept. dated.4.8.2000.

An extract of section 11 of APPR Act, 1994 and a copy of APPR (Preparation and Publication of Electoral Rolls) Rules, 2000 issued there under are enclosed for reference.

The person authorized by the State Election Commission shall prepare and publish the electoral rolls of the Gram Panchayats. The District Panchayat Officers are authorized by the State Election Commission to prepare and publish electoral rolls of the Gram Panchayats. The electoral roll of a Gram Panchayat shall be published by the District Panchayat Officer along with a notice in **Form I** appended to the said rules on the date notified by the State Election Commission for publication.

Under rule 4 of the APPR (Preparation and publication of electoral rolls) Rules, 2000, the State Election Commission specified format for preparation and publication of electoral rolls of Gram Panchayat. A copy of the order issued by the State Election Commission in this behalf is also enclosed.

Under rule 5 (2) of the said rules, ward division shall be indicated at the time of publication of electoral roll of the Gram Panchayat. Section 11(4) stipulates that, the electoral roll of a Gram Panchayat shall be divided into as many parts as there are wards.

The State Election Commission will issue notification shortly for publication of electoral roll of the Gram Panchayats for the purpose of holding 4th ordinary elections to Panchayat Raj Bodies. The following steps are involved in preparation and publication of electoral rolls of Gram Panchayats.

2. <u>Obtaining copies of the latest Assembly Electoral Rolls:-</u> In Memo No. 762/Elecs.E/A2/2011-1, General Administration (Elections.E) Department dated 25.2.2011 the Chief Electoral Officer & E.O Principal Secretary to Government has issued instructions to all the District Election Officer (Except Hyderabad) to provide the photo electoral roll published on 5.1.2011 with reference to 1.1.2011 to all the DPOs in the following forms (Copy enclosed):

1. One signed hard copy (signed by the concerned ERO) of Assembly photo electoral rolls
2. One CD containing the Assembly photo electoral rolls in pdf.
3. Electoral database with photographs in digital format.

The District Panchayat Officers can retain the CD containing Assembly Electoral Rolls and also copy of the computerized electoral database with them. The CD in pdf format can be used for printing required number of copies of Assembly Electoral Rolls relating to any village wherever necessary. The District Panchayat Officer can give copies of printed Assembly Electoral Rolls so far as it relates to the village concerned to its Panchayat Secretary. The Panchayat Secretary can also obtain copies of the electoral roll relating to the village from the Tahsildar (AERO) concerned.

3. <u>Preparation of Gram Panchayat electoral roll by Panchayat Secretary:-</u> The Panchayat Secretary may be entrusted with the following duties –

1) He shall rearrange the Assembly Electoral Roll available polling station wise into Gram Panchayat electoral roll. This process in some cases may involve merging of names of men and women voters based on house numbers and family details where separate polling stations are set up for men and women during Assembly elections. The process also involves rearrangement after integration of main roll and supplements containing inclusions and deletions prepared during summary revisions. The secretary has to ensure that, all the names in the latest Assembly Electoral Roll are arranged house number wise (and family wise) in serial order.
2) He has to prepare the manuscript of the Gram Panchayat electoral roll as aforesaid.
3) He has to take action for identification of ST and SC voters in the electoral roll of the Gram Panchayat so prepared. He has to make atleast seven copies of the Gram Panchayat electoral roll for the following purpose.

a) For publication in the Gram Panchayat	-	4
b) For DLPO office	-	1
c) For DPO office (for approval and publication)	-	2

4) He has to indicate ward division in the electoral roll of the Gram Panchayat.

After preparation, he has to get the copy verified by the DLPO and finally get approval from the DPO who is the publishing authority. After approval, as per the notification issued by the State Election Commission, he has to publish the electoral roll along with the notice in Form -I appended to the AP PR (Preparation and Publication of Electoral Rolls) Rules, 2000 as

prescribed in rule 5 of the said rule ie., on the notice board of District Panchayat Office, on the notice board in the office of the Gram Panchayat and at 3 consecutive places in the concerned village.

4. **Publication of electoral rolls of Zilla Parishad and Mandal Parishad:-** Rules 7 and 8 of APPR (Preparation and publication of electoral rolls) Rules, 2000, contain procedural instructions for preparation and publication of electoral rolls of Zilla Parishads and Mandal Parishads. The electoral roll of Gram Panchayat prepared and published shall be arranged territorial constituency wise by the MPDO and it shall be published in the manner prescribed in the said rules. Similarly, the electoral rolls of the Gram Panchayat prepared and published shall be arranged for each Mandal Parishad which is a territorial constituency of Zilla Parishad by the Chief Executive Officer, Zilla Parishad and it shall be published in the manner prescribed under rule 8 of the said rules.

5. The following instructions shall scrupulously be followed in preparation of Gram Panchayat electoral rolls:-

(a) The electoral rolls of Gram Panchayats shall be prepared by adopting finally published Assembly Electoral rolls with reference to 1.1.2011 as qualifying date.

(b) While preparing the Gram Panchayat Electoral rolls, go through the Section 11 of AP PR Act, 1994 and rules issued thereunder in GO Ms.No.254, PR & RD Dept., dated 4.8.2000, which are called AP Panchayat Raj (Preparation and Publication of electoral rolls) rules, 2000.

(c) Under Rule 6 of AP PR (Preparation and publication of electoral rolls) Rules, 2000, all omissions of names in any part of the roll or objections to any entry in the roll at any point of time after its publication under Rule 5 of the said rules shall be settled only after suitable amendment to the relevant entry in the concerned electoral roll of the Legislative Assembly Constituency, based on which the Gram Panchayat electoral roll was prepared.. Anybody wishing to prefer any claim for inclusion or deletion of any name in the electoral roll or any objections in respect of any entry in the rolls so published shall submit a proper claim or objection under the Registration of Electors Rules, 1960 made under the

RP Act, 1950 to the Electoral Registration Officer of the Legislative Assembly Constituency concerned. Inclusion, deletion or corrections ordered by the Electoral Registration Officer of the Assembly Constituencies on such claims and objections in the electoral roll of the concerned Legislative Assembly Constituency, upto the date of election notification of the PR Body concerned, shall be carried out by the District Panchayat Officer in the electoral roll of the Gram Panchayat concerned.

The District Panchayat Officer shall not resort to suo motu revision of the electoral rolls by way of additions, deletions or modifications.

(d) The entries in the electoral roll of the Gram Panchayat shall not deviate from the entries in the Assembly electoral roll concerned;

(e) In case of any clerical or printing error or both or when entries in Gram Panchayat electoral roll deviate from the particulars of Assembly electoral roll, the District Panchayat Officer may cause such error rectified so as to bring it in conformity with the particulars of the Assembly electoral roll concerned under rule 6 of the APPR (Preparation and publication of electoral rolls) Rules, 2000;

(f) Where any representation or complaint referred by State Election Commission or received directly by Collector or District Panchayat Officer from any political party or individual alleging occurrence of deviations or clerical or printing error in the Gram Panchayat electoral rolls, they shall be enquired into and corrections shall be made, wherever necessary duly following the procedures. In case an application is filed for inclusion or deletion, the applicant shall be informed of the action taken on the application through certificate of posting. This item of work should be attended to on priority basis as elections to Panchayat Raj bodies are likely to be held shortly.

(g) The District Collectors have to ensure that, after publication of Gram Panchayat electoral rolls, any inclusion, deletion or correction ordered in the Assembly Electoral Rolls by the Electoral Registration Officer of the Assembly

Constituency concerned under Section 22 or 23 of RP Act, 1950 upto the date of election notification are obtained by the District Panchayat Officers from the EROs concerned and shall be carried out in the electoral roll of the Gram Panchayat concerned by the District Panchayat Officers. Inclusions, if any, ordered shall be added at the end to the part relating to the last ward and the deletion shall be carried out at the appropriate places.

(h) The DPOs shall ensure that, updated of electoral rolls are used by the Returning Officer concerned for display on notice board and also for the receipt of nominations from the candidates.

(i) The Divisional Panchayats Officers, Mandal Parishad Development Officers and Extension Officers, Panchayat Raj & Rural Development shall effectively supervise the preparation of the Gram Panchayat Electoral roll by the Panchayat Secretaries to have error free electoral rolls for smooth conduct of elections.

6. Copies required:- The District Panchayat Officer has to arrange for printing of required number of copies of the electoral rolls of Gram Panchayat for conduct of Gram Panchayat election and Zilla Parishad and Mandal Parishad elections. The DPO may keep in view the above requirement while generating the copies of the finally published electoral rolls of the Gram Panchayats

7. Number of copies to be printed:- As per the standing instructions issued by the State Election Commission, finally published copies of the electoral rolls are to be supplied free of cost to the recognized political parties and also to the registered political parties who are provided with a reserve symbol by obtaining acknowledgements from them. For others, copies may be given on payment of actual cost of making copies of the rolls. The number of copies to be printed are given below –

Copies meant for Utilization by DPO:

1) For display on the date of issue of election notice for Gram Panchayat election	-	2
2) For election to Gram Panchayats	-	10
3) For safe custody in the office of DPO	-	1
4) For safe custody in the office of DLPO	-	1
5) For safe custody in the office Gram Panchayat	-	1

6) For sale	-	10
7) Reserve	-	5
		30

Copies meant for utilization by CEOs:-

1) For publication of Zilla Parishad and Mandal Parishad electoral rolls under rules 7 & 8.	-	1
2) For display on date of issue of election notice for MPTC/ZPTC election.	-	2
3) Copies to be supplied to political parties	-	45
4) For elections to MPTC and ZPTC	-	10
5) For sale	-	10
8) Reserve	-	2
		70

Therefore, a total number of 100 copies of electoral roll of each Gram Panchayat are to be printed.

8. Budget:- The District Panchayat Officers shall prepare the budget requirement for preparation and publication of electoral rolls and send to the Commissioner of Panchayat Raj & Rural Employment. The Commissioner of Panchayat Raj & Rural Employment is requested to release budget to all the District Panchayat Officers for preparation and publication and printing of electoral rolls of Gram Panchayats.

9. Allocation of adequate time to Panchayat Secretaries: - The Panchayats Secretaries are discharging multifaceted responsibilities. They are entrusted with the responsibility of preparing the electoral rolls of their Gram Panchayats. As the preparation and publication of Gram Panchayat electoral rolls is an important time bound statutory work which forms the basis for free and fair elections, the District Collectors and District Panchayat Officers are requested to ensure that adequate time is allocated every day to Panchayat Secretaries for preparation and publication of electoral rolls of their Gram Panchayats.

10. Relieving DPOs from other duties:-The District Panchayat Officers have to concentrate on various items of work relating to conduct of election such as preparation and publication

of electoral rolls, identification of BC voters, reservations and other election related issues from now onwards till the completion of election process. The District Collectors are therefore, requested not to entrust any other duties to the District Panchayat Officers from now onwards till the completion of the election process. If the District Panchayat Officers are functioning as Special Officers for any programme, the District Collectors shall relieve them forthwith of those additional responsibilities by making alternative arrangements so that they can concentrate on election related work.

All the Collectors and DPOs shall take immediate action to convene a meeting of all Panchayat Secretaries at the district level or divisional level to explain these procedural instructions to enable them to prepare electoral rolls of respective Gram Panchayats. The preparation of Gram Panchayat electoral rolls shall be **completed at the earliest and await the notification of the State Election Commission.** The electoral roll prepared shall be published on the date notified by the State Election Commission in the notification to be issued for publication of electoral rolls.

Yours faithfully,
Sd/- G.M.Ramesh Kumar
Secretary

To

The Commissioner of Panchayat Raj and Rural Employment, A.P., Hyderabad, and Election Authority,
All the District Collectors in the State except Hyderabad,
All the Chief Executive Officers of Zilla Parishads in the State,
All the District Panchayat Officers in the State.

Copy to:

The Principal Secretary to the Govt., PR & RD, Dept., A.P. Secretariat, Hyderabad.

RULES RELATING TO PREPARATION AND PUBLICATION OF ELECTORAL ROLLS

(Repealed and Re-issued in G.O.Ms.No.254, Panchayat Raj & Rural Development (Elecs) Department, dated 4.8.2000)

N O T I F I C A T I O N

In exercise of the powers conferred by clause (i) sub-section (2) of section 268, read with section 11, sub-section (2) of section 151 and sub-section (2) of section 179, of the Andhra Pradesh Panchayat Raj Act 1994 (Act No. 13 of 1994), and in supersession of the rules issued in G.O.Ms.No. 879, PRRD & R (Elecs.I) Department, dated 3.12.1994, G.O.Ms.No. 898, PR RD & R (Elecs.I) Department, dated 10.12.1994, G.O.Ms.No. 913, PR RD & R (Elecs.I) Department, dated 21.12.1994, and G.O.Ms.No.923, PRRD & R (Elecs.I) Department, dated.28.12.1994, the Governor of Andhra Pradesh hereby makes the following Rules relating to preparation and publication of electoral rolls under the said Act, for a Gram Panchayat, Mandal Praja Parishad and Zilla Praja Parishad, or any portion thereof.

R U L E S

1. Short Title : These rules may be called the Andhra Pradesh Panchayat Raj (Preparation and Publication of Electoral Rolls) Rules, 2000.

2. **Preparation of Gram Panchayat electoral roll :** (1) The electoral roll of a Gram Panchayat, hereinafter referred to as "the electoral roll", shall be such part of the current electoral roll of the Andhra Pradesh Legislative Assembly Constituency, prepared and published under the Representation of the People Act, 1950 (Central Act 43 of 1950), as relates to the village, which shall be prepared by the District Panchayat Officer, taking into account the various amendments issued to the said electoral roll of the Assembly Constituency, from time to time, as they relate to the village, upto the date of election notification.

(2) There shall be a separate electoral roll for each Gram Panchayat.

3. Electoral roll for election to the office of Sarpanch : For the purpose of election of Member and Sarpanch of Gram Panchayat, the roll prepared under rule 2 shall be the electoral roll.

4. Form and language of the roll : (1) The roll shall be prepared in the format specified by the State Election Commission, by order.

(2) The roll shall be prepared in such language or languages in which the roll of the Andhra Pradesh Legislative Assembly Constituency, within which the Gram Panchayat is situated, is prepared.

5. Publication of copies of rolls : (1) As soon as the roll is prepared in accordance with these rules, the District Panchayat Officer shall, make arrangements to print or cyclostyle or write in manuscript as many copies of the roll as may be directed by the State Election Commission, from time to time. He shall publish the same for inspection by general public:

(a) on the notice board kept in the office of the District Panchayat Officer.
(b) on the notice board kept in the office of the Gram Panchayat; and
(c) at three conspicuous places in the concerned village.

(2) The electoral roll published under sub-rue (1) shall indicate the ward division made under sub-section (4) of section 11 or as the case may be, under Section 12, of the Andhra Pradesh Panchayat Raj Act, 1994 (Act 13 of 1994), hereinafter in these rules referred to as "the Act".

(3) Upon such publication under this rule, the roll shall be the electoral roll of the Gram Panchayat and shall remain in force till a fresh electoral roll is prepared and published.

6. Procedure for lodging claims and objections : All omissions of names in any part of the roll or objections to any entry in the roll, at any point of time after its publication under rule 5, shall be settled only after a suitable amendment to the relevant entry in the electoral roll of the Legislative Assembly Constituency, based on which the Gram Panchayat roll was prepared. Anybody wishing to prefer a claim for inclusion or deletion of any name in the roll or any objection in respect of any entry in the roll so published, shall submit a proper claim or objection under the provisions of the Registration of Electors Rules, 1960 made under the representation of the People Act, 1950 (Central Act 43 of 1950), to the Electoral Registration Officer of the concerned Legislative Assembly Constituency. Subject to the provisions of section 11 of the Act, and based on the orders of the Electoral Registration Officer of the Assembly Constituency on such claims and objections, the District Panchayat Officer shall carry out consequential amendments in the Gram Panchayat electoral roll. In case of any clerical or printing error or both, or when the entries deviate from the particulars of the Assembly Electoral roll, the District Panchayat Officer may cause such errors rectified, so as to bring it in conformity with the particulars of the Assembly Electoral roll concerned. However, the District Panchayat Officer shall not resort to suo motu revision of the rolls by way of deletions or additions or modifications.

7. Electoral roll of a Mandal Praja Parishad : (1) For purposes of preparation and publication of electoral roll for the election to the office of members of Mandal Praja Parishad the provisions of sections 11 and 12 of the Andhra Pradesh Panchayat Raj Act, 1994 shall apply mutatis mutandis.

(2) The Electoral roll for the Gram Panchayat prepared and published under rule 2 shall be arranged Territorial Constituency-wise of the Mandal Praja Parishad by the Mandal Parishad Development Officer and it shall be divided into convenient parts which shall be numbered conveniently. The part of the electoral roll shall be arranged Gram Panchayat-wise in

alphabetical order for each Mandal Parishad Territorial Constituency for the purpose of conducting elections of Mandal Parishad Territorial Constituency.

(3) A copy of such electoral roll in respect of each Territorial Constituency of Mandal Praja Parishad shall be kept open for inspection in the office of the Mandal Praja Parishad concerned.

8. Electoral roll of a Zilla Praja Parishad : (1) For purposes of preparation and publication of electoral roll for the election of member of Zilla Praja Parishad, the provisions of sections 11 and 12 shall apply mutatis mutandis.

(2) The electoral roll for the Gram Panchayat prepared and published under rule 2 shall be arranged for each Mandal which is a Territorial Constituency of the Zilla Praja Parishad by the Chief Executive Officer, Zilla Praja Parishad concerned, and it shall be divided into convenient parts which shall be numbered conveniently. The part of the electoral roll shall be arranged Gram Panchayat-wise in alphabetical order for each Zilla Parishad Territorial Constituency, for the purpose of conducting elections of Zilla Parishad Territorial Constituency.

(3) A copy of such electoral roll in respect of each Territorial Constituency of Zilla Praja Parishad shall be kept open for inspection in the office of the Zilla Praja Parishad concerned.

"9. Transitional Provision – Notwithstanding anything in these rules, the electoral rolls of Gram Panchayats prepared and finally published, with reference to 1st January,2000 as the qualifying date, in pursuance of Notification No.738/SEC-B1/1999-2000,dt the 7th January,2000 of the State Election Commission, shall continue to be in force, until fresh electoral rolls are prepared and published, subject to the condition that any additions or deletions made by the Electoral Registration Officer under the Representation of the People Act,1950 (Central Act 43 of 1950) in the electoral roll of the Legislative Assembly Constituency, as relates to the concerned Gram Panchayat, between the date of the notification of the State Election Commission referred to above, and the date of Election notification, for any election held under this Act shall be added or deleted, as the case may be, in the electoral rolls already prepared as above. Any additions shall, however, be added to the last ward of the Gram Panchayat concerned".

FORM – I

NOTICE OF PUBLICATION OF ELECTORAL ROLL

(See rule 5)

Notice is hereby given that the electoral roll of the …… Gram Panchayat in ……. Mandal has been prepared in accordance with the Andhra Pradesh Panchayat Raj (Preparation and Publication of Electoral Rolls) Rules, 2000 by adopting the existing entries in the relevant part of the Electoral Roll for Legislative Assembly Constituency prepared under the Representation of the People Act, 1950. The same is kept open for inspection at my office and at the office of the Gram Panchayat.

Any person who wishes to lodge any claim for including his/her name in the roll or any objection to the inclusion of a name or any objection to the particulars is any entry in the said roll, shall first get such claim or objection settled with reference to the corresponding entry in the Electoral Roll of the Assembly Constitutencies by lodging suitable claim or objection under the provisions of the Representation of the People Act, 1950 (Central Act 43 of 1950) and the Registration of Electors Rules, 1960 made thereunder, before the Electoral Registration Officer of the said Assembly Constituency.

All orders of inclusion, deletion or corrections issued on the basis of these claims and objections by the said Electoral Registration Officer till the date of the notification issued by the State Election Commissioner under sub-rule (2) of rule 4 of the Andhra Pradesh Panchayat Raj (Conduct of Elections) Rules, 1994, will be duly incorparted in the electioral Roll of the Gram Panchayat.

District Panchayat Officer

----------District.

STATE ELECTION COMMISSION

3rd Floor, Buddha Bhavan, M G Road, Secunderabad – 500 003

Cir.No.118/SEC-B2/2011-2, **Dated:7.3.2011**

CIRCULAR

Sub:- Elections – 4th Ordinary elections to PR bodies, 2011 – Preparation and publication of electoral rolls for Panchayat Raj elections – Certain instructions for preparation of GP Electoral rolls by adopting Assembly Electoral rolls issued – Reg.

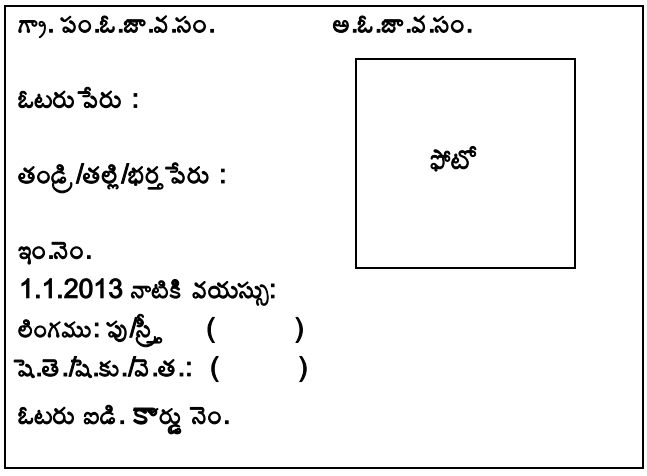
Ref:- SEC Circular No.118/SEC-B2/2011, dated 28.2.2011.

***

In the circular cited, procedural instructions were issued for preparation of Gram Panchayat electoral rolls by adopting latest Assembly Electoral rolls published on 5.1.2011 w.r.t 1.1.2011 as qualifying date in the format as indicated therein. As GP electoral rolls are prepared with photo images by adopting Assembly electoral rolls, the following further instructions are issued with regard to manner of preparation, publication and printing of Gram panchayat electoral rolls.

FORMAT FOR PREPARATION OF GRAM PANCHAYAT ELECTORAL ROLL

1) The Gram Panchayat electoral rolls shall be prepared with photo images by adopting latest Assembly electoral rolls published on 5.1.2011 with reference to 1.1.2011 as qualifying date.
2) The Gram Panchayat electoral rolls shall be prepared with photo images in the same format as Assembly electoral rolls by incorporating the particulars of GP electoral rolls as shown below.



3) The title page (Annexure – I) and headings of Annexure – II of the format appended to order NO. 637/SEC-B1/2003-3 shall remain the same.

4) Identification of BC voters in the electoral rolls shall be done subsequently as per the instructions given by the Government.

Sd/- G.M.Ramesh Kumar
Secretary (FAC)

To
All the District Collectors.
All the District Panchayat Officers.
Copy to:
The Commissioner of Panchayat Raj & Rural Employment, Hyderabad.
All the Chief Executive Officers of Zilla Parishad.

Registered No. HSE/49.

[Price: Re. 0.20 Paise

ఆంధ్ర ప్రదేశ్ రాజ పత్రము

THE ANDHRA PRADESH GAZETTE

PART VII - EXTRAORDINARY

PUBLISHED BY AUTHORITY

No. 8] HYDERABAD, THURSDAY, AUGUST 10, 2000.

NOTIFICATIONS RELATING TO THE ADMINISTRATION OF PANCHAYAT RAJ

—xx—

STATE ELECTION COMMISSION

ANDHRA PRADESH PANCHAYAT RAJ (PREPARATION AND PUBLICATION OF ELECTORAL ROLLS) RULES, 2000.

Order No. 637/SEC-B1/2000-3.

ORDER:

Under Article 243 K of the Constitution of India, read with sub-rule (1) of rule 4 of the Andhra Pradesh Panchayat Raj (Preparation and Publication of Electoral Rolls) Rules, 2000, the State Election Commission, hereby, specifies the formats for preparation of electoral rolls of Gram Panchayat as in the Annexure - I (title page) and Annexure - II (details of electors), appended to this Order.

గ్రామ పంచాయితీ ఓటర్ల జాబితా ముఖపత్రము

---------- గ్రామ పంచాయితీ ఓటర్ల జాబితా, 2013

----------అసెంబ్లీ నియోజకవర్గము

జిల్లా: సబ్ డివిజన్:

గ్రామ పంచాయితి ప్రదేశము: మండలము:

పోలింగు కేంద్రము: విభాగముల సంఖ్య:

విభాగము వివరములు

విభాగము సంఖ్య	విభాగములో చేరిన శివారు ప్రాంతము గ్రామము	ఇంటి నెంబరు వివరములు
(1)	(2)	(3)

(సం.)

గ్రామ పంచాయితీ ఓటర్ల జాబితా ప్రచురణ అధికారి

మరియు జిల్లా పంచాయితీ అధికారి

----------జిల్లా.

GOVERNMENT OF ANDHRA PRADESH
GENERAL ADMINISTRATION (ELECTIONS-E) DEPARTMENT

Memo No. 648/Elecs.E/A2/2013-1 Dated: 22.02.2013

Sub:- State Election Commission – Conduct of 4th ordinary elections to P.R.Bodies, 2013 - Providing of hard and soft copies of electoral rolls to the District Panchayat Officers – Reg.

Ref:- 1)This Office Memo No.762/Elecs.E/A2/2011-1, dt.25.02.2011.
2)From the State Election Commissioner, A.P., Letter No.91/SEC-B2/2013-1, dt.20.02.2013.
3)From the State Election Commissioner, A.P., Letter No.91/SEC-B2/2013-1, dt.20.02.2013 addressed to the Commissioner, Panchayat Raj & Rural Employment.
4)From the Commissioner, Panchayat Raj & RE Lr.No.2218/Elecs./2011, dt.21.02.2013.

–:o0o:–

The attention all the District Election Officers (except Hyderabad) is invited to the reference first cited and they are informed that the State Election Commissioner in his letter second cited has stated that instructions were issued from the office of the CEO vide reference first cited to all the Collectors & DEOs to supply hard and soft copy of Assembly Electoral Rolls published w.r.t. 1.1.2011 to prepare Gram Panchayat Electoral Rolls for publication as per statute and conduct of elections to P.R.Bodies that were due in July-August, 2011. However, the elections were postponed due to protracted Court litigation. He has further stated that now the Hon'ble Supreme Court of India in its interim direction dt.18.02.2013 issued orders to proceed with the elections to P.R.Bodies, that as the electoral rolls of Gram Panchayats are to be prepared adopting the latest Assembly Electoral Rolls published with reference to 01.01.2013 as qualifying date and the District Panchayat Officers are authorized to prepare and publish the electoral rolls of Gram Panchayats, he has requested to issue instructions to all the Collectors and District Election Officers (except Hyderabad) to provide soft and hard copies of photo electoral rolls published with reference to 01.01.2013 as qualifying date to the DPOs of their respective districts as per the yardstick as was done last time.

2. In view of the above request, all District Election Officers (except the Hyderabad) are, therefore, requested to provide the photo electoral roll published on 15.01.2013 with reference to 01.01.2013 along with the supplements prepared under continuous updation till date

as detailed below, to all the District Panchayat Officers in their districts under proper acknowledgement and intimation to this office as well as to the State Election Commission duly complying with the guidelines issued by the Election Commission of India vide its letter dt.10.12.2008 (copy enclosed).

(i) One signed hard copy (signed by the concerned ERO) of Assembly photo electoral rolls

(ii) One CD containing the above Assembly photo electoral rolls in pdf format

(iii) Password-free electoral roll database with photographs in digital format

BHANWAR LAL,
CHIEF ELECTORAL OFFICER &
E.O. PRL. SECRETARY TO GOVERNMENT

To
All Collectors & District Election Officers (except Hyderabad) (w.e)
Copy to:
The Secretary, State Election Commission, 3rd Floor, Buddha Bhavan, MG Road, Secunderabad – 500003
The Commissioner of Panchayat Raj & Rural Employment, Panchayat Bhavan, Urdu Hall Lane, Himayathnagar, Hyderabad-29
The Deputy Project Manager, CMC Ltd., O/o.CEO., A.P., Hyderabad. He is instructed to provide necessary tool for copying the password free electoral roll database along with images on DVDs to all the DEOs (except Hyderabad) to handover to the Dist.Panchayat Officers.

//Forwarded :: By Order// Srinivas
SECTION OFFICER

ANNEXURE –II

STATE ELECTION COMMISSION
3rd Floor, Buddha Bhavan, M G Road, Secunderabad – 500 003

NOTIFICATION

No.91/SEC-B2/2013- 8, **Dated:19.03.2013.**

In exercise of the powers conferred under Article 243-K of the Constitution of India read with sections 11 of Andhra Pradesh Panchayat Raj Act, 1994 and the Andhra Pradesh Panchayat Raj (Preparation and Publication of Electoral Rolls) Rules, 2000, issued thereunder, the State Election Commission, hereby, directs all the District Panchayat Officers in the State to prepare and publish on **26.03.2013**, the electoral rolls of all the Gram Panchayats in their respective districts with reference to 01.01.2013 as the qualifying date duly indicating the Ward division as required under Rule 5 of the said rules in Form I thereof.

Sd/-P.Ramakanth Reddy,
State Election Commissioner

To
All the District Panchayat Officers in the State.

Copy to:
All the Collectors and District Election Authorities in the State except Hyderabad District
The Election Authority and Commissioner of Panchayat Raj, A.P., Hyderabad.
The Principal Secretary to Government, PR & RD Department, AP Secretariat, Hyderabad.

ANNEXURE – II(A)

STATE ELECTION COMMISSION

3rd Floor, Buddha Bhavan, M.G. Road, Secunderabad – 500 003, A.P.

NOTIFICATION

No. 91/SEC-B2/2013-14 **Date: 28.03.2013**

The State Election Commission issued notification in Ref.No.91/SEC-B2/2013, dated 19.03.2013 directing the District Panchayat Officers to publish on 26.03.2013 the electoral rolls of all Gram Panchayats in their respective districts with reference to 1.1.2013 as qualifying date.

The District Panchayat Officer, Ranga Reddy has not published electoral rolls prepared in respect of the Gram Panchayats indicated in the Annexure due to pendency of proposals for their merger with Greater Hyderabad Municipal Corporation. However, no final orders were issued by the Government denotifying those Panchayats.

Now, therefore, in exercise of the powers conferred under Article 243-K of the Constitution of India read with section 11 of Andhra Pradesh Panchayat Raj Act, 1994 and the Andhra Pradesh Panchayat Raj (Preparation and Publication of Electoral Rolls) Rules, 2000, issued thereunder, the State Election Commission, hereby, directs the District Panchayat Officer, Ranga Reddy to publish on **30.03.2013** the electoral rolls of the Gram Panchayats indicated in the Annexure appended to this notification with reference to 1.1.2013 as qualifying date duly indicating the ward division as required under Rule 5 of the said rules in Form I thereof.

Sd/- P. Ramakanth Reddy
State Election Commissioner

To
The District Panchayat Officer, Ranga Reddy.
Copy to:
The Collector and District Election Authority, Ranga Reddy.
The Election Authority and Commissioner of Panchayat Raj & Rural Employment, Hyderabad.
The Principal Secretary to Government (PR), P.R. & R.D. Department, AP Secretariat, Hyderabad.

ANNEXURE

(TO NOTIFICATION NO.91/SEC-B2/2013-13, DTD. 28.03.2013)

Sl.No.	Name of the District	Name of the Mandal	Name of the Gram Panchayat
1.	Ranga Reddy	Shamshabad	1. Shamshabad 2. Satamrai 3. Kothwalguda
		Rajendranagar	4. Narsingi 5. Gandipet 6. Vattinagulapally 7. Neknampur 8. Puppalaguda 9. Khanapur 10. Manikondajagir 11. Manchirevula 12. Kokapet 13. Bandlagudajagir 14. Kismatpur 15. Himayathsagar 16. Peeramcheruvu 17. Hydershakote
		Quthubullapur	18. Pragathinagar 19. Bachupally 20. Nizampet 21. Kompally 22. Dulapally
		Hayathnagar	23. Kalvancha H/o Kuntloor
		Saroornagar	24. Jillelguda 25. Kothapet 26. Meerpet 27. Pahadishareef 28. Balapur Part (from Sy.Nos. 140 to 253) 29. Jalpally
		Ghatkesar	30. Boduppal 31. Peerzadiguda 32. Medipally 33. Parvathapur 34. Chengicherla
		Shameerpet	35. Jawaharnagar
		Keesara	36. Nagaram 37. Dammaiguda
		Medchal	38. Gundlapochampally

Sd/- P. Ramakanth Reddy
State Election Commissioner

ANNEXURE – II(B)

STATE ELECTION COMMISSION

3rd Floor, Buddha Bhavan, M.G. Road, Secunderabad – 500 003, A.P.

NOTIFICATION

No. 91/SEC-B2/2013-15 **Date: 03.04.2013**

The State Election Commission issued Notification in Ref.No.91/SEC-B2/2013, dated 19.03.2013 directing the District Panchayat Officers to publish on 26.03.2013 the electoral rolls of all Gram Panchayats in their respective districts with reference to 1.1.2013 as qualifying date.

The Government in Panchayat Raj Department issued orders on 25.3.2013, 26.3.2013 and 27.3.2013 denotifying some Gram Panchayats for the purpose of merger / upgradation, bifurcating some Gram Panchayats and reconstituting some Gram Panchayats in some districts. As per the information gathered from the concerned DPOs, the orders of the Government were implemented in respect of all Gram Panchayats denotified for the purpose of merger / upgradation. Further, in respect of newly constituted / reconstituted Gram Panchayats covered by orders of the Government dated 25.3.2013 and 26.3.2013, electoral rolls of some of such newly formed Gram Panchayats could not be published due to non-receipt of orders in time by the DPOs. In respect of all Gram Panchayats formed as a consequence of Government orders dated 27.3.2013, electoral rolls were not published as they were received after due date of publication, i.e., 26.3.2013.

When the State Election Commission sought to know the pressing reasons for issue of orders of merger / upgradation / bifurcation of Gram Panchayats beyond the deadline, it was explained by the Government in Letter No. 8244/Pts.IV/2013-1, dated 02.4.2013 that requests were received from aspiring people facing acute problems of distance and other factors in affected villages and pressed by the public representatives till late hours on 26.3.2013 and that all the cases were actually processed round-the-clock on 26.3.2013 and final orders were issued continuously past midnight due to which some orders bore the date 27.3.2013 automatically. It was also explained that all the orders with date 27.3.2013 were actually approved on 26.3.2013 itself, but got processed on the computers beyond 12:00 midnight. It was also stated that those orders were issued by the Government keeping in view the genuinity and convenience of the residents of the villages concerned. In view of the unavoidable circumstances explained above, the Government requested the State Election Commission to give a date for publication of electoral rolls of Gram Panchayats that were formed as a consequence of orders issued by the Government on 25.3.2013, 26.3.2013 and 27.3.2013 for which electoral rolls were not published on 26.3.2013.

(PTO)

Now, therefore, in exercise of the powers conferred under Article 243-K of the Constitution of India read with section 11 of Andhra Pradesh Panchayat Raj Act, 1994 and the Andhra Pradesh Panchayat Raj (Preparation and Publication of Electoral Rolls) Rules, 2000 issued thereunder, the State Election Commission, hereby, directs the District Panchayat Officers of Anantapur, Chittoor, Karimnagar, Mahabubnagar and Medak districts to publish on **06.04.2013** the electoral rolls of such of those newly constituted and reconstituted Gram Panchayats, that were formed as a consequence of the orders issued by the Government on 25.3.2013, 26.3.2013 and 27.3.2013, for which electoral rolls were not published on 26.3.2013. The electoral rolls shall be prepared for such publication with reference to 1.1.2013 as qualifying date duly indicating the ward division as required under Rule 5 of the said rules in Form I thereof.

Sd/- P. Ramakanth Reddy
State Election Commissioner

To
The District Panchayat Officers concerned.

Copy to:
The Collector and District Election Authorities of Anantapur, Chittoor, Karimnagar, Mahabubnagar and Medak districts.
The Election Authority and Commissioner, PR & RE, Hyderabad.
The Principal Secretary to Government (PR), P.R. & R.D. Dept., Hyderabad.

ANNEXURE –II(C)

GOVERNMENT OF ANDHRA PRADESH
ABSTRACT

Panchayat Raj Elections – Release of Budget for an amount of Rs.13,77,47,305/-(Rupees Thirteen Crores Seventy Seven Lakhs, Forty Seven thousand and Three hundred Five only) Rs.6,34,76,420/- on A.C Bills and Rs.7,42,70,885/- on D.C.Bills- to District Panchayat Officers for Preparation, Printing and Publication of Electoral Rolls for conducting 4th Ordinary Elections to PRIs 2011 – Administrative Sanction Accorded - Orders-Issued.

PANCHAYAT RAJ &RURAL DEVELOPMENT (E&R) DEPARTMENT

G.O.Rt.No.460 Dated:16.03.2013
Read the following:-

1. From the Commissioner, Panchayat Raj & Rural Employment, Hyderabad Lr.No.15683/M1/2010-11, Dated:23.02.2013.
2. From the Commissioner, Panchayat Raj & Rural Employment, Hyderabad Lr.No.15683/M1/2010-11, Dated:13.03.2013.
3. From the Commissioner, Panchayat Raj & Rural Employment, Hyderabad Lr.No.15683/M1/2010-11, Dated:15.03.2013.

* * *

ORDER:

In the reference 1st read above, the Commissioner, Panchayat Raj & Rural Employment, Hyderabad has furnished proposal for release of an amount of Rs.13,77,47,305/-(Rupees Thirteen Crores Seventy Seven Lakhs, Forty Seven thousand and Three hundred Five only) to the District Panchayat Officers on A.C.Bills for Preparation, Printing and Publication of Electoral Rolls for conducting 4th Ordinary Elections to PRIs, 2011 to the Districts.

2. In the reference 2nd read above, the CPR&RE has furnished justification for drawal of funds on A.C.Bills. In the reference 3rd read above he has requested the Government to release the funds 46% on A.C.Bills and 54% on D.C.Bills as shown below:

Sl. No.	Item	Amount proposed During 2011	10 % on the Amount proposed during 2011	Total proposed during 2013	Amount to be released on AC Bills	Amount to be released on DC Bills
1	Total costs generation of mater copy	13353417	1335342	14688759	7344379	7344379
2.	Total cost for 107 sets Electoral Xerox cost	102058256	10205826	112264082	56132041	56132041
3	TA/DA	9813150	981315	10794465	0	10794465
	Total	125224823	12522482	137747305	63476420	74270885

4. After careful examination of the proposal, Government hereby accord administrative sanction for releasing an amount of Rs.6,34,76,420/-) Rupees Six crores thirty four lakhs seventy six thousands four hundred twenty only) on A.C.Bills and Rs.7,42,70 885/- (Rupees Seven crore forty two lakhs seventy thousands eight hundred eighty five only)on D.C.Bills, to the District Panchayat Officers in the State, District wise as detailed in the annexure appended to this order for Preparation, Printing and Publication of Electoral Rolls for conducting 4th Ordinary Elections to PRIs, 2011.

(P.T.O)

5. The Expenditure sanctioned in Para three (3) above shall be debited to the following Head of Account"2515- Other Rural Development Programmes, 198- Assistance to Grama Panchayats -SH (10) -Elections to Panchayats, 500- Other charges 503- Other Expenditure" under Non -Plan.

6. The District Panchayat Officers in the State are hereby authorized to draw the amount on AC Bills/DC Bills as shown in the annexure appended to this order.

7. The Director of Treasuries and Accounts, Hyderabad shall issue budget authorization to the amount sanctioned in Para (3) above and issue necessary instructions to admit the bills submitted by the District Panchayat Officers concerned in the State.

8. This order issues with the concurrence of the Finance (Exp. PR&RD) Department vide their U.O.No.5614/112/Exp-PR&RD/2013, Dated:15.03.2013.

9. The Commissioner, Panchayat Raj & Rural Employment, Hyderabad shall take necessary action accordingly.

(BY ORDER AND IN THE NAME OF THE GOVERNOR OF ANDHRA PRADESH)

V. NAGI REDDY
PRINCIPAL SECRETARY TO GOVERNMENT (PR)

To
The Commissioner, Panchayat Raj & Rural Employment, Hyderabad.
The District Panchayat Officer, Adilabad/Chittoor/Ananthapur/ East Godavari/ Guntur/ YSR Kadapa /Karim nagar /Khammam /
Krishna /Kurnool/ Mahaboobnagar / Medak /Nalonda/SPSR
Nellore/Nizamanad/Prakasham/RangaReddy/Srikakulam/Visakhapatnam/Vizian agaram/Warangal/WestGodavari District in the State.
The Chief Executive Officer, Zilla Pariahad, Adilabad/Ananthapur/
Chittoor/East Godavari/Guntur/YSR Kadapa /Karim nagar/
Khammam / Krishna/ Kurnool/ Mahaboobnagar / Medak/
Nalonda/SPSR Nellore/ Nizamanad /Prakasham/Ranga Reddy/
Srikakulam/ Visakapatnam /Vizianagaram/ Warangal/
West Godavari District in the State.
The Director of Treasuries and Accounts, A.P., Hyderabad.
The Secretary, State Election Commission, Secunderabad.
Copy to:
All the District Treasury Officers concerned in the State.
The Pay and Accounts Officer, Hyderabad.
The Finance (Expr. PR&RD) Department.
The P.S to Honorable M (PR)/P.S. to Prl. Secretary to Government (PR).
SC/SF.

//FORWARDED BY ORDER//

SECTION OFFICER

ANNEXURE

(to G.O.Rt.No.460, PR&RD (E&R) Department Dated:16.03.2013)

Sl No	District	Xerox cost for (107) sets			TA and DA to the personnel engaged for Electoral rolls related work on DC bill	Mater copy generation			Grand Total
		Total	On AC bill	On DC bill		Total Cost	On AC bill	On DC bill	
1	Adilabad	5394584	2697292	2697292	428670	705833	352917	352917	6529087
2	Anantapur	4911954	2455977	2455977	495495	642686	321343	321343	6050135
3	Chittoor	4986961	2493481	2493481	683595	652500	326250	326250	6323056
4	East Godavari	7144789	3572395	3572395	500940	934832	467416	467416	8580562
5	Guntur	6375416	3187708	3187708	504900	834167	417083	417083	7714483
6	Karimnagar	6551246	3275623	3275623	591030	857172	428586	428586	7999448
7	Khammam	3874291	1937146	1937146	381645	506917	253458	253458	4762853
8	Krishna	6874288	3437144	3437144	481140	899440	449720	449720	8254867
9	Kurnool	5940118	2970059	2970059	445005	777212	388606	388606	7162335
10	Mahabubnagar	5634167	2817083	2817083	667260	737181	368590	368590	7038607
11	Medak	4999617	2499808	2499808	524205	654155	327078	327078	6177977
12	Nalgonda	5444339	2722169	2722169	583110	712343	356172	356172	6739792
13	Nizamabad	3176368	1588184	1588184	355410	415599	207800	207800	3947377
14	Prakasam	5765024	2882512	2882512	516780	754302	377151	377151	7036107
15	SPSR Nellore	3453769	1726885	1726885	475695	451895	225948	225948	4381359
16	Ranga Reddy	5009905	2504953	2504953	348975	655502	327751	327751	6014382
17	Srikakulam	4168541	2084271	2084271	544995	545417	272708	272708	5258953
18	Visakhapatnam	4747326	2373663	2373663	467280	621146	310573	310573	5835752
19	Vizianagaram	3329929	1664965	1664965	459360	435692	217846	217846	4224981
20	Warangal	4920765	2460382	2460382	501930	643838	321919	321919	6066533
21	West Godavari	5492666	2746333	2746333	439065	718667	359333	359333	6650398
22	YSR KADAPA	4068016	2034008	2034008	397980	532264	266132	266132	4998260
	TOTAL	**112264081**	**56132041**	**56132041**	**10794465**	**14688758**	**7344379**	**7344379**	**137747305**

V. NAGI REDDY
PRINCIPAL SECRETARY TO GOVERNMENT (PR)

SECTION OFFICER

ANNEXURE - III
4th ordinary elections to GPs, 2013
Electorate

Sl. No.	Name of the District	Total No. of Gram Panchayats in the districts	Total No. of Wards	Total voters		
				Men	Women	Total
1	Adilabad	866	8732	670353	669183	**1339536**
2	Anantapur	1003	10450	991584	967038	**1958622**
3	Chittoor	1366	13230	1052961	1070662	**2123623**
4	East Godavari	980	10984	1246931	1234309	**2481240**
5	Guntur	1011	10664	1121185	1145806	**2266991**
6	Karimnagar	1207	11926	1039064	1026450	**2065514**
7	Khammam	758	7886	716099	726149	**1442248**
8	Krishna	970	9918	991846	1000945	**1992791**
9	Kurnool	889	9480	953376	965970	**1919346**
10	Mahabubnagar	1331	13564	1160902	1151520	**2312422**
11	Medak	1077	10548	831442	825900	**1657342**
12	Nalgonda	1169	11688	1027385	1009978	**2037363**
13	Nizamabad	718	7424	641110	706614	**1347724**
14	Prakasham	1028	10400	926407	933416	**1859823**
15	Ranga Reddy	690	7138	781698	737438	**1519136**
16	SPSR Nellore	940	8910	688538	703634	**1392172**
17	Srikakulam	1099	10542	778492	785346	**1563838**
18	Visakhapatnam	930	9322	762055	786045	**1548100**
19	Vizianagaram	921	8764	655420	667944	**1323364**
20	Warangal	962	9774	887965	874840	**1762805**
21	West Godavari	884	9684	1066395	1082067	**2148462**
22	YSR District	791	7790	657906	681487	**1339393**
	Total	**21590**	**218818**	**19649114**	**19752741**	**39401855**

ANNEXURE -IV

Reservation for the office of Sarpanchas of Gram Panchayats -2013 in Scheduled and Non-Scheduled Area in the State

Sl. No	Name of the District	No. of GPs	Sch. GPs	Non-sch. GPs	Scheduled Area			Non- Scheduled area													Sch.+ Non-Sch.		
					Total	Women	M/ W	STs			SCs			BCs			UR			Total		
								Total	W	M/W	Total	W	M/W	Total	W	M/W	Total	W	M/W	Total	W	M/W
1	Nizamabad	718		718				69	35	34	123	62	61	308	154	154	218	109	109	718	360	358
2	Karimnagar	1207		1207				34	17	17	219	110	109	433	217	216	521	261	260	1207	605	602
3	Visakhapatnam	930	243	687	243	122	121	19	10	9	58	29	29	202	101	101	408	204	204	930	466	464
4	Srikakulam	1099	16	1083	16	8	8	45	23	22	82	41	41	474	237	237	482	241	241	1099	550	549
5	Adilabad	866	235	631	235	118	117	75	38	37	122	61	61	206	103	103	228	114	114	866	434	432
6	Vizianagaram	921	77	844	77	38	39	46	23	23	71	36	35	342	171	171	385	193	192	921	461	460
7	Khammam	758	372	386	372	186	186	48	24	24	85	43	42	95	48	47	158	79	79	758	380	378
8	Guntur	1011		1011				70	35	35	272	136	136	239	120	119	430	215	215	1011	506	505
9	Warangal	962	80	882	80	40	40	149	75	74	156	78	78	324	162	162	253	127	126	962	482	480
10	Chittoor	1366		1366				53	26	27	247	124	123	322	161	161	744	372	372	1366	683	683
11	West Godavari	884	45	839	45	22	23	16	8	8	259	129	130	337	169	168	227	114	113	884	442	442
12	East Godavari	980	120	860	120	60	60	16	8	8	277	138	139	452	226	226	115	58	57	980	490	490
13	Medak	1077		1077				60	30	30	177	88	89	362	181	181	478	239	239	1077	538	539
14	Krishna	970		970				38	19	19	258	129	129	285	142	143	389	194	195	970	484	486
15	Nellore	940		940				86	43	43	196	98	98	205	102	103	**453**	226	227	940	469	471
16	Kadapa	791		791				22	11	11	134	67	67	180	90	90	455	227	228	791	395	396
17	Kurnool	889		889				23	11	12	208	104	104	406	203	203	252	126	126	889	444	445
18	Nalgonda	**1169**		**1169**				136	68	68	204	102	102	404	202	202	**425**	212	213	1169	584	585
19	Prakasam	1028		1028				48	24	24	254	127	127	227	113	114	499	249	250	1028	513	515
20	Mahaboobnagar	1331	30	1301	30	15	15	121	60	61	232	116	116	466	233	233	482	241	241	1331	665	666
21	Ananthapur	1003		1003				48	24	24	177	88	89	324	162	162	454	227	227	1003	501	502
22	Ranga Reddy	690		690				57	28	29	147	73	74	333	166	167	153	76	77	690	343	347
		21590	**1218**	**20372**	**1218**	**609**	**609**	**1279**	**640**	**639**	**3958**	**1979**	**1979**	**6926**	**3463**	**3463**	**8209**	**4104**	**4105**	**21590**	**10795**	**10795**

ANNEXURE –IV(A)
Reservation for the office of Ward Members of Gram Panchayats -2013

Sl. No.	Name of the District	No. of Gr. Pts.	No. of Wards	Ward Reserved for														
				ST			SC			BC			UR			TOTAL		
				W	M/W	T	W	M/W	T	W	M/W	T	W	M/W	T	W	M/W	T
1	Adilabad	866	8732	1397	1058	2455	929	745	1674	1041	1112	2153	999	1451	2450	4366	4366	8732
2	Ananthapur	1003	10450	293	129	422	1082	676	1758	1594	1579	3173	2256	2841	5097	5225	5225	10450
3	Chittoor	1366	13228	368	201	569	1693	1427	3120	1967	1750	3717	3000	2822	5822	7028	6200	13228
4	East Godavari	980	10984	467	537	1004	966	1283	2249	1633	1999	3632	1875	2224	4099	4941	6043	10984
5	Guntur	1011	10664	438	147	585	1417	1159	2576	1080	1076	2156	2397	2950	5347	5332	5332	10664
6	Karimnagar	1207	11928	240	150	390	1493	1072	2565	2537	2487	5024	1693	2256	3949	5963	5965	11928
7	Khammam	758	7886	1690	1410	3100	788	590	1378	720	908	1628	745	1035	1780	3943	3943	7886
8	Krishna	970	9918	144	122	266	1394	1230	2624	1443	1340	2783	2036	2209	4245	5017	4901	9918
9	Kurnool	889	9480	115	56	171	1163	789	1952	1858	1824	3682	1612	2063	3675	4748	4732	9480
10	Mahaboobnagar	1331	13566	822	562	1384	1536	1049	2585	2402	2505	4907	2024	2666	4690	6784	6782	13566
11	Medak	1077	10548	416	243	659	1342	794	2136	2309	2018	4327	1514	1912	3426	5581	4967	10548
12	Nalgonda	1169	11686	821	660	1481	1343	969	2312	2272	2317	4589	1406	1898	3304	5842	5844	11686
13	Nizamabad	718	7424	461	257	718	779	543	1322	1428	1499	2927	1044	1413	2457	3712	3712	7424
14	Prakasam	1028	10400	197	150	347	1369	1407	2776	1066	1198	2264	2472	2541	5013	5104	5296	10400
15	Ranga Reddy	690	7138	320	249	569	758	689	1447	1505	1462	2967	991	1164	2155	3574	3564	7138
16	SPSR Nellore	940	8910	698	269	967	1341	1167	2508	1112	1213	2325	1304	1806	3110	4455	4455	8910
17	Srikakulam	1099	10542	429	317	746	724	272	996	2921	2969	5890	1197	1713	2910	5271	5271	10542
18	Visakhapatnam	930	9322	1298	1161	2459	440	139	579	1352	1387	2739	1571	1974	3545	4661	4661	9322
19	Vizianagaram	921	8764	677	514	1191	675	216	891	2294	2029	4323	736	1623	2359	4382	4382	8764
20	Warangal	962	9774	1132	966	2098	932	749	1681	1679	1788	3467	1144	1384	2528	4887	4887	9774
21	West Godavari	884	9684	206	169	375	1344	960	2304	1451	1466	2917	1841	2247	4088	4842	4842	9684
22	Y.S.R	791	7782	145	48	193	905	587	1492	976	1005	1981	1865	2251	4116	3891	3891	7782
		21590	**218810**	**12774**	**9375**	**22149**	**24413**	**18512**	**42925**	**36640**	**36931**	**73571**	**35722**	**44443**	**80165**	**109549**	**109261**	**218810**

ANNEXURE – V

STATE ELECTION COMMISSION
3rd Floor, Buddha Bhavan, M.G. Road, Secunderabad – 500 003

NOTIFICATION

No.141/SEC-B1/2011 **Dated:28.2.2011**

In exercise of the powers conferred under Article 243-K of the constitution of India and in continuation of the orders issued in Notification No.335/SEC-B1/2006, dt:24.4.2006, and also in supersession of the Notification issued in reference No. 335/ SEC-B1/2006, dt: 06.07.2006, the state Election Commission, hereby, authorizes the District Election Authorities to appoint Tahasildars, Mandal Parishad Development Officers or any other Gazetted Officer as Assistant District Election Authorities to perform any such function, as may be, assigned to them by the District Election Authority, in connection with conduct of elections to the Panchayat Raj Institutions as per the provisions of the Andhra Pradesh Panchayat Raj(Conduct of Elections)Rules,2006 issued in G.O.Ms.No.142,PR & RD(elecs) Department, dt:3.5.2006.

(BY ORDER AND IN THE NAME OF THE STATE ELECTION COMMISSIONER)

Sd/- G.M.Ramesh Kumar
Secretary

To

All Collectors & District Election Authorities
All Chief Executive Officers of Zilla Parishad & Addl. District Election Authorities.
All District Panchayat Officers & Addl. District Election Authorities.
All Revenue Divisional Officers & Deputy District Election Authorities through the Collectors concerned.
All Tahasildars through the Collectors concerned.
All Mandal Parishad Development Officers through the Chief Executive Officer, Zilla Parishad concerned.

Copy to:
The Commissioner of Panchayat Raj, Hyderabad
The Prl. Secretary to Govt., PR&RD Department, Secretariat, Hyderabad.

ANNEXURE – V

STATE ELECTION COMMISSION

3rd Floor, Buddha Bhavan, M G Road, Secunderabad – 500 003

No.335/SEC-B1/2006 **Dated:24.04.2006**

NOTIFICATION

In exercise of the powers conferred by article 243 K of the Constitution of India and in cancellation of all previous orders on the subject, the State Election Commission, hereby, appoints the administrative machinery for the conduct of elections to Panchayat Raj Institutions as follows:-

1. In this notification, unless the context otherwise requires, -

(i) 'Act' means the Andhra Pradesh Panchayat Raj Act, 1994;
(ii) Except in cases where any authority, is specifically authorised to exercise the powers, and perform the functions, of election authority under this notification, 'election authority' means, the Commissioner of Panchayat Raj.
(iii) 'Rules' means the Andhra Pradesh Panchayat Raj Act (Conduct of Elections) Rules, 2006

2(a). The District Collector shall be the District Election Authority. The functions of the Election Authority under the rules may also be performed, unless specifically otherwise provided, by the District Election Authority, within his jurisdiction.

(b) The Joint Collector of the District, the Chief Executive Officer of Zilla Parishad and the District Panchayat Officer, shall be Additional District Election Authorities. The Revenue Divisional Officer or the Sub-Collector, as the case may be, in the District shall be Deputy District Election Authority.

(c) The Additional District Election Authority and the Deputy District Election Authority shall perform, such functions as may be assigned to them, by the District Election Authority. The District Election Authority may authorise, in writing, the Additional District Election Authority or the Deputy District Election Authority, to exercise in any local area in the District, in regard to any Gram Panchayat/Mandal Parishad /Zilla Parishad in that area, any of the powers vested in him under the rules.

3. Subject to the general superintendence, direction and control of the State Election Commissioner, the District Election Authority shall be responsible for the conduct, co-ordination and supervision of all items of work, connected with the conduct of elections, of the Members and Sarpanch of Gram Panchayats, Members of Mandal Parishads and the Members of Zilla Parishads, within his jurisdiction.

4 (a) For every election to fill the seat of Members of Mandal Parishad and Members of Zilla Parishad, the District Election Authority shall appoint a Returning Officer for every Mandal Parishad or Zilla Parishad, as the case may be, who shall, as far as possible, be a Gazetted Officer not below the rank of Mandal Parishad Development Officer.

(b) For every election to fill the seats of Members and Sarpanch of Gram Panchayat, the District Election Authority shall appoint a Returning Officer for one or more Gram Panchayats who shall be an officer of the State Government or a local authority.

5 (a). The District Election Authority may appoint, one or more persons, as Assistant Returning Officers to assist any Returning Officer:

Provided that, every such person shall be an Officer of the State Government or of a local authority.

(b) Every Assistant Returning Officer shall, subject to the control of the Returning Officer, be competent to perform all or any of the functions of the Returning Officer:

Provided that no Assistant Returning Officer shall perform any functions of the Returning Officer, which relate to the scrutiny of nominations, unless the Returning Officer is unavoidably prevented from performing the said function.

6. It shall be the general duty of the Returning Officer, at any election, to do all such acts and things as may be necessary, for conducting the election in the manner provided under the Act and Rules or orders made thereunder.

7 (a). The District Election Authority shall, subject to such directions as may be issued by the State Election Commission provide as many polling stations as are necessary, for the conduct of election and shall publish in such manner as the State Election Commission may direct, a list showing the polling stations and the areas or groups of voters, for which they have respectively been provided.

(b) The District Election Authority, or any other officer authorised by him, shall appoint a Presiding Officer for each polling station, and such other polling personnel as he thinks necessary, subject to the condition that he shall not appoint, any person who has been employed by or on behalf of, or has been otherwise working, for a candidate in connection with the election;

Provided that if a polling officer is absent from the polling station, the Presiding Officer may appoint any person who is present at the polling station, other than a person who has been employed by or on behalf of, or has been otherwise working for a candidate in connection with the election, to be the polling officer and inform the Returning Officer about such appointment.

(c) A polling officer shall, if so directed by the Presiding Officer, perform all or any of the functions of a Presiding Officer under these Rules.

(d) If a Presiding Officer, owing to illness or other unavoidable cause, is obliged to absent himself from the polling station, his functions shall be performed by such polling officer, as has been authorised by the Returning Officer, to perform such functions during any such absence.

(e) It shall be the general duty of the Presiding Officer at the polling station to keep and maintain public order there at, and to see that the poll is taken in a fair manner.

(BY ORDER AND IN THE NAME OF THE STATE ELECTION COMMISSIONER)

Sd/- G.M.Ramesh Kumar
Secretary

To
The Election Authority & Commissioner of Panchayat Raj, Hyderabad.
All the Collector and District Election Authorities.
All the Joint Collectors and Additional District Election Authorities.
All the Chief Executive Officers of Zilla Parishad and Additional District Election Authorities.
All the District Panchayat Officers and Additional District Election Authorities.
All the Revenue Divisional Officers and Deputy District Election Authorities.

ANNEXURE – VI

4th ordinary elections to GPs, 2013

No. of ROs and AROs appointed in each District

Sl. No.	Name of the District	Stage-I		Stage-II	
		Ros	AROs	Ros	AROs
1	Adilabad	344	344	953	
2	Anantapur	285	285	285	285
3	Chittoor	429	329	1274	-
4	East Godavari	333	-	1024	-
5	Guntur	451	451	561	560
6	Karimnagar	378	378	1128	-
7	Khammam	333	333	1206	-
8	Krishna	410	410	969	-
9	Kurnool	395	395	883	
10	Mahabubnagar	403	403	1371	-
11	Medak	293	293	1160	-
12	Nalgonda	333	333	1206	-
13	Nizamabad	234	234	218	
14	Prakasham	1132	278	1132	278
15	Ranga Reddy	217	217	649	-
16	SPSR Nellore	303	-	1023	-
17	Srikakulam	406	-	452	-
18	Visakhapatnam	379	379	1021	-
19	Vizianagaram	292	-	921	-
20	Warangal	300	1020	300	1020
21	West Godavari	420		987	
22	YSR District	264	224		
	Total	**8334**	**6306**	**18723**	**2143**

ANNEXURE - VII

STATE ELECTION COMMISSION
3rd Floor, Buddha Bhavan, M.G.Road, Secunderabad - 500 003.

C I R C U L A R

No.240/SEC-B2/2011, **Dated:30.5.2011**

Sub: Elections – 4th ordinary elections to the Gram Panchayats, 2011 – Appointment of Returning Officers and polling personnel – Instructions – Issued.

Ref: 1. SEC Notification No.335/SEC-B1/2006, Dated:24.4.2006. (Administrative Machinery)
2. SEC Notification No.141/SEC-B1/2011, Dated:28.2.2011. (Administrative Machinery)

***

All the District Collectors are informed that the 4th ordinary elections to Gram Panchayats in the State are due to be held before expiry of their term in August, 2011. One of the important items of work in the election process is the selection and appointment of Returning Officers and polling personnel.

In continuation of the orders issued in the references cited above, the following further instructions are issued for selection and appointment of Returning Officers and Polling Personnel for Gram Panchayat elections.

1. Appointment of Returning Officers:

For every election to fill the seats of Members and Sarpanch of Gram Panchayat, the District Election Authority shall appoint a Returning Officer for one or more Gram Panchayats who shall be an officer of the State Government or a local authority.

The District Election Authority may appoint, one or more persons, as Assistant Returning Officers to assist any Returning Officer. Provided that, every such person shall be an Officer of the State Government or of a local authority.

Every Assistant Returning Officer shall, subject to the control of the Returning Officer, be competent to perform all or any of the functions of the Returning Officer:

Provided that no Assistant Returning Officer shall perform any functions of the Returning Officer, which relate to the scrutiny of nominations, unless the Returning Officer is unavoidably prevented from performing the said function.

As there are large number of Gram Panchayats in every district and suitable officers may not be available in adequate number for appointment of exclusive Returning Officer for each Gram Panchayat, the State Election Commission is permitting to divide the election process in two stages and appoint one Returning Officer for a group of Gram Panchayats for Stage-I, but for Stage-II, an exclusive Returning Officer will have to be appointed for each Gram Panchayat.

The election process starting from the stage of publication of election notice and ending with the publication of list of contesting candidates for Members and Sarpanch of Gram Panchayat and allotment of symbols to them is called Stage-I. The election process comprising of all subsequent items of work such as, finalisation of polling arrangements, distribution of ballot papers, polling, counting of votes, declaration of results, issue of election certificate, conduct of special meeting for election of Upa-Sarpanch etc., is called Stage-II.

The District Election Authority or Officer authorised by him, may appoint Returning Officers as indicated below:

(1) For a group of 2 to 4 contiguous minor Gram Panchayats (having less than 10,000 population each), one Returning Officer may be appointed to perform election process comprising in Stage-I and a separate Returning Officer for each Gram Panchayat may be appointed for Stage-II. As far as possible, Gazetted Officers shall be appointed as Returning Officers (Stage-I). The Officer of the rank of Superintendent may be appointed as Returnning Officer (Stage-II).

(2) In respect of single major Gram Panchayat having a population of not less than 10,000, an exclusive Returning Officer, preferably a Gazetted Officer, may be appointed to perform the functions comprising in both Stage-I and Stage-II.

Besides Returning Officers, the District Election Authority has the discretion to appoint one or more Assistant Returning Officers for any Gram Panchayat, depending on the necessity.

It is suggested that for Stage-I election process, when the Returning Officer is appointed for a group of Panchayats, he should be given the assistance of one or two Assistant Returning Officers, depending on the necessity. Further, for Stage-II election process also, one Assistant Returning Officer should be appointed from amongst the Polling Officers for each Panchayat, so that he can attend to the functions of the Returning Officer in emergencies. The Assistant Returning Officer can be appointed from the Senior Assistant or equivalent categories. The appointment orders for Returning Officers and Assistant Returning Officers be issued in format given at Annexure-II.

The District Collector & District Election Authority may either himself issue the orders for appointment of the Returning Officers and Assistant Returning Officers or he may authorise the Revenue Divisional Officers/Sub-Collectors concerned, who are also the Deputy District Election Authorities to do this work.

2. Training of Returning Officers:

The Returning Officers have to perform very vital functions during the Gram Panchayat Elections and the entire election process of the Gram Panchayat will be completed under their supervision and control. It is, therefore, necessary to impart adequate training to the Returning Officers and Assistant Returning Officers. The State Election Commission will be supplying booklets containing "Instructions to the Returning Officers". Besides these instructions, they should be thoroughly acquainted

with the various provisions of the A.P. Panchayat Raj Act and Rules relating to the conduct of elections to the Gram Panchayats.

3. Appointment of polling personnel:

The appointment of polling personnel may be issued by the District Election Authority himself or he may authorise the Deputy District Election Authority i.e. Revenue Divisional Officers / Sub-Collectors or any other person or suitable officer to issue these appointment orders.

(a) Obtaining lists of personnel:

The authorised officers may call for lists of officers and staff from various Government Offices, Local Bodies, State Government Undertakings and Aided Institutions. The employees of organisations connected with maintenance of essential services, as given in Annexure-I to the circular, may be exempted from the election duty. While calling for the list from the Heads of Offices, they may be requested to furnish the Scale of Pay and the Basic Pay drawn by each individual. This information may be utilised for classifying the employees drafted for polling duty for payment of suitable flat rates of TA & DA. From these lists, suitable personnel may be drafted for appointment as Polling Officers and Polling Clerks.

(b) Presiding Officers, Assistant Presiding Officers & Polling Officers:

In Gram Panchayat Elections, generally a Ward is a Polling Station. If the voters in a Ward exceeds 650, two Polling Stations will be set up in that Ward and the voters will be divided equally between the two polling station. Similarly, if the voters exceeds 1300 in a Ward, three Polling Stations may be set up by dividing the voters equally among the three polling stations.

A polling party going to a Polling Station will consist of one Presiding Officer and one, two or three Polling Officers, depending on the number of

voters in a Polling Station. The following scale may be adopted for the appointment of polling personnel for various Polling Stations.

S. No	No. of Voters in Polling Station	No. of Polling Personnel to be appointed
1	Upto 200 Voters	One Presiding Officer + One Polling Officer
2	201 to 400 Voters	One Presiding Officer + Two Polling Officers
3	More than 400 Voters	One Presiding Officer + Three Polling Officers

One of the Polling Officer will also be designated as Assistant Presiding Officer.

A person to be appointed as Presiding Officer should not be lower in rank than a Senior Assistant or a School Assistant.

While appointing the Presiding Officers and Polling Officer, particularly from the employees of Local Bodies, care should be taken to ensure that they do not have any political affiliations towards any party or candidate.

The polling personnel should not be posted in their native villages / Gram Panchayats. It is suggested that, to the extent possible, the Presiding Officers and Polling Officer should be posted from the employees working in the neighbouring mandals and not from the same mandal in which the Gram Panchayat is located.

It may be kept in view that the polling of the Gram Panchayats may be conducted in two or more phases, but all the Gram Panchayats in a particular mandal will go to the polls on the same day. As far as possible, no employee should be given duty in more than two phases.

A reserve of polling personnel to an extent of 10% percent under each category should be kept at the Mandal headquarters.

4. PROPER MIXING OF POLLING PERSONNEL DRAWN FROM DIFFERENT OFFICES:

In order to avoid any allegation of collusion among the polling personnel in favour of any candidate or political party and to instill confidence in the minds of political parties and candidates about free and fair elections, the District Election Authorities should ensure proper mix of polling personnel drawn from different offices and departments at the time of formation of a polling party.

The help of the computer technology, wherever available, should be taken for the above purpose of formation of polling parties by proper mix of polling personnel drawn from different departments and offices.

5. ADOPTION OF RANDOM NUMBER OF GENERATION TECHNIQUE

Random number of generation technique adopted for the deployment of polling personnel during Assembly and Parliament elections shall be followed in the ensuing Panchayat Raj elections also.

In this process, a code number (different from the polling station number) is assigned to each polling station and just before departure of the party this is decoded to the actual polling station number where the party has to reach. This method could effectively eliminate complaints relating to any possible partisan conduct of polling personnel. The criteria to be followed while constituting polling parties in enunciated below:

(a) Presiding officers and polling officers are classified on the basis of scale of pay, their post and rank. Presiding officers should be of higher scale/ grade in comparison to all polling officers.

(b) No person should be assigned polling duties in the same gram panchayat in which he resides or works.

(c) Two members of the polling party should not be from the same department and in any case the presiding officer and first polling officer should not be from the same department.

(d) Selection of polling officers of every party shall be done on random basis.

6. FORM FOR APPOINTMENT:

The polling personnel should be formally appointed. The Form for the appointment of Presiding Officers and Polling Officers is given in Annexure-IV.

Appointment letters of Presiding Officers and Polling Officers should be issued as soon as polling parties are formed, but in their appointment letters number and name of polling station at which they will be on duty should not be indicated. Such information regarding place of duty should normally be intimated to them not earlier than three days before the date of poll.

To obviate any delay or difficulty in issuing Postal Ballot Papers or Election Duty Certificate (EDCs) to voters drafted for election duty, the order of appointment should be issued in duplicate so that the voters on election duty may enclose one copy of that order of appointment to the Returning Officer along with his application form for supply of postal ballot paper/EDC, thereby facilitating the easy identification of the applicant and decision regarding his entitlement to the issue of postal ballot paper/EDC.

7. TRAINING OF POLLING PERSONNEL:

Training to the polling personnel is of the utmost importance. The State Election Commission will issue a booklet containing "Instructions to the Presiding Officers". Sufficient copies of the booklets will be made available to all the districts. It is requested that the training for the polling personnel should be conducted at Divisional Headquarters or other suitable places. The strength of the training class should not exceed 60 persons in a batch. At least, two rounds of training should be provided for the polling personnel. The date, time and venue for the training programmes i.e. for the First Phase as well as Second Phase should be indicated in the appointment order itself.

8. <u>ZONAL OFFICERS</u>:

Zonal Officers may be appointed at the rate of two per mandal. The Zonal Officers should be invited for training rehearsals. They must be provided with vehicles to ensure effective mobility. A Zonal Officer should be able to visit each polling area in his jurisdiction at least two times on the day of poll.

(BY ORDER AND IN THE NAME OF THE STATE ELECTION COMMISSIONER)

Sd/- G.M.Ramesh Kumar
Secretary

To

All the Collectors and District Election Authorities.
All the District Panchayat Officers.

ANNEXURE-I

LIST OF PERSONS EXEMPTED FROM POLLING DUTY:

1. Professional Staff of Medical & Health Department & Animal Husbandry Department actually deployed on clinical duties or in operations for suppression of epidemics.

2. Judicial Officers of all Cadres.

3. Officers and Staff engaged in maintenance of essential services like electricity, water supply, road transport, banks, etc.

4. Staff of Jail Department & Fire Services Department.

Employees of Government of India and Government of India undertakings.

ANNEXURE – II

ORDER ON APPOINTMENT OF RETURNING OFFICERS/ASSISTANT RETURNING OFFICERS

Under paras 4 and 5 of State Election Commission Notification No.49/SEC-B2/2000, dated.25.8.2000 published in extraordinary issue of AP Gazette No.6 dated.1.5.2000, I, hereby appoint the officer specified in column 1,2 and 3 below as Returning Officer (Stage-I), Returning Officer (Stage –II) and Assistant Returning Officers respectively for holding elections to the office of the Sarpanch, Upa-Sarpanch and Ward Members of _____ Gram Panchayat in _____ Mandal Parishad.

Name, designation and office address of Returning Officer, Stage I.	Name, designation and office address of Returning Officer, Stage-II.	Name, designation and office address of Assistant Returning Officer/s
(1)	(2)	(3)

The Returning Officer/Assistant Returning Officer/s shall attend the training classes as indicated below: -

Name of the Officer	**Date of Class**	Hour	Place where the class will be held	Designation of officer who will conduct the class
(1)	**(2)**	(3)	(4)	(5)
Returning Officer, Stage –I				
Returning Officer, Stage-II				
Assistant Returning Officer				

The officers appointed as Returning Officers and Assistant Returning Officers will be paid Travelling Allowance and Conveyance Allowance, as per the rates fixed by the Government.

Place: …….

Date: …… 2011……

District Election Authority/
Dy District Election Authority

Attested

Signature of the Attesting Officer

ANNEXURE – III

LETTER OF APPOINTMENT OF PRESIDING AND ASSISTANT PRESIDING OFFICER AND INTIMATION OF TRAINING CLASSES

From:

……
……
……
……

To

……
……
……

C/o…… Head of Office
…….Address of Office

Please note that you have been appointed as Presiding Officer / Assistant Presiding Officer in respect of the following polling station(s).

S.No.	Name of the Mandal	Name of the Gram Panchayat	Polling station name and number with complete particulars its location
1	2	3	4

(2) Please attend the training classes specified below without fail.

Date of Class	Hour	Place where the class will be held	Designation of officer who will conduct the class
(1)	(2)	(3)	(4)

(3) You will be paid travelling allowance and conveyance charges, as the case may be, for all polling duty, including attendance at the above classes.

Place :…….
Date :……2011……..

District Election Authority/
Dy District Election Authority

Attested

Signature of the Attesting Officer

Note: Failure to attend polling duties will be viewed seriously. Defaulting Officers are not only liable for disciplinary action but also liable for prosecution.

ANNEXURE-IV

ORDER OF APPOINTMENT OF POLLING PERSONNEL

Under the Andhra Pradesh Panchayat Raj (Conduct of Election) Rule, 1994, I hereby appoint the Officer specified in Columns (2) and (3) of the table below as the Presiding Officer and Polling Officer respectively for the Polling Station specified in the corresponding entry in Column (1) of the Table provided by me.

TABLE

Gram Panchayats and Polling Station code Number	Name of the Presiding Officers (and his official designation)	Names of the Polling Officers (and his official designation)	Polling Officer authorised to perform the functions of the Presiding officer in the latter's absence
(1)	(2)	(3)	(4)

(Sd.)
District Election Authority or
Officer authorised by District Election Authority

Attested

Date…….. Signature……..
Place……. Designation……..

Note:

1. The training classes to acquaint the procedure of conduct of election will be held on …….. at ……. At …… (……Place). The Presiding Officer and Assistant Presiding Officers including those kept in reserve also should attend the training classes.
2. The date of poll is …….. between …… and ……. (hours).
3. you should report to the Returning Officer on ……. (date) ……. (time) at …….. (place) for taking delivery of polling materials.
4. Failure to attend polling duties will be viewed seriously. Defaulting Officers are not only liable for disciplinary action but are also liable for prosecution.

STATE ELECTION COMMISSION

3rd Floor, Buddha Bhavan, M G Road, Hyderabad – 500 003, A.P.

C I R C U L A R

No. 240/SEC-B2/2011 **Date: 11.06.2013**

Sub: State Election Commission – 4th Ordinary elections to the Gram Panchayats – Appointment of Returning Officers and Polling Personnel – Certain clarification – Issued – Reg.

Ref: SEC Circular No.240/SEC-B2/2011, Dated 30.05.2011.

***

In the reference cited, detailed instructions were issued with regard to appointment of Returning Officers and Polling Personnel in connection with 4th Ordinary elections to Gram Panchayats.

No specific instruction was issued therein regarding posting of Returning Officer / Assistant Returning Officer in native Mandal or village. With regard to appointment of Polling personnel, instructions were issued that Polling personnel should not be posted in their native villages / Gram Panchayats. It was also suggested that to the extent possible, the Presiding Officers and Polling Officers should be posted from the employees working in the neighbouring Mandals and not from the same Mandal in which the Gram Panchayat is located.

Now, some of the District Panchayat Officers are seeking clarifications and guidelines with regard to posting of Returning Officers / Assistant Returning Officers and Polling personnel in connection with Gram Panchayat elections.

In the elections to State Legislative Assembly / House of People, no person will be assigned polling duties in the Assembly Constituency in which he / she works or resides or in his / her home Constituency. Further, before General elections to State Legislative Assembly, persons of long-standing and working in native districts are transferred to eliminate scope for bias and to ensure free and fair elections. Before local body elections, such an exercise was not resorted to. The Commission, after careful consideration of the matter, decided to impose restrictions on posting of ROs / AROs and Polling personnel to the effect that they should not be posted in the Mandal where they reside or work or in their native Mandal to ensure free and fair elections.

In view of the above, it is hereby clarified that **in connection with Gram Panchayat elections, no person shall be posted as Returning Officer / Assistant Returning Officer, Presiding Officer or Polling Officer in the Mandal where he / she resides or works or in his / her native Mandal.**

Sd/- P. Ramakanth Reddy
State Election Commissioner

To

All the Collectors & District Election Authorities.
All the District Panchayat Officers.

ANNEXURE - VIII

MINUTES OF THE MEETING HELD IN THE STATE ELECTION COMMISSION ON 28.03.2013 AT 3:00 P.M. WITH THE SENIOR OFFICIALS OF THE EDUCATION DEPARTMENT WITH REGARD TO DEPLOYMENT OF TEACHERS AND LECTURERS ON LOCAL BODIES ELECTION DUTY DURING SUMMER VACATION

The meeting was chaired by Sri P. Ramakanth Reddy, IAS (Retd), State Election Commissioner.

The following officers attended the meeting.

From Education Department:

1. Sri Ajay Mishra, I.A.S.
   Principal Secretary to Government (Higher Education).

2. Sri J.S.V. Prasad, I.A.S.
   Commissioner of Intermediate Education.

3. Smt. V. Usha Rani, I.A.S.
   Commissioner of School Education.

4. Smt. K. Sunitha, I.A.S.
   Commissioner of Collegiate Education.

From Panchayat Raj Department:

1. Sri K. Ram Gopal, I.A.S.
   Commissioner of Panchayat Raj & Rural Employment

2. Sri C. Shankar Reddy,
   Addl. Commissioner, O/o. CPR&RE

From State Election Commission:

1. Sri A.V. Satya Ramesh
   Joint Secretary

2. Sri P. Satyanarayana Reddy
   Joint Director (Panchayat Raj)

Commencing the meeting, the State Election Commissioner (SEC) welcomed the senior officials of Education Department and Panchayat Raj Department and thanked them for responding to the Commission's request to attend the meeting.

Sri Rajeshwar Tiwari, IAS, Principal Secretary to Government (School Education), who was held up in a meeting, requested to proceed with the meeting.

The SEC stated that the 4th ordinary elections to Panchayat Raj Bodies that were due to be held in the year 2011 were postponed due to protracted litigation filed on the issue of reservation of seats and offices in Panchayat Raj Bodies. On the SLPs filed by the State Government and others, the Hon'ble Supreme Court of India passed interim orders on 18.02.2013 directing the State Government and the State Election Commission to proceed with the elections with the existing system. The State Election Commission is engaged in the process of making arrangements for conduct of elections to P.R. bodies at short notice. The election process will be set in motion soon after reservations are finalized by the State Government and communicated to the State Election Commission.

The SEC also stated that elections to P.R. Bodies are likely to be held in two spells: (1) Gram Panchayat elections, which will be held in three phases and (2) Mandal Praja Parishad and Zilla Praja Parishad elections, which may be held in two phases. These elections are conducted one after another. They are likely to be held during summer vacation of the schools and colleges.

The SEC drawn the attention of the participants to Article 243K(3) of the Constitution of India and Section 201(4) of the A.P. Panchayat Raj Act, 1994, which stipulate that on the request of the State Election Commission, the Governor / State Government shall place at the disposal of the Commission such staff of the State Government, Gram Panchayats, Mandal Parishads and Zilla Parishads for the purpose of conduct of elections to Panchayat Raj bodies.

The SEC also stated that teachers and lecturers are to be deployed in large number on election duty during summer vacation. Lecturers and Head Masters are generally posted as Returning Officers and Assistant Returning Officers. School teachers generally constitute major chunk of the polling personnel. Some of the lecturers may also be posted as Zonal Officers.

The SEC stated that when General elections to House of People and A.P. Legislative Assembly held during the summer vacation of 2004, orders were issued by the Government facilitating the deployment of teachers on election duty and crediting Earned Leave for the period they deployed on election duty including training on the basis of attendance certificate issued by the Returning Officers concerned.

The SEC requested the senior officials of the Education Department to take necessary steps to make the teachers and lecturers available during summer vacation to enable the district administration to deploy them on election duty and also to impart them necessary training. Their vacation address, mobile numbers and email IDs may be collected so that communication can be sent by the district administration on their deployment for election duty, whenever required.

The Principal Secretary (Higher Education) stated that the Degree Colleges affiliated to the Universities located in the State have different spells of summer vacation. The vacation of three Universities starts as early as on 30.03.2013 / 31.03.2013. The summer vacation schedule of various Universities located in the State is indicated in the Annexure. He also read out the availability of lecturers in the Government Degree Colleges as under:

S.No.	Category	Number of Colleges	Number of Regular Lecturers working
1	Government Degree Colleges	252	3254
2	Private-Aided Degree Colleges	179	2603
Total			**5857**

He also stated that during summer vacation, University examinations and spot valuations are conducted and that there will not be any major hurdles for deployment of College lecturers on election duty.

The Commissioner of Collegiate Education stated that in respect of the three Universities for which the vacation schedule starts on 30.03.2013 / 31.03.2013, communication may be sent by the Collectors concerned to the University authorities to give notice to the lecturers in the Degree Colleges under their jurisdiction to give their vacation address, mobile numbers and email IDs and be available for deployment on election duty during summer vacation. For other Universities, whose vacation spells start in the next few weeks also, similar communications may be sent by the Collectors concerned.

The Principal Secretary (Higher Education) also suggested that the Degree College lecturers may be placed on higher pedestal commensurating with their status in assigning election duties so as to avoid scope for complaints from individuals and unions.

The Commissioner of Intermediate Education stated that Intermediate examinations were over by 23.03.2013 and now evaluation is going on 45 camps across the State, which will continue upto 25.04.2013. Results are likely to be announced in the last week of April. Some of the Junior College lecturers are to be deployed from 01.05.2013 to 25.05.2013 for reverification and recounting of answer scripts. Supplementary examinations are to be held from 25.05.2013 to 15.06.2013.

He stated that there are about 13,000 Junior Lecturers working in Junior Colleges. Out of them, nearly 8,200 lecturers are working on contract basis and they are paid salary for ten months only and no remuneration is paid to them during the two months vacation and renewal of their contract is based on performance. Therefore, they cannot be deployed on election duty. Nearly, 5,000 regular Government Junior College lecturers and 500-600 Aided Junior College lecturers can be drafted on election duty between 25.04.2013 and 25.05.2013. As desired by the SEC, steps will be taken to give notice to them to be available for deployment on election duty during the summer vacation and to give the vacation address, mobile numbers and email IDs.

The Commissioner of Collegiate Education stated that 3,254 regular lecturers working in 252 Government Degree Colleges can be drafted on election duty. Further, nearly 2,603 lecturers are available in Private-Aided Degree Colleges. Lecturers working in Aided Colleges can be deployed on election duty, but those working in Un-aided Private Colleges are to be deployed as a last option as such colleges are not receiving any Government funds in the form of aid.

The Commissioner of School Education stated that about 2,96,967 teachers available in 76,539 schools located across the State can be drafted on election duty during summer vacation by crediting compensatory earned leave for the action period of deployment on election duty besides payment of remuneration. She stated that the schools will be closed for summer vacation from 24.04.2013 to 11.06.2013. She also stated that her department can always inform the Head Masters of all schools on deployment of teachers on election duty as their mobile numbers are already available in the database maintained by them. She requested the SEC to send a communication to her for giving notice to the Head Masters / teachers to be available for deployment on election duty during summer vacation. The SEC stated that the election schedule can be chalked out by him only after the Government finalises and communicates reservations to the Commission. At this stage, he can only say that elections are likely to be held in the next two months when the schools are closed for summer vacation.

The Commissioner of Intermediate Education and the Commissioner of Collegiate Education stated that they have so far issued permissions to nearly 200 lecturers to go abroad during summer vacation and sought the instructions of the SEC on this matter. The SEC stated that it is not appropriate to withdraw permissions that were already given so far as the persons concerned must have got the Visas of the visiting nations and also purchased tickets. However, caution may be exercised while according permissions to visit abroad on large scale in the near future.

The participants thereafter discussed about ban on transfers, span of the election schedule, restrictions on posting in native mandals and taking care to see that polls are not conducted on the day when any major entrance test is conducted. The SEC made the following decisions on these issues.

1) If the Government lifts the ban on transfers and allows large scale transfers and postings during the summer vacation, it is likely to have an adverse impact on smooth deployment of Government employees on election duty. Therefore, the SEC made it clear that there shall be a ban on transfers and postings during this summer. Any relaxation to undertake transfers on a limited scale, the SEC needs to be consulted. There is no objection for processing the cases of promotions.
2) It was made clear by the SEC that unlike Election Commission of India, which announces the schedule of election well in advance of the date of issue of elections notification and implements the Model Code of Conduct from the date of announcement, the State Election Commission announces the schedule and issues election notification of local bodies simultaneously. The election schedule generally spans about 25 to 27 days during which period, MCC will be enforced.
3) As the Commission is not ordering for transfer of officers having long standing in a district for three years or those working in native districts on the lines of ECI during general elections/byelections to HOP/APLA, the Commission will strictly implement orders that no employee shall be posted on election duty in the mandal where he resides or works or in his native mandal.
4) The SEC requested the Commissioner (PR) to be in touch with other HODs concerned and inform the Commission about the dates fixed for major entrance examinations like JEE(MAIN), BITS, EAMCET and other All India entrance examinations for admission into important courses so that they do not clash with dates of poll.
5) Generally, the polling personnel are deployed within the district. However, in case there is serious shortage of polling personnel in any district, it may require inter-district mobilization of polling personnel, which is a rare contingency.

The SEC finally thanked all the participants for their active participation in the meeting rendering valuable inputs and suggestions.

Sd/- P. Ramakanth Reddy
State Election Commissioner

ANNEXURE - IX

STATE ELECTION COMMISSION

3rd Floor, Buddha Bhavan, M.G. Road, Secunderabad – 500 003, A.P.

P. Ramakanth Reddy, IAS (Retd)
State Election Commissioner

Off: 27544500, 27535858
Fax:27544580, 27544428
Email:secy_apsec@ap.gov.in
Website: www.apsec.gov.in

Lr.No. 240/SEC-B2/2011 **Date: 07.06.2013**

To

The Collectors and District Election Authorities
(except Hyderabad).

Sir/Madam,

Sub: State Election Commission – 4th ordinary elections to Panchayat Raj Bodies – Randomization of Polling Personnel – Guidelines for data entry of employees information - Communicated - Reg.

Ref: SEC Lr. No. 240/SEC-B2/2011, Dated 01.04.2013.

***

In the reference cited, the State Election Commission issued instructions with regard to 3-Stage Randomization of polling personnel in connection with 4th ordinary elections to Panchayat Raj Bodies.

In the Regional Conferences held by the State Election Commission between 15.04.2013 and 07.05.2013, the Collectors and District Election Authorities requested the Commission to provide Randomization Software to undertake 3-Stage randomization of polling personnel to be drafted on election duty in connection with 4th ordinary elections to Panchayat Raj Bodies as there is no suitable software available with them. Therefore, the IT Wing of the State Election Commission has developed data entry screens for entering the polling personnel data to facilitate randomization as per the instructions of the Commission. The data relating to all the employees available in their respective districts shall be entered in the screens designed by the IT Wing of the Commission online using APSWAN connection with the IP Address: 10.175.92.12. To run the randomization application, the user must have to use the following URL.

http://10.175.92.12/random (or)
http://119.226.159.126/random

Hard copies of the screens developed by the Commission along with operational instructions are enclosed to this letter.

The Usernames and Passwords will be sent through SMS to all the District Panchayat Officers. In the first login, the user will be asked to change the password. Wherever a Department or Office or Designation is not existing in the screens, such information has to be entered first in the concerned 'Department Master' / 'Office Master' / 'Designation Master' links and then actual data shall be entered.

You are, therefore, requested to make arrangements for data entry of all available employees to be drafted as polling personnel in the first phase. The modules for generation of randomized output of polling personnel will be provided to you shortly. In case, you encounter any problem in data entry or related operations, the following officers of the Commission may be contacted.

1. Sri D. Chiranjeevi, IT Consultant : 99595 58411
2. Sri S. Vishnu Prasad, Asst. Secretary: 99590 90010

Yours faithfully,
Sd/- P. Ramakanth Reddy,
State Election Commissioner

Encl: As above.

Copy to: All District Panchayat Officers

STATE ELECTION COMMISSION

3rd Floor, Buddha Bhavan, M.G. Road, Secunderabad – 500 003, A.P.

P. Ramakanth Reddy, IAS (Retd)
State Election Commissioner

Off: 27544500, 27535858
Fax:27544580, 27544428
Email:secy_apsec@ap.gov.in
Website: www.apsec.gov.in

Lr.No. 240/SEC-B2/2011 **Date: 01.04.2013**

To
The Collectors and District Election Authorities
(except Hyderabad).

Sir/Madam,

Sub: State Election Commission – 4th ordinary elections to Panchayat Raj Bodies – Drafting of Polling personnel on election duty – Certain important instructions – Reg.

Ref: 1. SEC Circular No. 173/SEC-B1/2011, Dated 16.05.2011.
2. SEC Circular No. 240/SEC-B2/2011, Dated 30.05.2011.

***

In the references 1st and 2nd cited, instructions have been issued for drafting Polling personnel on election duty in connection with MPTC/ZPTC elections and Gram Panchayat elections respectively. Specific instructions have been issued in both the circulars regarding randomization of polling personnel. Sufficient care needs to be taken in formation of unbiased polling parties in the interest of free and fair elections. The State Election Commission lays down the following guidelines for formation of polling parties.

1. The district-wise database of all eligible poll personnel maintained in electronic format needs to be updated by collecting latest information from all the State Government and Central Government offices located in each district. Relevant particulars like name, sex, place of residence, place of work, home/native mandal, designation, office and department/institution should be entered in such database.

2. From this database, polling parties shall be formed preferably out of the State Government employees. Variations in scales and ranks should be taken into consideration while forming parties to avoid scope for complaints. Officers of higher rank and scale need to be assigned higher responsibilities (Example: Lecturers working in Degree Colleges should not be posted to serve under those working as Junior College Lecturers and Head Masters. Similarly, Junior College Lecturers may not be posted to serve under the Head Masters or Teachers carrying lesser rank and scale of pay).

3. Proper mixing of polling personnel drawn from different offices and departments should be done at the time of formation of polling parties. Two officials of the same group/category should not be put together. Further, two members of the polling party should not be from the same department (in case of school teachers, they should not be from the same school).

4. No person shall be assigned polling duties in the mandal in which he works or resides or in his native mandal.

5. The following randomization procedure shall be adopted for formation of polling parties.

    a. From the full updated database of available manpower in the district, a list of 120% of the required number of persons for each Revenue Division should be generated (including reserve) randomly using appropriate software. This is the first of three stage randomization process. At this stage, the local body constituency or the mandal to which the polling persons are likely to be deployed should not be revealed. All that the polling persons will know at this stage is whether he/she is a Presiding Officer or a Polling Officer and the venue and time of trainings.

b. In the second stage of randomization exercise, actual polling party should be formed for each mandal on random basis using randomization software. At this stage, though the actual polling station will not be known, the mandal in which a polling person is likely to be posted and the team composition may be known. For the purpose of serving the appointment letters, the services of sponsoring departments can be used. Alternatively, a training programme may be organized for the polling personnel in a mandal on a particular date when final briefing can be given and appointment letter can be served on them.

c. The third stage of randomization should take place at the time of dispersal of polling parties when actual polling station allotted to each polling party will be disclosed. This shall be done just before the polling party actually leaves from the dispersal centre.

6. Senior officers having adequate experience shall be designated to supervise randomization done at various stages as presence of observers to witness randomization may not be possible in local body elections as one or two observers will be appointed for each district.

The formats of appointment order to the polling personnel appended to the said two circulars may be suitably modified to be in conformity with the above instructions.

Yours faithfully,
Sd/- P. Ramakanth Reddy
State Election Commissioner

Copy to:
The Commissioner of Panchayat Raj & Rural Employment, Hyderabad.
All Chief Executive Officers of Zilla Praja Parishads.
All District Panchayat Officers.

ANNEXURE-X

STATE ELECTION COMMISSION

3rd Floor, Buddha Bhavan, M.G. Road, Secunderabad – 500 003, A.P.

P. Ramakanth Reddy, IAS (Retd)
State Election Commissioner

Off: 27544500, 27535858
Fax:27544580, 27544428
Email:secy_apsec@ap.gov.in
Website: www.apsec.gov.in

Lr.No. 1504/SEC-B2/2013-2 **Date: 28.07.2013**

To
All the Collectors & District Election Authorities.

Sir/Madam,

Sub:- Elections – 4th ordinary elections to Gram Panchayats – Failure on the part of Polling Personnel to report for training and election duty – Cases shall be filed and disciplinary action shall be initiated against evaders of election duty – Reg.

* * *

The 1st and 2nd Phases of elections to Gram Panchayats in the State have been completed on 23.07.2013 and 27.07.2013 respectively. It was brought to the notice of the State Election Commission that some Polling Personnel drafted on election duty failed to report at training classes and/or at distribution centres compelling the District Administration to explore other options at the last minute to deploy personnel in adequate number in all the polling stations.

Elections to Gram Panchayats is a gigantic exercise as nearly 2,19,000 Polling Stations were set up for 2,17,578 Ward constituencies for conduct of elections in three phases. For the 3rd Phase of election scheduled on 31.07.2013, highest number of Gram Panchayats and Wards are going to poll due to postponement of election in a considerable number of Gram Panchayats because of heavy rains and floods in some districts.

It is, therefore, essential that all the Polling personnel deployed on election duty shall report at their respective Distribution Centres on the pre-poll day. The Commission also noted with concern the attitude of some of the Polling personnel to evade the election duty in the first two Phases of elections and it is felt necessary to take stringent measures against the evaders of election duty.

The Commission, therefore, directs all the Collectors & District Election Authorities to file criminal cases and also initiate disciplinary action against the Polling Personnel who failed to report for the election duty under Sections 210 and 222 of the A.P. Panchayat Raj Act, 1994 and Section 174 of the Indian Penal Code 1860 (extracts enclosed), give wide publicity in the local press and electronic media and report compliance to the State Election Commission.

Yours faithfully,
Sd/- P.Ramakanth Reddy
State Election Commissioner

Encl: As above.
Copy to:
All the District Panchayat Officers.
All the SPs / SPs (Urban) / CPs (except Hyderabad).
All the Election Observers.

Extract of Sections 210 & 222 of A.P.P.R. Act 1994

210. Electoral officers and staff etc. deemed to be on deputation:- (1) Any officer or staff employed in connection with the preparation, revision and correction of the electoral rolls for, and the conduct of all elections shall be deemed to be on deputation to the State Election Commission for the period during which they are so employed and such officers and staff shall during that period, be subject to the control, superintendence and discipline of the State Election Commission.

(2) The Returning Officer, Assistant Returning Officer, Presiding Officer, Polling officer and any other officer appointed under this Act, and any police officer designated for the time being by the State Government for the conduct of any elections shall be deemed to be on deputation to the State Election Commission for the period commencing on and from the date of notification calling for such elections and ending with the date of declaration of the results of such elections and such officer shall, during that period, be subject to the control, superintendence and discipline of the State Election Commission.

222. Breaches of official duty in connection with elections:-

(1) If any person to whom, this section applies is without reasonable cause guilty of any act or omission in breach of his official duty, he shall be punishable with fine, which any extend to five hundred rupees.

(2) No suit or other legal proceedings shall lie against any such person for damages in respect of any such act or omission as aforesaid.

(3) The persons to whom this section applies are the District Election Officers, returning officers, assistant returning officers, presiding officers, polling officers, and any other person appointed to perform any duty in connection with the receipt of nominations or withdrawal of candidatures, or the recording or counting of votes at an election and the expression "official duty" shall for the purposes of this section be construed accordingly but shall not include duties imposed otherwise than by or under this Act.

Section 174. Non-attendance obedience to an order for public servant

Whoever, being legally bound to attend in person or by an agent **at a certain place and time in obedience to a** summons, notice, order or proclamation proceeding **from any public servant legally competent, as such public servant, to issue the same,**

Intentionally omits to attend at that place or time, or departs from the place where he is bound to attend before the time at which it is lawful for him to depart.

Shall be punished with simple imprisonment for a term which may extend to one month, or with fine which may extend to five hundred rupees, or with both,

Or, if the summons, notice, order or proclamation is to attend in person or by agent in a Court of Justice, with simple imprisonment for a term which may extend to six months, or with fine which may extend to one thousand rupees, or with both.

Illustrations

(a) A, being legally bound to appear before the [1][High Court] at Calcutta, in obedience to a subpoena issuing from that Court, intentionally omits to appear. A has committed the offence defined in this section

(b) A, being legally bound to appear before a [2][District Judge], as a witness, in obedience to a summons issued by that [2][District Judge] Intentionally omits to appear. A has committed the offence defined in this section.

CLASSIFICATION OF OFFENCE

Para I

Punishment – Simple imprisonment for 1 month, or fine of 500 rupees, or both-Non-cognizable-Bailable-Triable by any Magistrate-Non-compoundable.

Para II

Punishment – Simple imprisonment for 6 months, or fine of 1,000 rupees, or both-Non-cognizable-Bailable-Triable by any Magistrate-Non-compoundable.

ANNEXURE - XI

Elections Most Urgent

STATE ELECTION COMMISSION
3rd Floor, Buddha Bhavan, M.G.Road, Secunderabad - 500 003.

Cir.No.239/SEC-B2/2011, **Dated :25.5.2011**

C I R C U L A R

Sub:- **ELECTIONS** – 4th Ordinary elections, 2011 - Setting up of Polling Stations for Election to Sarpanch & Ward Member of Gram Panchayats - Guidelines - Issued.

***

All District Collectors are informed that the 4th ordinary elections to the Offices of Sarpanch and Ward Member, Gram Panchayat are to be held before the expiry of term of the existing elected bodies in August, 2011. All the arrangements for setting up of the Polling Stations should be made in the same manner as was done during last three ordinary elections to Gram Panchayats held in 1995, 2001 & 2006.

The Collector and District Election Authority is responsible for providing sufficient number of Polling Stations and for the publication of the list of Polling Stations for the conduct of elections to Gram Panchayats.

The preliminary arrangements for the setting up of Polling stations should be initiated forthwith. The Mandal Parishad Development Officer and Tahsildars concerned should be entrusted with the work of identification of Polling Stations, preparation of list of Polling Stations, publication of draft and final list

of polling stations. The District Collectors should obtain the lists from the concerned Mandal Parishad Development Officers, scrutinise and approve them before their final publication. The Mandal Parishad Development Officer and Tahsildars concerned should be instructed to physically check up the buildings proposed for Polling Stations in all the Gram Panchayats in their respective Mandals.

The following detailed instructions are, hereby issued for setting up of Polling Stations for ordinary elections to Gram Panchayats, 2011.

1. *DETERMINATION OF NUMBER OF POLLING STATIONS:*

(1) Each ward in a Gram Panchayat should be provided with atleast one polling station. However, more than one polling station can be set up in a ward based on following guidelines.

Ordinarily separate polling station should be set up for about 600 voters.

(2) If the number of voters in a ward exceeds 600 only marginally say upto 50, second polling station is not required. But if it exceeds 650, set up 2 polling stations in that ward and allot approximately equal number of voters to each.

(3) If the number of voters is more than 1300 in a ward, set up three polling stations and distribute the voters equally among all the polling stations.

The polling station number will be same as ward number. If there is more than one polling station in a ward suffix the polling station number with A,B or C.

2. *LOCATION OF POLLING STATIONS:*

a) All polling stations relating to a Gram Panchayat (having no hamlets) should, as far as possible, be located in one building provided there is sufficient

accommodation. The construction of temporary structure should be avoided, as far as possible.

b) In respect of gram panchayat having hamlets, the Polling Stations relating to the ward covering the hamlets of the main village should as far as possible be located in the hamlet. The polling stations relating to the remaining wards shall be located in one public building in the main village. As far as possible, each polling station should be located in a separate room in the same building. If sufficient rooms are not available in the building more than one polling station can be accommodated in one hall by making partitions.

c) If the population of the SC, ST communities in a ward exceed 1/3rd of the total number of voters in the ward, the polling stations should invariably be located in the SC/ST locality to enable the weaker sections of the society to exercise their franchise freely.

d) The actual site of each Polling Station should be chosen carefully in advance and arrangements have to be made in order to make the polling station satisfy the requirements of practical convenience. Provision of all requirements should be completed at least one day before the day of Poll.

e) To the extent practicable, Polling Stations should be located at the same place where it was located in the last ordinary elections, so that the voters could go and cast their votes at the place already familiar to them.

f) Polling Stations should be set up in such a manner that ordinarily no voter is required to travel more than two Kms for casting vote. However, in scarcely populated hilly or forest areas, this norm may have to be relaxed. In order to

avoid voters having to walk unduly long distances, polling stations, in such cases, may have to be set up for a smaller number of voters.

g) As far as possible, polling stations should be located in schools (Government or aided) and other Government or semi-Government institutions, such as, Gram Panchayat Offices and Community Halls, as the furniture and equipment required would be available there and could be made use of without any extra cost. The location of polling stations in private buildings or premises should be avoided. But where this becomes unavoidable the buildings should be properly obtained with the written consent of the owner. The private building so obtained should be at the disposal of the Returning Officer for the period required for the poll. No watch and ward or other personnel connected with the owner, whether armed or unarmed, should be allowed to remain either at the polling station or within a radius of hundred metres around it. The security arrangement at the polling station and within the above area will be the responsibility of the State Police under the control of the Presiding Officer. It should be ensured that the owner of the private building, in which polling station is located, is not a contesting candidate or a known sympathiser or worker of any of the candidates at the election.

h) No polling station should be located in Police Stations, Hospitals and places having religious significance.

i) In case no suitable buildings of the Government or private are available, the polling station can be located in temporary structures but, as far as possible, this should be avoided as it involves considerable expenditure.

The draft list of polling stations should be drawn up in the Form given in **Annexure-I**. The demarcation of polling area or part of the electoral roll should be clearly indicated.

The serial number of polling station should be used in conjunction with the serial number of Ward within which it is situated. If there is more than one polling station in a Ward, it should be numbered suffixing "A, B" etc. For example, if there are two polling stations in ward number 6, the serial numbers of polling stations will be 6 A and 6 B.

3. *PUBLICATION OF THE LIST OF POLLING STATIONS IN DRAFT:*

The Mandal Parishad Development Officer is responsible for preparation of draft list of polling stations. He should prepare at least 6 copies of the draft list of polling stations, for each Gram Panchayat in the Mandal and publish the draft list by exhibiting at following places.

(1) At the Office of the Mandal Parishad Development Officer.
(2) At the Office of the Gram Panchayat.
(3) 2 other prominent places/public buildings in the Gram Panchayat, eg. School Building, Village chavadi etc.

The Mandal Parishad Development Officer should thereafter examine suggestions received from the public and amend the draft list, wherever found necessary and submit proposals to the District Election Authority for final approval of the list.

4. ***FINAL PUBLICATION OF THE LIST OF POLLING STATIONS AND PUBLICITY*:**

After approval by the District Election Authority, the final list of polling stations in **Annexure I** shall be published again at the same places indicated in para 3 above.

5. ***MODIFICATIONS IN THE LIST:***

(a) Changes in the location of polling stations originally chosen may become necessary if the owner of the building originally proposed for a polling station has since become a contesting candidate or a strong sympathiser for a candidate or on account of any natural calamity. All such cases warranting change in polling station should be reported to District Collector.

(b) Once the lists of polling stations are finally approved, request for shifting of the polling stations from one site to another should be considered only if there are overriding considerations of public convenience. The District Collector, may in such cases, consult the contesting candidates and make modifications only where he is satisfied that it is absolutely necessary;

(c) Where changes become inevitable, such changes should be re-published and all contesting candidates be informed in writing.

6. SUPPLY OF COPIES OF THE LISTS:

(a) Each contesting candidate should be supplied, free of cost, one copy of the list of polling stations for that Gram Panchayat, immediately after the last date for withdrawal of candidature. Copies should also be made available for sale at the cost price.

7. *NUMBER OF COPIES OF LIST OF POLLING STATIONS TO BE PRINTED:*

(a) The list of Polling Stations should be cyclostyled and atleast 100 copies should be taken for the following purpose.

(1) For final publication (At various locations)	5
(2) For supply to contesting candidates	40
(3) For Police	15
(4) For election staff	10
(5) For sale	20
(6) Reserve	10

The District Collectors are requested to take action accordingly. The State Election Commission will communicate schedule for publication of list of polling stations separately.

(BY ORDER AND IN THE NAME OF THE STATE ELECTION COMMISSIONER)

Sd/- G.M.Ramesh Kumar
Secretary

To
All the Collectors in the State.
All the District Panchayat Officers.

ANNEXURE - I

(See Para 3)
Ordinary Elections to Gram Panchayats, 2011

LIST OF POLLING STATIONS

Name of the Gram Panchayat :

Address of Building where Polling Station is located :

Ward No.	PS. No	Location	Number of voters assigned	S.No of the voters in electoral roll	
				From	To
(1)	(2)	(3)	(4)	(5)	(6)
1					
2					
3					
4					
5					
6					
7					
8					
9					
10					

1. Number of Wards :

2. Total number of voters:

3. No. of Polling Stations:

4. Average Number of voters per polling station :

Date:

DISTRICT ELECTION AUTHORITY

ANNEXURE-II
(See Para 5)
QUESTIONNAIRE FOR CHECKING THE LIST OF POLLING STATIONS FOR ELECTIONS TO THE POST OF GRAM PANCHAYAT MEMBER, SARPANCH

Name of the Gram Panchayat:
……..

Name of the Mandal:
……..

Name of the District:
……..

PART-I - GENERAL

1. Has the heading of the list been properly given?
2. Has the list been prepared in the prescribed Form?
3. Have two copies of the lists in English (Including scrutiny sheet and certificate)been sent to Collector?
4. Have copies of the Map been sent to Collector?
5. Has Mandal Parishad Development Officer made a cent percent check of the location of the Polling stations?
6. Has the location of polling stations been inspected by the Mandal Parishad Development Officer Concerned?
7.(a) Have all the wards in all the Gram Panchayats been covered by the list of polling stations?
Do the Serial Nos of voters given in the list of polling stations tally with those in the printed electoral rolls?
7. What is the total number of voters of Gram Panchayat as per final rolls?
8. Has the information regarding the total number of voters and the average number of voters per polling station been specified at the end of the list?
10. Names and designation of the officers who prepared lists.

PART- II

1. Has the Ward No been specified correctly in column (1) against each Station?
2. Has the polling station number been correctly specified in column (2) against each polling station.
3. Has the exact location of the polling station specified in column (3) against each station?
4. Have the total number of voters assigned to each polling station has been indicated in column(4)?
5. Have the Serial No. of voters assigned to each polling Station have been indicated in column (5)?
6. MAP.
   Have the boundaries of the various local units, namely, hamlet, Village, Gram Panchayat, ward been marked distinctly in different colours ?
   Have the areas served by the polling stations been Marked distinctly in red colour?
   (c) Have the serial numbers of Polling Stations been entered correctly in red circles?
   (d) Have the numbers of voters in the ward been indicated in black ink.
   (e) Have the numbers of voters been assigned to polling stations indicated near the stations in red ink?

PART - III

FOR LIST OF POLLING STATIONS

…… Gram Panchayat
…… Mandal
…….. District.

1. Date of Poll.
2. Number of Voters in the Gram Panchayat.
   (a) Men
   (b) Women
   (c) Total
3. Number of polling stations required on the basis of one polling station for each ward subject to a maximum of 650 voters per polling station.

4. Total number of polling stations actually provided.
5. Average number of voters per polling station.
6. Number of polling stations where more than 650 voters have been assigned, indicate the highest number of voters assigned to a polling station.
7. Number of polling stations where less than 650 voters have been assigned , indicate the lowest number of voters assigned to a Polling Station.
8. Whether the number of voters in respect of each ward has been shown in the list/map.
9. No. of polling stations for which the maximum distance that a voter will have to travel is more than 2 kilometers.
10. Whether all the polling areas have been clearly demarcated.
11. Whether serial number of polling stations (d) has been done in a systematic manner.
12. Whether any polling station has been proposed to be located in any:
    (a) Private building:
    (b) Temporary structure, and if so whether the exact site chosen for the location of the polling station has been clearly indicated in the list.
13. Whether it has been certified that the private buildings do not belong to any of the candidates, his active workers or known sympathisers.
14. Whether it has been certified that all the polling areas within the Gram Panchayat are covered by the proposed polling stations and that every ward in the Gram Panchayat has been provided with atleast one polling station.
15. Serial Nos. of separate polling stations provided for women voters.
16. Any other remarks.

PART-IV

CERTIFICATE TO BE FURNISHED ALONG WITH LIST OF POLLING STATIONS:

(i) (a) that all the polling areas within the Gram Panchayat have been covered in the list.
(b) that every ward in the Gram Panchayat has been provided with atleast One polling station.

(ii) That no building, public or private, (such as, a Temple, church, mosque, Gurdwara or has religious significance) in respect of which any section of the public may have legitimate objection to enter has been proposed as a polling station;

(iii) that no police station, hospital or dispensary is proposed as a polling station;

(iv) where the usual limit of 650 voters per polling station or the limit of two kilometers beyond which a voter should not ordinarily be required to walk has not been maintained, no better arrangement is practicable;

(v) in cases where private buildings have been selected as polling stations, the written consent of the owner for the purpose has been obtained.

Place:
Date: **MANDAL PARISHAD DEVELOPMENT OFFICER**

(Model)

ANNEXURE -I A
(See Para 3)
Ordinary Elections to Gram Panchayats, 2011

LIST OF POLLING STATIONS

Name of the Gram Panchayat : Balijapeta

Address of Building where Polling Station is located : Zilla Parishad High School, Balijapeta.

Ward No.	Polling Station No	Location	Number of voters assigned	S.No of the voters in electoral roll	
				From	To
(1)	(2)	(3)	(4)	(5)	(6)
1	1	Northwing first room	150	1	150
2	2	Northwing second room	150	151	300
3	3	Northwing third room	150	301	450
4	4	Northwing forth room	150	451	600
5	5	Northwing fifth room	150	601	750
6	6	Southwing first room	150	751	900
7	7	Southwing second room	150	901	1050
8	8	Southwing third room	150	1051	1200
9	9	Southwing forth room	150	1201	1350
10	10	Southwing fifth room	156	1351	1506

1. Number of wards : 10
3. No. of Polling Stations : 10
2. Total number of voters : 1506
4. Average Number of voters per polling station : 150

Date:

DISTRICT ELECTION AUTHORITY

ANNEXURE - XII

4th ordinary elections to GPs, 2013

Proforma - II- Setting up of Polling Stations

Sl. No.	Name of the District	No. of Gram Panchayats in the districts	No. of Wards	No. of Polling stations set up
1	Adilabad	866	8408	8544
2	Anantapur	1003	10230	10378
3	Chittoor	1366	13030	13241
4	East Godavari	978	10866	10905
5	Guntur	1010	10578	10675
6	Karimnagar	1207	11700	11700
7	Khammam	758	7752	7920
8	Krishna	969	9926	10178
9	Kurnool	886	9182	9328
10	Mahabubnagar	1329	13060	13098
11	Medak	1077	10288	10332
12	Nalgonda	1170	11516	11532
13	Nizamabad	718	7262	7298
14	Prakasham	1029	10192	10269
15	Ranga Reddy	689	6832	7228
16	SPSR Nellore	940	8764	8858
17	Srikakulam	1097	10408	10448
18	Visakhapatnam	930	9170	9242
19	Vizianagaram	922	8742	8802
20	Warangal	962	9686	9718
21	West Godavari	884	9596	9786
22	YSR District	791	7700	7774
	Total	**21581**	**214888**	**217254**

ANNEXURE –XIII

SCALE OF SUPPLY OF HAND BOOKLETS

Sl. No.	Name of the District	Hand book for Election Law (Gram Panchayats, 2011)	Hand book for Returning Officers (Gram Panchayats, 2011)	Hand Book for Presiding officers	Hand Book for Contesting candidates	Compendium of instructions
1.	Adilabad	50	1966	10289	4747	155
2.	Anantapur	50	2273	11893	5487	155
3.	Chittoor	50	3136	16408	7571	160
4.	East Godavari	50	2298	12024	5548	155
5.	Guntur	50	2316	12119	5592	155
6.	Karimnagar	50	2711	14186	6545	155
7.	Khammam	50	1751	9160	4227	155
8.	Krishna	50	2207	11549	5328	155
9.	Kurnool	50	2041	10681	4928	155
10.	Mahabubnagar	50	3061	16016	7390	160
11.	Medak	50	2405	12582	5805	155
12.	Nalgonda	50	2675	13996	6458	155
13.	Nizamabad	50	1630	8531	3936	155
14.	Prakasham	50	2371	12404	5723	155
15.	Ranga Reddy	50	1601	8376	3865	155
16.	SPSR Nellore	50	2182	11418	5268	155
17.	Srikakulam	50	2500	13081	6036	155
18.	Visakhapatnam	50	2144	11216	5175	155
19.	Vizianagaram	50	2107	11026	5087	155
20.	Warangal	50	2303	12048	5559	155
21.	West Godavari	50	2014	10539	4862	155
22.	YSR District	50	1808	9457	4364	155
	Total	**1,100**	**49500**	**259000**	**119500**	**3420**

ANNEXURE –XIV

SCALE OF SUPPLY OF STATUTORY FORMS TO THE DISTRICTS

Sl. No	Name of the District	Total No. of Gram Panchyats in the District	Total No.of Wards	Form I	Form III	Form V	Form VI	Form VII	Form VIII	Form IX	Form X	Form XI	Form XII	Form XIII	Form XIV	Form XV
1	**2**	**3**	**4**	**5**	**6**	**7**	**8**	**9**	**10**	**11**	**12**	**13**	**14**	**15**	**16**	**17**
1	Adilabad	866	8408	4966	19228	19267	19267	38535	19267	19267	4966	38535	9733	48069	48069	48069
2	Anantapur	1001	10280	5740	22225	22271	22271	44542	22271	22271	5740	44542	11250	55563	55563	55563
3	Chittoor	1381	13176	7919	30662	30725	30725	61451	30725	30725	7919	61451	15521	76655	76655	76655
4	YSR district	796	7772	4564	17673	17710	17710	35420	17710	17710	4564	35420	8946	44184	44184	44184
5	East Godavari	1012	11362	5803	22469	22516	22516	45031	22516	22516	5803	45031	11374	56173	56173	56173
6	Guntur	1020	10702	5849	22647	22694	22694	45387	22694	22694	5849	45387	11464	56617	56617	56617
7	Karimnagar	1194	11680	6847	26510	26565	26565	53130	26565	26565	6847	53130	13419	66276	66276	66276
8	Khammam	771	7906	4421	17118	17154	17154	34308	17154	17154	4421	34308	8665	42796	42796	42796
9	Krishna	972	9994	5574	21581	21626	21626	43252	21626	21626	5574	43252	10924	53953	53953	53953
10	Kurnool	899	9358	5155	19960	20002	20002	40003	20002	20002	5155	40003	10104	49901	49901	49901
11	Mahabubnagar	1348	13320	7730	29929	29991	29991	59983	29991	29991	7730	59983	15150	74824	74824	74824
12	Medak	1059	10292	6073	23513	23561	23561	47123	23561	23561	6073	47123	11902	58782	58782	58782
13	Nalgonda	1178	11674	6755	26155	26209	26209	52418	26209	26209	6755	52418	13240	65387	65387	65387
14	SPSR Nellore	961	9040	5511	21337	21381	21381	42762	21381	21381	5511	42762	10801	53342	53342	53342
15	Nizamabad	718	7262	4117	15942	15975	15975	31949	15975	15975	4117	31949	8070	39854	39854	39854
16	Prakasham	1044	10396	5987	23180	23228	23228	46455	23228	23228	5987	46455	11734	57949	57949	57949
17	Ranga Reddy	705	7020	4043	15653	15685	15685	31371	15685	15685	4043	31371	7924	39133	39133	39133
18	Srikakulam	1101	10460	6313	24445	24496	24496	48992	24496	24496	6313	48992	12374	61113	61113	61113
19	Visakhapatnam	944	9340	5413	20959	21003	21003	42006	21003	21003	5413	42006	10610	52399	52399	52399
20	Vizianagaram	928	8820	5321	20604	20647	20647	41294	20647	20647	5321	41294	10430	51511	51511	51511
21	Warangal	1014	10306	5814	22514	22560	22560	45120	22560	22560	5814	45120	11396	56284	56284	56284
22	West Godavari	887	9640	5086	19694	19735	19735	39469	19735	19735	5086	39469	9969	49235	49235	49235
	Total	**21799**	**218208**	**125000**	**484000**	**485000**	**485000**	**970000**	**485000**	**485000**	**125000**	**970000**	**245000**	**1210000**	**1210000**	**1210000**

SCALE OF SUPPLY OF STATUTORY FORMS TO THE DISTRICTS

Sl. No	Name of the District	Total No. of Gram Panchyats in the District	Total No.of Wards	Form XVI	Form XVII	Form XX	Form XXI	Form XXII	Form XXIII	Form XXIV	Form XXV	Form XXVI	Form XXVII	Form XXVIII	Form XXIX
1	**2**	**3**	**4**	**18**	**19**	**20**	**21**	**22**	**23**	**24**	**25**	**26**	**27**	**28**	**29**
1	Adilabad	866	8408	48069	192277	48069	20261	100508	50254	20261	20261	19267	19267	48069	19267
2	Anantapur	1001	10280	55563	222251	55563	23419	116176	58088	23419	23419	22271	22271	55563	22271
3	Chittoor	1381	13176	76655	306621	76655	32309	160279	80140	32309	32309	30725	30725	76655	30725
4	YSR district	796	7772	44184	176735	44184	18623	92384	46192	18623	18623	17710	17710	44184	17710
5	East Godavari	1012	11362	56173	224693	56173	23676	117453	58727	23676	23676	22516	22516	56173	22516
6	Guntur	1020	10702	56617	226469	56617	23863	118382	59191	23863	23863	22694	22694	56617	22694
7	Karimnagar	1194	11680	66276	265102	66276	27934	138576	69288	27934	27934	26565	26565	66276	26565
8	Khammam	771	7906	42796	171184	42796	18038	89483	44741	18038	18038	17154	17154	42796	17154
9	Krishna	972	9994	53953	215812	53953	22740	112811	56405	22740	22740	21626	21626	53953	21626
10	Kurnool	899	9358	49901	199604	49901	21033	104338	52169	21033	21033	20002	20002	49901	20002
11	Mahabubnagar	1348	13320	74824	299294	74824	31537	156449	78225	31537	31537	29991	29991	74824	29991
12	Medak	1059	10292	58782	235128	58782	24776	122908	61454	24776	24776	23561	23561	58782	23561
13	Nalgonda	1178	11674	65387	261550	65387	27560	136719	68360	27560	27560	26209	26209	65387	26209
14	SPSR Nellore	961	9040	53342	213369	53342	22483	111534	55767	22483	22483	21381	21381	53342	21381
15	Nizamabad	718	7262	39854	159416	39854	16798	83331	41666	16798	16798	15975	15975	39854	15975
16	Prakasham	1044	10396	57949	231798	57949	24425	121167	60584	24425	24425	23228	23228	57949	23228
17	Ranga Reddy	705	7020	39133	156530	39133	16494	81823	40911	16494	16494	15685	15685	39133	15685
18	Srikakulam	1101	10460	61113	244453	61113	25759	127782	63891	25759	25759	24496	24496	61113	24496
19	Visakhapatnam	944	9340	52399	209595	52399	22085	109561	54780	22085	22085	21003	21003	52399	21003
20	Vizianagaram	928	8820	51511	206042	51511	21711	107704	53852	21711	21711	20647	20647	51511	20647
21	Warangal	1014	10306	56284	225137	56284	23723	117685	58843	23723	23723	22560	22560	56284	22560
22	West Godavari	887	9640	49235	196939	49235	20752	102946	51473	20752	20752	19735	19735	49235	19735
	Total	**21799**	**218208**	**1210000**	**4840000**	**1210000**	**510000**	**2530000**	**1265000**	**510000**	**510000**	**485000**	**485000**	**1210000**	**485000**

ANNEXURE –XIV(A)

SCALE OF SUPPLY OF NON -STATUTORY ITEMS

Sl. No.	Name of the District	Total No. of Gram Panchyats in the District	Total No.of Wards	POs Diary	Paper seal account	Declaration to be filed by the candidate filing nomination on accounts of election expenditure	Receipt book for deposit of challenged votes fee	Letter to SHO	Declaration by elector about his age	List of electors who have refused to make declaration as to their age	List of votes from whom declaration as to their age have been obtained	Passes for polling agents	Appointment of counting Supervios / assistants	MCC	Delcaration regarding antecedents	Order on election expenditure	Declaration to be made by the PO at the commencement of poll, change of ballot box, close of poll, etc
1	2	3	4	5	6	7	8	9	10	11	12	13	14	15	16	17	18
1	Adilabad	866	8408	10130	20261	48069	10130	20261	20261	20261	20261	20261	24035	9733	29000	29000	20261
2	Anantapur	1001	10280	11709	23419	55563	11709	23419	23419	23419	23419	23419	27781	11250	33521	33521	23419
3	Chittoor	1381	13176	16155	32309	76655	16155	32309	32309	32309	32309	32309	38328	15521	46247	46247	32309
4	YSR district	796	7772	9311	18623	44184	9311	18623	18623	18623	18623	18623	22092	8946	26656	26656	18623
5	East Godavari	1012	11362	11838	23676	56173	11838	23676	23676	23676	23676	23676	28087	11374	33890	33890	23676
6	Guntur	1020	10702	11932	23863	56617	11932	23863	23863	23863	23863	23863	28309	11464	34158	34158	23863
7	Karimnagar	1194	11680	13967	27934	66276	13967	27934	27934	27934	27934	27934	33138	13419	39984	39984	27934
8	Khammam	771	7906	9019	18038	42796	9019	18038	18038	18038	18038	18038	21398	8665	25819	25819	18038
9	Krishna	972	9994	11370	22740	53953	11370	22740	22740	22740	22740	22740	26976	10924	32550	32550	22740
10	Kurnool	899	9358	10516	21033	49901	10516	21033	21033	21033	21033	21033	24950	10104	30106	30106	21033
11	Mahabubnagar	1348	13320	15769	31537	74824	15769	31537	31537	31537	31537	31537	37412	15150	45142	45142	31537
12	Medak	1059	10292	12388	24776	58782	12388	24776	24776	24776	24776	24776	29391	11902	35464	35464	24776
13	Nalgonda	1178	11674	13780	27560	65387	13780	27560	27560	27560	27560	27560	32694	13240	39449	39449	27560
14	SPSR Nellore	961	9040	11242	22483	53342	11242	22483	22483	22483	22483	22483	26671	10801	32182	32182	22483
15	Nizamabad	718	7262	8399	16798	39854	8399	16798	16798	16798	16798	16798	19927	8070	24044	24044	16798
16	Prakasham	1044	10396	12212	24425	57949	12212	24425	24425	24425	24425	24425	28975	11734	34961	34961	24425
17	Ranga Reddy	705	7020	8247	16494	39133	8247	16494	16494	16494	16494	16494	19566	7924	23609	23609	16494
18	Srikakulam	1101	10460	12879	25759	61113	12879	25759	25759	25759	25759	25759	30557	12374	36870	36870	25759
19	Visakhapatnam	944	9340	11043	22085	52399	11043	22085	22085	22085	22085	22085	26199	10610	31612	31612	22085
20	Vizianagaram	928	8820	10856	21711	51511	10856	21711	21711	21711	21711	21711	25755	10430	31077	31077	21711
21	Warangal	1014	10306	11862	23723	56284	11862	23723	23723	23723	23723	23723	28142	11396	33957	33957	23723
22	West Godavari	887	9640	10376	20752	49235	10376	20752	20752	20752	20752	20752	24617	9969	29704	29704	20752
	Total	**21799**	**218208**	**255000**	**510000**	**1210000**	**255000**	**510000**	**510000**	**510000**	**510000**	**510000**	**605000**	**245000**	**730000**	**730000**	**510000**

ANNEXURE –XIV(A)

SCALE OF SUPPLY OF COVERS FOR THE OFFICE OF SARPANCH AND WARD MEMBERS (COMMON)

Sl. No.	Name of the District	Sarpanch	WM	Total	Cover for Damaged paper seals	Cover for Marked copy of the electoral roll	Cover for Receipt book and cash forfeited	Cover for Polling Officers diary	Cover for Blank covers	Cover for Big cover for keeping the small covers conaining the tendered ballot papers	Cover for Outer cover for postal ballot paper	Cover for Blind and Infirm voters list	Cover for Election duty certificate	Cover for Declaration of companions of blind and infirm voters
1	**2**	**3**	**4**	**5**	**6**	**7**	**8**	**9**	**10**	**11**	**12**	**13**	**14**	**15**
1	Adilabad	866	8408	9274	19707	19707	19707	19707	39413	10047	20093	10047	20093	20093
2	Anantapur	1001	10280	11281	23971	23971	23971	23971	47943	12221	24441	12221	24441	24441
3	Chittoor	1381	13176	14557	30933	30933	30933	30933	61865	15770	31539	15770	31539	31539
4	Cuddapah	796	7772	8568	18206	18206	18206	18206	36413	9282	18563	9282	18563	18563
5	East Godavari	1012	11362	12374	26294	26294	26294	26294	52588	13405	26810	13405	26810	26810
6	Guntur	1020	10702	11722	24909	24909	24909	24909	49817	12698	25397	12698	25397	25397
7	Karimnagar	1194	11680	12874	27356	27356	27356	27356	54713	13946	27893	13946	27893	27893
8	Khammam	771	7906	8677	18438	18438	18438	18438	36876	9400	18800	9400	18800	18800
9	Krishna	972	9994	10966	23302	23302	23302	23302	46604	11879	23759	11879	23759	23759
10	Kurnool	899	9358	10257	21795	21796	21796	21796	43591	11111	22223	11111	22223	22223
11	Mahabubnagar	1348	13320	14668	31169	31169	31169	31169	62337	15890	31780	15890	31780	31780
12	Medak	1059	10292	11351	24120	24120	24120	24120	48240	12297	24593	12297	24593	24593
13	Nalgonda	1178	11674	12852	27310	27310	27310	27310	54619	13923	27845	13923	27845	27845
14	Nellore	961	9040	10001	21252	21252	21252	21252	42503	10834	21668	10834	21668	21668
15	Nizamabad	718	7262	7980	16957	16957	16957	16957	33914	8645	17289	8645	17289	17289
16	Prakasham	1044	10396	11440	24309	24309	24309	24309	48619	12393	24786	12393	24786	24786
17	Ranga Reddy	705	7020	7725	16415	16415	16415	16415	32830	8369	16737	8369	16737	16737
18	Srikakulam	1101	10460	11561	24566	24566	24566	24566	49133	12524	25048	12524	25048	25048
19	Visakhapatnam	944	9340	10284	21853	21853	21853	21853	43706	11141	22281	11141	22281	22281
20	Vizianagaram	928	8820	9748	20714	20714	20714	20714	41428	10560	21120	10560	21120	21120
21	Warangal	1014	10306	11320	24054	24054	24054	24054	48109	12263	24526	12263	24526	24526
22	West Godavari	887	9640	10527	22369	22369	22369	22369	44738	11404	22808	11404	22808	22808
	Total	**21799**	**218208**	**240007**	**510000**	**510000**	**510000**	**510000**	**1020000**	**260000**	**520000**	**260000**	**520000**	**520000**

ANNEXURE - XV

SCALE OF SUPPLY OF PAPER SEALS

Sl. No.	Name of the District	Total No. of Gram Panchyats in the District	Total No.of Wards	Paper seals
1	**2**	**3**	**4**	**16**
1	Adilabad	866	8408	37326
2	Anantapur	1001	10280	45810
3	Chittoor	1381	13176	58377
4	YSR district	796	7772	35594
5	East Godavari	1012	11362	50439
6	Guntur	1020	10702	47687
7	Karimnagar	1194	11680	51869
8	Khammam	771	7906	35053
9	Krishna	972	9994	44357
10	Kurnool	899	9358	41534
11	Mahabubnagar	1348	13320	59176
12	Medak	1059	10292	45698
13	Nalgonda	1178	11674	51824
14	SPSR Nellore	961	9040	40131
15	Nizamabad	718	7262	32327
16	Prakasham	1044	10396	46018
17	Ranga Reddy	705	7020	31111
18	Srikakulam	1101	10460	46479
19	Visakhapatnam	944	9340	41330
20	Vizianagaram	928	8820	39314
21	Warangal	1014	10306	45751
22	West Godavari	887	9640	42795
	Total	**21799**	**218208**	**970000**

ANNEXURE - XVI

4th Ordinary Elections to Gram Panchayat Elections, 2013

Phased Poll Particulars

Sl. No.	Name of the District	First Phase (Poll on 23.7.2013)			Second Phase (Poll on 27.7.2013)			Third Phase (Poll on 31.7.2013)		
		Names of the Revenue Division	No.of Gram Panchayat going to poll	No.of Wards going to poll	Names of the Revenue Division	No.of Gram Panchayat going to poll	No.of Wards going to poll	Names of the Revenue Division	No.of Gram Panchayat going to poll	No.of Wards going to poll
1	2	3	4	5	7	8	9	11	12	13
1	Adilabad	Asifabad	137	1420	Adilabad	187	1818	Nirmal	240	2384
		Utnoor	115	1198	Mancherial	187	1912			
2	Anantapur	Penukonda	353	3826	Dharmavaram	262	2770	Ananthapur	388	3854
3	Chittoor	Tirupathi	393	3586	Chittoor	464	4238	Madanpalli	499	5266
4	East Godavari	R.Chodavaram	120	1110	Kakinada	163	1860	Amalapuram	272	3134
		Rajahmundry	204	2350	Peddapuram	203	2288			
5	Guntur	Tenali	348	3568	Guntur	307	3306	Narsaraopet	355	3780
6	Karimnagar	Peddapalli	171	1720	Jagital	304	3008	Karimnagar	399	4014
		Manthani	122	1178	Sircilla	211	2006			
7	Khammam	Badrachalam	117	1170	Khammam	377	3800	Kothagudem	147	1628
								Palvancha	117	1288
8	Krishna	Nuzvid	279	2926	Vijayawada	238	2640	Machilipatnam	233	2268
								Gudiwada	219	2070
9	Kurnool	Kurnool	299	3212	Nandyal	287	2916	Adoni	297	3274
10	Mahabubnagar	Gadwal	195	1994	Mahabubnagar	414	4124	Nagarkurnool	225	2332
		Narayanpet	328	3340				Wanaparthy	162	1674
11	Medak	Siddipet	304	2914	Medak	406	3994	Sangareddy	367	3640

12	Nalgonda	Bhongir	337	3164	Nalgonda	203	2052	Miryalguda	225	2300
					Suryapet	253	2622	Devarakonda	151	1548
13	Nizamabad	Nizamabad	292	3072	Bodhan	235	2418	Kamareddy	191	1934
14	Prakasham	Ongole	349	3636	Kandukur	475	4634	Markapur	199	2068
15	Ranga Reddy	R.R.East	209	2352	Chevella	227	2272	Vikarabad	236	2264
16	SPSR Nellore	Kavali	167	1614	Nellore	234	2346	Guduru	210	1912
		Atmakur	193	1792				Naidupet	127	1170
17	Srikakulam	Srikakulam	349	3428	Palakonda	378	3522	Tekali	364	3500
18	Visakhapatnam	Paderu	244	2446	Visakhapatnam	116	1194	Anakapalli	322	3138
					Narsipatnam	238	2436			
19	Vizianagaram	Parvathipuram	409	3866	Vizianagaram	512	4898	-		
20	Warangal	Mulugu	236	2330	Mahabubabad	187	2012	Warangal	220	2224
					Narsampet	119	1206	Jangaon	200	2002
21	West Godavari	Eluru	341	3688	Kovvur	191	2198	Narsapur	250	2702
					J.R.Gudem	102	1096			
22	YSR Kadapa	Kadapa	252	2550	Rajampet	258	2574	Jammalamadugu	275	2600
	Total		**6863**	**69450**		**7738**	**78160**		**6890**	**69968**

Sd/- P.Ramakanth Reddy
State Election Commissioner

ANNEXURE –XVI(A)

Registered No. HSE–49/2012-2014. [Price : ₹. 1-00 Paise.

RIGHT TO INFORMATION

సత్యమేవజయతే

ఆంధ్ర ప్రదేశ్ రాజ పత్రము

THE ANDHRA PRADESH GAZETTE

PART–VII EXTRAORDINARY

PUBLISHED BY AUTHORITY

No. 105] HYDERABAD, WEDNESDAY, JULY 3, 2013.

NOTIFICATIONS RELATING TO THE ADMINISTRATION OF PANCHAYAT RAJ

——x——

STATE ELECTION COMMISSION

FOURTH ORDINARY ELECTIONS TO GRAM PANCHAYATS, 2013.

NOTIFICATION

No. 757/SEC-B2/2013:- In exercise of the powers conferred by Article 243-K of the Constitution of India, section 201, sub-section (2) of Section 13 and sub-section (2) of Section 14 of Andhra Pradesh Panchayat Raj Act, 1994 (Act 13 of 1994), read with Rule 4 of the Andhra Pradesh Panchayat Raj (Conduct of Elections) Rules, 2006, the State Election Commission, Andhra Pradesh, hereby, calls upon the registered voters in-

(i) those Gram Panchayats whose term of office has already expired;

(ii) those Gram Panchayats whose term of office expires within three months of the date of this notification; and

(iii) those Gram Panchayats whose ordinary elections could not be conducted earlier due to any reason.

to elect Members and Sarpanch of their respective Gram Panchayats and also notifies the programme for conduct of the said elections in the Annexure-I to this notification.

Secunderabad,
03-07-2013.

P. RAMAKANTH REDDY,
State Election Commissioner.

NOTE:

1. Collectors and District Election Authorities shall ensure that no election notice is given in respect of any Gram Panchayat where a Court of Law issued orders restraining the holding of elections to it.
2. The elections held in pursuance of this notification shall be subject to the result of any litigation pending in the Hon'ble Supreme Court or in the Hon'ble High Court.

ANNEXURE-I
ELECTION PROGRAMME

1.	(a) Date of issue of Election Notice by the Returning Officer under Rule 6 of Andhra Pradesh Panchayat Raj (Conduct of Elections) Rules, 2006 in Form-I.	09.07.2013 (From this date nominations can be filed between 10:30 AM and 5:00 PM)
	(b) Display of ward wise electoral roll of Gram Panchayat by Returning Officer under Rule 5 of said rules.	09.07.2013
2.	Last date for filing of Nominations	13.07.2013 (Upto 5:00 PM)
3.	Scrutiny of Nominations	14.07.2013 (11:00 AM onwards)
4.	Appeal before Revenue Divisional Officer against the rejection of Nominations	15.07.2013 (Upto 5:00 PM)
5.	Disposal of Appeals by Revenue Divisional Officer	16.07.2013
6.	Last date for withdrawal of candidature	17.07.2013 (Not later than 3:00 PM)
7.	Publication of list of contesting candidates	17.07.2013 (After 3 :00 PM)
8.	Dates of Poll: (Names of the Revenue Divisions, No. of Gram Panchayats and No. of Wards going for poll in each Revenue Division in the 3 Phases of poll are indicated in the Annexure-II appended to the Notification)	I-Phase : 23.07.2013 II-Phase : 27.07.2013 III-Phase : 31.07.2013 (From 7:00 AM to 1:00 PM)
9.	Dates of Counting of Votes	I-Phase : 23.07.2013 II-Phase : 27.07.2013 III-Phase : 31.07.2013 (From 2:00 PM onwards)
10.	Declaration of Results	Soon after the completion of counting of votes
11.	(a) Date of conduct of election of Upa-Sarpanch under Sec. 14(10) of A.P. Panchayat Raj, 1994.	On the same date on which results are declared.
	(b) If for any reason, the election of Upa Sarpanch is not held on the date aforesaid, it shall be held on the next day, whether or not it is a holiday observed by the Gram Panchayat.	

ANNEXURE - II

4th Ordinary Elections to Gram Panchayats - 2013

Phased Poll Particulars

Sl. No.	Name of the District	I-Phase (Poll on 23.07.2013)			II-Phase (Poll on 27.07.2013)			III-Phase (Poll on 31.07.2013)		
		Names of the Revenue Division	No.of Gram Panchayat going to poll	No.of Wards going to poll	Names of the Revenue Division	No.of Gram Panchayat going to poll	No.of Wards going to poll	Names of the Revenue Division	No.of Gram Panchayat going to poll	No.of Wards going to poll
1	2	3	4	5	7	8	9	11	12	13
1	Adilabad	Asifabad	137	1420	Adilabad	187	1818	Nirmal	240	2384
		Utnoor	115	1198	Mancherial	187	1912			
2	Anantapur	Penukonda	353	3826	Dharmavaram	262	2770	Ananthapur	388	3854
3	Chittoor	Tirupathi	393	3586	Chittoor	464	4238	Madanpalli	499	5266
4	East Godavari	R.Chodavaram	120	1110	Kakinada	163	1860	Amalapuram	272	3134
		Rajahmundry	204	2350	Peddapuram	203	2288			
5	Guntur	Tenali	348	3568	Guntur	307	3306	Narsaraopet	355	3780
6	Karimnagar	Peddapalli	171	1720	Jagtial	304	3008	Karimnagar	399	4014
		Manthani	122	1178	Sircilla	211	2006			
7	Khammam	Badrachalam	117	1170	Khammam	377	3800	Kothagudem	147	1628
								Palvancha	117	1288
8	Krishna	Nuzvid	279	2926	Vijayawada	238	2640	Machilipatnam	233	2268
								Gudiwada	219	2070
9	Kurnool	Kurnool	299	3212	Nandyal	287	2916	Adoni	297	3274
10	Mahabubnagar	Gadwal	195	1994	Mahabubnagar	414	4124	Nagarkurnool	225	2332
		Narayanpet	328	3340				Wanaparthy	162	1674
11	Medak	Siddipet	304	2914	Medak	406	3994	Sangareddy	367	3640
12	Nalgonda	Bhongir	337	3164	Nalgonda	203	2052	Miryalguda	225	2300
					Suryapet	253	2622	Devarakonda	151	1548
13	Nizamabad	Nizamabad	292	3072	Bodhan	235	2418	Kamareddy	191	1934
14	Prakasham	Ongole	349	3636	Kandukur	475	4634	Markapur	199	2068
15	Ranga Reddy	R.R.East	209	2352	Chevella	227	2272	Vikarabad	236	2264

Sl. No.	Name of the District	I-Phase (Poll on 28.07.2013)			II-Phase (Poll on 27.07.2013)			III-Phase (Poll on 31.07.2013)		
		Names of the Revenue Division	No.of Gram Panchayat going to poll	No.of Wards going to poll	Names of the Revenue Division	No.of Gram Panchayat going to poll	No.of Wards going to poll	Names of the Revenue Division	No.of Gram Panchayat going to poll	No.of Wards going to poll
1	2	3	4	5	7	8	9	11	12	13
16	SPSR Nellore	Kavali	167	1614	Nellore	234	2346	Guduru	210	1912
		Atmakur	193	1792				Naidupet	127	1170
17	Srikakulam	Srikakulam	349	3428	Palakonda	378	3522	Tekali	364	3500
18	Visakhapatnam	Paderu	244	2446	Visakhapatnam	116	1194	Anakapalli	322	3138
					Narsipatnam	238	2436			
19	Vizianagaram	Parvathipuram	409	3866	Vizianagaram	512	4898	-		
20	Warangal	Mulugu	236	2330	Mahabubabad	187	2012	Warangal	220	2224
					Narsampet	119	1206	Jangaon	200	2002
21	West Godavari	Eluru	341	3688	Kovvur	191	2198	Narsapur	250	2702
					J.R.Gudem	102	1096			
22	YSR Kadapa	Kadapa	252	2550	Rajampet	258	2574	Jammalamadugu	275	2600
	Total		**6863**	**69450**		**7738**	**78160**		**6890**	**69968**

Secunderabad,
03-07-2013.

P. RAMAKANTH REDDY,
State Election Commissioner.

అధికార ప్రకటన

నం.757/రా.ఎ.సం. – ది 2/2013

భారత రాజ్యాంగంలోని 243-కె అధికరణం ద్వారాను మరియు 2006, ఆంధ్రప్రదేశ్ పంచాయతీరాజ్ (ఎన్నికల నిర్వహణ) నియమావళిలోని 4వ నియమంతో పాటు తలిపి చదివిన 1994, ఆంధ్రప్రదేశ్ పంచాయతీరాజ్ చట్టము (1994 లోని 13వ చట్టము) లోని సెక్షను – 201, సెక్షను – 13 యొక్క సబ్ సెక్షను (2) మరియు సెక్షను – 14 యొక్క సబ్ సెక్షను (2) క్రింద ఒసగబడిన అధికారాలను వినియోగిస్తూ, ఆంధ్రప్రదేశ్ రాష్ట్ర ఎన్నికల సంఘం –

(i) కాల్పటికే పదవీకాలం ముగిసిన గ్రామ పంచాయతీలలోని;

(ii) ఈ ప్రకటన తేదీ నాటి నుండి మూడు నెలలలోపు పదవీకాలం ముగియు గ్రామ పంచాయతీలలోని; మరియు

(iii) ఏదైన కారణం వలన సాధారణ ఎన్నికలు జరుగని గ్రామ పంచాయతీలలోని –

దిజ్ఞాపకు ఓటర్లను, ఆయా గ్రామ పంచాయతీల సర్పంచులను మరియు వార్డు సభ్యులను ఎన్నుకొనవలసిందిగా కోరుచున్నది. మరియు సదరు ఎన్నికలకు సంబంధించిన ఎన్నికల నిర్వహణా కార్యక్రమాన్ని కూడా, ఈ ప్రకటన యొక్క అనుబంధం – I లో ప్రచురించడం జరిగింది.

సికింద్రాబాద్,
03-07-2013.

పి. రమాకాంత్ రెడ్డి,
రాష్ట్ర ఎన్నికల కమీషనరు.

గమనిక:

1. గ్రామపంచాయతీలలోని ఏదేని పదవికి ఎన్నికలు నిర్వహించరాదని న్యాయస్థానం ఎన్నికల అధికారులను తత్కరువు ద్వారా ఆదేశించి యున్న యెడల, అట్టి వారి విషయంలో కలెక్టర్లు మరియు జిల్లా ఎన్నికల ప్రాధికార్లు ఎన్నికలను వాయిదా చేయరాదు.
2. ఈ నోటిఫికేషను ద్వారా నిర్వహించబడు ఎన్నికలు గౌరవ సర్వోన్నత న్యాయస్థానములోనీ, గౌరవ ఉన్నత న్యాయస్థానములోనీ ఉన్న వ్యాజ్యములపై తుది నిర్ణయమునకు లోబడి ఉండును.

అనుబంధము – I

ఎన్నికల కార్యక్రమము

1.(ఎ) ఆంధ్రప్రదేశ్ పంచాయతీరాజ్ (ఎన్నికల నిర్వహణ) నియమావళి, 2006 లోని 6వ నియమము క్రింద ఎన్నికల ప్రాధికారి ఫారము – 1 లో ఎన్నికల పోలీసు జారీ చేయవలసిన తేది.	09.07.2013 (ఈ తేదిన ఉ.గం. 10.30 నుండి సా.గం. 5.00 ల వరకు నామినేషన్లు దాఖలు చేయవచ్చును)
(బి) పదవ నియమావళిలోని 5వ నియమం క్రింద ఎన్నికల ప్రాధికారి గ్రామ పంచాయతీల వార్డు వారీగా ఓటర్ల జాబితాను ప్రదర్శించుట.	09.07.2013
2. నామినేషన్లు దాఖలు చేయుటకు చివరి తేది	13.07.2013 (సా.గం. 5.00 ల వరకు)
3. నామినేషన్ల పరిశీలన	14. 07.2013 (ఉ.గం. 11.00 ల నుండి)
4. నామినేషన్ల తిరస్కరణపై రెవెన్యూ డివిజనల్ అధికారి సమక్షంలో అప్పీలు	15.07.2013 (సా.గం. 5.00 ల వరకు)
5. రెవెన్యూ డివిజనల్ అధికారికే అప్పీళ్ళ పరిష్కార తేది	16.07.2013
6. అభ్యర్థిత్వ ఉపసంహరణకు చివరి తేది	17 .07.2013 (సా.గం. 3.00 ల లోపు)
7. పోటీలో ఉన్న అభ్యర్థుల జాబితా ప్రచురణ	17 .07.2013 (సా.గం. 3.00 ల తరువాత)
8. పోలింగు తేదీలు : (జిల్లాలోని ప్రతి డివిజనులో గల గ్రామపంచాయతీలకు డివిజనువారీగా పోలింగు జరుగుతుంది. జిల్లాలోని ప్రతి డివిజను యొక్క గ్రామ పంచాయతీల పోలింగు తేదిన ఈ ప్రకటనకు జతపరచబడిన అనుబంధం – II లో తెలియజేయబడినది).	మొదటి విడత, రెండవ విడత, మూడవ విడత, 23.07.2013, 27. 07.2013, 31.07.2013 (ఉ.గం. 7.00 ల నుండి మ.గం. 1.00 వరకు)
9. ఓట్ల లెక్కింపు తేది	మొదటి విడత, రెండవ విడత, మూడవ విడత, 23.07.2013, 27. 07.2013, 31.07.2013 (మ.గం. 2.00ల నుండి) ఓట్ల లెక్కింపు ముగిసిన వెంటనే ఫలితాలు ప్రకటించిన తేదీనే
10. ఫలితాల ప్రకటన	
11. (ఎ) గ్రామపంచాయతీలలోని ఖాళీ సభ్యులకు జరిగిన సాధారణ ఎన్నికలకు సంబంధించి, 1994 ఆంధ్రప్రదేశ్ పంచాయతీరాజ్ చట్టపు సెక్షను 14 (10) క్రింద ఉపసర్పంచు ఎన్నిక నిర్వహణ తేదీ :	
(బి) పైన పేర్కొన్న తేదీన ఏ కారణం చేతనైనా ఉప సర్పంచు ఎన్నిక జరుగని యెడల, మరుసటి రోజున ఆ గ్రామపంచాయతీ సెలవుదినంగా ప్రకటించినను కొనసాగును, తప్పనిసరిగా జరుగుతుంది.	

అనుబంధము – II

గ్రామపంచాయతీ ఎన్నికలు, 2013

విడతల వారి పోలింగు వివరములు

వరుస సంఖ్య	జిల్లాల పేర్లు	మొదటి విడత (పోలింగు తేదీ: 23.07.2013)			రెండవ విడత (పోలింగు తేదీ: .27.07.2013)			మూడవ విడత (పోలింగు తేదీ: 31.07.2013)		
		రెవెన్యూ డివిజను పేరు	పోలింగు జరుగు గ్రామ పంచాయతీల సంఖ్య	పోలింగు జరుగు వార్డుల సంఖ్య	రెవెన్యూ డివిజను పేరు	పోలింగు జరుగు గ్రామ పంచాయతీల సంఖ్య	పోలింగు జరుగు వార్డుల సంఖ్య	రెవెన్యూ డివిజను పేరు	పోలింగు జరుగు గ్రామ పంచాయతీల సంఖ్య	పోలింగు జరుగు వార్డుల సంఖ్య
1	ఆదిలాబాదు	ఆసీఫాబాదు	137	1420	ఆదిలాబాదు	187	1818	నిర్మల్	240	2384
		ఉట్నూరు	115	1198	మంచిర్యాల్	187	1912			
2	అనంతపురం	పెమకొండ	353	3826	ధర్మవరం	262	2770	అనంతపురం	388	3854
3	చిత్తూరు	తిరుపతి	393	3586	చిత్తూరు	464	4238	మదనపల్లి	499	5266
4	తూర్పుగోదావరి	రంపచోడవరం	120	1110	కాకినాడ	163	1860	అమలాపురం	272	3134
		రాజమండ్రి	204	2350	పెద్దాపురం	203	2288			
5	గుంటూరు	తెనాలి	348	3568	గుంటూరు	307	3306	నరసరావు పేట	355	3780
6	కరీమ్‌నగర్	పెద్దపల్లి	171	1720	జగిత్యాల్	304	3008	కరీమ్‌నగర్	399	4014
		మంథని	122	1178	సిరిసిల్లా	211	2006			
7	ఖమ్మం	భద్రాచలం	117	1170	ఖమ్మం	377	3800	కొత్తగూడెం	147	1628
								పాల్‌పంచ	117	1288
8	కృష్ణా	నూజివీడు	279	2926	విజయవాడ	238	2640	మచిలీపట్నం	233	2268
								గుడివాడ	219	2070
9	కర్నూలు	కర్నూలు	299	3212	నంద్యాల	287	2916	ఆదోని	297	3274
10	మహబూబ్‌నగర్	గద్వాల్	195	1994	మహబూబ్‌నగర్	414	4124	నాగర్‌కర్నూల్	225	2332

		నారాయన్ పేట్	328	3340				వనపర్తి	162	1674
11	మెదక్	సిద్ధిపేట	304	2914	మెదక్	406	3994	సంగారెడ్డి	367	3640
12	నల్గొండ	భువనగిరి	337	3164	నల్గొండ	203	2052	మిర్యాలగూడ	225	2300
					సూర్యాపేట	253	2622	దేవరకొండ	151	1548
13	నిజామాబాదు	నిజామాబాదు	292	3072	బోధన్	235	2418	కామారెడ్డి	191	1934
14	ప్రకాశం	ఒంగోలు	349	3636	కందుకూరు	475	4634	మార్కాపురము	199	2068
15	రంగారెడ్డి	రంగారెడ్డి ఈస్ట్	209	2352	చేవెళ్ల	227	2272	వికారాబాదు	236	2264
16	యస్.పి.యస్.ఆర్ నెల్లూరు	కావలి	167	1614	నెల్లూరు	234	2346	గూడూరు	210	1912
		ఆత్మకూరు	193	1792				నాయుడుపేట	127	1170
17	శ్రీకాకుళం	శ్రీకాకుళం	349	3428	పాలకొండ	378	3522	టెక్కలి	364	3500
18	విశాఖపట్టణం	పాడేరు	244	2446	విశాఖపట్టణం	116	1194	అనకాపల్లి	322	3138
					నర్సీపట్నం	238	2436			
19	విజయనగరం	పార్వతీపురం	409	3866	విజయనగరం	512	4898			
20	వరంగల్	ములుగు	236	2330	మహబూబాబాద్	187	2012	వరంగల్		2224
					నరసంపేట	119	1206	జనగామ్	200	2002
21	పశ్చిమగోదావరి	ఏలూరు	341	3688	కొవ్వూరు	191	2198	నర్సాపూర్	250	2702
					జె.ఆర్.గూడెం.	102	1096			
22	వై.యస్.ఆర్.	కడప	252	2550	రాజంపేట	258	2574	జమ్మలమడుగు	275	2600
మొత్తం			**6863**	**69450**		**7738**	**78160**		**6890**	**69968**

సికింద్రాబాద్,
03-07-2013.

పి. రమాకాంత్ రెడ్డి,
రాష్ట్ర ఎన్నికల కమీషనరు.

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ANNEXURE – XVI (B)

List of Gram Panchayats was rescheduled due to heavy rains-2013

S. No.	Name of the District	Name of the Revenue Division	Name of the Mandal	Name of the Gram Panchayat
1	Adilabad	Utnoor	Indervally	Ginnera
				Dhodanda
				Waipet
			Jainoor	Gudamamda
				Addessara
			Kerameri	Karanjiwada
		Asifabad	Kagaznagar	Andevelly
				Bareguda
				Bhatpally
				Bodepally
				Chintaguda
				Chintaguda (K)
				Esgaon
				Gannaram
				Kosini
				Malini
				Mosam
				Nagampet(J)
				Nazrulnagar
				Pothapally
				Raspally
				Vallakonda
				Vanjar
			Dahegaon	Ainam
				Beebra
				Chandravelly
				Chedwai
				Chinna Rasapally
				Chinnagudipet
				Dahegaon

				Girvelly
				Hathini
				Ittiyal
				Keslapoor
				Kothimeer
				Kunchavelly
				Laggaon
				Motlaguda
				Odduguda
				Rampur
				Salegaon
			Bheemini	Bheemini
				Jajjarvelly
				Jankapoor
				Kannepally
				Karji Bheempoor
				Laxmipur
				Mallidi
				Metpally
				Nayakampet
				Rebbena
				Veegaon
				Veerapur
				Venkatapoor
			Sirpur (T)	Bhoopalapatnam
				Cheelapally
				Chintakunta
				Dabba
				Dorpally
				Hudkili
				Laxmipur
				Loanvelly
				Paregaon
				Sirpur(T)

				Vempally
				Venkatraopet
			Bejjur	Bejjur
				Bombaiguda
				Dimda
				Gudem
				Kammargaon
				Kharjavelly
				Kondapally
				Kukuda
				Kushnepally
				Loadpally
				Marthadi
				Moogavelly
				Munjampally
				Muraliguda
				Papanpet
				Penchikalpet
				Potapally
				Rebbena
				Rudrapur
				Somini
				Utsarangapally
				Yelkapally
				Yelloor
			Koutala	Babapur
				Babasagar
				Balaji Ankoda
				Chintalamanepally
				Gangapur
				Gudlabori
				Gundaipet
				Gurudpet
				Kanki

				Kannepally
				Kowthala
				Mogaddagad
				Muthyampet
				Pardi(B)
				Ranvelly
				Ravindranagar
				Sandgaon
				Talodi
				Thatpally
				Thummidihetti
				Veerdandi
		Mancherial	Luxettipet	Pothapally
			Mancherial	Namnoor
				Padthan Pally
			Vemanpally	Chamanpally
				Dasnapur
				Gorlapally
				Jilleda
				Kaithanpally
				Lingal
				Mulkalpet
				Neelwai
				Sumputam
				Suraram
				Vemanpally
			Kotepally	Alegaon
				Annaram
				Devulawada
				Edulabandam
				Jangaon
				Kolloor
				Kondampet
				Kotapally

				Nagampet
				Nakkalapally
				Pangidisomaram
				Parpally
				Pinnaram
				Pullegaon
				Rajaram
				Rampur
				Rapanpally
				Sarvaipet
				Shetpally
				Sirsa
				Venchapally
		Adilabad	Adilabad	Khandala
				Kumbejhari
				Yapalguda
				Ramai
			Bela	Sangidi
				Bedoda
				Guda
				Dahegaon
				Kobbai
				Sangvi
			Talamadugu	Palsi-B
			Jainath	Kamai
				Sangvi-K
			Tamsi	Nippani
				Bheempur
				Karanji
				Arli-T
				Pippalkoti
				Tamsi-K
			Ichoda	Neradigonda-G

	Adilabad	Adilabad	Bazarhathnoor	Girnoor
				Pipri
				Warthamannur
			Boath	Babera
				Karathwada
2	East Godavari	Rampachodavaram	Devipatnam	Kondamodalu
				Tunnuru
				Chinaramanayyapeta
				Manturu
			Y.Ramavaram	Pathakota
				Kanivada
3	Karimnagar	Manthani	Mahadevpur	Peddampet
				Lenkalagadda
				Pallemmala
				Pankena
				Sarvaipet
4	Khammam	Bhadrachalam	Bhadrachalam	Bhadrachalam
				Chodavaram
				G.Kothagudem
				Gannavaram
				Gowridevipeta
				Gundala
				Kannaigudem
				Krishnapuram
				Laxmipuram
				Morumuru
				Nallakunta
				Nandigama
				Nellipaka
				Pichukalapadu
				Purushothapatnam
				Ramgopalapuram
				Rayanipeta
				T.P.veedu

				Thotapalli
				Venkatereddypeta
				Vissapuram
				Yetapaka
			Charla	Charla
				Devarapalli
				Gommugudem
				Kudunuru
				Kurnapalli
				Mogallapalli(G)
				Pedamidisileru
				Peddipalli
				Pusuguppa
				R.Kothagudem
				Satyanarayanapuram
				Subbampeta
				Tegada
				Upparigudem
			Chintoor	A.G.Koderu
				Chadalavada
				Chatti
				Chidumuru
				Chintooru
				Edugurallapalli
				Guduru
				Kalleru
				Kothapalli
				Kummuru
				Mothugudem
				Mukunooru
				Pedaseenapalli
				Pega
				Tummala

			Dummugudem	Anjipaka
				Arlugudem
				chinanallaballi
				Dummagudem
				Gangolu
				Gowravaram
				Kasinagaram
				Kothapalli
				Lakshminagaram
				Mahadevapuram
				Maraigudem
				Nadikudi
				Narsapuram
				Paidigudem
				Parnasala
				Pedakamalapuram
				Pednanallaballi
				Pragallapalli
				Ramaraopeta
				Singavaram
				Turubaka
			Kunavaram	Abhicherla
				Chanarkuru
				Chuchirevulagudem
				Jaggavaram
				Kachavaram
				Karakagudem
				Kondrajupeta
				Kunavaram
				Kuturu
				Lingapuram
				Marrigudem
				Pedarkuru
				Pocharam

				Regulapadu
				Tekubaka
				Venkatayapalem
			V.R .Puram	Chinamattapalli
				Jeediguppa
				Kunduluru
				Mulkanapalli
				Pedamattapalli
				Rajupeta
				Ramavaram
				Rekhapalli
				Sreeramagiri
				Tummaleru
				V.R.Puram(Vaddigudem)
			Venkatapuram	Aulubaka
				Barlagudem
				Edira
				Marikala
				Morravanigudem
				Patrapuram (Palem)
				Suraveedu
				veerabhadravaram
				Venkatapuram
			Wazeedu	Cherukuru
				Chintooru
				Edjerlapalli
				Gummadidoddi
				Kongala
				Krishnapuram
				Murumooru
				Nagaram
				Peruru
5	Nizamabad	Bodhan	Jukkal	Dongaon
			Bichkunda	Takkadapally (B)

6	Warangal	Mulug	Eturunagaram	Ailapur
				Kondai
				Chelpaka
			Mulug	Sarwapur
	East Godavari	Rampachodavaram	Devipatnam	Devipatnam
7	Visakhapatnam	Paderu	Munchingput	Babusala
			Munchingput	Bungaput
			Koyyuru	Mattam Bheemavaram
	Visakhapatnam	Paderu	Chinthapalli	Bennavaram
	Adilabad	Utnoor	Narnoor	Kothapally (G)
		Utnoor	Kerameri	Khairi
		Utnoor	Wankidi	Choupanguda
				Sonapur
				Kannargaon
		Asifabad	Asifabad	Gundi
				Rahapally
	East Godavari	Rampachodavaram	Maredumilli	Chavadikota, 9th Ward
8	West Godavari	Jangareddigudem	Polavaram	Polavaram
				Chegondapalli
				Kondrukota
				Thutigunta
				Koruturu

ANNEXURE – XVII

Statement showing No. of Nominations filed - 2013

Sl. No.	Name of the District	Sarpanchas		Ward Members	
		Total No. of offices going to poll	Total No. of nominations filed	Total No. of offices going to poll	Total No. of nominations filed
1	2	3	4	5	6
1	Adilabad	866	5251	8732	19817
2	Anantapur	1003	6345	10450	23107
3	Chittoor	1357	8447	13102	24445
4	East Godavari	962	5655	10742	30241
5	Guntur	1010	5222	10654	28329
6	Karimnagar	1207	9363	11928	33275
7	Khammam	758	4305	7886	25167
8	Krishna	969	5309	9904	27965
9	Kurnool	883	5414	9446	22511
10	Mahabubnagar	1324	8180	13464	34329
11	Medak	1066	6650	10444	28809
12	Nalgonda	1169	7504	11686	37630
13	Nizamabad	718	4718	7424	17740
14	Prakasham	1020	6232	10302	26830
15	Ranga Reddy	649	3924	6518	19276
16	SPSR Nellore	931	4670	8834	22776
17	Srikakulam	1095	5458	10496	22947
18	Visakhapatnam	920	5695	9214	25874
19	Vizianagaram	921	4726	8764	23194
20	Warangal	944	5959	9590	27507
21	West Godavari	884	5175	9684	27943
22	YSR District	785	4803	7724	16734
	Total	**21441**	**129005**	**216988**	**566446**

ANNEXURE – XVII (A)

PROFORMA – III Report on No. of Validly Nominated candidates (To be sent after scrutiny of nominations on 14.07.2013)

S.No.	Name of the District	No of Gram Panchayats going to poll	No. of Wards going to poll	No. of validly nominated candidates for	
				Sarpanchas	Ward Members
1	2	3	4	5	6
1	Adilabad	866	8732	4726	18717
2	Anantapur	1003	10450	5696	22381
3	Chittoor	1357	13102	7818	23893
4	East Godavari	962	10742	5120	27665
5	Guntur	1010	10654	4997	27781
6	Karimnagar	1207	11928	7333	31548
7	Khammam	758	7886	4012	24186
8	Krishna	969	9904	4989	27161
9	Kurnool	883	9446	5034	20968
10	Mahabubnagar	1324	13464	7650	33776
11	Medak	1066	10444	5625	27739
12	Nalgonda	1169	11686	6188	33652
13	Nizamabad	718	7424	3989	16736
14	Prakasham	1020	10302	5955	25993
15	Ranga Reddy	649	6518	3442	18594
16	SPSR Nellore	931	8834	4382	22139
17	Srikakulam	1095	10496	5286	22421
18	Visakhapatnam	920	9214	5424	25613
19	Vizianagaram	921	8764	4342	22209
20	Warangal	944	9590	5392	26560
21	West Godavari	884	9684	4883	27149
22	YSR District	785	7724	4651	16327
	Total	**21441**	**216988**	**116934**	**543208**

ANNEXURE – XVIII

District wise break up of Unanimous election for Sarpanch

Sl. No.	Name of the District	No. of Offices of Sarpanch notified for elections	No. of unanimous elected Sarpanch
1	**2**	**3**	**4**
1	Adilabad	866	84
2	Anantapur	1003	63
3	Chittoor	1357	293
4	East Godavari	962	80
5	Guntur	1010	162
6	Karimnagar	1207	58
7	Khammam	758	39
8	Krishna	969	134
9	Kurnool	883	139
10	Mahabubnagar	1324	109
11	Medak	1066	69
12	Nalgonda	1169	103
13	Nizamabad	718	74
14	Prakasham	1020	171
15	Ranga Reddy	649	40
16	SPSR Nellore	931	200
17	Srikakulam	1095	221
18	Visakhapatnam	920	74
19	Vizianagaram	921	139
20	Warangal	944	86
21	West Godavari	884	142
22	YSR District	785	162
	Total	**21441**	**2642**

ANNEXURE – XVIII (A)

District wise break up of contesting candidates for Sarpanch

Sl. No.	Name of the District	No. of Offices of Sarpanch notified for elections	No. of unanimous elected Sarpanch	No. of No Nominations filed	Balance No. of offices of Sarpanch going to poll	No. of contesting candidates
1	2	3	4	5	(3)–(4) -(5)= 6	7
1	Adilabad	866	84	5	777	2907
2	Anantapur	1003	67	1	935	2760
3	Chittoor	1357	293	4	1060	3163
4	East Godavari	962	80	2	880	2709
5	Guntur	1010	162	2	846	2239
6	Karimnagar	1207	58	1	1148	4876
7	Khammam	758	39	7	712	2192
8	Krishna	969	134	1	834	2309
9	Kurnool	883	132	0	751	2229
10	Mahabubnagar	1324	108	1	1215	3841
11	Medak	1066	69	2	995	3239
12	Nalgonda	1169	103	6	1060	3074
13	Nizamabad	718	73	0	645	2477
14	Prakasham	1020	182	3	835	2218
15	Ranga Reddy	649	40	1	608	2073
16	SPSR Nellore	931	203	4	724	1787
17	Srikakulam	1095	221	4	870	2166
18	Visakhapatnam	920	70	23	827	2677
19	Vizianagaram	921	134	4	783	1960
20	Warangal	944	86	3	855	2970
21	West Godavari	884	142	4	738	2154
22	YSR District	785	162	0	623	1838
	Total	**21441**	**2642**	**78**	**18721**	**57858**

ANNEXURE – XVIII (B)

District wise break up of Unanimous election for Ward Member

Sl. No.	Name of the District	No. of Ward member notified for elections	No. of unanimous elected Wards
1	2	3	4
1	Adilabad	8732	3060
2	Anantapur	10450	3204
3	Chittoor	13102	7335
4	East Godavari	10742	3239
5	Guntur	10654	3438
6	Karimnagar	11928	2549
7	Khammam	7886	728
8	Krishna	9904	2761
9	Kurnool	9446	1582
10	Mahabubnagar	13464	1794
11	Medak	10444	1416
12	Nalgonda	11686	1400
13	Nizamabad	7424	2301
14	Prakasham	10302	3024
15	Ranga Reddy	6518	819
16	SPSR Nellore	8834	3181
17	Srikakulam	10496	4986
18	Visakhapatnam	9214	2444
19	Vizianagaram	8764	2751
20	Warangal	9590	1440
21	West Godavari	9684	3309
22	YSR District	7724	3194
	Total	**216988**	**59955**

ANNEXURE – XVIII (C)

District wise break up of contesting candidates for Ward Member

Sl. No.	Name of the District	No. of Ward member notified for elections	No. of unanimous elected Wards	No. of No nominations filed	Balance No. of Wards going to poll	No. of contesting candidates
1	2	3	4	5	(3)–(4) -(5)= 6	7
1	Adilabad	8732	3060	67	5605	13841
2	Anantapur	10450	3204	94	7152	16511
3	Chittoor	13102	7335	139	5628	11737
4	East Godavari	10742	3239	19	7484	17625
5	Guntur	10654	3438	40	7176	15716
6	Karimnagar	11928	2549	17	9362	25596
7	Khammam	7886	728	35	7123	18509
8	Krishna	9904	2761	33	7110	17422
9	Kurnool	9446	1582	157	7707	15531
10	Mahabubnagar	13464	1794	10	11660	27208
11	Medak	10444	1416	10	9018	23707
12	Nalgonda	11686	1400	1	10285	25595
13	Nizamabad	7424	2301	24	5099	12907
14	Prakasham	10302	3024	32	7246	11571
15	Ranga Reddy	6518	819	13	5686	15446
16	SPSR Nellore	8834	3181	52	5601	12379
17	Srikakulam	10496	4986	29	5481	11902
18	Visakhapatnam	9214	2444	150	6620	15101
19	Vizianagaram	8764	2751	61	5952	12740
20	Warangal	9590	1440	27	8123	21572
21	West Godavari	9684	3309	20	6355	14737
22	YSR District	7724	3194	61	4469	9844
	Total	**216988**	**59955**	**1091**	**155942**	**367197**

ANNEXURE – XIX

STATE ELECTION COMMISSION
3rd Floor, Buddha Bhavan, M G Road, Secunderabad – 500 003

Lr.No.425/SEC-L/2011 **Dated : 08.06.2011**

NOTIFICATION

In exercise of the powers conferred under section 202 of Andhra Pradesh Panchayat Raj Act, 1994, and in supersession of all previous notifications on the subject, in relation to Gram Panchayats, the State Election Commission, hereby, notifies the free symbols to be allotted to the candidates contesting to the offices of Sarpanch and Ward Member in the elections to the Gram Panchayats in Annexure-I and Annexure-II respectively, to this notification.

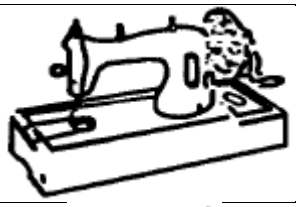
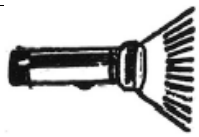
Under sub-rule (5) of rule 15 of Andhra Pradesh Panchayat Raj (Conduct of Election) Rules, 2006, the procedure for allotment of symbols to the contesting candidates for the offices of Sarpanch and Ward Members is also specified in the schedule appended to this notification.

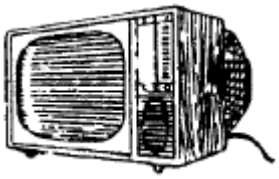
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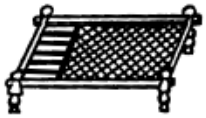
Sd/- G.M. Ramesh Kumar
Secretary

Annexure –I

List of Free Symbols for the Post of Sarpanch Gram Panchayat

S. No.	Symbols	
1	Basket బుట్ట	
2	Ring ఉంగరము	
3	Scissors కత్తెర	
4	Sewing Machine కుట్టుమిషను	
5	Bat బ్యాట్	
6	Slate పలక	
7.	Table బల్ల	
8	Battery Torch బ్యాటరీలైటు	

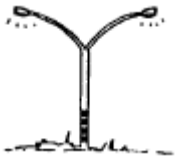
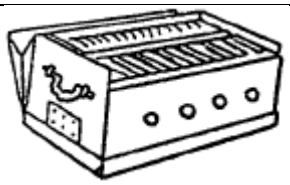
9	Brush బ్రష్	
10	Carrot క్యారట్	
11	Table Lamp టేబులుబల్బు	
12	Television దూరదర్శిని	
13	Walking Stick చేతి కర్ర	
14	Shuttle షటిల్	
15	Maize మొక్కజొన్న	
16	Nagara నగారా	

17	Comb దువ్వెన	
18	Cot మంచము	
19	Cup and Saucer కప్పు మరియు సాసరు	
20	Candles కొవ్వొత్తి	

Sd/- G.M. Ramesh Kumar
Secretary

Annexure -II

List of Free Symbols for the Post of Ward Member, Gram Panchayat

S. No.	Symbols	
1	Electric Pole కరెంటు స్తంభం	
2	Gas Stove గ్యాస్ పొయ్యి	
3	Harmonium హార్మోనియం	
4	Hat టోపి	
5	Iron ఇస్త్రీ పెట్టె	
6	Letter Box పోస్టు డబ్బా	
7	Fork ఫోర్కు	
8	Spoon చెంచా	

9	Jug జగ్గు	
10	Frock గౌను	
11	Stool స్టూలు	
12	Almairah బీరువా	
13	Pressure cooker ప్రెషర్ కుక్కరు	
14	Ice Cream ఐస్‌క్రీమ్	
15	Kettle కాటిల్	

Sd/- G.M. Ramesh Kumar
Secretary

SCHEDULE

PROCEDURE FOR ALLTOMENT OF SYMBOLS TO CONTESTING CANDIDATES

On the expiry of the time for withdrawal of candidature, the Returning Officer shall prepare in Telugu language a list of contesting candidates in Form IX separately for each ward and sarpanch under Rule 15 of the conduct of election rules and publish on the notice board of the office of the Gram Panchayat or in any conspicuous place if there is no office of the Gram Panchayat.

The list shall contain the names of the candidates in alphabetical order in Telugu and shall describe them as in their nomination paper.

The arrangement of names shall be on the basis of the first letter of the name of the candidate irrespective of whether the name given is the proper name or surname. The initials, if any, prefixed to the name of the candidate shall be ignored for the aforesaid purpose. If two candidates have the same name but different initials, then two names shall be arranged interse with reference to the first letter of the initial. Further, if two or more such candidates have the same name but different surnames then their names shall be arranged interse in the alphabetical order with reference to the surnames.

If two or more candidates bear the same name they should be distinguished by the addition of their occupation or residence or in some other manner. In the such contesting candidates, the names of such candidates shall be arranged in the order in which their nominations were received by the Returning Officer.

There will be no objection to the addition of any honorific, academic, hereditary, professional or any other title to the name of a candidate but such title should on no account be taken into consideration in the arrangement of names in alphabetical order.

The Returning Officer will serially allot the symbols from the list of free symbols notified by the State Election Commission to the contesting candidates for the office of Sarpanch or Ward Member, as the case may be.

In case of Sarpanch election, the first symbol in the list of free symbols notified for the office of Sarpanch should be allotted to first candidate in the list of contesting candidates for the office of Sarpanch and symbol at Sl. No. 2 to the second candidate in the list of contesting candidate and so on.

In case of Ward Member election, the first symbol in the list of free symbols notified for the office of Ward Member shall be allotted to the first candidate in the list of contesting candidates for the ward concerned and symbol at Sl.No.2 to the second candidate in the list of contesting candidates and so on. Similarly for other ward constituencies.

Sd/- G.M.Ramesh Kumar
Secretary

ANNEXURE – XIX(A)

STATE ELECTION COMMISSION
3rd Floor, Buddha Bhavan, M G Road, Secunderabad – 500 003

Lr.No.425/SEC-L/2011 **Dated : 17.07.2013**

NOTIFICATION

In exercise of the powers conferred under section 202 of Andhra Pradesh Panchayat Raj Act, 1994, and in continuation of this office notification No.425/SEC-L/2011, dt.08-06-2011, the State Election Commission, hereby, notifies the additional free symbols to be allotted to the candidates contesting to the offices of Sarpanch and Ward Member, Gram Panchayats in Annexure-I and Annexure-II respectively appended to this notification.

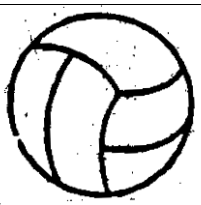
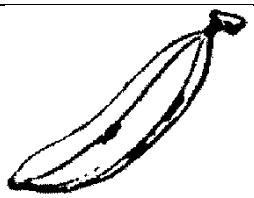
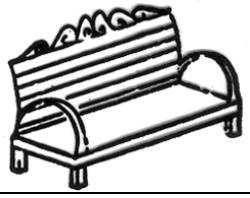
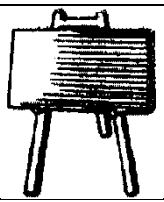
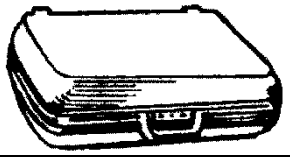
Sd/- P.RAMAKANTH REDDY
STATE ELECTION COMMISSIONER

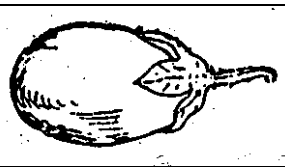
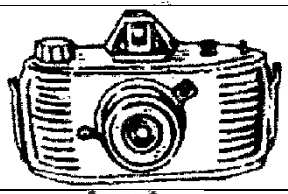
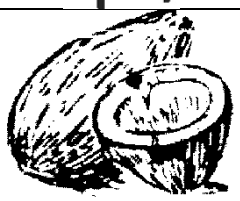
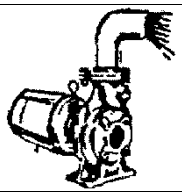
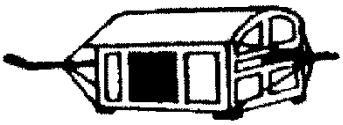
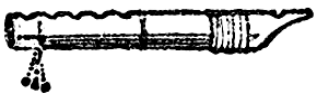
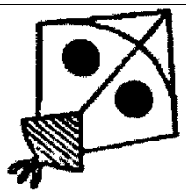
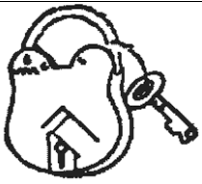
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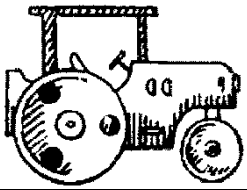
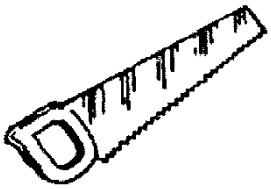
Note: The Additional free symbols notified in this notification shall be allotted to the contesting candidates for the office of Sarpanch in serial order from 21st candidate and for the office of the Ward Member in Serial Order from 16th candidate in the list of contesting candidates.

Annexure –I

List of additional Free Symbols for the Post of Sarpanch Gram Panchayat

Sl. No	*Symbol*	*Specimen Symbol*
1	Aeroplane విమానము	
2	Axe గొడ్డలి	
3	Ball బంతి	
4	Balloon గాలి బుడగ	
5	Banana అరటి పండు	
6	Bench బెంచి	
7	Biscuit బిస్కట్	
8	Black Board నల్ల బోర్డు	
9	Briefcase పెట్టె	

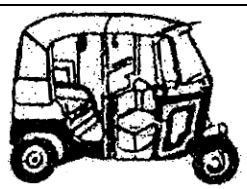
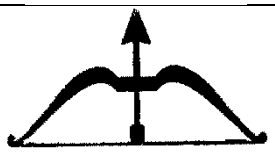
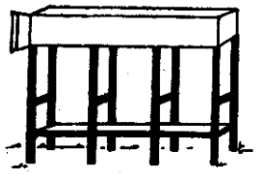
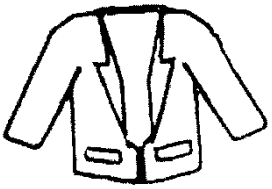
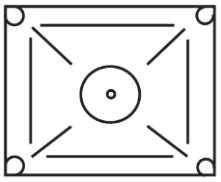
10	Brinjal వంకాయ	
11	Camera కెమెరా	
12	Chair కుర్చీ	
13	Coconut కొబ్బరి కాయ	
14	Diesel Pump డీజిల్ పంపు	
15	Dolli డోలి	
16	Door తలుపు	
17	Flute వేణువు	
18	Kite గాలి పటము	
19	Lady Purse లేడీ పర్సు	
20	Lock and Key తాళము మరియు చెవి	

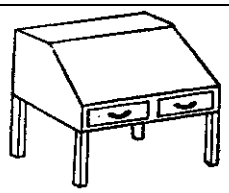
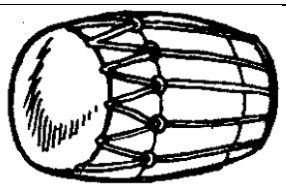
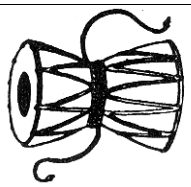
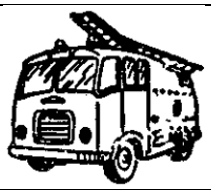
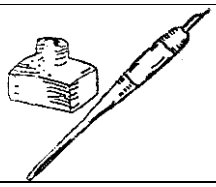
21	Mango మామిడి కాయ	
22	Pine Apple అనాస పండు	
23	Railway Engine రైలు ఇంజను	
24	Road Roller రోడ్డు రోలరు	
25	Saw రంపము	

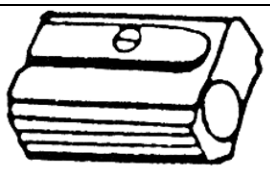
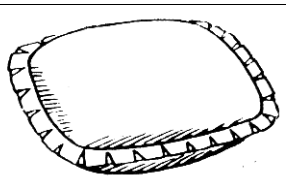
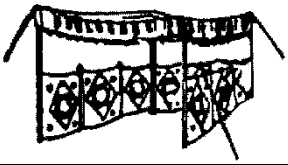
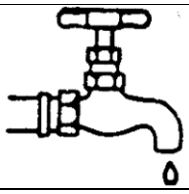
SD/- P.RAMAKANTH REDDY
STATE ELECTION COMMISSIONER

Annexure -II

List of additional Free Symbols for the Post of Ward Member, Gram Panchayat

1	Auto Rickshaw ఆటో రిక్షా	
2	Batsman బ్యాట్స్ మెన్	
3	Bread బ్రెడ్	
4	Belt బెల్టు	
5	Bow and Arrow విల్లు బాణము	
6	Bus stand బస్ స్టాండు	
7	Cake కేక్	
8	Coat కోటు	
9	Carrom Board క్యారంమ్ బోర్డు	

10	Desk వ్రాత బల్ల (డెస్క్కు)	
11	Dholak డోలక్	
12	Dumroo ఢమరుకం	
13	Fire Engine అగ్నిమాపక యంత్రం	
14	Fort కోట	
15	Fountain Pen పౌంటెన్ పెన్ను	
16	Gas Cylinder గ్యాస్ సిలిండరు	
17	Gum Bottle గమ్ బాటిల్	
18	Glass Jar గాజు కూజా (గ్లాస్ జార్)	
19	Glass Thumbler గాజు గ్లాసు	

20	Pencil Sharpener పెన్సిలు చెక్కుకునే సాధనం (పెన్సిల్ షార్పనర్)	
21	Pillow తలగడ	
22	Telephone దూరవాణి	
23	Tent టెంటు	
24	Violin వాయులీనము	
25	Water Tap నీటి కుళాయి	

Sd/P.RAMAKANTH REDDY
STATE ELECTION COMMISSIONER

ANNEXURE – XIX (B)

STATE ELECTION COMMISSION

3rd Floor, Buddha Bhavan, M G Road, Secunderabad – 500 003

CIRCULAR

No.784/SEC-B2/2013 **Dated:04.7.2013**

Sub:- 4th ordinary elections to Gram Panchayats, 2013 -Preparation of list of contesting candidates for the office of Sarpanch and Ward Member under rule 15 of the Conduct of Election Rules – Illustration – Issued – Reg.

Ref:- Notification No.757/SEC-B2/2013, dated:03.07.2013.

***

The State Election Commission issued notification for conduct of fourth ordinary elections to Gram Panchayats.

Under rule 15 of the APPR (Conduct of elections) Rules, 2006, issued in G.O.Ms.No.142, PR & RD (Elecs) Dept., dt:3.5.2006, on expiry of the time of withdrawal of candidature, the Returning Officer shall prepare a list of contesting candidates in Form IX separately for each ward and for the office of Sarpanch and publish it on the notice board of the office of the Gram Panchayat or in any conspicuous place if there is no office of the Gram Panchayat.

The list shall contain the names of the candidates in alphabetical order in Telugu and shall describe them as in their nomination paper.

The arrangement of names shall be on the basis of the first letter of the name of the candidate irrespective of whether the name given is the proper name or surname. The initials, if any, prefixed to the name of the candidate shall be ignored for the aforesaid purpose. If two candidates have the same name but different initials, then two names shall be arranged interse with reference to the first letter of the initial. Further, if two or more such candidates have the same name but different surnames then their names shall be arranged interse in the alphabetical order with reference to the surnames.

If two or more candidates bear the same name they should be distinguished by the addition of their occupation or residence or in some other manner. In the list of contesting candidates, the names of such

candidates shall be arranged in the order in which their nominations were received by the Returning Officer.

To facilitate the Returning Officer to prepare the list of contesting candidates properly, the following illustration is issued with regard to preparation of list of contesting candidates in alphabetical order in Telugu under rule 15.

Illustration:

The names of contesting candidates as they described them in their nomination paper for the office of Sarpanch/Ward Member of a Gram Panchayat are given below –

1. Akella Sarada.
2. Alivelu Tatineni.
3. T.K.Reddy.
4. Bandaru Rama Rao.
5. T.K. Narasiah.
6. Indugu Rama Rao.
7. G.V.Sai Prasad.
8. K.V.Sai Prasad.

The order of their names in the list of contesting candidates in Form IX, shall be as given below –

1. అలివేలు తాతినేని	(based on the first letter of her surname which is the first letter of her name)
2. ఆకెళ్ళ శారద	(based on the first letter of her proper name which is the first letter of her name)
3. ఇండుగు రామారావు	(based on the first letter of his surname name which is the first letter of his name)
4. టి.కె. ఎరసయ్య	(based on the first letter of his proper name ignoring the initials)
5. బండారు రామారావు	(Based on the first letter of his surname which is the first letter of his name)
6. టి.కె. ండ్డి	(based on the first letter of his proper name ignoring the initials)
7. కె.వి. సాయిప్రసాద్	(Since both 7 & 8 have the same proper names but different initials their names are arranged in the entire list based on the first letter of their proper names and between the two of them based on the first letter of their initials)
8. జ.వి. ఎాయిప్రసాద్	

In case of Sarpanch election and Ward Member election, the symbols to be allotted to them in serial order are given below-

వరుస సంఖ్య	అభ్యర్థి పేరు	సర్పంచు ఎన్నిక విషయంలో కేటాయించదగు గుర్తు (సింబల్)	వార్డు సభ్యుని ఎన్నిక విషయంలో కేటాయించదగు గుర్తు (సింబల్)
1.	అలివేలు తాతినేని	బుట్ట	కరెంటు స్తంభం
2.	ఆకెళ్ళ శారద	ఉంగరము	గ్యాస్‌పొయ్యి
3.	ఇండుగు రామారావు	కత్తెర	హార్మోనియం
4.	టి.కె. నరసయ్య	కుట్టుమిషను	టోపీ
5.	బండారు రామారావు	బ్యాట్	ఇస్త్రీపెట్టె
6.	టి.కె. ండ్డి	పలక	పోస్టు డబ్బా
7	కె.వి. సాయిప్రసాద్	బల్ల	ఫోర్కు
8.	జ.వి. సాయిప్రసాద్	బ్యాటరీలైట్	చెంచా

Sd/- Navin Mittal
Secretary

To
All the Collectors & District Election Authorities.
All the District Panchayat Officers in the State.
All the Returning Officers.

ANNEXURE – XX

MODEL CODE OF CONDUCT
FOR LOCAL BODY ELECTIONS
2013

STATE ELECTION COMMISSION,
Andhra Pradesh,
Hyderabad.

3rd floor, Buddha Bhavan, M.G. Road,
Secunderabad - 500 003.

MODEL CODE OF CONDUCT FOR LOCAL BODY ELECTIONS:

Under Articles 243-K and 243 ZA of the Constitution of India and all other powers hereunto enabling, the State Election Commission, hereby, issues the following code of conduct to be followed in order to ensure free, fair and peaceful elections to Gram Panchayats, Mandal Parishads, Zilla Parishads, Nagar Panchayats, Municipalities, and Municipal Corporations in the state of Andhra Pradesh.

Applicability and area of enforcement:

1. (a) The Code shall be known as the Code of Conduct for local body elections.
   (b) It shall apply to political parties, contesting candidates, Ministers, employees of the State Government and local bodies and other public servants connected with local body elections.
2. This Code shall come into force from the time elections are announced by the State Election Commission and shall remain in force till the completion of the election process.
3. The words and expression used in this Code shall have the same meaning as assigned to them under A.P. Panchayat Raj Act, 1994, A.P. Municipalities Act, 1965 and Greater Hyderabad Municipal Corporation Act, 1955, and the rules framed thereunder.

3(A) When ordinary elections are notified either for the Rural Local Bodies or for the Urban Local Bodies located in the entire State, the Model Code of Conduct is applicable for the entire State.

3 (B) When elections are notified to a limited number of casual or ordinary vacancies in the Local Bodies, otherwise than State-wide ordinary elections, the area of applicability or enforcement of Model Code of Conduct shall be as follows:-

ZPTC Member: When election is notified to a ZPTC, the Model Code of Conduct shall be applicable for the **entire area of the Revenue Division** in which the ZPTC is located.

MPTC Member: When election is notified for an MPTC, the Model Code of Conduct shall be applicable for the **entire area of the Mandal Parishad** in which the MPTC is located.

Sarpanch or Ward Member(s) of a Gram Panchayat or for both: When the election is notified for the office of Sarpanch or Ward Member(s) of a Gram Panchayat or for both, the Model Code of Conduct shall be applicable for the **entire area of that Gram Panchayat**.

Member of a Municipality / Nagar Panchayat: When election is notified to the office of Member of a Municipality / Nagar Panchayat, the Model Code of Conduct shall be applicable for the **entire area of that Municipality or Nagar Panchayat**.

Member of a Municipal Corporation: When election is notified to the office of Member of a Municipal Corporation, the Model Code of Conduct shall be applicable for the **entire area of that Municipal Corporation**.

I. General Conduct

1. No party or candidate shall indulge in any activity which may aggravate existing differences or create mutual hatred or cause tension between different castes and communities, religions or languages.
2. There shall be no appeal to Religion, Communal or Caste feelings for securing votes.
3. Places of worship such as Temples, Mosques, Churches, etc., shall not be used as forum for election propaganda.
4. No criticism of any aspect of candidates private life which is not connected with his public life shall be made nor any allegation be made which are based on unverified facts or incidents.
5. Criticism of a political party, when made, shall be confined to its policies and programmes, past record and works and shall not be based on unverified allegations.
6. Organising demonstration or picketings before the houses of individuals by way of protesting against their opinion or activity shall not be resorted to under any circumstances.
7. No party or candidate shall permit their followers for using any private property / public property for erecting flag staffs, pasting notices, posters or slogans etc., or suspending banners without written permission from the owner / competent authority of the property concerned. Further, a copy of such written permission shall forthwith be sent to the Election Officer / District Election Authority.
8. No candidate or his workers shall remove or deface the flag erected or posters pasted by another candidate or political party.
9. All parties and candidates shall scrupulously avoid all activities which are corrupt practices and offences under the Election Law such as:

   (i) To appeal for vote or not to vote on the basis of religion, caste or community and to use any religious symbol for soliciting votes.
   (ii) To print or publish any poster, pamphlet, leaf-let, circular or advertisement without mentioning the name and address of the printer and the publisher.
   (iii) To publish a statement or news item which is false or not believed to be true with respect to a candidate's personal conduct or character with a view to adversely affect the prospect of his or her election.
   (iv) To obstruct or disturb any election meeting organised by another political party or candidate.
   (v) To take out processions or hold public meetings during the period of:-

      (a) forty-eight hours ending with the hours fixed for the close of the poll in the case of Municipal Corporations, Municipalities and Nagar Panchayats.
      (b) Forty-eight hours prior to the hour fixed for the conclusion of poll in the case of elections to Zilla Parishads and Mandal Parishads.
      (c) Forty-four hours prior to the hour fixed for the conclusion of poll in the case of elections to Gram Panchayats.

   (vi) To bribe or offer reward in any form to voters.
   (vii) To canvas or to appeal for votes within hundred meters of a polling station.
   (viii) To use any conveyance or means of transport for the voters to or from the polling station.

(ix) To behave in an unruly manner within or near about the polling station or to obstruct a polling officer in the discharge of his duty.

(x) To impersonate a voter or attempt to cast vote under the false name of voter.

10. The carrying of effigies purporting to represent members of other political parties or their leaders, burning such effigies in public and such other forms of demonstration shall not be countenanced by any political party or candidate.

II. Meetings

1. No party or candidate shall hold public meetings or processions without obtaining necessary permission from the competent Local Authorities.

2. No party or candidate shall use loud speakers without obtaining necessary permission from the Competent Authority and shall not use the loud speaker for purposes other than transmitting speeches, live or recorded. The loud speakers shall not be used to transmit music or songs. The loud speakers shall be used only between 06.00 AM and 10.00 PM The Police are authorised to seize the offending equipment if any body violates the same. The political parties and candidates shall endeavor to see that no disturbance is caused in the vicinity of hospitals due to electioneering to avoid inconvenience to the patients.

3. While granting permission for organising an Election Meeting at a Public place, no distinction should be made between the candidates or the political parties. In case more than one candidate or party requests for holding meeting at the same place and the same date and time, the permission should be granted to such candidate or party who applies first.

III. Processions

1. A party or candidate organizing a procession shall decide before hand the time and place of the starting of the procession, the route to be followed and the time and place at which the procession will terminate. There shall ordinarily be no deviation from the programme.

2. The organizers of the procession shall give advance intimation to the local police authorities of the programme so as to enable the latter to make necessary arrangements.

3. The organizers shall ascertain if any restrictive orders are in-force in the localities through which the procession has to pass and shall comply with the restrictions unless exempted specialty by competent authority. Any traffic regulations or restrictions shall also be carefully adhered to.

4. The organizers shall take steps in advance to arrange for passage of the procession so that there is no block or hindrance to traffic. If the procession is very long, it shall be organized in segments of suitable lengths, so that at convenient intervals, especially at points where the procession has to pass road junctions, the passage of held up traffic could be allowed by stages thus avoiding heavy traffic congestion.

5. Processions shall be so regulated as to keep as much to the right of the road as possible and the direction and advice of the police on duty shall bed strictly complied with.

6. If two or more political parties or candidates propose to take processions over the same route or parts thereof at about the same time, the organizers shall establish contact well in advance and decide upon the measures to be taken to see that the processions do not clash or cause hindrance to traffic. The assistance of the local police shall be availed of for arriving at a satisfactory arrangement. For this purpose, the parties shall contact the police at the earliest opportunity.

7 The political parties or candidates shall exercise control to the maximum extent possible in the matter of processionists carrying article which may be put to misuse by undesirable elements, especially in moments of excitement.

IV. Polling Day

1. On the polling day, all political parties and candidates shall :-

   (a) Supply to their authorized workers suitable badges or Identity cards

   (b) Refrain from serving or distributing liquor within the polling area during the period of forty-eight hours prior to the hour fixed for conclusion of the poll in the case Zilla Parishads and Mandal Parishads and forty-four hours prior to the hour fixed for conclusion of the poll in the case of Gram Panchayats and also on the counting day.

   (c) Not allow unnecessary crowds to be collected near the camps set by the political parties and candidates near the polling stations so as to avoid confrontation and tension among workers and sympathizers of the parties and candidates.

   (d) Co-operate with the authorities in complying with the restrictions to be imposed on the plying of vehicles on the polling day and obtained permits for them which should be displayed prominently on those vehicles.

2. The identity slips given to voters shall be on plain (white) papers and shall not contain any symbol or name of the candidate. The name of the voter, his father's/husband's name, ward number, polling booth number and the serial number of the voter in the electoral roll shall only be written on the identity slip.

3. Every candidate and the political party shall co-operate with the Officers on Election Duty to ensure peaceful and orderly polling.

V. Polling Booth

Excepting the voters, no one without a valid pass from the State Election Commission shall enter the polling booths.

VI. Observers

The State Election Commission is appointing Observers. If the candidates or their agents have any specific complaint or problem regarding the conduct of elections they may bring the same to the notice of the Observer.

VII. Expenditure

1. No contesting candidate shall incur the election expenditure in excess of the expenditure fixed by the State Election Commission, by notification
2. The contesting candidate shall maintain day-to-day expenditure record in the prescribed proforma which will be supplied to him free of cost on the date of acceptance of his candidature.
3. Every contesting candidate shall, within 45 days of announcement of results, submit the election expenditure account in the prescribed proforma to the District Election Authority.

VIII. Party in Power

1. A Public Servant shall remain absolutely impartial during the elections and he shall not indulge in any campaigning activity for or against any contesting candidate or political party.

2. A Public Servant shall not participate or accompany the Minister in any programme, organised at an individual's house for which the Minister has accepted the invitation during his election tour.

3. Public places such as maidans etc. for holding election meetings and use of helipads for air flights in connection with elections shall not be monopolized by party in power. Other parties and candidates shall be allowed to use such places and facilities on the same terms and conditions on which they are used by the party in power.

4. Use of rest houses, circuit houses and other Government accommodation should be permitted to all the candidates and the political parties on the same terms and conditions on which it is permissible for party in power. However, no candidate or party should be allowed to use such building or its campus for the purpose of election propaganda.

5. No contesting candidate, who is in-charge of, or is in any manner connected with, the management of an aided educational institution, or any other institution receiving aid from the State or Central Government, shall, misuse the buildings, infrastructure, staff, funds or vehicles belonging to such institution for furthering his/her electoral prospects.

6. Ordinarily, all meetings organised during election should be treated as election meetings and no Government money should be spent on them. No Government servant should attend any such meeting except those who are incharge of maintenance of law and order or those deployed for security duties.

    (i) If a Minister undertakes a tour of any area of a District where elections are taking place, such tour shall be deemed to be an election tour and no Government servant, except those who are deployed for security purposes, shall accompany the Minister. No Government vehicles or any other facility shall be made available for such tour.

(ii) No vehicles belonging to Government or local bodies or public undertakings or co-operative institutions or any other institutions receiving Government grants shall be provided to any Minister, Member of the Parliament or the Legislative Assembly or a candidate for canvassing in election in any manner from the date of notification of election to the date of announcement of the results.

7. The Ministers shall not combine their official visit with electioneering work and shall not make use of official machinery and personnel or other Government resources including Government vehicle for furtherance of interests of any candidate.

8. From the time elections are announced by the Commission, Ministers and other authorities –

(a) shall not sanction grants/payments out of State funds or discretionary funds;

(b) shall not announce any financial grants or new schemes or projects in any form or promises thereof;

(c) shall not sanction any new scheme or project or works.

(d) shall not lay foundation stones etc., of projects or schemes of any kind;

9. From the time the elections are announced by the State Election Commission Ministers and other authorities shall not :-

(a) Make any ad-hoc appointments in Government, Public undertakings etc. which may have the effect of influencing voters in favour of the party in power.

(b) Make any promise of construction of roads, provision of drinking water facilities etc.

10. Ministers of Central or State Governments shall not enter any polling station or place of counting except in their capacity as a candidate or voter or authorised agent. A Minister, who is a recipient of any form of security cover by the State, shall not be appointed as election agent or polling agent or counting agent as his personal security cannot be jeopardized with such appointment because his security personnel will not be permitted to accompany him into the polling station or counting hall.

11. Issue of advertisement at the cost of public exchequer in the news paper and other media during the election period for partisan coverage intended to furthering the prospects of the party in power shall be scrupulously avoided.

IX. Prosecution

1. The violation of these provisions is punishable under various laws.

2. The District Election Authority, Deputy District Election Authority, Additional District Election Authority and the Police are authorized to initiate prosecution against violators of this Code before the Competent Criminal Courts under intimation to the State Election Commissioner.

P. RAMAKANTH REDDY
STATE ELECTION COMMISSIONER

ANNEXURE – XXI

STATE ELECTION COMMISSION

3rd Floor, Buddha Bhavan, M.G. Road, Hyderabad-500003, A.P.

CIRCULAR

No.757/SEC-B2/2013 **Date: 31.7.2013**

Sub: State Election Commission – 4th Ordinary elections to Gram Panchayat – Model Code of Conduct – Cease to be in force w.e.f. 31.7.2013 midnight – Reg.

Ref: SEC Notification No. 757/SEC-B2/2013, dated 03.07.2013.

***

The State Election Commission issued Notification cited on 03.07.2013 for conduct of ordinary elections to Gram Panchayat in the State in 3 Phases on 23.07.2013, 27.7.2013 and 31.7.2013. The Model Code of Conduct came into force from the date of announcement of elections on 03.7.2013. The election process is going to be completed on 31.7.2013 in the entire State, except a few Gram Panchayats where the election process has been renotified or altered due to various reasons such as heavy rains and floods, death of contesting candidates, snatching away of nomination papers, erroneous supply of ballot papers, erroneous list of contesting candidates, law and order problems, etc. In those few Gram Panchayats, the election process will be completed by 13.8.2013.

The State Election Commission decided that the Model Code of Conduct shall cease to be in force with effect from 31.7.2013 midnight. However, in respect of those Gram Panchayats for which the election process has been renotified / altered, the Model Code of Conduct shall be enforced within the jurisdiction of those Gram Panchayats only till the completion of election process in the respective Gram Panchayats.

Sd/- P. Ramakanth Reddy
State Election Commissioner

To

The Chief Secretary to Government, AP, Hyderabad.
The Director General of Police, AP, Hyderabad.
All the Collectors & District Election Authorities.
All the Superintendents of Police / Commissioners of Police.
All the District Panchayat Officers.

ANNEXURE – XXII

STATE ELECTION COMMISSION

3rd Floor, Buddha Bhavan, M G Road, Hyderabad – 500 003, A.P.

P. Ramakanth Reddy, IAS (Retd)
State Election Commissioner

Off: 27544500, 27535858
Fax:27544580, 27544428
E-mail: secy_apsec@ap.gov.in
Website: www.apsec.gov.in

Lr. No.718/SEC-B2/2013-3, **Dated:26.06.2013.**

To
All the Collectors and District Election Authorities.

Sir,

Sub:- State Election Commission – Elections – 4th ordinary elections to Gram Panchayats, 2013 – Zonal Officers – Magisterial powers - Conferment of Magisterial powers on Zonal Officers and formation of mobile teams to oversee implementation of Model code of conduct and poll process - Reg.

***

The 4th ordinary Elections to Gram Panchayats are scheduled to be held shortly. The State Election Commission has already issued instructions for appointment of Zonal Officers in connection with conduct of the said elections.

The State Election Commission felt it expedient to constitute mobile teams headed by the competent officers to be in the field to observe and report instances of electoral offences and election malpractices and to send reports on a day to day basis which will act as valuable inputs in smooth conduct of elections.

The District Collectors are requested to constitute mobile teams headed by the Zonal Officers (preferably a Gazetted Officer) supported by one Sub-Inspector of Police and two constables and a videographer to oversee the implementation of Model Code of Conduct in the area allotted to him from the date of publication of final list of contesting candidates till the completion of the campaign period i.e., 48 hours before the hour fixed for conclusion of poll. The mobile team shall send daily report on law and order situation in the area and also any instances of violation of Model Code of Conduct to the District Collector who will in turn send a consolidated

daily report to the State Election Commission under copy to the Observers concerned during the above period.

The same mobile team headed by Zonal Officer shall oversee the poll arrangements on pre-poll day and on the poll day. The mobile team shall send reports to the Returning Officers regarding poll process and percentage of poll on the poll day.

The District Collectors are, therefore, requested to send proposals directly to the Government in Home Department to confer magisterial powers on Zonal Officers as was done during last two ordinary elections. The State Election Commission further addressed the Principal Secretary to Government, Home Department and also the Secretary to Government (LA & J), Law Department, A.P. Secretariat, in the matter vide letter No.718/SE C-B2/2013 dated .06.2013.

Sd/- P.Ramakanth Reddy
State Election Commissioner

Copy to:
All Superintendents of Police.
The Director General of Police, Hyderabad.
The Principal Secretary to Government, General Administration (Protocol) Department.
The Principal Secretary to Government, PR & RD Department.
The Commissioner of Panchayat Raj & Rural Employment.
All the District Panchayat Officers.
All the Observers through the Collector & District Election Authority.

ANNEXURE – XXIII

STATE ELECTION COMMISSION

3rd Floor, Buddha Bhavan, M G Road, Secunderabad – 500 003

Circular No.169/SEC-B1/2011 **Dated:13.05.2011**

C I R C U L A R

Sub:- A.P. SEC. Fourth Ordinary elections to Panchayat Raj Bodies, 2011– Maintenance of Law and Order and prevention of electioneering within the prohibited area around polling stations – Instructions regarding setting up of Election Booths – Reg.

The State Election Commissioner in exercise of the powers conferred under Section 219 of APPR Act 1994 and in the interest of conducting the elections in peaceful manner and to avoid any untoward incidence, the following instructions are issued with regard to setting up of election booths for a candidates on the date of polling beyond a distance of 200 meters from the polling station.

(1) No booth shall be set up within a distance of 200 metres from the polling station. Even where more than one polling station has been set up in the same polling station location or premises, there shall be only one booth of a candidate for such group of polling stations beyond a distance of 200 meters from such premises.

(2) Only one table and two chairs shall be provided at each of such booths with an umbrella or a piece of tarpaulin or cloth to protect the two occupants of those chairs at the booth from weather conditions, such booth shall not be enclosed by tentage, etc.

(3) Each candidate wishing to set up such booths shall intimate, in writing, in advance, to the Returning Officer, the names and Sl. Nos, of the polling stations where such booths are proposed to be set up by him. He shall also obtain the written permission of the concerned local authorities. Such a written permission must be available with the persons manning the booth for production before the police / election authorities concerned on demand.

(4) Such booths shall be used only for the sole purpose of issuing unofficial identity slips to electors. These unofficial identity slips shall be printed strictly in accordance with the instructions of the Commission on the subject on white paper without the name or symbol of the candidate or the name of the political party .

(5) Only one banner to display the name of the candidate, his party and the election symbol allotted to him shall be allowed of each such booth, provided that such banner shall not be more than 3 feet by 4 ½ feet in breadth and length. Any banner set up in violation of this restriction will be removed by authorities maintaining the law and order.

(6) No crowds shall be allowed to collect at such booths under any circumstances, nor shall any person who has already cast his vote at the polling station be allowed to come to the booth. This would be evident from the indelible ink mark on his left forefinger or any other finger as specifically prescribed for that election for the constituency in which the polling station is located.

(7) The persons manning the booths shall not cause any obstruction whatsoever in the way of voters proceeding to the polling stations or prevent them from going to the booths of other candidates or create any other sort of hurdles whatsoever in the right of voters to exercise their franchise according to their own free will. More specifically, no voter shall be influenced in any way whatsoever to either come and collect the unofficial identity slip from the particular booth or if he comes to such booth of his own accord to vote in favour of or against any party / candidate contesting the election.

(8) No person shall be allowed to either carry or use cellular phones, cordless phones, wireless sets, etc., in the 100 meter perimeter of the polling stations described as the " Polling Station Neighborhood " and within the polling booth. Similarly, no person shall be allowed to carry or use such instruments in the area within and around the counting center or within the area cordoned off by the security forces to regulate the entry of persons to such Counting Halls and Centres. If any person is found in possession of such instrument in violation of these directions, the instrument shall be seized by the officers in charge of security and shall be returned to the person concerned only after the counting of votes is completed and results are declared. These restrictions, however, do not apply to the officers in charge of law and order and security personnel put on duty near the polling booths and counting centers who may be using any of such instruments in the course of the discharge of their official duties. Similarly, these restrictions do not apply to the Observers appointed by the Commission and to the officers incharge of polling duty and counting duty who may have to use such instructions in the course of their official duties.

(9) The Commission hereby warns all concerned that any violation of the above directions will be viewed by the Commission with the utmost gravity and most stringent action possible under the law, including but not restricted to the removal of such booths forthwith will be taken against the candidates and / or their agents / workers responsible for any such violations.

(10) If any officer is found to have failed to take prompt and expeditious action to ensure the strict compliance of the above mentioned directions, he will render himself liable to strict disciplinary action apart from any penal action as may be called for against him for failure to discharge the official duty.

(BY ORDER AND IN THE NAME OF THE STATE ELECTION COMMISSIONER)

Sd/- Dr. G.M.Ramesh Kumar
Secretary

To

1. All District Collectors in the State.
2. All Superintendents of Police in the State.
3. The Director General of Police, Hyderabad.

Copy to the

All the Chief Executive Officer, Zilla Praja Parishad.
All the District Panchayat Officers in the state
The Commissioner of Panchayat Raj and Rural Employment, A.P., Hyderabad

ANNEXURE – XXIII(A)

STATE ELECTION COMMISSION
3rd Floor, Buddha Bhavan, M G Road, Secunderabad – 500 003

Dr. G.M. Ramesh Kumar
Secretary (FAC)

Office: 27545350, 27543122
E-mail: apsec@ap.gov.in
Website: www.apsec.gov.in

C I R C U L A R

Cir.No.170/SEC-B1/2011 **Dated:19.05.2011**

Sub: A.P. SEC. Fourth Ordinary elections to Panchayat Raj Bodies, 2011– Ban on electioneering in electronic media 48 hours before the hour fixed the close of poll in case of election Mandal Praja Parishad and Zilla Praja Parishad and 44 hours before the hour fixed for close of poll in case of Gram Panchayat elections – Instructions – Issued.

* * *

Under the section 214 of the APPR Act, 1994 electioneering should be stopped in the polling area during the period of 48 hours ending with the hour fixed for the conclusion of the poll in case of elections to Mandal Praja Parishad and Zilla Praja Parishad and 44 hours ending with hour fixed with conclusion of poll in case of Gram Panchayat Elections. Therefore, the election propaganda should be stopped at hour specified above.

It is brought to the notice of all the political parties, contesting candidates and Collectors, Superintendents/Commissioners of Police and also the officials of the Information and Public Relations Department that the **"display to the public any election matter by cinematography, television or other similar apparatus or to propagate any election matter to the public by holding or by arranging the holding of any musical concert or any theatrical performance or any other entertainment or amusement with a view to attracting the members of the public thereto in any polling area during the period of 48 hours ending with the hour fixed for the conclusion of the poll in case of Mandal Praja Parishad and Zilla**

Praja Parishad elecitons and 44 hours ending with the hour fixed for the conclusion of the poll in the case of Gram Panchayat elections" is also prohibited by the said section.

Therefore, any television channel violating the said provision is liable for prosecution under section 214 of APPR Act, 1994. **It may also be emphasised that violation of this is an offence under the said sections which is punishable with imprisonment for a term which may extend to two years or with fine or both.**

The Commissioner, Information and Public Relations is specially requested to bring the provisions of law to the notice of the media immediately after issue of the notification by the State Election Commission. The Collectors, Superintendents of Police and the Commissioner, Information and Public Relations are requested to see that the said provision of law is strictly enforced during ensuing elections to PR bodies.

(BY ORDER AND IN THE NAME OF THE STATE ELECTION COMMISSIONER)

Sd/- Dr. G.M.Ramesh Kumar
Secretary

To
The Commissioner, Information & Public Relations Department, Hyd.
All Collectors & District Election Authorities.
All Superintendents of Police/Commissioners of Police.
All Returning Officers through the District Election Authorities.

Copy to: All Observers.
All Political parties

ANNEXURE – XXIII(B)

STATE ELECTION COMMISSION
3rd Floor, Buddha Bhavan, M G Road, Secunderabad – 500 003

No.171/SEC-B1/2011 **Dated:13.05.2011.**

O R D E R

Sub:- A.P. SEC. Fourth Ordinary elections to Panchayat Raj Bodies, 2011 – Restrictions on use of Cellular Phones in the vicinity of polling stations and counting centres – Reg.

* * *

In order to maintain law and order and prevent electioneering within the prohibited area in and around the polling stations and counting centers during 4th ordinary elections to PR bodies, 2011 the State Election Commission, hereby, directs that no person shall be allowed to either carry or use cellular phones, cordless phones, wireless sets, etc., in the 100 meter perimeter of the polling stations described as the "Polling Station Neighborhood" and within the polling stations. Similarly, no person shall be allowed to carry or use such instruments in the area within and around the counting center or within the area cordoned off by the security forces to regulate the entry of persons to such Counting Halls and Centres. If any person is found in possession of such instrument in violation of these directions, the instrument shall be seized by the officers in charge of security and shall be returned to the person concerned only after the counting of votes is completed and results are declared.

These restrictions, however, do not apply to the officers in charge of law and order and security personnel put on duty near the polling stations and counting centres who may be using any of such instruments in the course of the discharge of their official duties. Similarly, these restrictions do not apply to the Observers appointed

by the Commission and to the officers in-charge of polling duty and counting duty who may have to use such instruments in the course of their official duties.

(BY ORDER AND IN THE NAME OF THE STATE ELECTION COMMISSIONER)

Sd/- Dr. G.M.Ramesh Kumar
Secretary

To

1. All District Collectors in the State.
2. All Superintendents of Police in the State.
3. The Director General of Police, Hyderabad.

Copy to the

All the Chief Executive Officer, Zilla Praja Parishad.
All the District Panchayat Officer,
The Commissioner of Panchayat Raj and Rural Employment, A.P., Hyderabad. All the Election observers

ANNEXURE – XXIII(C)

STATE ELECTION COMMISSION
3rd Floor, Buddha Bhavan, M G Road, Secunderabad – 500 003

No.172/SEC-B1/2011, **Dated:13.05.2011**

CIRCULAR

Sub:- A.P. SEC. Fourth Ordinary elections to Panchayat Raj Bodies, 2011- Ministers, MPs MLAs and MLCs having security cover shall not be appointed as Election Agents or Polling Agents or Counting Agents – Instructions – Issued.

*** * ***

The Commission wishes to bring to the notice of all concerned the provisions of Section 221 B of the APPR Act, 1994 which states that, except those expressly permitted by the said section, no one else carries any arms or indulges in show of arms in polling stations or in their vicinity (an area within a radius of 100 metres from the polling booth), so that the conduct of elections can take place in a free and fair manner without any intimidation of voters, or threat perception to them or they being overawed by large posse of security personnel carrying arms.

To facilitate the understanding of the issue, an extract of the section referred to in the above paragraph, is given below;

Section221B: "Prohibition of going armed to or near a polling station---

(1) No person other than a Police Officer and any other person appointed to maintain peace and order at a polling station who is on duty at the polling station, shall, on a polling day, go armed with arms, as defined in the Arms Act, 1959, of any kind within the neighbourhood of a polling station.

(2) If any person contravenes the provisions of sub-section (1), he shall be punishable with imprisonment for a term which may extend to two years or with fine or with both.

(3) An offence punishable under sub-section (2) shall be cognizable."

It is seen from time to time that during the poll process, candidates and / or supporters of candidates, who are recipients of security extended to them by the State authorities, enter polling stations or go within the neighbourhood thereof accompanied by their security personnel. This amounts to contravention of the Provisions laid down in Section 221 B of the APPR Act, 1994.

The State Election Commission therefore, directs that, no person, who is provided with any form of security from any quarter, should enter into any polling station or go within its neighbourhood, accompanied by such security personnel. Neighbourhood of a polling station should be construed to mean an area within a radius of 100 metres from the polling station, on the analogy of Section 219 of the APPR Act, 1994. The security agencies in charge of extending security must therefore, recast security plans accordingly. It would be the duty of those in charge of the election to ensure that the provisions of the above quoted Section 221 B of the APPR Act, 1994 are strictly enforced and no security personnel attached to any person (i.e., any candidate, any of his agents, workers, supporters, or even any elector) enter into any polling station or are found in the neighbourhood of the polling station. The same restrictions should also apply in relation to entry into counting centers and in the neighborhood of the counting centers.

Therefore, a Minister, MP or MLA or MLC or any person who is recipient of any form of security cover by the State shall not be appointed as an Election Agent or Polling Agent or Counting Agent as his personal security shall be jeopardized with such appointment, because his security personnel will not be permitted to accompany him into the polling station or counting hall.

(BY ORDER AND IN THE NAME OF THE STATE ELECTION COMMISSIONER)

Sd/- Dr. G.M.Ramesh Kumar
Secretary

To

All the Collectors and District Election Authorities.
All the Returning Officers through the District Election Authorities in the State.

Copy to:

All the Chief Executive Officers of Zilla Praja Parishad

All the District Panchayat Officers

All the Superintendent of Police concerned.
All Recognised and Registered Political Parties
All the Election observers.

ANNEXURE – XXIII(D)

STATE ELECTION COMMISSION
3rd Floor, Buddha Bhavan, M.G.Road, Secunderabad - 500 003.

No.174/SEC-B1/2011, **Dt:27.5.2011**

ORDER

Sub:- A.P. SEC – Fourth Ordinary elections to Panchayat Raj Bodies, 2011 – Restrictions on the printing of pamphlets, posters, etc. – Orders – Issued.

***

The printing and publication of election pamphlets, posters, etc., is governed by the provisions of Section 216 of APPR Act, 1994, which reads as follows:-

Restrictions on the printing of pamphlets, posters, etc.

1. No person shall print or publish, or cause to be printed or published, any election pamphlet or poster which does not bear on its face the names and addresses of the printer and the publisher thereof.
2. No person shall print or cause to be printed any election pamphlet or poster:-
   (a) Unless a declaration as to the identity of the publisher thereof, signed by him and attested by two persons to whom he is personally known, is delivered by him to the printer in duplicate; and
   (b) Unless, within a reasonable time after the printing of the document, one copy of the declaration is sent by the printer, together with one copy of the document:-
      (i) Where it is printed in the capital of the State, to the State Election Commissioner. and
      (ii) In any other case, to the District Magistrate of the district in which it is printed.
3. For the purposes of this section:-

(a) any process for multiplying copies of a document, other than copying it by hand, shall be deemed to be printing and the expression "printer" shall be construed accordingly; and

(b) "election pamphlet or poster" means any printed pamphlet, hand-bill or other document distributed for the purpose of promoting or prejudicing the election of a candidate or group of candidates or any placard or poster having reference to an election, but does not include any hand-bill, placard or poster merely announcing the date, time place and other particulars of an election meeting or routine instructions to election agents or workers.

4. Any person who contravenes any of the provisions of sub-section(1) or sub-section(2) shall be punishable with imprisonment for a term which may extend to six months, or with fine which may extend to two thousand rupees, or with both".

2. The above restrictions on the printing of election pamphlets, posters, etc., have been imposed under the law with a view to establishing the identity of publishers and printers of such documents, so that if any such document contains any matter or material which is illegal, offending or objectionable like appeal on ground of religion, race, caste, community or language or character assassination of an opponent, etc,. necessary punitive or preventive action may be taken against the persons concerned. These restrictions also sub-serve the purpose of placing a check on the incurring of unauthorized election expenditure by political parties, candidates and their supporters on the printing and publication of election pamphlets, posters, etc.

3. At the time of elections, a large number of election pamphlets, posters etc., are printed, published, circulated and pasted on the walls of private and Government buildings in respect of which the above mentioned requirements of law have not been compiled with.

4. In order to ensure strict observance of, and compliance with, the requirements of the above mentioned provisions of law, the State Election Commission, in exercise of its powers under Article 243 K of Constitution of India and all other powers enabling it in this behalf, hereby directs as follows:-

(a) As soon as any election to a directly elected offices in Panchayat Raj bodies is announced by the State Election Commission, the District Magistrates shall, within three days of issue of election notifications write to all printing presses in their districts.

(i) pointing out to them the requirements of above mentioned Sections and specifically instructing them to indicate clearly in the print line the names and addresses of printer and publisher of any election pamphlets or posters or such other material printed by them.

(ii) asking the printing presses to send the copies of the printed material (alongwith three extra copies of each of such printed material) and the declaration obtained from the publisher as required under the said Sections within three days of its printing;

(iii) impressing on them in clear terms that any violation of the said provisions and the above directions of the State Election Commission would be viewed very seriously and stern action, which may in appropriate cases include even the revocation of the licence of the printing press under the relevant laws would be taken.

(b) The Election Authority and Commissioner of Panchayat Raj, A.P., Hyderabad shall do like wise in respect of the printing presses located at the state capital.

(c) Before undertaking the printing of any election pamphlets or posters, etc., the printer shall obtain from the publisher a declaration in the proforma prescribed by the State Election Commission in Annexure-A hereto. This declaration shall be duly signed by the publisher and attested

by two persons to whom the publisher is personally known. It should also be authenticated by the printer when it is forwarded to the Election Authority (Commissioner of Panchayat Raj, Hyderabad) or the District Magistrate concerned as the case may be.

(d) As directed above, the printer shall furnish four (4) copies of the printed material, along with the declaration of the publisher, within three (3) days of the printing thereof. Alongwith such printed material and the declaration, the printer shall also furnish the information regarding number of copies of the document printed and the price charged for such printing job, in the proforma prescribed by the State Election Commission in Annexure – B hereto. Such information shall be furnished by the printer, not collectively but separately, in respect of each election pamphlets, posters, etc., printed by him within three (3) days of the printing of each such document.

(e) As soon as a District Magistrate received any election pamphlets or posters, etc., from a printing press, he shall examine whether the publisher and printer have complied with the requirements of law and the above directions of the State Election Commission. He shall also cause one copy thereof to be exhibited at some conspicuous place in his office so that all political parties, candidates and other interested persons may be able to check whether the requirements of law have been duly compiled with relation to such document and which would also enable them to bring to the notice of the authorities concerned the cases of other election pamphlets, posters, etc., in respect of which the above requirements of law have been violated.

(f) The Election Authority & Commissioner of Panchayat Raj, A.P., Hyderabad shall also likewise take further follow up action as

mentioned in sub-para (e) above in respect of the pamphlets, posters, etc., received by him.

(g) The Election Authority & Commissioner of Panchayat Raj, A.P., Hyderabad and the District Magistrates shall initiate prompt action for investigation forthwith if any case of publication of election pamphlets, posters, etc., in violation of the above mentioned provisions of said Sections and / or the State Election Commission's above directions either comes, or is brought, to their notice. In all such cases prosecutions should be launched against the offenders most expeditiously and these cases should be pursued vigorously in the courts concerned.

5. The State Election Commission hereby cautions all political parties, candidates and others concerned that any violation of the law and the directions of the State Election Commission on the above subject will be viewed with utmost concern and the severe stringent action possible will be taken against the offenders.

6. If any officer who is responsible for the enforcement of the above provisions of law and the directions of the State Election Commission is found to have failed in the due discharge of his duties in this regard, he will be liable to severe disciplinary action apart from any penal action that may be called for against him for breach of his official duty.

(BY ORDER AND IN THE NAME OF THE STATE ELECTION COMMISSIONER)

Sd/- G.M.Ramesh Kumar
Secretary

To

1.All the Collectors and District Election Authority in the State
2.The Commissioner of Panchayat Raj and Rural Employment, A.P., Hyderabad.
3. All Superintendents of Police in the State.

Copy to

All The Chief executive officers of Zilla Praja Parishad.
All the District Panchayat Officer.

Annexure – A

Proforma for Declaration to be submitted by the Publisher of Election Posters, Pamphlets, etc.

(See Section 216 of APPR Act, 1994)

I…….son/daughter/wife of……

Name ……..

Resident of

……. …..…….……..(Village/town)……

(District) ……(State), hereby declare that I am the publisher of ……(Give brief particulars of election poster, pamphlet, etc.)

being printed by ……

(Name of printing press)

Place…….

Date……

(Signature of Publisher)

Full Address…….

Attested by (person personally known to publisher)

1. **Signature**
   (name and address)

2. **Signature**
   (name and address)

Countersigned by

Signature

(Name and address of Printer)

Annexure – B

Proforma for submission of information regarding printing of Election posters pamphlets etc.,

1. Name and address of printer …….
2. Name and address of publisher ……
3. Date of the printing order of the publisher …….
4. Date of the declaration of the publishers ……..

   ……
5. Brief particulars of election poster, pamphlet, etc ……
6. Number of copies of the above document printed ……
7. Date of printing …….
8. Printing charges (including cost of paper) being charged from the publisher in respect of the above document ……

Place …….. (Signature of Printer)

Date …… Seal of the printer

ANNEXURE – XXIII(E)

STATE ELECTION COMMISSION

3rd Floor, Buddha Bhavan, M G Road, Secunderabad – 500 003

ORDER

No.175/ SEC-B1/2011 **Dated:08.06.2011**

Sub: A.P. SEC – Fourth Ordinary Elections to Panchayat Raj Bodies-2011 – Restrictions on possession of Arms during elections – Orders – Issued – Reg.

* * *

In exercise of the powers conferred by Article 243 K of the Constitution of India, the State Election Commission, hereby, orders that the following instructions shall be observed during ensuing elections to the Panchayat Raj Bodies in the State.

1. Issue of licence for arms is to be totally stopped during the period commencing with the date of election notification. This ban will continue to be operative till the completion of the election process.

2. The police are directed to be vigilant and to start mopping up operations of the areas infested with known antisocial elements within the areas going to polls. During such mopping up operations special attention should be paid to unearth and seize unlicenced arms and ammunition. A very thorough search and seizure by the Police of unlicenced arms and places of indigenous manufacture of arms and ammunition shall be carried out and persons involved shall be arrested. While unearthing and seizure of unlicensed weapons is a normal ongoing responsibility of the police, it shall be vigorously intensified during the election period. Inter-State and intra-state movements of trucks and commercial vehicles shall be strictly checked with a view to preventing smuggling of arms and ammunition by anti-social elements. Raids should be carried out regularly and intensively on underground arms factories.

3. Immediately after the issue of election notification, the District Magistrates shall make a detailed and individual review and assessment of all licence holders living in the district areas so that licenced arms, in those cases, where they consider it essential, are impounded in order to ensure maintenance of law and order so essential for ensuring free and fair elections. These arms should be deposited with the district authorities. Among cases which may need to be reviewed are the following:

1. Persons released on bail,

2. Persons having a history of criminal offences, and

3. Persons previously involved in rioting at any time but especially during the election period. (The above categories are only illustrative and not exhaustive)

4. After such review, all such licence-holders who are identified, shall be directed to deposit their arms with the District Administration during the period of 3 days from the date of issue of election notification.

5. The District Administration shall make fool-proof arrangements for keeping the deposited fire arms in safe custody. Proper receipt must be given to the licence holders depositing the fire arms. It shall be the bounden duty of the District Administration to ensure that all fire arms deposited with the Administration are returned to the licence holders immediately after one week after the declaration of results.

6. Prohibitory orders under section 144 of the Criminal Procedure Code, 1973, shall be issued banning the carrying of licenced arms as soon as the election notification is issued and it should be effective till the declaration of results. Similar prohibitory orders under section 144 of CrPC shall also be issued prohibiting the entry to arms licence holders living outside areas of polls into the aras of poll along with their weapons during the period from the date of election notification by the State Election Commission to till the declaration of results.

7. This ban shall, not be applicable to those communities who are entitled to display weapons by long standing law, custom and usage. This shall, however, not prevent the District Administration to impound weapons of any such persons of even such communities if they are found to be indulging in violence or posing a threat to the maintenance of law and order and peaceful conduct of elections. In these cases also the fire arms shall remain impounded till one week after the declaration of results.

8. Strict vigil shall be maintained by thorough checking of lorries, light vehicles and all other vehicles from three days before the date of poll to ensure that no undesirable elements or arms and ammunition are being transported into the areas of poll from outside and to apprehend them if they are doing so. Such checking of vehicles shall continue till the completion of the counting of votes and the declaration of results. As and when such culprits are apprehended, the arms and ammunition and vehicles concerned shall be confiscated.
9. A copy of this order shall be made available to the local units of all recognised National/State political parties and other political parties in each district immediately and to each candidate or the agent authorised by him under acknowledgement.

10. The receipt of this order shall be acknowledged immediately.

(BY ORDER AND IN THE NAME OF STATE ELECTION COMMISSIONER)

Sd/- Dr. G.M.Ramesh Kumar
Secretary

To

All the Collectors and District Election Authorities in the State.
All the Superintending of Police in the State.

Copy to:

The Chief Secretary to Government of Andhra Pradesh.
The Director General of Police, Andhra Pradesh, Hyderabad.
All the Chief Executive Officers of Zilla Praja Parishad in the State.
All District Panchayat Officers.

ANNEXURE – XXIII(F)

STATE ELECTION COMMISSION
3rd Floor, Buddha Bhavan, M G Road, Secunderabad – 500 003

Circular No.177/SEC-B1/2011 **Date:30.05.2011.**

Circular

Sub:- A.P. SEC – Fourth Ordinary Elections to Panchayat Raj Bodies, 2011 – Prevention of disfigurement of Public and Private places during elections – Instructions issued – Reg.

* * *

Private and public places are disfigured during the election time by way of pasting election advertisements and writings on the walls in violation of the Model Code of Conduct.

2. Needless to say that this spoils the beauty of the settlements and causes loss to the private house owners who keep their houses and walls painted. In order to prevent such disfigurement, the A.P State Legislature has enacted A.P.Prevention of Disfigurement of Open Places and Prohibition of Obscene and Objectionable posters and Advertisements Act, 1997 (Act 28 of 1997)

3. Section 4 of the said Act makes the disfigurement of any public or private place an offence punishable with imprisonment which may extend upto 3 months or with fine which shall not be less than one thousand rupees but which may extend upto 2,000 rupees or with both. Abetment of such disfigurement is also made punishable under section 5 of that Act. Under section 6 thereof, the police officers are empowered to remove, erase, pull down and destroy objectionable advertisements.

4. The State Election Commission is of the firm view that this unhealthy practice of disfigurement / defacement of private and public properties during the election campaign should be curbed with a heavy hand by invoking the provisions of law referred above. The State Election Commission, therefore, directs to take immediate measures, wherever necessary, for restoration to original position of the defaced public / private properties by directing the political parties and contesting candidates to remove their posters/slogans and repaint the walls of public/private property at their own expenses. In case of failure to comply with the instructions, prosecution should be lodged against the concerned under the provisions of law referred above. Strict vigilance should be maintained to

prevent such defacement of public/private property particularly during election campaign and appropriate legal action should be taken against the violators.

5. The State Election Commission, hereby, directs the District Collectors and the Superintendents of Police to strictly enforce the implementation of item 7 in Part- I (General conduct) of Model Code of Conduct by taking recourse to sections 4 and 5 of Act 28 of 1997 referred above by issuing suitable instructions to their subordinate officers and also by launching inspection teams from time to time during the campaign period. Prompt prosecution of offenders in the early stages of campaigning will act as great deterrent to others. They are also requested to give wide publicity to the provisions of the said Act and item 7 of point - I of the Model Code of Conduct among the general public, political parties and contesting candidates.

6. The Commission also directs that action taken in this regard and the prosecutions launched under the above Act during the period of election to Panchayat Raj Bodies should be informed to the Commission from time to time.

7. A copy of the said Act is enclosed for ready reference.

(BY ORDER AND IN THE NAME OF THE STATE ELECTION COMMISSIONER)

Sd/- Dr. G.M.Ramesh Kumar
Secretary

To

1 All the District Collectors in the State.
2. All the Superintendents of Police in the State.
3. All the Chief Executive Officers of Zilla Praja Parishad in the State.
4. All the District Panchayat Officers in the State.
5. All the Mandal Parishad Development Officers in the State through CEOs of ZP.
6. The Commissioner of Panchayat Raj & Rural Employment, AP. Hyderabad.
7. The Director General of Police, Hyderabad.

THE ANDHRA PRADESH GAZETTE

PART – IV.B EXTRAORDINARY

PUBLISHED BY AUTHORITY

No.44 HYDERABAD, TUESDAY, NOVEMBER 25, 1997.

ANDHRA PRADESH ACTS, ORDINANCES AND REGULATIONS Etc.

The following Act of the Andhra Pradesh Legislative Assembly which was reserved by the Governor on the 20th January, 1993 for the consideration and assent of the President, received the assent of the President on the 17th November, 1997 and the said assent is hereby first published on the 25th November, 1997 in the Andhra Pradesh Gazette for general information:

ACT NO. 28 OF 1997

AN ACT TO PROVIDE FOR THE PREVENTION OF DISFIGUREMENT BY OBJECTIONABLE OR UNAUTHORISED ADVERTISEMENTS OF PLACES OPEN TO PUBLIC VIEW AND FOR THE PROHIBITION OF PRINTING, PUBLISHING AND DISPLAY OF OBSCENE POSTERS RELATING TO CINEMAS AND FOR MATTERS CONNECTED THEREWITH OR INCIDENTAL THERETO.

Be it enacted by the Legislative Assembly of the State of Andhra Pradesh in the Forty – eighth Year of the Republic of India as follows.:-

CHAPTER - I

PRELIMINARY

1. (1) This Act may be called the Andhra Pradesh Prevention of the Disfigurements of Open Places and Prohibition of obscene and objectionable posters and Advertisements Act, 1997. *Short title, extent and Commencement.*

(2) It extends to the whole of the State of Andhra Pradesh

(3) It shall come into force on such date as the State Government may by notification in the Andhra Pradesh Gazette, appoint.

Definitions: 2. In this Act, unless the context otherwise requires-

(a) "advertisement" includes any notice, circular, hand-bill label, wrapper or other document and also includes any visible representation made by means of any light, sound, smoke or gas;

"authority" means an authority constituted under section 9;

(c) "government" means the State Government of Andhra Pradesh;

(d) "notification" means a notification published in the Andhra Pradesh Gazette and the word "notified" shall be construed accordingly;

(e) "objectionable advertisement" means any advertisement:-

(i) Which is likely to incite any person to commit murder, sabotage or any offence involving violence; or

(ii) Which is likely to seduce any member of the armed forces of the Union or of the Police forces from allegiance or his duty, or prejudice the recruiting of persons to serve in any such force or prejudice the discipline of any such force: or

(iii) Which is likely to incite any section of the citizens of India to commit an act of violence against any other section of the citizens of India: or

(iv) Which is deliberately intended to outrage the religious feelings of any class of the citizens of India by insulting or blaspheming of profaning the religion or the religious beliefs of that else: or

(v) Which is grossly indecent, or scurrilous or obscene or is intended to black - mail;

Explanation :-An advertisement shall not be deemed to be objectionable merely because words or sings or visible representations are used;

(1) expressing disapprobation or criticism of any law or of any policy or administrative action of the Government with a view to obtain its alteration or redress by lawful means.

(2) criticising any social or religious practice without malicious intentions and with an honest view to promote social or religious reform or social Justice;

(f) "Place open to public view" includes any private place or building, monument, statue, post - wall, fence, tree or other thing or contrivance visible to a person being in, or passing along, any public place;

(g) "poster" means any printed, typed, hand written, cyclostyled or Xeroxed matter or design or pictorial representation usually meant to be displayed as a play card or pasted on any wall, building, hoarding or other place open to public view whether by cinematography exhibition or otherwise but does not include the exhibition of a cinematograph film inside the auditorium of a cinema theatre;

(h)"prescribed" means prescribed by rules made under this Act;

(i)"Public place" means any place (including a road, street or way, whether a thoroughfare or not and a landing place) to which the public are granted access of have a right to resort, or ever which they have a right to pass.

CHAPTER - II

Prevention of disfigurement of open places

Penalty for disfigurement by objectionable advertisements

3. Whoever affixes to, or inscribes or exhibits on any place open to public view any objectionable advertisement, shall be punished with imprisonment of either description for a term which may extend to one year or with fine which shall not be less than two thousand rupees but which may extend to five thousand rupees or with both.

Penalty for unauthorized disfigurement by advertisement;

4. Whoever affixes to, or inscribes or exhibits on any place open to public view any advertisement without the written consent of the owner or occupier or person in management of the property in which such place is situated shall be punished with imprisonment of either description for a term which may extend to three months or with fine which shall not be less than one thousand rupees but which may extend to two thousand rupees, or with both.

Punishment of abetters

5. Whoever in any manner whatsoever punishment causes, procures, counsels, aids, abets or is accessary to, the Commission of any offence under section 3 or section 4 shall be punished with the punishment 4 shall be punished with the punishment provided for the offence.

Power to remove, erase, pull down and destroy objection-able advertise-ments.

6. (1) Any police officer not below the power to rank of a Sub--Inspector or any other officer, empowered in this behalf by the Government may remove, erase, or otherwise pull down any objectionable advertisement.

(2) Any advertisement removed or pulled down under sub-section (1) or a photograph of any advertisement erased under that sub-section shall be produced before a Magistrate of the First Class and if, in the opinion of the Magistrate, such advertisement is an objectionable advertisement, the Magistrate may cause the advertisement or the photograph thereof to be destroyed after giving an opportunity of hearing to the advertiser wherever he is known and where he is not known after recording that fact, but if in the opinion of the Magistrate such advertisement is not an objectionable advertisement the Magistrate shall dispose it of in the manner provided in sections 457, 458 and 459 of the Code of Criminal Procedure, 1973 or in the case of an advertisement which is erased make an order that it shall be restored at the cost of the Government.

Central Act 2 of 1974

CHAPTER – III

Prohibition of obscene posters etc.

Obscene poster.

7. A poster shall be deemed to be obscene if –

(a) its effect is to tend debase and corrupt persons who are likely, having regard to all relevant circumstances, to read or see the matter contained or embodied in it;

(b) it holds out or recommends to the public anything to be used as, or suggestive of, a sexual stimulant;

(c) it undermines the accepted cannons of decency or encourages vicious or immoral acts;

(d) it lowers the sacredness of the institution of marriage or depicts scenes of rape, criminal assault on women or other immoralities;

(e) it exhibits the human form in a state of nudity or indecorous or sensual posture; or

(f) it encourages lasciviousness or arouses impure and lecherous thoughts.

8. Notwithstanding anything contained in any law or contract to the contrary, but subject to the provisions of this Act, no person shall print, publish, distribute or display or cause to be printed, published, distributed or displayed any obscene poster relating to a cinema in any public place.

Prohibiting of printing, publishing or displaying obscene posters.

9. The Government may, as soon as may be after the commencement of this Act, by notification constitute an authority or authorities for the purpose of determining all question relating to obscenity of a poster.

Constitution of Authority for determination of questions relating to obscenity of poster.

10. Every person who contravenes the provision of section 8 shall, on conviction, be punishable with imprisonment which may extend to six months or with fine which shall not be less than two thousand rupees but which may extend to five thousand rupees or with both.

Penalty

11. (1) The Commissioner of Police in the twin cities of Hyderabad and Secunderabad, Visakhapatnam and Vijayawada and the District Collector elsewhere may, -

(a) enter and search at all reasonable times with such assistance, if any, as he considers necessary any place in which he has reason to believe that an offence punishable under this chapter, has been or is being committed;

(b) seize, and detain any material which has reason to believe contravenes any of the provisions of this chapter;

Power to make search and seizure.

(c) examine any record, register, document or any other material or object found in any place mentioned in Clause (a) and seize the same if he has reason to believe that it may furnish evidence of the commission of an offence punishable under this chapter.

(2) Where any property is seized under sub-section (1), such seizure shall be reported to a Magistrate forthwith, and the provisions of Chapter XXXIV of the Code of Criminal Procedure, 1973, shall apply to the custody and disposal thereof as they apply to property referred to therein.

(3) The Commissioner of Police or the District Collector may, by order, delegate the powers under this section to an officer not below the rank of an Inspector of Police or a Mandal Revenue Officer (Gazetted).

Central "Act 2 of 1974

Forfeiture

12. Where a person has been convicted by any Court for contravening any provision of this chapter or any rule relating thereto, the court may direct that, any poster or other document (including all copies thereof), articles or things in respect of which the contravention is made, shall be forfeited) to the Government.

Compound-ing of offences.

13. (1) The Commissioner of Police, in the twin cities of Hyderabad and Secunderabad, Visakhapatnam and Vijayawada and the District Collector elsewhere may accept, from any person against whom a reasonable suspicion exists that he has committed any offence punishable under this chapter, such sum of money as may be prescribed by way of composition for the offence which such person is suspected to have committed.

(2) On the payment of such sum of money to the Commissioner of Police or the District Collector, as the case may be the suspected person, if in custody, shall be discharged and no other proceedings shall be taken against him.

CHAPTER - IV

MISCELLANEOUS

Offences by companies

14. (1) Where an offence has been committed by a company, every person who, at the time when the offence was committed was in charge of and was responsible to the company for the conduct of the business of the company, as well as the company, shall be deemed to be guilty of the offence, and shall be liable to be proceeded against and punished accordingly :

Provided that nothing contained in this sub-section shall render any such person liable to any punishment provided in this Act, if he proves that the offence was committed without his knowledge or that he exercised all due diligence to prevent the commission of such offence.

(2) Notwithstanding anything contained in sub-section (1), where an offence under this Act has been committed by a company and it is proved that the offence has been committed with the consent or connivance of, or is attributable to any gross negligence on the part of any director, manager, secretary or other officer of the company, such director, manager, secretary or other officer of the company shall also be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

Explanation : For the purpose of this section, -

(a) 'Company' means any body corporate and included a firm or other association of individuals; and

(b) 'Director' in relation to a firm means a partner in the firm.

Certain offences to be cognizable. Central Act 2 of 1974

15. Notwithstanding anything contained in the Code of Criminal Procedure, 1973 the offences punishable under sections 3 and 4 shall be deemed to be cognizable offences within the meaning of that Code.

Cognizance of offences.

16. No court shall take cognizance of any offence punishable under this Act except on a complaint filed, in the twin cites of Hyderabad and Secunderabad, Visakhapatnam and Vijayawada by the Commissioner of Police or by any Police Officer not below the rank of an Inspector of Police authorized by him in this behalf and elsewhere by the District Collector or any Officer not below the rank of a Mandal Revenue Officer authorized by him in this behalf.

Protection of action taken in good faith

17. No suit, prosecution or other legal proceeding shall lie against the Government the authority any local authority or any public servant or person, in respect of anything which is in good faith done or intended to be done in pursuance of this Act or of any rule made thereunder.

Burden of proof in certain cases.

18. Where a person is prosecuted for committing an offence under section 4, the burden of proving that he has the written consent referred to in that section shall be on him.

Power to issue directions.

19. The Government may, from time to time, issue such directions not inconsistent with the provisions of this Act or the rules made thereunder as they may think fit, setting out the principles which shall guide the authority in discharging its duties under this Act.

Act to override other laws.

20. The provisions of this Act and the rules made thereunder shall have effect notwithstanding anything inconsistent therewith contained in any other law for the time being in force, or any custom, usage or contract or decree or order of a Court or other authority.

Power to remove difficulties.

21. (1) The Government may for the purposes of removing any difficulty, by order published in the Andhra Pradesh Gazette, direct that the provisions of this Act shall, during such period as may be specified in the order, have effect subject to such adoptations whether by way of modification, addition or omission as they may deem necessary or expedient :

Provided that no such order shall be made after two years from the commencement of this Act.

(2) Every order made under sub-section (1) shall be laid before the Legislative Assembly of the State.

(3) No order under sub-section (1) shall be called in question in any court on the ground that no difficulty as is referred to in sub-section (1) existed or was required to be removed.

Power to make rules.

22. (1) The Government may by notification, make rules for carrying out all or any of the purposes of this Act.

(2) Every rule made under this Act shall, immediately after it is made, be laid before the Legislative Assembly of the State if it is in session and if it is not in session, in the session immediately following for a total period of fourteen days which may be comprised in one session or in two successive sessions, and if before the expiration of the session in which it is so laid or the session immediately following, the Legislative Assembly agrees in making any modification in the rule or in the annulment of the rule, the rule shall from the date on which the modification or annulment is notified, have effect only in such modified form or shall stand annulled, as the case may be, so however that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

G BHAVANI PRASAD,
Secretary to Government,
Legislative Affairs & Justice Law Department

FORM - XII

[See Rule 19]

APPOINTMENT OF POLLING AGENT

Election to Sarpanch / Member of Ward No. ……. of …….……. Gram Panchayat / Member, ……. Territorial Constituency of ……. Mandal Praja Parishad / Zilla Praja Parishad.

I, ---------- a candidate / the election agent of ---------- who is a candidate at the above election, do hereby appoint (name and address)---------- ---------- as a polling agent to attend polling station No. ---------- fixed for the poll ---------- at ----------.

Place :

Date : **Signature of Candidate / Election Agent**

I agree to act as such polling agent.

Signature of Polling Agent

<u>Declaration of polling agent to be signed before Presiding Officer</u>

I hereby declare that at above election I will not do anything forbidden by section 217 of the Andhra Pradesh Panchayat Raj Act, 1994, which I have read / has been read over to me.

Date: …… **Signature of Polling Agent.**

Signed before me

Date:- **Presiding Officer**

ANNEXURE – XXIII(G)

STATE ELECTION COMMISSION

3rd Floor, Buddha Bhavan, M G Road, Secunderabad – 500 003

CIRCULAR

No.178/SEC-B1/2011, **Dated:30.05.2011.**

Sub:- A.P. SEC – Fourth Ordinary Elections to Panchayat Raj Bodies, 2011- Videography to record the critical events – Instructions – Issued.

* * *

In order to enable the State Election Commission to have a true and faith full record of the violations of the election law, Model Code of Conduct and other instructions issued by the Commission, it is decided to cover the critical events through videography during the process of electioneering, including, but not restricted to, the period of campaign, the day of poll, the receipt and storage of polled ballot boxes, counting of votes and the declaration of the results.

2. It is decided that video cameras shall be provided to record critical events at the rate of 3 per mandal ie., 2 for the Returning officer and 1 for Zonal Officer. In addition to this the General Observers appointed by the State Election Commission shall be provided with one video camera.

3. For this purpose, the District Election Authorities shall make use of video cameras and crew available with the governmental and semi-governmental organisations within their jurisdiction or hire local private professional videographers. While selecting the private videographers, care should be taken to select only professionally competent persons having no political bias or links.

4. Keeping in view the size of the constituency, previous history of election related violence and electoral malpractices, general law and order situation, likelihood of commission of corrupt practices and electoral offences, the District Election Authority may increase the number of videographers indicated above to be engaged during the campaign period and on the day of poll to record critical events.

5. The following instructions are issued in the matter of selection of videographers and their deployment:-

(a) The private videographers to be hired shall be screened thoroughly as to their professional competence, track record, financial viability and other related factors.

(b) The videographers should not belong to any political party and should not be known sympathizers or supporters or close relatives of any of the contesting candidates or any of the leaders of any political party or should not have been hired by any political party or contesting candidate.

(c) The Returning Officers are required to provide tea, snacks food etc, to the videographers and they shall not be left to fend for themselves while on duty. It shall be ensured that the videographers DO NOT accept the hospitality of any contesting candidate or political party or their workers.

(d) Video teams should be under the personal supervision and guidance of a senior officers who has been entrusted election duty.

(e) As and when required, the video teams may be asked to accompany the Election Observers so that all critical events observed by them may also be videotaped.

(f) The videographers shall be impressed that the principle behind the scheme is to record and videotape critical events only which are likely to vitiate the poll and not to just videotape all events in a routine manner in order to fill the cassette or CD.

6. The videographers, so engaged, shall be given proper briefing to enable them to record an independent and purposeful coverage of critical events relating to violation of election law and Model Code of Conduct. Particularly, the videography should be used as a tool of document and check the veracity of the election expenditure account being maintained by the contesting candidates. Thus, important public meetings, particularly those addressed by VIPs, rallies organised by supporters of contesting candidates, vehicles used etc can be recorded in videography and information gathered can be used to cross check the correctness of the expenditure accounts being maintained by the contesting candidates.

7. In the nature of guidelines, it is suggested that following events shall invariably be videographed :

(i) Meeting addressed/attended by Ministers, top national/State level leaders of recognised political parties.
(ii) Riots or riotous situations or commissions of brickbatting, free-for-all etc.
(iii) Violent incidents, damaging of property, looting, arson brandishing of arms etc.
(iv) Booth capturing.
(V) Intimidation of voters.
(VI) Open bribing of voters by distribution of sarees dhoties, blankets, Liquor etc.
(VII) Canvassing within 100 metres of polling stations.
(VIII) Vulgar display of expenditure, like errecting huge cut-outs etc.

(Note: These are only illustrative and not exhaustive.)

8. The idea underlying the videography is to secure unimpeachable evidence in respect of acts amounting to violation of Model Code of Conduct that can be used by the police for prosecuting persons in respect of election offences. The videography may therefore be so utilized as to serve the above purpose in particular and other purposes in general.

9. The video films thus prepared shall be viewed by the District Election Authority or Officer Authorized by him immediately to identify whether any of the organizers / speakers or other participants of the public meeting has committed any violations or infractions of statutory provisions and directions of the commission or Model Code of Conduct relating to the conduct of elections.

10. In cases where the Returning Officer himself or the District Election Authority is competent, immediate corrective action shall be taken and the Commission informed of the same.

11. In cases where the authorities provided with videography feel that any critical event so recorded needs to be brought to the notice of the State Election Commission, copy of the video tapes/CDs should be sent to the State Election Commission by the quickest means along with an explanatory note on the infringement towards which the attention of the State Election Commission is proposed to be invited.

12. All videotapes produced in compliance with the instructions of State Election Commission, should be properly indexed and lodged with the election authority and shall form part of record of the concerned election and shall be preserved in the manner similar to other election records.

13. The District Election Authorities and the Returning Officers shall, where the events recorded in the videography amount to corrupt practices or other electoral offences under the Indian Penal Code or and the APPR Act, 1994 report the same to the police and see that prosecutions are launched against the offenders immediately, as otherwise the videography at huge cost will not serve any purpose.

14. The District Election Authorities are requested to transmit these instructions to all the Returning Officers in their district and take steps for their strict compliance. The State Election Commission is of the considered view that videography is an important mechanism which, if carefully used, can help in curbing the incidents of breach to Model Code of Conduct and other electoral mal-practices to a great extent.

The expenditure incurred on hiring video cameras shall be met out of the election funds released to the districts.

(BY ORDER AND IN THE NAME OF THE STATE ELECTION COMMISSIONER)

Sd/- Dr. G.M.Ramesh Kumar
Secretary

To
All the Collectors and District Election Authorities.
All the Election Observers.
All the Chief Executive Officers of Zilla Praja Parishad
All the District Panchayat Officers.
All the Returning Officers through the District Election Authorities.
All the Election observers.

ANNEXURE – XXIII(H)

STATE ELECTION COMMISSION
3rd Floor, Buddha Bhavan, M G Road, Secunderabad – 500 003

No.179/SEC-B1/2011 **Dated:23.5.2011**

DIRECTION

Sub:- A.P. SEC – Fourth ordinary elections to Panchayat Raj Bodies, 2011- Use of Loudspeakers for election campaigns – Instructions - Issued- Reg.

* * *

All Political parties, candidates and their workers, supporters and sympathizers are using loudspeakers for their electioneering campaigns. These loudspeakers are not only used from fixed rostrums but are also mounted / fitted on vehicles like trucks, tempos, cars, taxis, vans, three wheeler scooters, cycle rickshaws, etc. These vehicles move on all roads, streets and lanes and also go around basties, mohallas, colonies and localities with the loudspeakers broadcasting at very great volume. This results in serious 'noise pollution ' and causes great disturbance to the peace and tranquility of the general public. The student community, in particular, gets seriously disturbed as their studies are badly hampered because the loudspeakers start blaring from very early hours in the morning and continue to do so throughout the day and till extremely late hours in the night. The aged, the infirm and the sick whether in institutions, hospitals, etc. or at home are also put to severe discomfort.

2. The Commission is aware that the use of loudspeakers cannot be stopped altogether during the election period as the loudspeakers are one of the means of election propaganda and imparting information to public. But, at the same time, indiscriminate and unfettered use of loudspeaker at odd hours and at odd places at very high volumes which have the effect of disturbing peace and tranquility and causing annoyance to the general public, the sick, and the student community in particular cannot be permitted. Some reasonable restrictions are essential.

3. The Hon'ble Supreme Court of India passed an order banning the use of loud speakers, vehicular horns and bursting of crackers between 10.00 PM and 6.00 AM near residential areas.

4. After considering all aspects of the matter, the Commission, in exercise of its powers conferred by Article 243K of the Constitution and all other powers enabling it in this behalf and in supersession of its earlier instructions, hereby DIRECTS that the use of loudspeakers at all future elections to Panchayat Raj Bodies shall be strictly regulated as follows: -

(i) The use of loudspeakers, whether fitted on vehicles of any kind whatsoever, or in static position used for public meetings for electioneering purposes, during the entire election period starting from the date of issue of election notification and ending with the date of declaration of results shall be permitted only between 6.00a.m. and 10.00p.m.

(ii) All loudspeakers whether used for general propaganda or for public meetings or procession and whether used on moving vehicles or otherwise, shall be used during the restricted hours only mentioned in clauses (i) above and never beyond.

(iii) All loudspeaker being used beyond the hours prescribed above, shall be confiscated along with all the apparatus connected with the use of these loudspeakers.

(iv) All political parties, candidates and any other persons using any loudspeakers on moving vehicles including but not restricted to trucks, tempos, cars, taxis, vans, three wheeler, scooters, cycle rickshaws, etc. shall intimate the registration identification number of those vehicles to the authorities granting permission to use the loudspeakers and such registration identification numbers of the vehicles shall be indicated on the permits granted by the authorities concerned.

(v) Any vehicle on which a loudspeaker is used without the said written permit shall be confiscated forthwith alongwith the loudspeaker and all the apparatus used along with it.

(vi) All political parties, candidates and even any other person using a loudspeaker either on a moving vehicle or at a fixed place shall intimate:-

(1) the Returning Officer concerned, and

(2) local Police authorities, in writing, the full details of the permits obtained by them before using any of those loudspeakers. In the case of mobile loudspeakers, the registration / identification numbers of the vehicles shall also be registered by them with the Returning Officer concerned and the local Police authorities.

(i) It shall be the responsibility of the local authorities granting permits for use of loudspeakers and the local Police authorities to strictly enforce that no loudspeaker is used by anyone in violation of any of the above directions.

(viii) The political parties and candidates shall endeavour to see that no disturbance is caused in the areas adjacent to hospitals due to electioneering to avoid inconvenience to the patients.

5. No loudspeakers fitted on vehicles of any kind or in any other manner whatsoever shall be permitted to be used within the polling area during the period of forty-eight hours prior to the hour fixed for conclusion of the poll in case of elections to the Mandal Praja Parishads and Zilla Praja Parishads and forty-four hours prior to the hour fixed for conclusion of the poll in case of elections to gram panchayats. Even after the close of poll proper law and order is required to be maintained till completion of election after the declaration of result. Use of loudspeakers is generally regarded as source of public nuisance and can often give rise to tension in a politically surcharged atmosphere. The District Administrations should, therefore, consider any application for permission to use loudspeakers on merit of each application and keeping in view the need to maintain proper law and order till the completion of election.

The above directions of the Commission, which will check noise pollution and disturbance of public peace and tranquility must be scrupulously implemented and strictly enforced by all election authorities concerned. Any violation thereof will be

viewed by the Commission with grave concern and will invite severe disciplinary action against the defaulting officers.

A copy of this order shall be made available to local units of all recognised and registered party units in the district under acknowledgement.

The receipt of this letter should be acknowledged immediately.

(BY ORDER AND IN THE NAME OF THE STATE ELECTION COMMISSIONER)

Sd/- Dr. G.M.Ramesh Kumar
Secretary

To

1.All the Collectors and District Election Authorities in the State.
2. All the Superintendents of Police in the State.
3. All the Chief Executive Officers of Zilla Praja Parishad in the State.
4. All the District Panchayat Officers in the State.
5. All the Returning Officers in the State through CEOs of ZPP.
6. The Commissioner of Panchayat Raj & Rural Employment, AP. Hyderabad.

ANNEXURE – XXIII(I)

STATE ELECTION COMMISSION

3rd Floor, Buddha Bhavan, M G Road, Secunderabad – 500 003

DIRECTION

No.180/SEC-B1/2011 **Dated:13.05.2011**

Sub:- A.P. SEC – Fourth Ordinary elections to Panchayat Raj Bodies, 2011 – Instructions on use of vehicles during elections – Issued.

***

The State Election Commissioner, in exercise of the powers conferred on him under Article 243-K of the Constitution of India and in the interest of preserving the purity of election process, hereby, issues the following instructions relating to use of vehicles during the ensuing ordinary elections to Panchayat Raj bodies.

Use of vehicles for campaigning:

1. The candidates contesting to the office of Member, ZPTC or Member, MPTC shall furnish details of the vehicles intended to be used by them for campaigning to the Revenue Divisional Officer concerned. Only after such information has been received by the Revenue Divisional Officer concerned, the vehicles so notified by the candidates can be used for the election campaign. Thus, prior intimation to the Revenue Divisional Officer is a must for the actual deployment of any vehicle for campaign purpose by the candidates. The Revenue Divisional Officer concerned shall also transmit the information so received by them from the candidates about the vehicles to be used by them to the Observers appointed by the State Election Commission.
2. Ministers, MLAs and MPs who want to campaign for their political party and not for a particular candidate, shall also notify the vehicles to be used by them to the Revenue Divisional Officer concerned indicating the areas in which they intend to

campaign. The restrictions imposed on convoy of vehicles in this order, are also applicable to them.

3. The Revenue Divisional Officer to whom intimation of use of vehicles is given by contesting candidates, shall publish on his office notice boards details of the vehicles notified by the various contesting candidates and also release it to the press. This measure is intended to enable the common citizen to bring to the notice of the authorities any un-authorised use of vehicles for the election campaign.
4. Vehicles deployed for election campaign, as per the intimation given by the candidates, or by the election agents should not be requisitioned by the administration.
5. Any vehicle which has not been registered for election campaigning with the Revenue Divisional Officer concerned, if found being used for campaigning, shall be deemed to be unauthorisedly campaigning for the candidate and will attract penal provisions of Chapter-IX (A) of the Indian Penal Code and shall therefore be immediately taken out of the campaign exercise.
6. The vehicles permitted to be used under this order, shall not carry more than five passengers including the driver.
7. Permits for vehicles should be issued from the day of publication of list of contesting candidates upto the date of declaration of results (except for the poll day).
8. Permit for vehicles including two wheelers of candidates/political parties should be issued only by the Revenue Divisional Officer/Sub-Collector concerned.(copy of model permit is enclosed)
9. The permit must bear the number of the vehicle and name of the candidate in whose favour it is issued.
10. Permit should be displayed prominently on the windscreen of the vehicle.
11. Permit should be of sufficient dimension so that it could be seen from a distance.
12. A register must be maintained in this matter in the office of the Revenue Divisional Officer as well as Returning Officer concerned.

13. A list of permits issued to various candidates for plying vehicles should be given to all Observers and also Returning Officers concerned and updated on daily basis.

14. There is no limit in respect of number of vehicles to be permitted for campaigning to each candidate/political party (except for the poll day)

Restrictions on convoy of vehicles:-

15. Cars/vehicles being used for electioneering purposes, shall, under no circumstances, be allowed to move in convoys of more than two vehicles during the campaigning period. All bigger convoys shall be broken up, even if they are carrying any Minister of Central or State Government. This shall, however, be subject to any security instructions issued in respect of any such individuals. In other words the convoy shall not, in any case, exceed two vehicles plus the authorised security vehicles.

16. The authorities concerned shall keep a close watch on the vehicles used by the contesting candidates, persons accompanying the contesting candidates and other party leaders and ensure that the Commission's instructions are not flouted.

17. Videography can be used effectively to check use of unauthorised vehicles for campaigning as well as for violation of instructions regarding convoys.

Use of vehicles on the day of Poll:

18. (a) The contesting candidates for the office of Member, Zilla Praja Parishad Territorial Constituency and their election agents, their workers and leaders of political parties shall be permitted to use only two vehicles on Polling Day ie., (i) one vehicle for the candidate and (ii) one vehicle for election agent of the candidate or his workers or leaders and workers of political party which has set up the candidate.

(b) The contesting candidates for the office of Member, Mandal Praja Parishad Territorial Constituency shall be allowed only one vehicle for their

movement within their constituency on the polling day. It may be noted that no separate vehicle will be allowed for their agents or other party leaders.

19. The Revenue Divisional Officer concerned are authorised to issue permits to the contesting candidates for use of vehicles during the day of poll as indicated above. This permit should be displayed on their vehicle. (A copy of medel permit is enclosed)

20. The following type vehicles shall be allowed to be plied on the poll day –

a) Private vehicles being used by the owners for their private use, not connected with elections;

b) Private vehicles being used by owners either for themselves or for members of their own family for going to the polling booth to exercise their franchise, but not going anywhere within a radius of 200 meters of a polling station;

c) Vehicles used for essential services namely hospital Vans, Ambulance, Milk Vans, Water Tankers, electricity emergency duty Vans, Police on duty, Officers on election duty;

d) Public transport carriages like buses plying between fixed termini and on fixed routes;

e) Taxis, three Wheelers, Scooters, Rickshaws etc., for going to Airports, Railway Stations, Inter- State Bus stands, Hospitals for journeys which cannot be avoided;

f) Private vehicles used by sick or disabled persons for their own use.

General:

21. The election authorities concerned and the Commissioner of Police/Superintendents of Police concerned are requested to implement these instructions scrupulously. They are also directed to make arrangements to open check

posts in the areas, where elections are held to effectively check un-authorised movement of vehicles during election campaign and on the day of poll.

22. The contesting candidates and political parties are hereby informed that any contravention of these instructions will be viewed seriously by the State Election Commission.

(BY ORDER AND IN THE NAME OF THE STATE ELECTION COMMISSIONER)

Sd/- Dr. G.M.Ramesh Kumar
Secretary

To

All the Collectors & District Election Authorities in the State
All the Superintendents of Police in the State.
All the Chief Executive Officers of Zilla Praja Parishad in the State.
All the District Panchayat Officers in the State .
All the Revenue Divisional Officers and MPDOs through District Election Authority.
The Commissioner of Panchayat Raj and Rural Employment & Election Authority.
All the Political Parties.

STATE ELECTION COMMISSION
ANDHRA PRADESH
MPTC/ZPTC ELECTIONS -2011
VEHICLE PERMIT

Name of the MPTC/ZPTC :

Name of the Candidate :

Party Affiliation :

Vehicle Name & No. :

Permission obtained from _____ to _____

Date: **Issuing Authority**

With Office Seal

ANNEXURE – XXIII(J)

STATE ELECTION COMMISSION
3rd Floor, Buddha Bhavan, M G Road, Secunderabad – 500 003

CIRCULAR

No.181/SEC-B1/2011 **Dated:10.05.2011**

Sub:- A.P. SEC – Fourth Ordinary Elections to Panchayat Raj Bodies, 2011 – Complaints filed by candidates, political parties, and citizen on violation of Model Code of Conduct, allegations against employees etc., - Mechanism for processing, monitoring and disposal of complaints – Circular instructions - Issued.

***

The contesting candidates, their election agents, members of recognised and registered political parties and citizens file complaints directly to the District Election Authority or other officials at the district level involved in the election process on various matters relating to election process. Complaints are also filed by various sections with the State Election Commission.

The representations/ complaints basically pertain to allegation of violation of Model Code of Conduct, allegation against employees, apprehension of distribution of money, liquors, sarees etc., and allegations of indulging in corrupt practices and other election offences.

The following instructions are issued with regard to acceptance, processing, monitoring and disposal of complaints.

1. The District Election Authority and other officials connected with the election process shall receive any complaint filed by any candidate, member of a political party or general public and give an acknowledgement in respect thereof.
2. The Authority who received the complaint shall go through the contents and conduct an enquiry wherever necessary to verify the veracity of the allegation made therein. If there is a primafacie case a report shall be sent to

the State Election Commission through the District Election Authority concerned.

3. The State Election Commission will examine the matter and issue suitable instructions for further enquiry or for taking necessary action under election law and IPC.
4. The District Election Authority shall review periodically the number of complaints filed with various officials at the district level and issue instructions for expeditious disposal of complaints filed.
5. Complaints filed with Observers and referred to the District Election Authority shall be enquired into and appropriate action shall be taken under intimation to the observer and the State Election Commission.
6. Complaints made to the State Election Commission will be referred to the District Election Authority concerned for appropriate action or for conduct of enquiry and sending a report back to the State Election Commission to examine the issue and for issue of necessary orders. Where the State Election Commission sought an enquiry report from the District Election Authority, the same should be sent **within three days** or such shorter period as may be specified by State Election Commission keeping in view the urgency of the matter.
7. No complaint shall be rejected or left unattended to give any scope for complainants and political parties to point an accusing finger at the election machinery.
8. The authority who received a complaint shall invariably send a reply to the complainant on the action taken over it.

The District Election Authority shall communicate a copy of this circular to all the officials at the district level involved in the election process to follow the above instructions scrupulously.

(BY ORDER AND IN THE NAME OF THE STATE ELECTION COMMISSIONER)

Sd/- Dr. G.M.Ramesh Kumar
Secretary

To
All the Collectors and District Election Authorities
Copy to
All the Chief Executive Officers of Zilla Praja Parishad,
All the District Panchayat Officers
All the Revenue Divisional Officers and MPDOs through District Election Authorities,
All the Superintendents of police
The Commissioner of Panchayat Raj and Rural Employment, AP., Hyderabad.

ANNEXURE – XXIII(K)

STATE ELECTION COMMISSION
3rd Floor, Buddha Bhavan, M G Road, Secunderabad – 500 003

CIRCULAR

No.256/SEC-B2/2011, **Dated:30.5.2011.**

Sub:- 4th ordinary elections to Gram Panchayats, 2011 – Instructions on use of vehicles during elections – Issued.

***

Elections to Gram Panchayats are held on non party basis and also the fact that election campaign in these elections will be confined to the local area of a Gram panchayat. The State Election Commissioner, in the interest of preserving the purity of election process and in exercise of the powers conferred on him under Article 243-K of the Constitution of India, hereby, direct that following instructions relating to use of vehicles shall be strictly followed during ensuing ordinary elections to Gram Panchayats in the State.

Use of vehicles for campaigning:

1. The candidates contesting elections to the office of Sarpanch shall be permitted to use one vehicle for their campaigning within the Gram Panchayat area. Such candidates will be required to inform in advance the details of the vehicles proposed to be used by them for campaigning to the Tahasildars concerned. The Tahasildars, in turn, will forward this information to the District Collector and through him to the Election Observers.
2. The candidates contesting for Ward Members shall not be allowed to use campaigning as the area of the Ward is very compact and does not require a vehicle for campaigning.
3. Since the elections are being held on non-party basis, the political parties are not expected to participate in the campaigning process.

Use of vehicles on the day of poll:

1. On the day of poll, candidates contesting for the office of Sarpanch of the Gram Panchayats only will be given passes to use one vehicle. Besides this, no other vehicle pass will be issued on the day of poll.
2. No vehicle passes shall be given to the contesting candidates for the office of ward member as the area of the ward is very small.
3. However, the following types of vehicles shall be allowed to be plied on the day of poll –
    (a) Private vehicles being used by the owners for their private use, not connected with elections;
    (b) Private vehicles being used by owners either for themselves or for members of their own family for going to the polling booth to exercise their franchise, but not going anywhere within a radius of 200 meters of a polling station;
    (c) Vehicles used for essential services namely hospital vans, ambulance, milk vans, water tankers, electricity emergency duty vans, police on duty, officers on election duty;
    (d) Public transport carriages like buses plying between fixed termini and on fixed routes;
    (e) Taxis, three wheelers, scooters, rickshaws etc., for going to airports, railway stations, inter-state bus stands, hospitals for journeys which cannot be avoided;
    (f) Private vehicles used by sick or disabled persons for their own use.

Vehicle Permits:

1. The Tahasildars concerned shall issue vehicle permits to the contesting candidates for the office of Sarpanch, Gram Panchayat in the proforma enclosed to this Circular.

2. The vehicle permit in original (not photo copy) shall be displayed on the windscreen of the vehicle.
3. The details of vehicle permits issued shall be informed to the District Election Authority, Observers and the Returning Officers concerned.

General:

The election officials and the police officials concerned are requested to implement these instructions scrupulously. They are also directed to make arrangements to open check posts in the areas, where elections are held to effectively check un-authorised movement of vehicles during election campaign and on the day of poll.

The contesting candidates are, hereby, informed that any contravention of these instructions will be viewed seriously by the State Election Commission.

(BY ORDER AND IN THE NAME OF THE STATE ELECTION COMMISSIONER)

Sd/- G.M.Ramesh Kumar
Secretary

To,

All the Collector & District Election Authorities.
All the superintendents of Police in the State.
All the District Panchayat Officers in the State.
All the Tahasildars through DPOs in the State.

STATE ELECTION COMMISSION,
Andhra Pradesh
Gram Panchayat Elections – 2011

VEHICLE PERMIT

Name of the Mandal :

Name of the Gram Panchayat :

Name of the Candidate :

Vehicle Name and number :

Permission obtained from _____ to _____

Date: **Issuing Authority**
With Official Seal

ANNEXURE – XXIII(L)

STATE ELECTION COMMISSION
3rd Floor, Buddha Bhavan, M.G.Road, Secunderabad – 500 003.
Dr. G.M. Ramesh Kumar **Office: 27543124, 27543122**
Secretary (FAC) **E-mail: secy_apsec@ap.gov.in**
Website: www.apsec.gov.in

Cir.No.403/SEC-B1/2011 **Date:18.5.2011**

Circular

Sub:- Elections – 4th ordinary elections to PR Bodies, 2011 – Restriction on number of vehicles and people filing at the time of nominations – Reg.

***

During earlier elections to Local bodies, it was noticed that at the time of filing nominations in the offices of the Returning Officers, proper control and order was not maintained due to overcrowding by the supporters of the candidates.

Therefore, in order to avoid over crowding and to ensure proper control and order at the time of filing of nominations, the following instructions are issued.

"The District Election Authority may inform various political parities and interest groups that the maximum number of vehicles that will be allowed to come within the periphery of 100 mtrs. of Returning Officer's/ Assistant Returning Officer's office shall be **two** and maximum number of persons that will be allowed to enter the office of Returning Officer/Assistant Returning Officer at the time of filing nomination shall be the candidate plus **two** other individuals which may include the proposer proposing the nomination of the candidate i.e. there can be only **three** people (including the candidate) who can remain present inside the Returning Officer's/Assistant Returning Officer's room at the time of filing nomination. Rule 8 of (Conduct of election) Rules, 2006 stipulates that nomination paper can be delivered to the Returning Officer either by the candidate in person or by his proposer. Where a candidate chooses not to be present

physically to deliver the nomination paper, the proposer and two other individuals shall be allowed to enter the office of Returning Officer.

The expenditure on the vehicles that will be coming along with the candidate at the time of filing of nominations shall be taken into account for calculating his expenditure if he remains in the fray."

Yours faithfully
Sd/- G.M.Ramesh Kumar
Secretary

To
All the Collectors & District Election Authorities (Except Hyderabad district).
All the Returning Officers through the Collectors & District Election Authorities

Copt to
The Commissioner of Panchayat Raj & Rural Employment and Election Authority.
All the Chief Executive Officers of Zilla Praja Parishad.
All the District Panchayat Officers.

ANNEXURE – XXIII(M)

STATE ELECTION COMMISSION

3rd Floor, Buddha Bhavan, M.G.Road, Secunderabad – 500 003.

Dr. G.M. Ramesh Kumar
Secretary (FAC)

Office: 27543124, 27543122
E-mail: secy_apsec@ap.gov.in
Website: www.apsec.gov.in

C I R C U L A R

Cir.No.456/SEC-B1/2011 **Dated:28.05.2011**

Sub: Implementation of Model Code of conduct – Action against violators – Instructions – Issued.

***

The Model Code of Conduct is implemented from the date of issue of election Notification in order to maintain the purity of elections and to create a level playing field for all political parties and contesting candidates.

A statement showing the various items of Model Code of Conduct and provisions of A.P. P.R. Act, 1994 and Indian Penal Code, 1860 and other enactments under which prosecution can be launched against the violators is enclosed as Annexure.

The Collectors and District Election Authorities, Additional District Election Authorities, Returning Officers and Election Observers are requested to closely monitor compliance with the provisions of the Model Code of Conduct and wherever there is a violation, the Collectors and Superintendents of Police shall prosecute the violators under the relevant provisions of law in consultation with the public prosecutor concerned. They need not obtain any specific permission of the State Election Commission for such prosecutions. Almost all violations can be brought within the scope of one penal provision or the other enacted in the A.P. P.R.Act, 1994 as amended by A.P. Act No.22 of 2006, Chapter IXA of the Indian Penal Code and other enactments.

The Collectors and District Election Authorities as well as the Superintendents of Police are therefore directed to enforce the various provisions of law in order to ensure complete compliance with the provisions of the Model Code of Conduct. The investigating and prosecuting authorities may be instructed suitably in this regard and implementation of the appropriate provisions of law shall be ensured to maintain the purity of election process and to see that money and muscle power do not determine the poll outcome.

Model Code of Conduct has to be enforced impartially. Utmost care has to be taken to ensure that **the law enforcement machinery not only acts fairly but also is perceived to be acting fairly. The Commission will deal sternly with those law enforcement officials who are found implementing the Model Code of conduct in a selective or biased manner.**

The number and nature of cases booked in the district wise shall be intimated to the Commission through Fax/e.mail (secy_apsec@ap.gov.in) on a day to day basis from the date of issue of election notification, by the Superintendents of Police in the enclosed proforma under intimation to the Collector and District Election Authorities concerned.

Sd/- G.M.Ramesh Kumar
Secretary

To
All the Collectors & District Election Authorities in the State.
All the Superintendents of Police.
All the Chief Executive Officers of Zilla Praja Parishads.
All the District Panchayat Officers.
All the Returning Officers through District Election Authorities.
All Observers.
The DGP & IGP of Police.
Principal Secretary to (GAD) Govt. of A.P., Hyderabad.
The Principal Secretary to Govt., Panchayat Raj and Rural Development Dept., Hyd.
The Commissioner of Panchyat Raj & Rural Employment and Election Authority.

P R O F O R M A

S. No.	Name of the District	Name of the Police Station	Name & Description of violator of MCC	Nature of violation	Party affiliation of the violator, if any	Section under which prosecution launched	Case No. & Date
(1)	(2)	(3)	(4)	(5)	(6)	(7)	(8)

ANNEXURE – XXIII(N)

STATE ELECTION COMMISSION

3rd Floor, Buddha Bhavan, M.G. Road, Hyderabad-500003, A.P.

ORDER

No.241/SEC-B2/2011 **Date: 03.7.2013**

Sub: State Election Commission – 4th Ordinary elections to Gram Panchayats – Election Notification issued – Model Code of Conduct came into force – Ban on transfers – Orders – Issued.

***

The State Election Commission issued a Notification No. 757/SEC-B2/2013, dated 03.07.2013 for conduct of ordinary elections to Gram Panchayats in the State. With this announcement, the provisions of the Model Code of Conduct for Local Body elections have come into force with immediate effect, which will be in operation till the completion of the election process.

The State Election Commission directs that there shall be a total ban on the transfer of all officers / officials directly or indirectly connected with the conduct of the election. These include but are not restricted to:-

i) The Collectors and District Election Authorities, Joint Collectors, Chief Executive Officers of Zilla Praja Parishads and District Panchayat Officers designated as Additional District Election Authorities, Revenue Divisional Officers, Sub-Collectors designated as Deputy District Election Authorities, MPDOs, Tahsildars designated as Assistant District Election Authorities.

ii) The Returning Officers, Assistant Returning Officers and other Panchayat Raj and Revenue Officers connected with the conduct of elections.

iii) Officers of the Police Department connected with the management of elections, namely IGs, DIGs, Commissioners of Police, Superintendents of Police, Addl. Superintendents of Police, Sub-Divisional Police Officers, Circle Inspectors, Sub-Inspectors and other Police officers.

iv) The transfer orders issued in respect of the above categories of officers prior to the date of announcement but not implemented till date should not be given effect to without obtaining specific permission from the State Election Commission in this regard.

v) This ban shall be effective till the completion of the election process. The Commission further directs that the State Government should refrain from making transfers of Senior officers who have a role in the management of Gram Panchayat elections.

vi) In cases where transfer of an officer is necessary on account of administrative exigencies, the State Government may with full justification approach the Commission for prior clearance.

Sd/- P. Ramakanth Reddy
State Election Commissioner

To
The Chief Secretary to Government of Andhra Pradesh.
The Director General of Police, Andhra Pradesh.
The Principal Secretary to Chief Minister.
The Principal Secretary to Government (Panchayat Raj).
The Commissioner of Panchayat Raj & Rural Employment.
All the Heads of Departments.
All the Collectors and District Election Authorities.
All the Superintendents of Police / Commissioners of Police.
All Chief Executive Officers of ZPPs.
All District Panchayat Officers.

ANNEXURE – XXIII(O)

STATE ELECTION COMMISSION

3rd Floor, Buddha Bhavan, MG Road, Secunderabad-500003, AP.

ORDER

No. 616/SEC-B1/2013 **Date: 07.07.2013**

Sub: State Election Commission - 4th Ordinary elections to Gram Panchayats – Curbs on flow of liquor during election period – Closure of belt shops and monitoring of production, storage and distribution of liquor during election period – Reg.

Ref: SEC Notification No. 757/SEC-B2/2013, dated 03.07.2013.

***

The State Election Commission issued a Notification for conduct of ordinary elections to Gram Panchayats in the State in the reference cited.

Under Sec. 225A of the A.P. Panchayat Raj Act, 1994, liquor shops have to be closed in the polling areas during the period of 44 hours prior to the hour fixed for conclusion of poll in Gram Panchayat elections and also on the counting day.

Further, bribing the voters by offering liquor to gain unfair edge is an election offence under Sec. 171-B and 171-E of IPC and also a corrupt practice under Sec. 211(1) of the A.P.P.R. Act, 1994.

The State Election Commission is of the view that in order to conduct elections to Gram Panchayats in a free, fair and peaceful manner, it has to exercise all the powers within its reach to control the flow of liquor which is widely used as an inducement to garner votes illegally. The State Election Commission has been receiving representations and suggestions from general public, political parties, NGOs and the Press to take strong measures to curb the role of liquor in the ensuing Gram Panchayat elections, which are keenly fought because of they are held after seven years in a politically volatile environment prevailing in the State with the advent of new political outfits and also the timing of elections just less than a year before the General elections to APLA/HOP.

Keeping all these factors in view and in order to hold elections in a free, fair and peaceful environment, the State Election Commission in exercise of the powers conferred on it under Article 243K of the Constitution of India, hereby, issues the following instructions to curb the role of liquor in the ensuing elections to Gram Panchayats.

1. All the unauthorized liquor outlets (belt shops) in the State shall be closed with immediate effect till the completion of the election process.

2. The production of IMFL/Beer/Country Liquor should be closely monitored with reference to production figures during the corresponding period in the last year.

3. The offtake of IMFL/Beer/Country Liquor from Central Stocks should also be watched and if there are major deviations then follow up trail should be established.

4. Stock Limits of Licensed Stockists should, in no case, be allowed to exceed permissible limits. All major stock points should be placed under video surveillance for round the clock check and excise pickets with Police help be posted at these points.

5. Daily receipt and offtake of retail sellers should be monitored. Excise Department officials should submit it every evening to the Collector and DEA who would take action on suspicious offtake.

6. Opening and Closing time of Liquor Vending Shops must be meticulously followed.

7. Intensive vigil over inter state movement of vehicles at RTO Check Posts and border check posts by Excise staff should be kept by special enforcement staff under the State Excise Department who are deputed round the clock from the date of notification till the completion of Poll/Repoll. For effective checking of the vehicles at border check posts, assistance of transport department may be obtained and joint checking of vehicles by excise and transport officers may be carried out.

8. Inter State co-ordination among Excise Commissioners with bordering States should be done for monitoring of inter state movement of IMFL, Beer and Country Liquor.

9. District Level Nodal Officers and State Level Nodal Officer of Excise Department should be identified to monitor the above aspects, conduct raids to seize illicit liquor.

10. The District Level Nodal Officer will submit Daily Report as per the proforma enclosed for IMFL, Beer and Country Liquor in separate forms to State Level Nodal Officer with copy to the Collector & DEA concerned. State Level Nodal Officer of Excise Department will, in turn, submit Daily Report on excise activity of the entire State to the State Election Commission in the same proforma (Fax Nos.040-27544580 / 27544428 / 27536033 / 27536055 / 27536066 / 27536077).

The State Election Commission also directs that the Superintendents of Police/ Superintendents of Police (Urban) / Commissioners of Police shall also coordinate with the officials of the Excise Department at the District level to take stringent measures to close all belt shops and also to deal with any law and order problem that may arise due to activities of unscrupulous elements and vested interests indulging in using liquor as an inducement to garner votes.

(BY ORDER AND IN THE NAME OF THE STATE ELECTION COMMISSIONER)

Sd/- NAVIN MITTAL
SECRETARY

To
The Commissioner, Prohibition and Excise Department, AP, Hyderabad.
The Director (Enforcement), Prohibition and Excise Department.
All the Collectors & District Election Authorities.
All the Superintendents of Police / Superintendents of Police (Urban) / Commissioners of Police.
All the Deputy Commissioners of Prohibition and Excise Department.
All the District Panchayat Officers.

Daily Report of IMFL/Beer/Country Liquor by the State/District Level Nodal Officer (Separate report should be submitted for IMFL Beer & Country Liquor)				
Name of the District:			**Date of Report:**	
S.No.	**Description**	**During the day (2013)**	**During the day (2012)**	**Remarks on excess, if any**
1.	Opening stock with manufacturers in Bulk litres			
2.	Production/Bottling in Bulk litres			
3.	Total Despatch of stock from the manufacturer's godown in Bulk litres			
4.	Closing stock in Bulk litres with manufacturers (1+2-3)			
5.	Despatch of stock from manufacturer's godown to whole sellers/Stockists in Bulk litres			
6.	Opening stock with Retailers in Bulk litres			
7.	Purchase by Retailers in Bulk litres			
8.	Sale by Retailers in Bulk litres			
9.	Closing Stock with Retailers in Bulk litres (7+8-9)			
10.	Sale by others in Bulk litres			
11.	Number of check posts			
12.	Volume of illicit liquor seized by check posts in Bulk litres			
13.	Number of raids conducted			
14.	Volume of illicit liquor seized in Bulk litres during raids			
15.	No. of Prohibition cases			
16.	No. of persons arrested			
17.	Amount of Fine imposed			

18. No. of unauthorized liquor outlets (belt shops) closed in District / State:

Signature of Nodal Officer
Name :
Designation :

Note:-

1. Separate Reports for IMFL, Beer or Country Liquor is to be furnished in the above format by District Level Nodal Officer of Excise Department to the State Level Nodal Officer with copy to Collector & DEA.
2. The State Level Nodal Officer of Excise Department will monitor and compile the district level reports and submit composite report of the State to the State Election Commission in the same format.

ANNEXURE – XXIII(P)

STATE ELECTION COMMISSION

3rd Floor, Buddha Bhavan, M.G. Road, Hyderabad-500003, A.P.

CIRCULAR

No. 1283/SEC-B2/2013 **Date: 19.07.2013**

Sub: State Election Commission – 4th ordinary elections to Gram Panchayats – Restrictions on presence of political functionaries in the Gram Panchayats after the campaign period is over – Reg.

***

Under Section 214 of A.P. Panchayat Raj Act, 1994, during the period of forty-four hours ending with the hour fixed for close of poll, no campaign shall take place. The prohibitory period in connection with the ongoing Gram Panchayat elections is indicated in the table below.

Phase	Date of Poll	Prohibitory Period
I-Phase	23.07.2013	From 5.00 pm on 21.07.2013 till the completion of Poll at 1:00 PM on 23.07.2013.
II-Phase	27.07.2013	From 5.00 pm on 25.07.2013 till the completion of Poll at 1:00 PM on 25.07.2013
III-Phase	31.07.2013	From 5.00 pm on 29.07.2013 till the completion of Poll at 1:00 PM on 31.07.2013

During the course of campaign in ordinary elections to Gram Panchayats, the candidates mobilise their supporters including from outside the Gram Panchayats in order to bolster their campaign. In view of the fact that after the closure of campaign period no campaign can take place within the Gram Panchayat, supporters brought from outside including political functionaries, workers, etc., who are not voters of that Gram Panchayat should not continue to remain present in the Gram Panchayat as their continued presence after campaign ends may undermine the atmosphere for free and fair poll.

Hence, the State Election Commission directs that after the campaign period is over, the District administration / Police administration shall ensure that all such outsiders leave the Gram Panchayat immediately after the campaign period is over. (For this purpose, a Revenue Division / Revenue

Divisions going to poll may be taken as a unit, which means such outsiders are not only away from villages but away from such Revenue Divisions also.)

The State Election Commission further directs that in order to ensure that the above instruction is carried out, the District administration / Police administration may take all necessary measures, which include:

1. Checking of kalyana mandapams / community halls, etc., where such people are kept housed and find out whether the outsiders have been accommodated in these premises.

2. Verification of lodges and guest houses to keep a track of the list of occupants.

3. Set up check-posts at strategic locations and also track the vehicular movement.

4. Verify the identity of the people / group of people in order to find out whether they are voters of that Gram Panchayat or not and establish their identity.

These instructions shall be followed scrupulously to ensure free, fair and peaceful poll.

Sd/- Navin Mittal
SECRETARY

To
All the Collectors & DEAs.
All the SPs / SPs (Urban) / CPs (except Hyderabad).
All the District Panchayat Officers.
Copy to: All Observers.

ANNEXURE – XXIII(Q)

STATE ELECTION COMMISSION

3rd Floor, Buddha Bhavan, MG Road, Secunderabad-500003, AP.

O R D E R

No. 1374/SEC-B1/2013 **Date: 20.07.2013**

Sub: State Election Commission - 4th Ordinary elections to Gram Panchayats – Restrictions on using photographs of political leaders, etc., on the campaign material by the contesting candidates – Reg.

Ref: SEC Notification No. 757/SEC-B2/2013, dated 03.07.2013.

***

The ordinary elections to Gram Panchayats are currently underway in pursuance of the Notification issued by the State Election Commission in the reference cited. In all the Gram Panchayats where there is a contest for the office of Sarpanch and Ward members, campaign is taking place. The Gram Panchayat elections are conducted on non-party basis and the candidates are allotted only free symbols that are not reserved to any political party. In conformity with the apolitical spirit contemplated under the statute, the campaign should be conducted without any political overtones. If political overtones are allowed to creep into the campaign process, the spirit of the statute is derailed and the voting public will be swayed by extraneous considerations.

In order to curb the scope for political overtones in the campaign process and to ensure that Gram Panchayat elections are conducted in a free, fair and peaceful manner, the State Election Commission in exercise of the plenary powers conferred on it under Article 243K of the Constitution of India and Section 200 of the A.P. Panchayat Raj Act, 1994, hereby issues the following guidelines.

1. No contesting candidate shall be allowed to use any campaign material such as handbills, flexis, pamphlets, banners, flags, etc., containing names or photographs of any political leaders or national leaders.

2. They shall not print any campaign material claiming that they were having affiliations to any political party or local political functionaries to gain an unfair edge.
3. They shall not distribute any caps, khanduvas, kerchiefs or any such material which can be suggestive of affiliation or support of any political party.

4. The handbills or slips that are used by them for campaigning may contain their name, photograph and symbol. It should not contain any information or photograph, which is suggestive of affiliation to any political party or political persons.

The Collectors & DEAs are requested to ensure that these instructions are strictly followed to ensure free and fair elections. Wide publicity should also be given to make the contesting candidates aware of these instructions.

Sd/- Navin Mittal
SECRETARY

To
All the Collectors & DEAs.
All the SPs / SPs (Rural) / CPs (except Hyderabad)
All the District Panchayat Officers.

ANNEXURE – XXIV

STATE ELECTION COMMISSION
3rd Floor, Buddha Bhavan, M.G. Road, Secunderabad-500003, Andhra Pradesh.

NOTIFICATION

No.792/SEC-B2/2013 **Date: 24.07.2013**

Whereas, the State Election Commission in its Notification No. 792/SEC-B2/2013, dated 22.07.2013 nullified the election process held in (18) Gram Panchayats indicated in the Annexure-I in pursuance of SEC Notification No. 757/SEC-B2/2013, dated 03.07.2013 as there was a prima facie case of auctioning of posts in those Gram Panchayats;

And whereas, the State Election Commission also stated in the said Notification dated 22.07.2013 that a fresh Notification will be issued for conduct of elections to the said (18) Gram Panchayats shortly;

Now, therefore, in exercise of the powers conferred by Article 243-K of the Constitution of India, section 201, sub-section (2) of Section 13 and sub-section (2) of Section 14 of Andhra Pradesh Panchayat Raj Act, 1994 (Act 13 of 1994), read with Rule 4 of the Andhra Pradesh Panchayat Raj (Conduct of Elections) Rules, 2006, the State Election Commission, Andhra Pradesh, hereby, notifies fresh election programme as in Annexure-II for conduct of elections to Sarpanch and Ward Members of the said (18) Gram Panchayats indicated in the Annexure-I.

SD/- P. RAMAKANTH REDDY
STATE ELECTION COMMISSIONER

To
The Collectors & District Election Authorities of SPSR Nellore, Prakasam, Krishna, Nalgonda, Nizamabad, Guntur and YSR Districts.

The District Panchayat Officers of SPSR Nellore, Prakasam, Krishna, Nalgonda, Nizamabad, Guntur and YSR Districts.

The Returning Officers concerned.

ANNEXURE-I

NAMES OF THE GRAM PANCHAYATS

Name of the District	Name of the Mandal	Name of the Gram Panchayat
SPSR Nellore	Sullurupet	Kudiri
	Thada	Irakam
	Thada	Karuru
Prakasham	Bestavaripeta	Chinna Obinenipalli
	Santhamaguluru	Makkenivaripalem
	Santhamaguluru	Pathamaguluru
	Maddipadu	Nelaturu
	Giddaluru	Kongalaveedu
Krishna	Pedana	Penumalli
Nalgonda	Dhamaracherla	Nadigadda
Nizamabad	Vailpoor	Komanpally
		Venkatapoor
Guntur	Vinukonda	Andugulapadu
	Savalyapuram	Erlapadu
	Gurazala	Gogulapadu
	Dachepalli	Sarangapalli
	Ipuru	Udijerla
YSR District	Rajupalem	Gopayapalli

SD/- P. RAMAKANTH REDDY
STATE ELECTION COMMISSIONER

ANNEXURE-II
ELECTION PROGRAMME

1.	(a) Date of issue of Election Notice by the Returning Officer under Rule 6 of Andhra Pradesh Panchayat Raj (Conduct of Elections) Rules, 2006 in Form-I.	25.07.2013 (From this date nominations can be filed between 10:30 AM and 5:00 PM)
	(b) Display of ward wise electoral roll of Gram Panchayat by Returning Officer under Rule 5 of said rules.	25.07.2013
2.	Last date for filing of Nominations	29.07.2013 (Upto 5:00 PM)
3.	Scrutiny of Nominations	30.07.2013 (11:00 AM onwards)
4.	Appeal before Revenue Divisional Officer against the rejection of Nominations	31.07.2013 (Upto 5:00 PM)
5.	Disposal of Appeals by Revenue Divisional Officer	01.08.2013
6.	Last date for withdrawal of candidature	02.08.2013 (Not later than 3:00 PM)
7.	Publication of list of contesting candidates	02.08.2013 (After 3:00 PM)
8.	Date of Poll:	08.08.2013 (From 7:00 AM to 1:00 PM)
9.	Date of Counting of Votes	08.08.2013 (From 2:00 PM onwards)
10.	Declaration of Results	Soon after the completion of counting of votes
11.	(a) Date of conduct of election of Upa-Sarpanch under Sec. 14(10) of A.P. Panchayat Raj, 1994.	On the same date on which results are declared.
	(b) If for any reason, the election of Upa-Sarpanch is not held on the date aforesaid, it shall be held on the next day, whether or not it is a holiday observed by the Gram Panchayat.	

SD/- P. RAMAKANTH REDDY
STATE ELECTION COMMISSIONER

ANNEXURE – XXV

STATE ELECTION COMMISSION

3rd Floor, Buddha Bhavan, M.G. Road, Hyderabad-500003, A.P.

ORDER

No. 1118/SEC-B2/2013 **Date: 15.07.2013**

Whereas, the Superintendence, direction and control of all elections to Local Bodies in the State is vested in the State Election Commission under Article 243K and 243ZA of the Constitution of India; and

Whereas, all forms of intimidation, threat, influence and bribing of electors must be prevented in the interest of free and fair election and; reports are received that money power and muscle power are being used during election process for inducement of electors by way of distribution of cash, gift items, liquor or free food; or for intimidation of electors by threat or intimidation; and

Whereas, distribution of cash or any item of bribe or use of muscle power for influencing electors are criminal offences under section 171 of IPC and also are Corrupt Practices under Section 211 of A.P. Panchayat Raj Act, 1994;

Now, therefore, for the purpose of maintaining purity of elections, the State Election Commission hereby issues the following Standard Operating Procedure for Flying Squads, Static Surveillance Teams and Check Posts, constituted for keeping vigil over excessive campaign expenses, distribution of items of bribe in cash or in kind, movement of illegal arms, ammunition, liquor, or anti-social elements etc. in the districts during election process:

Flying Squad (FS)

1. There shall be one or more Flying Squads (FS) in each Mandal. The FS shall start functioning from the date of announcement of election and shall continue till completion of poll.

2. The Flying Squad shall (a) attend to all model code of conduct violations and related complaints; (b) attend to all complaints of threat, intimidation, movement of antisocial elements, liquor, arms and ammunition and large sum of cash for the purpose of bribing of electors etc.; (c) attend to all complaints regarding election expenditure incurred or authorised by the candidates / political party;(d) videograph, all major rallies, public meetings or other major expenses made by candidates and political parties after the announcement of election by the Commission.

3. The FS shall not be given any other work during the period. The names and mobile numbers of the Magistrate as head of the FS and other officials in FS are provided to the Complaint Monitoring Control Room and Call Centre, RO, Collector & DEA, General Observer and Expenditure Observer. The Collector & DEA shall constitute the FS with officers of proven integrity.

4. Whenever a complaint regarding distribution of cash or liquor or any other item of bribe or regarding movement of antisocial elements or arms and ammunition is received, the FS shall reach the spot immediately. The FS shall seize the items of

bribe or other illicit items, and gather evidences and record statement of the witnesses and the persons from whom the items are seized.

5. The FS shall send a Daily Activity report in respect of items of seizure of bribe or cash to the S.P. in a format as per Annexure - A, with a copy to R.O., Collector & DEA and the Expenditure Observers and shall send Daily Activity report in respect of model code of conduct violations to RO, Collector & DEA and General Observer in the format as given in Annexure-B**.** The Nodal Officer at the Police Headquarters shall compile all such reports from the district and send a consolidated report in the same format (i.e., Annexure–A&B) on the next day by fax / e-mail to the Commission.

6. The entire proceeding shall be video recorded. The R.O. or any other officer authorized by him shall file complaints/F.I.R. against (i) the persons, receiving and giving bribe; and (ii) any other person from whom contraband items are seized or (iii) any other antisocial elements found engaged in illegal activity. The copy of the complaint/FIR shall be displayed on the notice board of the R.O. for public display and be sent to the Collector & DEA, General Observer, Expenditure Observer.

7. In case, a complaint is received about distribution of cash, gift items, liquor or free food; or about threat/ intimidation of electors; or of movement of arms/ammunitions/ antisocial elements and it is not possible for the FS to reach the spot immediately, then the information shall be passed on to the Static Surveillance Team, nearest to the spot or to the police station of that area, who shall rush a team to the spot for taking necessary action on the complaint. All seizures made by the police authorities either on receipt of complaints forwarded by FS or received independently shall also be reported to the FS which shall incorporate such reports in its Daily Activity Reports in relevant rows/columns and this is done to avoid duplication of seizure or action taken reports.

8. Each FS shall announce through a Public address system, fitted onto its vehicle, the following in local language in the area under its jurisdiction: "As per section 171 B of Indian Penal Code, any person giving or accepting any gratification in cash or kind during election process, with a view to inducing the person to exercise his electoral right is punishable with imprisonment up to one year or with fine or with both. Further, as per section 171 C of Indian Penal Code, any person who threatens any candidate or elector, or any other person, with injury of any kind, is punishable with imprisonment up to one year or with fine or both. Flying Squads have been formed to register cases against both the giver and the taker of bribe and for taking action against those who are engaged in threat and intimidation of electors. All the Citizens are hereby requested to refrain from taking any bribe.

Static Surveillance Team (SST)

1. There shall be one or more Static Surveillance Teams (SST) in each Mandal with one magistrate and three or four police personnel in each team who shall be manning the check post.

2. This team shall put check posts on major arterial roads, borders of the district and state and shall keep watch on movement of illicit liquor, items of bribe, or large amount of cash, arms and ammunition and also movement of antisocial elements in their area. The entire process of checking shall be videographed.

3. The SST shall send Daily Activity report to the S.P. with copy to R.O., Collector & DEA and Expenditure Observer and General Observer in a format as per Annexure–C, on the same day. The Nodal Officer at the Police Headquarters shall compile all such reports from the district and send a consolidated report in the same format (i.e., Annexure–C) on the next day by fax/e-mail to the Commission.

4. The entire operation by SSTs shall be done in the presence of an Executive Magistrate and shall be videographed. No such checking shall take place without the presence of Executive Magistrate. The video record with an identification mark of date, place and team number shall be deposited with the R.O, on the next day who shall preserve the same for verification by the Commission at later point of time. It may also be widely advertised by the Collector & DEA that any member of the public can obtain a copy of the DVD/video record by depositing Rs.300/-.

5. Whenever Check Posts are put at the borders of the district/State or at any other place by any agency, for any purpose, then the nearest SST shall be present there in such team, to avoid duplication of checking in the area and reporting has to be done by the SST.

6. Checking by SST shall be done on major roads or arterial roads. The SSTs shall be controlled by the Collector & DEA and S.P. in consultation with General Observer and Expenditure Observers and the mechanism shall be strengthened in last 72 Hrs. before the poll, particularly in vulnerable areas.

7. During checking, if any cash exceeding Rs.50,000/- is found in a vehicle carrying a candidate, his agent, or party worker or carrying posters or election materials or any drugs, liquor, arms or gift items which are valued at more than Rs.10,000/-, likely to be used for inducement of electors or any other illicit articles are found in a vehicle, shall be subject to seizure. The whole event of checking and seizure is to be videographed by a video team, which will submit the copy of the video CD to the Returning Officer. However, cash shall not be seized in the following cases:-

a) If a person is carrying cash from the business place to the bank, for the purpose of depositing it in the bank, and submits the documents like PAN Card/Business Registration Certificate and bank passbook / statement and copy of the cash book to show regular cash deposits, then no seizure shall be effected, irrespective of the amount. However, a declaration in the format (Annexure-A) along with copies of the above documents shall be obtained from the person before release of the cash. The person shall submit a copy of the Bank deposit slip to the SST concerned, after depositing the amount in the bank.

b) If no criminality is suspected and no link with any candidate or political party is suspected, and the cash carried along with the bank withdrawal slip/bank pass book/ bank statement with the name of the bank and branch, to show that cash is withdrawn on the same day, then seizure will not be effected. However, the person shall submit a copy of the bank documents and identity of the person/organization.

c) Any person carrying cash for purpose of medical treatment will not be seized, provided he produces the proof of medical admission/medical treatment.

d) Any cash being carried for marriage purpose shall not be seized, if person concerned produces documents like marriage invitation / Kalyan Mandap booking / any other document to prove the marriage celebration. No jewellery/bullion carried for marriage purpose or for personal use shall be seized.

8. FS and the SST shall be polite, decent and courteous, while checking the baggage or vehicle. The purse held by women shall not be checked, unless there is a lady officer. The FS shall also supervise the functioning and proper conduct of SSTs during checking in their areas.

9. The Collector & DEA and the SP of the district shall ensure that the teams are constituted and properly trained. The Nodal Officer at the Police Headquarters shall ensure that proper training and sensitisation of the police force in this regard is done.

10. In case of seizure by the FS or SST or the police authorities, the Appellate Authority, whom the person can appeal for redressal of grievance shall be the Dy.DEA of the district. The name and address of the Appellate Authority shall be mentioned in the seizure list, which is given to the person from whom seizure is effected.

11. After seizure, the seized amount shall be deposited in Treasury or in such manner as directed by the Court. The Collector & DEA shall issue necessary instructions to the treasury units to receive the seized cash beyond office hours and on holidays also.

12. The details of the seized amount shall also be informed to the Income Tax Department to the officer having jurisdiction over the district to examine and take necessary action on income tax related issue, if any.

13. Wherever the FS or SST or police authorities receive information about any other suspicious items in their area, including movement of huge amount of cash, they shall keep the respective Law enforcement agencies informed about such items.

Sd/- NAVIN MITTAL
SECRETARY

To
All the Collectors & DEAs.
All the Superintendents of Police / Commissioners of Police.
All the District Panchayat Officers.
All the RDOs & Dy. DEAs.
All the Dy. Commissioners (Excise & Prohibition).
Copy to: DGP, AP / Addl.DG (L&O) / IG (L&O) / DIGs.
Copy to: All the Election Observers / All the Expenditure Observers.

Annexure-A

Daily Activity Report by Flying Squad (FS) on seizure of Cash/Other items related Complaints on the date .....

Reference No.....

Name of the Sub-Division.....
Name and Designation of the Magistrate.....
Name of the District .....
Name and Designation of the Police Officer.....

1	2	3	4	5	6	7	8	9	10
S.No.	Name of Mandal / District	Nature of the complaint/ information	Name of the person against whom complaint received	Cash/ other items seized by FS	Cash/ other items seized by other Police authority	FIRs filed	Name of candidate or party with which links found	Name and designation of the authority to whom seized cash/ items is handed over	Remarks (if any)
1									
2									
3									

	Description	Figure on date of report	Progressive figure including the date of report	
1	Total amount of cash/other items seized by Flying Squad			
2	Total amount of cash/other items seized by other Police authority			
3	Total of number of complaints of cash/other items, received			
4	Total of number of complaints, verified			
5	Total of number of complaints, pending			
6	Total number of FIRs filed upto the end of the day			

Signature
Name & Designation of the
Officer in Charge of Flying Squad /
Superintendent of Police /
Nodal officer of State Police HQ.

Note:

1. The Officer in charge of the Flying Squad will submit the report for each Flying Squad in this format to the SP with copy to RO, Collector & DEA, Election Observer and Expenditure Observer.
2. The SP will send the report to the Nodal Officer in State HQ after compiling the data for the entire district.
3. The Nodal Officer of State Police HQ will compile the data for the whole state and send the report to the State Election Commission.

Annexure-B

Daily Activity Report by Flying Squad (FS) on MCC related complaints on the date .....

Reference No.....

Name of the Sub-Division.....
Name and Designation of the Magistrate.....
Name of the District .....
Name and Designation of the Police Officer.....

1	2	3		4		5	6
S.No.	**Name of the Mandal / District**	**Name of complainant**	**Party affiliation, if any**	**Complaint against (Name)**	**Party affiliation, if any**	**Brief description of MCC violation issue**	**Action Taken Report**

Signature
Name & Designation of the
Officer in Charge of Flying Squad /
Superintendent of Police /
Nodal officer of State Police HQ.

Note:

1. The Officer in charge of the Flying Squad will submit the report for each Flying Squad in this format to the SP with copy to RO, Collector & DEA, Election Observer and Expenditure Observer.
2. The SP will send the report to the Nodal Officer in State HQ after compiling the data for the entire district.
3. The Nodal Officer of State Police HQ will compile the data for the whole state and send the report to the State Election Commission.

Annexure-C

Daily Activity Report by Static Surveillance Teams (SST) on seizure of Cash / Other items related complaints on the date .....

Reference No.....

Place of Check Post .....
Name and Designation of the Magistrate.....
Name of the District .....
Name and Designation of the Police Officer.....

1	2	3	4	5	6	7	8
S.No.	**Number and name of Mandal / District**	**Name and address of persons searched at the Check Post**	**Cash / Other items**	**FIR filled**	**Name of candidate or party having links**	**Name and designation of Authority to whom cash, goods seized goods are handed over after seizure**	**Remarks**
1							
2							
3							
Description						**Figure on date of report**	**Progressive figure including the date**
A.		**Total amount of cash seized by SST**					
B.		**Total amount of other items seized by SST**					
C.		**No. of FIRs lodged**					

Signature
Name & Designation of the
Officer in Charge of Static Surveillance Team /
Superintendent of Police /
Nodal officer of State Police HQ.

Note:

1. The Officer in charge of the SST will submit the report for each SST in this format to the SP with copy to RO, Collector & DEA, Election Observer and Expenditure Observer.
2. The SP will send the report to the Nodal Officer in State HQ after compiling the data for the entire district.
3. The Nodal Officer of State Police HQ will compile the data for the whole state and send the report to the State Election Commission.

ANNEXURE – XXVI

STATE ELECTION COMMISSION

3rd Floor, Buddha Bhavan, MG Road, Secunderabad-500003, AP.

ORDER

No. 616/SEC-B1/2013 **Date: 07.07.2013**

Sub: State Election Commission - 4th Ordinary elections to Gram Panchayats – Curbs on flow of liquor during election period – Closure of belt shops and monitoring of production, storage and distribution of liquor during election period – Reg.

Ref: SEC Notification No. 757/SEC-B2/2013, dated 03.07.2013.

***

The State Election Commission issued a Notification for conduct of ordinary elections to Gram Panchayats in the State in the reference cited.

Under Sec. 225A of the A.P. Panchayat Raj Act, 1994, liquor shops have to be closed in the polling areas during the period of 44 hours prior to the hour fixed for conclusion of poll in Gram Panchayat elections and also on the counting day.

Further, bribing the voters by offering liquor to gain unfair edge is an election offence under Sec. 171-B and 171-E of IPC and also a corrupt practice under Sec. 211(1) of the A.P.P.R. Act, 1994.

The State Election Commission is of the view that in order to conduct elections to Gram Panchayats in a free, fair and peaceful manner, it has to exercise all the powers within its reach to control the flow of liquor which is widely used as an inducement to garner votes illegally. The State Election Commission has been receiving representations and suggestions from general public, political parties, NGOs and the Press to take strong measures to curb the role of liquor in the ensuing Gram Panchayat elections, which are keenly fought because of they are held after seven years in a politically volatile environment prevailing in the State with the advent of new political outfits and also the timing of elections just less than a year before the General elections to APLA/HOP.

Keeping all these factors in view and in order to hold elections in a free, fair and peaceful environment, the State Election Commission in exercise of the powers conferred on it under Article 243K of the Constitution of India, hereby, issues the following instructions to curb the role of liquor in the ensuing elections to Gram Panchayats.

1. All the unauthorized liquor outlets (belt shops) in the State shall be closed with immediate effect till the completion of the election process.

2. The production of IMFL/Beer/Country Liquor should be closely monitored with reference to production figures during the corresponding period in the last year.

3. The offtake of IMFL/Beer/Country Liquor from Central Stocks should also be watched and if there are major deviations then follow up trail should be established.

4. Stock Limits of Licensed Stockists should, in no case, be allowed to exceed permissible limits. All major stock points should be placed under video

surveillance for round the clock check and excise pickets with Police help be posted at these points.

5. Daily receipt and offtake of retail sellers should be monitored. Excise Department officials should submit it every evening to the Collector and DEA who would take action on suspicious offtake.

6. Opening and Closing time of Liquor Vending Shops must be meticulously followed.

7. Intensive vigil over inter state movement of vehicles at RTO Check Posts and border check posts by Excise staff should be kept by special enforcement staff under the State Excise Department who are deputed round the clock from the date of notification till the completion of Poll/Repoll. For effective checking of the vehicles at border check posts, assistance of transport department may be obtained and joint checking of vehicles by excise and transport officers may be carried out.

8. Inter State co-ordination among Excise Commissioners with bordering States should be done for monitoring of inter state movement of IMFL, Beer and Country Liquor.

9. District Level Nodal Officers and State Level Nodal Officer of Excise Department should be identified to monitor the above aspects, conduct raids to seize illicit liquor.

10. The District Level Nodal Officer will submit Daily Report as per the proforma enclosed for IMFL, Beer and Country Liquor in separate forms to State Level Nodal Officer with copy to the Collector & DEA concerned. State Level Nodal Officer of Excise Department will, in turn, submit Daily Report on excise activity of the entire State to the State Election Commission in the same proforma (Fax Nos.040-27544580 / 27544428 / 27536033 / 27536055 / 27536066 / 27536077).

The State Election Commission also directs that the Superintendents of Police/ Superintendents of Police (Urban) / Commissioners of Police shall also coordinate with the officials of the Excise Department at the District level to take stringent measures to close all belt shops and also to deal with any law and order problem that may arise due to activities of unscrupulous elements and vested interests indulging in using liquor as an inducement to garner votes.

(BY ORDER AND IN THE NAME OF THE STATE ELECTION COMMISSIONER)

Sd/- Navin Mittal
SECRETARY

To
The Commissioner, Prohibition and Excise Department, AP, Hyderabad.
The Director (Enforcement), Prohibition and Excise Department.
All the Collectors & District Election Authorities.
All the Superintendents of Police / Superintendents of Police (Urban) / Commissioners of Police.
All the Deputy Commissioners of Prohibition and Excise Department.
All the District Panchayat Officers.

Daily Report of IMFL/Beer/Country Liquor by the State/District Level Nodal Officer (Separate report should be submitted for IMFL Beer & Country Liquor)				
Name of the District:			**Date of Report:**	
S.No.	**Description**	**During the day (2013)**	**During the day (2012)**	**Remarks on excess, if any**
1.	Opening stock with manufacturers in Bulk litres			
2.	Production/Bottling in Bulk litres			
3.	Total Despatch of stock from the manufacturer's godown in Bulk litres			
4.	Closing stock in Bulk litres with manufacturers (1+2-3)			
5.	Despatch of stock from manufacturer's godown to whole sellers/Stockists in Bulk litres			
6.	Opening stock with Retailers in Bulk litres			
7.	Purchase by Retailers in Bulk litres			
8.	Sale by Retailers in Bulk litres			
9.	Closing Stock with Retailers in Bulk litres (7+8-9)			
10.	Sale by others in Bulk litres			
11.	Number of check posts			
12.	Volume of illicit liquor seized by check posts in Bulk litres			
13.	Number of raids conducted			
14.	Volume of illicit liquor seized in Bulk litres during raids			
15.	No. of Prohibition cases			
16.	No. of persons arrested			
17.	Amount of Fine imposed			

18. No. of unauthorized liquor outlets (belt shops) closed in District / State:

Signature of Nodal Officer
Name :
Designation :

Note:-

1. Separate Reports for IMFL, Beer or Country Liquor is to be furnished in the above format by District Level Nodal Officer of Excise Department to the State Level Nodal Officer with copy to Collector & DEA.

3. The State Level Nodal Officer of Excise Department will monitor and compile the district level reports and submit composite report of the State to the State Election Commission in the same format.

ANNEXURE – XXVII

STATE ELECTION COMMISSION

3rd Floor, Buddha Bhavan, M G Road, Hyderabad – 500 003

Navin Mittal, I.A.S.,
Secretary

Off: 27545350, 27543122
Fax:27544580, 27544428
E-mail: secy.apsec@gmail.com
Website: www.apsec.gov.in

Lr.No.771/SEC-B2/2013, **Date:04.07.2013**

To

1. All the District Collectors &
   District Election Authorities in the State
   (Except Hyderabad)

2. All the District Panchayat Officers
   in the State.
   (Except Hyderabad)

Sir,

Sub: Elections – Fourth Ordinary elections to Gram Panchayats, 2013 – List of periodical reports/returns to be filed to the State Election Commission during election period – Communicated – Regarding.

***

I am enclosing herewith a list of **reports and returns** to be furnished to the State Election Commission by the District administration in connection with the forth coming elections to Gram Panchayats in the State.

All the District Collectors are requested to make necessary arrangements for smooth flow of information and to ensure that these reports and returns are furnished to the State Election Commission punctually.

It is also requested that besides sending the reports through Fax the soft copies of reports shall also be sent through E.Mail to this office to avoid duplication of work here in re-entering the data in State Election Commission computers. Our E –mail address is " secy.apsec@gmail.com".

The present Fax numbers and telephone numbers of control room of the State Election Commission are here under.

Fax Nos

1. 27544580 (State Election Commissioner peshi)
2. 27543121 (Secretary, SEC peshi)
3. 27544428 (Computer Section Telefax)
4. 27540623, 27540624 (Control Room Fax)

The State Election Commission has already posted information pertaining to the elections in the web-site such as notifications, clarifications, statutory forms, instructions to Election Officers, Election Law, Booklets etc., in the web-site. Hence all the officers are hereby instructed to make use of the web-site for necessary information pertaining to the elections. The address of the website is “www.apsec.gov.in”.

It is instructed to send all reports information relating to reservations, nominations and election results etc., through email in excel format at regular intervals of time.

The existing telephone numbers of the State Election Commission are as under.

	Office	**Res.**	**Mobile**
1. State Election Commissioner	27544500 27535858		
2. Navin Mittal, IAS, Secretary	27545350		80081-02067
3. A.V.Satya Ramesh, JS	27540623	27170983	98665-22584
4. P.Satyanarayana Reddy, JD (PR)	27540609		89786-00198
5. Sri N.Jayasimha Reddy, JD (M)	27538163		99495-88353
6 Sri G.V.Sai Prasad, AS (PR)	27543122		98897-74469
7 Sri S.Vishnu Prasad, AS(Admn.) & System Analyst	27544428		99590-90010
8 Reception	27543122 / 23		

Yours faithfully,

Sd/- Navin Mittal
Secretary

FOURTH ORDINARY ELECTIONS TO GRAM PANCHAYATS, 2013
REPORTS & RETURNS TO BE SENT TO THE STATE ELECTION COMMISSION BY THE DISTRICT COLLECTORS/ DPOs

ALL THE REPORTS TO BE SENT BY FAX AS WELL AS THROUGH E-MAIL

Report No	**Subject**	**Due on**
1.(a)	Confirmation of publication of election notices by Returning Officers concerned in Form 1 and report in Proforma I (To be sent by DPOs)	09.07.2013
(b)	Confirmation on display of ward –wise voter list on the notice boards of Gram Panchayats notified for elections on date of issue of election notice	09.07.2013
2.	Daily report of nominations in Proforma II (To be sent by DPOs)	Every day from 09.07.2013 to 13.07.2013
3.	Report on validly nominated candidates in Proforma III (To be sent by DPOs)	At the end of scrutiny of nominations on 14.07.2013
4.	Report in Proforma IV (a), IV (b) and IV (c) (To be sent by DPOs)	Immediately after the last date for withdrawal On 17.07.2013
5.	Confirmation on procurement of election material (To be sent by DPOs)	08.07.2013
6.	Confirmation on printing of ballot papers of Sarpanch & Ward Member, Gram Panchayat (To be sent by DPOs)	On or before 08.07.2013
7	Confirmation taking possession of ballot boxes and verification of their condition (To be sent by DPOs)	08.07.2013
8.	Confirmation on appointment and training of polling personnel (To be sent by DPOs)	On or before the last date of withdrawal
9.	Particulars of distribution and reception centres (To be sent by Collector)	On or before the last date of withdrawal
10.	Despatch of polling party and material (To be sent by Collector)	Day prior to the day of poll in all 3 phases
11.	Safe reaching of polling party and material to the polling stations (To be sent by Collector)	Evening of the day prior to the day of poll in all 3 phases
12.	Commencement of poll (To be sent by Collector)	On the day of poll in all 3 phases

13.	Percentage of poll (To be sent by Collector)	On the day of poll every 2 hours i.e., 9.00 AM, 11.00 AM, 1.00 PM.
14.	Commencement of counting of votes (To be sent by Collector)	Day of poll
15.	Report on poll incidents including special reports whether poll is adjourned or poll process is vitiated or any circumstances necessitating repoll etc. (To be sent by Collector)	On the night of the day of poll
16.	Declaration of results in Proforma V (a) & V(b) (To be sent by Collector)	At the end of counting
17.	Profiles of the elected candidates in proforma VI (a) & VI (b) (To be sent by Collector)	On or before . 05.08.2013
18.	Daily Law and Order reports (To be sent by Collector)	From the date of issue of notification till the day of declaration of results
19.	Report on verification of election expenditure accounts of candidates by designated authorities during campaign period (To be sent by the Collector)	As per the dates separately indicated by the State Election Commission
20.	Final report on submission of final returns of election expenses (To be sent by the Collector)	Within 45 days of declaration of results

PROFORMA – I Report on No. of Gram Panchayats notified for election

Sl.No.	Name of the District	No. of Gram Panchayat in the District	No. of Wards in the District	No. of Gram Panchayats for which election Notice was issued by the R.O.	No. of Wards for which election Notice was issued by the R.O.
1	2	3	4	5	6

PROFORMA -II Report on Filing of Nominations

S.No.	Name of the District	Sarpanchas		Ward Members	
		No. of Nominations filed today	Cumulative total No. of Nominations	No. of Nominations filed today	Cumulative total No. of Nominations
1	2	3	4	5	6

PROFORMA – III Report on No. of Validly Nominated candidates
(To be sent after scrutiny of nominations on 14.07.2013)

S.No.	No. of Gram Panchayats going to poll	No. of Wards going to poll	No. of validly nominated candidates for	
			Sarpanchas	Ward Members
1	2	3	4	5

PROFORMA – IV (a) Report on list of contesting candidates for Sarpanch

S. No	Name of the District	No. of Offices of Sarpanch notified for elections	No. of unanimous elected Sarpanch	Balance No. of offices of Sarpanch going to poll	No. of contesting candidates
1	2	3	4	(3) – (4) = 5	6

PROFORMA – IV (b) Report on list of contesting candidates for Ward Members

S. No	Name of the District	No. of Ward member notified for elections	No. of unanimous elected Wards	Balance No. of Wards going to poll	No. of contesting candidates
1	2	3	4	(3) – (4) = 5	6

PROFORMA – IV (c) Report of Unanimous elected candidates

S. No	Name of the District	Name of the Gram Panchayat	Name of the unanimously elected Sarpanch	Name of the Unanimously elected Ward Member (indicated ward no. in brackets)	Remarks (specify if entire body of Gram Panchayat is elected unanimously in this coloum)
1	2	3	4	5	6

PROFORMA - V (a) Report on declaration of result of Sarpanch, Gram Panchayat

To be sent on date of declaration of result on 23.07.2013, 27.07.2013 and 31.07.2013.

S.No.	Name of the District	Name of Mandal Parishad	Name of the Gram Panchayat	Names of the candidate declared elected
1	2	3	4	5

PROFORMA - V (b) Report on declaration of result of Ward Members, Gram Panchayat

To be sent on date of declaration of result 23.07.2013, 27.07.2013 and 31.07.2013`.

S.No.	Name of the District	Name of Mandal Parishad	Name of the Gram Panchayat	Names of the candidate declared elected
1	2	3	4	5

PROFORMA - VI (a) Report on declaration of result of uncontested election for the office of Sarpanch, Gram Panchayat

S.No.	Name of the District	Name of Mandal Parishad	Name of the Gram Panchayat	Name of the Person declared elected	reservation	If the office is unreserved category , specify the category of elected candidate (UR/SC/ST/BC)	Educational qualifications of the candidate	Age	Male / female	Present occupation
1	2	3	4	5	6	7	8	9	10	11

PROFORMA - VI (b) Report on declaration of result of uncontested election for the office of Ward Member, Gram Panchayat

S.No.	Name of the District	Name of Mandal Parishad	Name of the Gram Panchayat	Name of the Person declared elected	Reservation	If the office is unreserved category , specify the category of elected candidate (UR/SC/ST/BC)	Educational qualifications of the candidate	Age	Male / female	Present occupation
1	2	3	4	5	6	7	8	9	10	11

PROFORMA - VII (a) Report on declaration of result of Sarpanch, Gram Panchayat

S. No.	Name of the District	Name of Mandal Parishad	Name of the Gram Panchayat	Names of the candidate declared elected	reservation	If the office is unreserved category , specify the category of elected candidate (UR/SC/ST/BC)	Educational qualifications of the candidate	Age	Male/ female	Present occupation
1	2	3	4	5	6	7	8	9	10	11

PROFORMA - VII (b) Report on declaration of result of Ward Members, Gram Panchayat

S.No.	Name of the District	Name of Mandal Parishad	Name of the Gram Panchayat	Names of the candidate declared elected	reservation	If the office is unreserved category , specify the category of elected candidate (UR/SC/ST/BC)	Educational qualifications of the candidate	Age	Male/ female	Present occupation
1	2	3	4	5	6	7	8	9	10	11

ANNEXURE – XXVIII

STATEMENT SHOWING THE NO. OF BALLOT BOXES AVAILABLE AND REQUIRED FOR CONDUCT OF PR ELECTIONS

Sl. No.	Name of the District	Voting Strength	No of Poling Stations for GPs	No. of Polling Stations MPTC/ZPTC	Total No. of Ballot Boxes Available	No. of Boxes Additionally given from GHMC	No. of Boxes Additionally given from Karnataka State	Total No. of Ballot Boxes (6+7+8)
1	2	3	4	5	6	7	8	9
1	Adilabad	1339393	8544	1803	3919	553		4472
2	Anantapur	1958608	10378	2395	6952	0		6952
3	Chittoor	2124552	13241	2863	6148	0		6148
4	East Godavari	2481293	10905	3154	8126	0	407	8533
5	Guntur	3065504	10675	3019	9168	0		9168
6	Karimnagar	2065514	11700	2588	3112	0	2300	5412
7	Khammam	1442248	7920	1865	4628	150		4778
8	Krishna	1992791	10178	2593	6077	1000		7077
9	Kurnool	1919346	9328	2371	3211	0	1000	4211
10	Mahabubnagar	2312512	13098	2951	3921	0	3695	7616
11	Medak	1657342	10332	2185	4254	300	1000	5554
12	Nalgonda	2037617	11532	2681	6214	0	650	6864
13	Nizamabad	1347724	7298	1695	4990	887		5877
14	Prakasham	1859823	10269	2509	5968	0		5968
15	Ranga Reddy	1513066	7164	1840	2875	0	1520	4395
16	SPSR Nellore	1392172	8858	1887	4472	800		5272
17	Srikakulam	1563838	10448	2092	4733	0	1000	5733
18	Visakhapatnam	1549093	9242	1933	5792	0		5792
19	Vizianagaram	1323334	8802	1786	3121	2000		5121
20	Warangal	1762755	9718	2199	5592	0		5592
21	West Godavari	2148462	9786	2730	4214	1625	1161	7000
22	YSR District	1339393	7774	1768	4531	0		4531
	Total	**40196380**	**217190**	**50907**	**112018**	**7315**	**12733**	**132066**

ANNEXURE – XXIX

STATE ELECTION COMMISSION

3rd Floor, Buddha Bhavan, M G Road, Secunderabad – 500 003

Dr. G.M.Ramesh Kumar
Secretary(FAC)

Office: 27545350, 27543587
E-mail: secy_apsec@ap.gov.in
Website: www.apsec.gov.in

Lr. No.438/SEC-B2/2011, **Dated:27.5.2011**

To
All the District Collectors & District Election Authorities

Sir,

Sub:- Elections – 4th Third Ordinary Elections to Gram Panchayats - 2011- Printing of ballot papers of Sarpanch and Ward Member, Gram Panchayats – Entrusted to the District Collectors –Instructions – Issued – Reg.

Ref:- State Election Commission Lr. No. 147/SEC-B1/2011, dated 17.5.2011 addressed to the Commissioner of Printing, Stationery and Stores Purchase under copy to all the DPOs.

***

The State Election Commission has already initiated steps for holding 4th ordinary elections to Gram Panchayats before the expiry of their term in August, 2011. The elections to Gram Panchayats will be conducted using ballot boxes and ballot papers.

A decision was taken to decentralize the work of printing of ballot papers for Sarpanch and Ward Member of Gram Panchayat elections and entrust the responsibility to the district administration to get the ballot papers printing locally in private offset printing presses as was done for Ward Mender ballot paper during last ordinary elections to Gram Panchayats.

Accordingly, following instructions are hereby issued for the guidance of District Collectors –

I. Identification of Presses:

The District Collector should take immediate action to identify off set printing presses for printing of ballot papers of Sarpanch and Ward Member of Gram Panchayats. The work relating to printing of ballot paper may commence well in advance of finalization of list of contesting candidates as the elections to gram Panchayats are held on non party basis. Keeping in view of the voters strength, the District Collectors shall identify the required number of offset printing presses to complete the printing of ballot papers within time. There is no objection if the work of printing of ballot papers of one district is entrusted to the printers in the neighboring districts. The following precautions may be taken during the identification of printing presses –

(i) The Proprietors of the printing presses should be ready to enter into agreement in the proforma indicated in the Annexure.
(ii) The Proprietors of the printing presses should not be a contesting candidate or a close relative of any of the contesting candidates or a known supporter of any political party.
(iii) The District Collectors shall take control of the security of the private press for security and secrecy purposes during the period when printing of ballot papers is undertaken in the printing presses.

II. Supply of Paper:

The State Election Commission decided that the colour of the ballot paper of **Sarpanch shall be pink wove paper and for Ward member shall be white wove paper**. The State Election Commission has already requested the Commissioner of Printing, Stationery and Stores Purchase to procure pink and white wove paper and arrange to deliver the required quantity of paper directly to the respective District Collectors by 25.6.2011.

III. Supply of CD containing symbols:

The Commissioner of Printing, Stationery and Stores Purchase or the State Election Commission will arrange for supply of CD, containing free symbols reserved for the post of Sarpanch and ward member, gram Panchayat to the District Collectors shortly.

IV. Rates for printing:

The District Collectors shall finalise the rates for printing of ballot paper of various denomination through District Purchase Committee as was done previously by calling tenders.

V. Supervision at the Presses:

The District Collectors shall take action to deploy competent officers for supervision of the work of printing of ballot papers of Sarpanch and Ward member of gram Panchayats at the private presses. The District Collectors shall also review the progress of the work regularly during the period when printing work is undertaken to ensure that the work is completed within the time frame.

VI. Security at the press:

The security arrangements at the private presses, where printing is done, shall be made by the District Collectors by posting adequate police personnel. In the extremist infested areas, District Collectors may take adequate measure for the safety and security of the ballot paper both at the printing press as well as at the place of storage. The workers at the press shall be issued passes. No unauthorised person is allowed entry inside the press when this work is taken up. All employees coming and going including employees of the presses and public servants on duty at the presses should be frisked.

VII Additional Precautions to be taken at the time of printing:

1. After completion of printing, the files related to layouts of ballot papers shall be erased from the hard disk of computers used.
2. The computers used for preparing layout of ballot papers shall not be networked.
3. C.Ds containing symbols shall be taken back from printer after printing is over and be kept in safe custody**.**
4. **The District Collectors are also authorised to take any other precautions as may be necessary**.

VIII. Specifications for printing of ballot papers:

The following instructions are issued in connection with printing of ballot papers of Sarpanch and Ward member of Gram Panchayats in telugu.

1. Every ballot paper will have a counter foil attached to it. The counterfoil shall be at the top of the ballot paper and its depth should ordinarily not exceed 15 ems.
2. a). The Ballot Paper for Sarpanch counter foil may be numbered by automatic numbering machine and where such machines are not available, numbering may be done by hand operated machines. The numbering on the ballot paper of different denominations shall be as shown in the table below.

Ballot Paper containing	**Numbers should start with**
2 Symbol	A 0000001
4 Symbol	B 0000001
6 Symbol	C 0000001
8 Symbol	D 0000001
10 Symbol	E 0000001
12 Symbol	F 0000001

An alphabet should be prefixed to the serial number of ballot paper of each denomination as indicated above. For higher denomination the next alphabet to be prefixed to serial number start with 0000001.

b) The ballot paper for Ward Member counterfoil may be numbered by automatic numbering machine and where such machines are not available, numbering may be done by the hand operated machines. The numbering on ballot paper of ward member shall start with 000001.

c)

3. **The counterfoil shall contain the following -**
   (i) Space for stitching at the top of the counterfoil.
   (ii) A black border of 1 em at the top of the counterfoil.
   (iii) The particulars of election shall be printed in telugu immediately below, as follows –

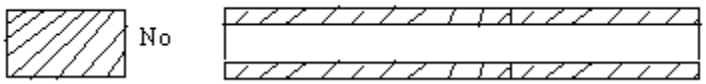
iv) The counterfoil will contain space on the left side for entering the electoral roll part number and serial number of the elector.

v) The serial number shall be printed on the lower left-hand side of the counter foil. The words "signature / thumb impression" shall be printed on the lower right-hand side of counter foil. Leave some place for signature or thumb impression of the elector just above the words "signature/thumb impression".

vi) There shall be one chain border of 1em width and a perforated rule/disjointed straight line below it, for separating the ballot paper from the counterfoil.

4. There shall be one chain border of line of 1 em below the perforated rule/disjointed line on the ballot paper.

5.(i) It may be noted that the names of the contesting candidates will not be printed on the ballot papers. The front face of the ballot paper will contain the serial numbers of candidates and the symbols. The serial number of the ballot paper and particulars of election specified above at para 3 (iii) shall be printed on the first shaded area. The serial number on the ballot paper which shall be the same number indicated on counter foil may be printed on the left hand side and the particulars of election on the right hand side in the central space of shaded area as indicted below –



(ii) The width of the ballot paper will be between 3" & 4" as may be considered convenient for printing the ballot paper.

(iii) The serial number of candidate will appear on the left side and the symbol on the right side in a panel.

(iv) The width of the space allotted to each candidate will be 6.5 ems. and the width of the shaded area between the space allotted to any two candidates will be 3 ems. There will be a thick black border of 1 cm. width at the bottom.

(v) The size of the each symbol will be not more than 9 ems x 5 ½ ems.

(vi) Where the number of contesting candidates is nine and below, the ballot paper shall be printed in one column. And where the number of contesting candidates exceeds nine, the ballot paper shall be printed in two or more columns depending upon the number of contesting candidates. The width of the ballot paper and its counterfoil, shall also then depends upon the number of columns which are provided on the ballot paper. Each column shall be separated from the other by a shaded area of 2.5 ems width from top to bottom. If the number of contesting candidates is not exactly divisible by the number of candidates in each column, the end panels on the right side of the ballot paper, which do not contain the name of any candidate will be completely shaded.

Where the number of contesting candidates is more than nine and upto 26 the ballot paper shall be printed in two columns as shown in the following table:

No. of contesting Candidates	**First Column**	**Second Column**
10	5	5
11	6	5
12	6	6
13	7	6
14	7	7
15	8	7
16	8	8
17	9	8
18	9	9
19	10	9
20	10	10
21	11	10
22	11	11
23	12	11
24	12	12
25	13	12
26	13	13

Where number of contesting candidates exceeds 26 and upto 39 the ballot paper shall be printed in 3 (three) columns; the width of the ballot paper and its counterfoil shall be the thrice the width of the ballot paper of single column, as specified above, and between every two columns along the middle, there shall be shaded area vertical from top to bottom of 2.5 ems width. Similarly, if the number of contesting candidates is between 39 and 52 the ballot paper should be printed in 4 columns. The number of candidates in each column in multi-columned ballot paper shall not exceed 13.

(vii) The ballot papers have to be stitched into bundles of 50 each with consecutive serial numbers. However, 5% of the ballot papers be made into bundles of 10 each to facilitate issue of ballot papers to the polling station rounded off to nearest ten. It shall be ensured that the serial number on each ballot paper and its counterfoil is identical.

IX. Number of ballot papers:

Printing of ballot paper of higher denominates after finalization of list of candidates:

a) Sarpanch:

Advance action may be taken now for printing of ballot papers containing maximum number of 20 symbols. However, after finalization of list of contesting candidates as per election schedule to be notified by the State Election Commission, there may be necessity for printing of ballot papers of Sarpanch containing more than the maximum number of symbols printed now in advance. To meet such a contingency, arrangements have to be made to under take printing of ballot papers of Sarpanch, wherever necessary, from the date of finalization of list of contesting candidates.

b) Ward Member:

The number of ballot papers required for each Ward may be worked out with 10 percent reserve and rounded off to the nearest 50. The number of ballot paper to be supplied to each polling station should be equal to the number of the voters allotted to the polling station rounded off to the nearest 10.

X. Cutting off ballot papers wherever necessary:

Since the ballot papers are printed well in advance of finalisation of the list of the contesting candidates, where (3) contestants are in the field the last symbol of ballot papers should be cut off from the ballot papers with 4 symbols, likewise(5) and (7) should also be cut off accordingly to the need under tight security. This should be done very carefully, so that there may not be any wastage of ballot papers.

However, after finalisation of the list of the contesting candidates as per the election schedule to be notified by the State Election Commission, there may be necessity for printing of ballot paper of Sarpanch and Ward Member containing more than the maximum number of symbols provided in advance. To meet such contingency, arrangements have to

be made to undertake printing of ballot papers of Sarpanchas and Ward Members in one or two presses, wherever necessary, after finalisation of list of contesting candidates.

The District Collectors are requested to take immediate action to identify the offset printing presses and to finalise the rates as per the instructions issued above and send compliance report to the State Election Commission along with the rates finalised for printing of ballot paper of Sarpanch and Ward Member of Gram Panchayats.

Yours faithfully,
Sd/- G.M.Ramesh Kumar
Secretary

Copy to:
All the District Panchayat Officers for information and necessary action.
The Commissioner of Panchayat Raj and Rural Employment, Hyderabad.
The Principal Secretary to Government, Panchayat Raj and Rural Development Department.
The Commissioner of Printing, Stationery & Stores Purchase, Hyderabad.

ANNEXURE

(G.O.Ms.No.95, P.R.R.D & R (Elecs.II) Dept., dt.19.2.1995)

Terms and Conditions of agreement

1. The Proprietor will not undertake any other printing work during the period in which the printing of ballot papers work entrusted till it is completed.
2. The workers in the press including the Proprietors / Partners who attend to the printing work will not leak out the information pertaining to ballot papers nor do they take out any ballot paper or printed matter outside the premises of the press during the period of printing of ballot papers.
3. The papers and metallic symbol blocks supplied by the State Election Commissioner will be used only for the Government work and not for any other work.
4. The Proprietor will undertake to complete thee printing work of ballot papers at the rates prescribed by the Purchase Committee constituted in Govt. Memo. No. 5043 / Elecs.II/95-1, Panchayat Raj Rural Development & Relief Department, dt.6.2.1995, within the time schedule prescribed by the said committee by engaging more number of workers if need be.
5. Except thee workers, proprietors / partners in the press and the officials drafted to supervise the work of printing of ballot papers and police personnel deputed for security, no person will be allowed inside the press till the printing of ballot papers work is over.
6. The Proprietors will undertake the responsibility to ensure smooth functioning of the press during the printing of ballot papers.
7. The Proprietors and the workers will undertake to wear the badges supplied by the Election Officers in the Press during working hours and they should be produced either to police personnel or officers drafted for duty whenever they go out/from/or enter the premises of the press.
8. If any Proprietor/worker in the press takes out any material supplied by the Government for the purpose of printing of ballot papers, he is liable for prosecution and there shall be no bar in handing over such a person to the police custody for taking appropriate action as per law.
9. The Proprietor is liable to pay penalty imposed by the District Collector …… ……. for the breach of any as arrears of land Revenue.

Read over by me and affixed my signature in taken of having accepted all the above terms and conditions in the presence of …….

Signature

Place: Partner / Proprietor

Name and Address of the Press

Dated:

"Before me"

Officer (as nominated by District Collector)

ANNEXURE – XXX

Abstract Statement of No. of Polling Stations covered by web casting during Gram Panchayat Elections, 2013

Sl. No.	Name of District	No. of Polling Stations
1	**2**	**3**
1	Adilabad	255
2	Anantapur	76
3	Chittoor	90
4	East Godavari	1075
5	Guntur	120
6	Krishna	327
7	Karimnagar	267
8	Khammam	48
9	Kurnool	425
10	Medak	350
11	Mahabubnagar	201
12	Nellore	455
13	Nalgonda	33
14	Nizamabad	281
15	Prakasham	300
16	Ranga Reddy	128
17	Srikakulam	65
18	Visakhapatnam	93
19	Vizianagaram	111
20	Warangal	725
21	West Godavari	451
22	YSR District Kadapa	340
	Total No. of Polling Stations	**6216**

ANNEXURE – XXXI

District wise break up of contesting candidates for Sarpanch

Sl. No.	Name of the District	No. of Offices of Sarpanch notified for elections	No. of unanimous elected Sarpanch	No. of No Nominations filed	Balance No. of offices of Sarpanch going to poll	No. of contesting candidates
1	**2**	**3**	**4**	**5**	**(3)–(4) -(5)= 6**	**7**
1	Adilabad	866	84	5	777	2907
2	Anantapur	1003	67	1	935	2760
3	Chittoor	1357	293	4	1060	3163
4	East Godavari	962	80	2	880	2709
5	Guntur	1010	162	2	846	2239
6	Karimnagar	1207	58	1	1148	4876
7	Khammam	758	39	7	712	2192
8	Krishna	969	134	1	834	2309
9	Kurnool	883	132	0	751	2229
10	Mahabubnagar	1324	108	1	1215	3841
11	Medak	1066	69	2	995	3239
12	Nalgonda	1169	103	6	1060	3074
13	Nizamabad	718	73	0	645	2477
14	Prakasham	1020	182	3	835	2218
15	Ranga Reddy	649	40	1	608	2073
16	SPSR Nellore	931	203	4	724	1787
17	Srikakulam	1095	221	4	870	2166
18	Visakhapatnam	920	70	23	827	2677
19	Vizianagaram	921	134	4	783	1960
20	Warangal	944	86	3	855	2970
21	West Godavari	884	142	4	738	2154
22	YSR District	785	162	0	623	1838
	Total	**21441**	**2642**	**78**	**18721**	**57858**

ANNEXURE – XXXI(A)

District wise break up of contesting candidates for Ward Member

Sl. No.	Name of the District	No. of Ward member notified for elections	No. of unanimous elected Wards	No. of No nominations filed	Balance No. of Wards going to poll	No. of contesting candidates
1	2	3	4	5	(3)–(4) -(5)= 6	7
1	Adilabad	8732	3060	67	5605	13841
2	Anantapur	10450	3204	94	7152	16511
3	Chittoor	13102	7335	139	5628	11737
4	East Godavari	10742	3239	19	7484	17625
5	Guntur	10654	3438	40	7176	15716
6	Karimnagar	11928	2549	17	9362	25596
7	Khammam	7886	728	35	7123	18509
8	Krishna	9904	2761	33	7110	17422
9	Kurnool	9446	1582	157	7707	15531
10	Mahabubnagar	13464	1794	10	11660	27208
11	Medak	10444	1416	10	9018	23707
12	Nalgonda	11686	1400	1	10285	25595
13	Nizamabad	7424	2301	24	5099	12907
14	Prakasham	10302	3024	32	7246	11571
15	Ranga Reddy	6518	819	13	5686	15446
16	SPSR Nellore	8834	3181	52	5601	12379
17	Srikakulam	10496	4986	29	5481	11902
18	Visakhapatnam	9214	2444	150	6620	15101
19	Vizianagaram	8764	2751	61	5952	12740
20	Warangal	9590	1440	27	8123	21572
21	West Godavari	9684	3309	20	6355	14737
22	YSR District	7724	3194	61	4469	9844
	Total	**216988**	**59955**	**1091**	**155942**	**367197**

ANNEXURE – XXXII

STATE ELECTION COMMISSION

3rd Floor, Buddha Bhavan, M G Road, Secunderabad – 500 003

O R D E R

No.887/SEC-B2/2013-1, **Date:9.7.2013**

Sub:- 4th ordinary elections to Gram Panchayats – Delegation of powers to the Collectors & District Election Authorities to order for fresh poll (repoll) or continuation of adjourned poll – Orders – Issued.

***

The Andhra Pradesh Panchayat Raj Act, 1994 contains provisions covering different situations where continuation of an adjourned poll or a fresh poll (repoll) has to be ordered. Under section 225B where election proceedings are obstructed by any riot or open violence, the Presiding Officer shall announce adjournment of the poll and inform the Returning Officer. The Returning Officer in turn has to report the circumstances to the District Election Authority and the State Election Commission. Thereafter, with the previous approval of the State Election Commission, the Returning Officer has to appoint the day on which the poll shall recommence.

Under section 225C where ballot box used at a polling station is unlawfully taken out of the custody of the Presiding Officer or the Returning Officer, or is accidentally or intentionally destroyed or lost or is damaged or tampered with, to such an extent, that the result of the poll at that polling station cannot be ascertained or any such error or irregularity in procedure as is likely to vitiate the poll is committed at a polling station, the Returning officer shall forthwith report the matter to the State Election Commission who shall after taking all material circumstances into account either declare the poll at the Polling Station as void or order a fresh poll (repoll).

Under section 225D, if any time before the counting of votes is completed any ballot papers used at a Polling Station are unlawfully taken out of the custody of the Returning Officer or accidentally or intentionally destroyed or lost or damaged or tampered with to such an extent that the result of the poll at the

polling station cannot be ascertained, the Returning Officer shall forthwith report the matter to the State Election Commission and State Election Commission shall after taking all material circumstances into account direct the counting of votes shall be stopped and declare the poll at the polling station to be void and fix the day and hours for taking fresh poll (repoll).

Under section 231 where booth capturing takes place, the Returning Officer shall forthwith report the matter to the State Election Commission who in turn after considering the report of the Returning Officer either declare the poll at that polling station as void and appoint a day and fix the hours for taking fresh poll (repoll) or where the large number of polling stations are involved in booth capturing even countermand the election in that Gram Panchayat.

The State Election Commission in its Notification No. 390/SEC-F/2000-1, dated 3.3.2000 (Page 159 to 161 of the Compendium of Instructions) assumed powers to order for a repoll in the polling stations where tendered votes are not less than 2% of the total number of votes polled in any polling station. In such cases, the Returning Officer is required to report to the Commission the polling stations where the tendered votes are not less than 2% of the total number of votes polled and on receipt of such report it shall be competent to the Commission to order repoll in such polling stations.

In rule 54 & 55 of the APPR (Conduct of Elections) Rules, 2006 procedural instructions were issued regarding continuation of the adjourned poll and fresh poll (repoll).

Ordinary elections to Gram Panchayat is a massive exercise involving about 21,491 offices of Sarpanch and 2,17,578 Wards for which 2,19,753 polling stations were set up in all the Gram Panchayats in the State. It would be extremely difficult for the Presiding Officers and Returning Officers to send the report to the Commission and seek orders under various provisions of law referred to above.

Therefore, it is considered that the powers of the State Election Commission under Article 243K of the Constitution of India and Sections 225B, 225C, 225D and 231 of APPR Act, 1994 should be delegated to the Collectors & District Election

Authorities, so that the Presiding Officer/Returning Officers will be able to quickly communicate with the Collectors & District Election Authorities concerned and seek their orders under various provisions of law referred to above.

In the above circumstances and in exercise of the powers conferred under Article 243K of the Constitution of India and section 232 of APPR Act, 1994 the State Election Commissioner, hereby, delegates the powers conferred on him under sections 225-B, 225-C, 225-D and 231 of the APPR Act, 1994 to the Collectors and District Election Authorities to take decisions to order for continuation of adjourned poll or fresh poll (repoll) at any polling station located in the Gram Panchayats within their district after considering the report of the Presiding Officer/Returning Officer and to notify the date and time as deemed convenient for such continuation of adjourned poll or for taking a fresh poll (repoll) in contingencies described in the said sections.

The Collectors & District Election Authorities shall send intimation to the State Election Commission in respect of every case of continuation of adjourned poll or fresh poll (repoll) immediately.

Sd/- P.Ramakanth Reddy
State Election Commissioner

To
All the Collectors and District Election Authorities.
Copy to
The Commissioner of Panchayat Raj and Rural Employment & Election Authority.
All the District Panchayat Officers.

ANNEXURE – XXXIII

District wise break up of Sarpanchas and All Offices of Gram Panchayats declared elected Unanimously

Sl. No.	Name of the District	All Offices	Sarpanch
1	**2**	**3**	**4**
1	Adilabad	76	84
2	Anantapur	63	63
3	Chittoor	293	302
4	East Godavari	67	80
5	Guntur	144	162
6	Karimnagar	41	58
7	Khammam	30	39
8	Krishna	116	134
9	Kurnool	132	139
10	Mahabubnagar	91	109
11	Medak	62	69
12	Nalgonda	73	103
13	Nizamabad	63	74
14	Prakasham	157	171
15	Ranga Reddy	31	40
16	SPSR Nellore	191	200
17	Srikakulam	202	221
18	Visakhapatnam	70	74
19	Vizianagaram	128	139
20	Warangal	73	86
21	West Godavari	129	140
22	YSR District	155	162
	Total	**2387**	**2649**

ANNEXURE – XXXIV

GENERAL OBSERVERS

Sl.No.	Name Sri/Sarvasri	District allotted
1	K.Praveen Kumar,I.A.S.(RR) (1990), Commissioner, Fisheries	Prakasham
2	Rajat Kumar,I.A.S.(RR) (1991), Commissioner, Industries	Ranga Reddy
3	Harpreet Singh, I.A.S.(RR)(1991) Spl. Commissioner (CT)	Karimnagar
4	Ajay Jain,I.A.S.,(RR) (1991) Commissioner, Technical Education	Ranga Reddy
5	M.Jagadeeshwar, I.A.S.(SCS) (1993) Commissioner, Distilleries & M.D., A.P. Beverage Corporation	Mahabubnagar
6	P.Pardhasarathi,I.A.S., Project Director, Aids Control Society, Hyderabad	Kurnool
7	V.N.Vishnu,I.A.S.(SCS)(1993), VC&MD, A.P.State Warehousing Corporation Limited.	Kurnool
8	D.Kadmiel,I.A.S. (SCS) (1993) M.D., A.P.State Coop.Marketing Federation	Krishna
9	Mohd.Ali Rafath, I.A.S.(SCS)(1994) M.D., A.P.Dairy Devp.Coop.Federation Limited.	Warangal
10	Sanjay Kumar, I.A.S.(RR) (1995), Member, Secretary, A.P.Pollution Control Board.	Medak
11	G.Jaya Lakshmi, I.A.S.(RR) (1995), Commissioner, Employment and Training	Medak
12	K.Devanand,I.A.S.(SCS) (1995), VC & MD, A.P.Rajiv Swagruha Corpn. Limited	West Godavari
13	B.Ramanjaneyulu, I.A.S.(SCS)(1995), Commissioner, Labour	East Godavari
14	Muddada Ravichandra,I.A.S.(RR) (1996), M.D., APHM & HIDC	SPSR Nellore
15	B.Janardhan Reddy,I.A.S. (SCS) (1996), Commissioner & Director, Municipal Administration.	Mahabubnagar
16	L.Shashidar, I.A.S.(SCS) (1996), VC &MD, A.P.Agro Industries Corporation	YSR Kadapa

Sl.No.	Name Sri/Sarvasri	District allotted
17	G.Venkataram Reddy, I.A.S. (SCS) (1997), Director, Marketing	East Godavari
18	Sandeep Kumar Sultania,I.A.S.(RR) (1998), Waiting for posting	Karimnagar
19	Anita Rajendra, I.A.S.(SCS)(1998), VC &MD, A.P. Industrial Development Corporation Limited.	YSR Kadapa
20	Dr.M.Jagan Mohan,I.A.S.(SCS)(1999), Joint Commissioner, Horticulture	Ananthapur
21	Cholleti Prabhakar,I.A.S.(2000), Director, DW & Sr. Citizens	Ananthapur
22.	KRBHN, Chakaravarthy, I.A.S. (SCS) 2001, Director, Youth Services	Prakasham
23	G. Ravi Babu,I.A.S.(SCS) (2002), Director, Civil Supplies	Adilabad
24	T.Chiranjeevulu,I.A.S.(SCS)2002, Director, Handlooms & T &AEP	Adilabad
25	Ch.Vijaya Mohan,I.A.S. (SCS) (2003), M.D. A.P.Foods	SPSR Nellore
26	N. Krishna,I.A.S.(SCS) (2003), VC&MD, APBC, Finance Corporation	Guntur
27	K.V.Ramana,I.A.S.(SCS)(2003), CEO, A.P.Kadi & Village Industries Work.	Guntur
28	Dr.P.Lakshminarasimham,I.A.S.(SCS) (2003), Jt.secretary, O/o CCLA	Vizianagaram
29	P.Satyanarayana,I.A.S.(SCS), VC & MD, A.P.T.S.	Vizianagaram
30	Bhaskar Katamneni,I.A.S.,(RR) (2004), Project Director, A.P. Municipal Development Project, Hyderabad	Chittoor
31	Mohd.Abdul Azeem,I.A.S., (SCS) (2004), Dy.Secretary, YAT&C	Srikakulam
32	T.K.Sreedevi,I.A.S., (RR)(2004), Director, Resettlement & Rehabilitation & E.O., Joint Secretary to Government, I&CAD.	Chittoor

Sl.No.	Name Sri/Sarvasri	District allotted
33	I.Samuel Anand Kumar,I.A.S, Project Director, Outer ring Road, Hyderabad	Nalgonda
34	Bala Maya Devi,I.A.S.(SCS)(2004), Dy.Secretary to government, WD&CW D&SC Department	Srikakulam
35	Anita Ramachandra,I.A.S.(SCS)2004, Mission Director, MEPA.	Krishna
36	K.V.Satyanarayan (SCS),I.A.S.,2004, Secy, APTWREIS (Gurukulam, A.P.	Nalgonda
37	M.Rama Rao (SCS),I.A.S, V.C. VCTMUDA	West Godavari
38	Ch.Sridhar,I.A.S. (SCS), Spl. Commissioner, APHB	Khammam
39	M.V.Seshagiri Babu,I.A.S.(SCS), P.D., Bhu Bharati.	Khammam
40	K. Sharada Devi, I.A.S., Director, DW & SC	Nizamabad
41	BMD Ekka, I.A.S., Commissioner, Sugar	Warangal
42	Venkatesham, I.A.S., MD, APSIIC & Commr., WHASP	Nizamabad
43	M. Raghunandan Rao, I.A.S., CEO, EGMM	Visakhapatnam
44	R.V.Chandravadan, I.A.S., Jt. Dir. Genl., Dr. MCRHRDI	Visakhapatnam
45	B.Udayalakshmi, I.A.S., Commissioner, Social Welfare	Reserve
46	B. Bharati Lakpati Naik,I.A.S. Dy.Secretary, GA (GPM&AR)Department	Reserve
47	Parvati Subrahmanyam, I.A.S., Jt. Commr., O/o. CCLA, CKRR Committee.	Reserve
48	Sabyasachi Ghosh, I.A.S., Industries & Commerce Dept.,	Reserve
49	V. Usha Rani, I.A.S., SPD, Rajiv Vidya Mission and CEO, SLM	Reserve

Sd/- P.Ramakanth Reddy
State Election Commissioner

EXPENDITURE OBSERVERS

Sl.No.	Name of the Officer	District allotted
1	Sri Ashok Kumar Sinha, IFS, Regional Manager, APFDC Ltd., Nellore	Nellore
2	Dr. K.Gopinatha, IFS., Conservator of Forests, STC, Hyderabad.	Nizamabad
3	Sri P.V.Chalapathi Rao, IFS., Conservator of Forests, WLM Circle, Tirupati.	Chittoor
4	Sri J.S.N.Murthy, IFS, Regional Manager, APFDC Ltd., Rajahmundry	East Godavari
5	Sri D.Nagabhushanam, IFS., Divisional Forest Officer, Hyderabad.	Ranga Reddy
6	Sri N.Chandra Mohan Reddy, IFS., Dy. CF/Addl. Commissioner (Parks), GHMC, Hyderabad.	Nalgonda
7	Sri G.Narsaiah, IFS., Divisional Forest Officer, Karimnagar West.	Karimnagar
8	Sri K.Lohitasyudu, IFS., Divisional Forest Officer, Social Forestry, Visakhapatnam.	Vizianagaram
9	Dr. C.Saravanam, IFS., Divisional Forest Officer, Markapur (WL),	Prakasham
10	Sri Akoijam Sonibala Devi, IFS., Regional V & E.O, Vijayawada.	Krishna
11	Sri B.Srinivas, IFS., Dy. CF/ED, AP. Tourishm Dev. Co. Ltd., Hyderabad.	Warangal
12	Sri P.S.Srinivasa Sastry, IFS., Dy. CF / State Silviculturist, Tirupati.	Guntur
13	Sri B.Shafiullah, IFS., Divisional Forest Officer, SF, Hyderabad.	Mahabubnagar

Sl.No.	Name of the Officer	District allotted
14	Smt. Priyankaa Varghese, IFS., State Silviculturist, Hyderabad.	Medak
15	Sri P.Subba Raghavaiah, IFS., Divisional Forest Officer, Ananthapur.	Ananthapur
16	Sri C.P.Vinod Kumar, IFS., Divisional Forest Officer, Nirmal.	Adilabad
17	Dr. S.Ramesh, IFS., Forest Geneticist, Warangal.	Srikakulam
18	Sri P.Ram Mohan Rao, IFS., Divisional Forest Officer, Narsipatnam.	Visakhapatnam
19	Sri S.Srikantanatha Reddy, IFS., Divisional Forest Officer, Chittoor (West).	West Godavari
20	Sri B.N.N.Murthy, IFS., Divisional Forest Officer, Kadapa.	Kadapa
21	Sri B.Mohammed Diwan Mydeen, IFS., Divisional Forest Officer, (WL), Atmakur	Kurnool
22	Sri V.S.N.V.Prasad, IFS., Divisional Forest Officer, Khammam.	Khammam
23	Sri Ratnakar Jauhari, IFS, Regional Manager, APFDC Ltd., Visakhapatnam	Reserve

Sd/- P.Ramakanth Reddy
State Election Commissioner

ANNEXURE – XXXV

STATE ELECTION COMMISSION

3rd Floor, Buddha Bhavan, M.G. Road, Hyderabad-500003, A.P.

Navin Mittal, IAS
Secretary

Off: 27545350, 27543122
Fax: 27544580, 27544428
Email: secy.apsec@gmail.com
Website: www.apsec.gov.in

Lr.No. 660/SEC-B2/2013 **Date: 03.7.2013**

To
All the Collectors and District Election Authorities.

Sir/Madam,

Sub: State Election Commission – 4th ordinary elections to Gram Panchayats – Appointment of Observers – Facilities to be provided to the Observers by the District Administration – Reg.
Ref: SEC Notification No. 757/SEC-B2/2013, dated 03.7.2013.

***

The State Election Commission issued a Notification for conduct of ordinary elections to the Gram Panchayats in the State on 03.7.2013. The election process will commence in the Gram Panchayats with the publication of Election Notice by the Returning Officers concerned on 09.7.2013. From that date onwards, nominations are to be received.

The State Election Commission, in exercise of the powers conferred under Article 243K of the Constitution of India read with Sec. 232A of the A.P. Panchayat Raj Act, 1994, appointed two IAS Officers as General Observers and one IFS Officer as Expenditure Observer for each District to oversee the election process of Gram Panchayats. The names of the Observers and the Districts to which they are allotted are indicated in the Annexure appended to this letter.

I request you to provide the following facilities to the Observers during their stay in the District.

1. The Observers should be given reliable and dependable transport from the nearest Railway Station / Airport to the District to which an Observer has been deputed and for his movement in the District.

2. The Observers should be provided with a minimum security of a PSO/Gunman. However, if in the assessment of the Collector and

SP/CP, there is need for a higher level security, suitably enhanced security may be provided.

3. No escort car / pilot or advance pilot is to be given to the Observer unless Collector and SP/CP feel otherwise.

4. In addition to the PSO/Gunman, the Observer should be provided with a local Liaison Officer in the cadre of a Dy. Tahsildar who is aware of the terrain.

5. Food arrangements should be made by the District administration to the Observer, PSO/Gunman, driver and the local official in a manner that would allow the Observer full freedom of movement as he desires.

6. If the Observer desires mineral bottled water, it should be provided.

7. Observers should be accommodated in a Government or Semi-Government Guest Houses located in the District for which they are functioning as Observers. Preferably, both the Observers shall be provided accommodation at one place in one base camp.

8. The Observers should be provided with new SIM cards by meeting the expenditure from the election funds. The call charges shall also be met from the election funds. After completion of the election process, the Observers shall surrender the SIM cards provided to them which shall be deactivated by the District administration.

9. STD Phone/Cellphone/Computer/Operator, TV, Fax Machine need to be provided exclusively to the Observer in the base camp. The numbers of the STD Phone/Cellphone/Fax shall be informed to the State Election Commission. Wide publicity should be given in the Press and Electronic Media about the contact numbers of the Observers, to enable Political Parties, contesting candidates and voters to meet them or complain to them.

10. Where more than one Observer is being accommodated in the same premises, only one Fax and Computer facility with operator be provided.

11. One videographer may be provided by the District Election Authority to the Election Observer to videograph the events on the violation of Model Code of Conduct or electoral malpractices during the conduct of Gram Panchayat elections.

12. The Observers are entitled for TA/DA as admissible on tour. They shall draw TA/DA from their Department or Office concerned. The expenditure shall be debitable to the budget grant of their respective Department or Office. They are entitled to travel by Air, if their destination is connected by Air.

The Observers will communicate their travel plans to you sufficiently in advance so as to enable you to make necessary arrangements for their reception, security, transport, stay, communication and publicity in connection with their visit.

Yours faithfully,
Sd/- Navin Mittal
Secretary

Encl: As above.

Copy to:
All General Observers.
All Expenditure Observers.

ANNEXURE – XXXVI

DOs AND DON'Ts FOR OBSERVERS

DOs

1. Attend the briefing and debriefing sessions fixed by the Commission.

2. Notify your correct office and residential addresses and telephone / fax numbers by filling the Personal information Sheet at the Registration Desk. Also please notify changes, if any, from time to time, to the Secretary, State Election Commission.

3. Draw up your tour programmes sufficiently in advance and intimate to the District Election Authority.

4. Note carefully the numbers of visits, duration of visits and the period of visits given by the Commission and strictly act according to this.

5. Ensure that your tour programme is duly publicized.

6. Identify areas / polling stations which might require closer attention.

7. Monitor that adequate stock of all election materials are actually available in adequate quantities.

8. Make an independent assessment of the Law and Order situation in general.

9. Make a random check of as many polling stations as possible and verify them.

10. Monitor instances of violation of Model Code, ban on trasnsfer etc.

11. Send a report to the Commission within 24 hours of your return to the headquarters after the visit. In addition, also send spot report (s) from time to time as considered necessary.

12. Bring any development that merits immediate remedial action or attention of the Commission, to Returning Officer's / Commission's notice without any loss of time. Such information should not be deferred till the regular reports are submitted.

13. Send your report in a closed envelope.

14. Attend meetings of the candidates, if any, called by the District Election Authority.

15. Make independent assessment of the expenditure incurred by a candidate.

16. Speak to the local people and check posters, pamphlets etc. to arrive at an independent assessment.

17. Inspect the statements of Election Expenditure prescribed by the Commission.

18. Obtain prior permission of the Commission before leaving the headquarters.

19. Maintain proper conduct in the District or SEC Observers are keenly observed.

DON'Ts

1. Do not ask for any exemption from the briefing session.

2. Do not travel to the District with your families.

3. Do not talk to the Press unnecessarily.

4. Do not make any unreasonable demands to the State Election Commission / District Election Officer / Returning Officer regarding accommodation, vehicles, security etc.

5. Do not leave your headquarters once you have been allotted specific districts without the prior written permission of the Commission.

6. Do not defer submitting reports on any development which requires immediate remedial action till submission of your regular report(s), but bring it to the Commission's notice by fastest means.

ANNEXURE – XXXVII

STATE ELECTION COMMISSION

3rd Floor, Buddha Bhavan, M G Road, Secunderabad – 500 003.

C I R C U L A R

No.600/SEC-B2/2013 **Date: 27-05-2013**

Sub: - SEC - 4th Ordinary Elections to Gram Panchayats – Appointment of Micro Observers – Selection, Guidelines & Check List etc. – Reg.

***

The 4th Ordinary elections to Gram Panchayats are to be held shortly. The State Election Commission decided to appoint Micro Observers in selected sensitive / hypersensitive polling stations in order to see that elections are conducted in a free, fair and orderly manner. The Micro Observer appointed shall oversee polling that takes place from 7 AM to 1 PM. He shall also observe the counting of votes that starts at 2 PM on the same day and also the election of Upa-Sarpanch that is conducted immediately after declaration of results. The following instructions are issued with regard to selection and appointment of Micro Observers.

1. The Collectors and District Election Authorities shall take an advance inventory of availability of employees of Central Government and Central Public Sector Undertakings for being appointed as Micro Observers. The Collectors and DEAs are also given option to appoint Gazetted Officers of the State Government having unblemished track record and considerable experience in overseeing elections where Central Government / Central PSU employees are not available in sufficient number.

2. The officers to be appointed as Micro Observers should not be posted in the Mandal, where they reside or work.

3. Proper arrangement shall be made at the training venue and care should be taken while choosing the venue for training purpose to ensure amenities such as drinking water and toilet facilities.

4. Advance measures should be in place to ensure that transport facility is provided for them for pick up and dropping.

5. On poll day they will be provided food facility at par with the polling teams.

6. Besides the above, for election duty, an appropriate honorarium shall be paid to each Micro Observer. This payment of honorarium should be made by the Returning Officer concerned, to the extent possible, on completion of duty at the Reception Center itself, on receipt of Micro Observer's report.

7. The guidelines and checklist for the Micro Observers is enclosed as Annexure – I and II respectively, which may be provided to the officials who are appointed as Micro Observers and also to all Observers of the Commission.

8. The Collectors & DEAs shall work out the availability of above mentioned category of personnel and get ready a computerized database category wise, with full particulars viz. name, designation, rank, present pay, scale of pay, address, contact no., their elector details etc. A plan of action should be drawn out for training and orientation to the persons proposed to be deployed as Micro Observers. Training materials and handouts should be prepared, logistical requirement should be worked out and the financial commitment should be taken note of.

Sd/- P. Ramakanth Reddy
State Election Commissioner

To
All the District Election Authorities & Collectors.
All the Superintendents of Police / Superintendents of Police (Urban) and Commissioners of Police having jurisdiction over rural areas.
All the District Panchayat Officers.

Copy to
The Principal Secretary to Govt. (PR), PR&RD Department, AP., Secretariat, Hyderabad.
The Commissioner of PR & RE and Election Authority, A.P. Hyderabad.

A N N E X U R E – I

Guidelines for Micro Observers

1. Observers have a very crucial role to play in the conduct of free and fair election. To strengthen the system of observation, the Commission has consciously decided to deploy Micro Observers at the selected sensitive / hypersensitive polling stations. In Gram Panchayat elections, they will also oversee counting process and also the election of Upa-Sarpanch, which are conducted on the same day. These Micro Observers would directly work under the control and supervision of the General Observer.

2. The Collectors & DEAs shall prepare a list of sensitive / hypersensitive polling stations where these Micro Observers would be deployed.

3. In multi-polling station buildings, each location will have one Micro Observer instead of one Micro Observer per polling station. The Micro Observer can oscillate between and visit the polling stations within the same campus at frequent intervals. After completion of counting, the Micro Observer shall oversee the counting process which is generally held in the same location where a group of polling stations are located or at a place in the vicinity. After completion of counting and declaration of results, the Micro Observer shall also observe the election of Upa-Sarpanch. The entire process of poll, counting, declaration of results and election of Upa-Sarpanch is conducted in a Gram Panchayat on the same day and the presence of Micro Observer will enhance the purity of election process and contribute for free and fair election.

4. Where two Micro Observers are appointed for two different groups of polling stations situated in two different locations, both the Micro Observers can oversee the counting, declaration of results and Upa-Sarpanch election after completion of poll at their respective polling stations at different premises.

5. The Collectors & DEAs may identify a Nodal Officer to handle logistics and deployment related tasks of Micro Observers in each Revenue Division or a group of Mandals.

6. Each Micro Observer shall be given a photo-pass and identity card to ensure his access to the polling stations, counting centre and venue of Upa-Sarpanch election.

7. The officer selected for the job of Micro Observer may not be aware of different aspects of election process. Therefore, a basic training of election processes on the day of the poll shall have to be given to them. This should enable them to understand and observe the activities relating to poll, counting and election of Upa-Sarpanch in a Gram Panchayat. Copies of the Handbook of Returning Officers and Handbook of Presiding Officers prepared separately for Gram Panchayat elections shall be given to the Micro Observers. An illustrative training material for the Micro Observer is also attached with this circular. The Collectors & DEAs shall organize training of these Micro Observers.

8. The required number of officers for deployment as Micro Observers should be picked up randomly from the list of all eligible officers. Further the assigning of sensitive / hypersensitive polling stations in a Gram Panchayat also will be done in random manner a day prior to the day of departure. However, the exact polling station would be given to them on the day of departure.

9. The Collectors & DEAs should ensure that the Micro Observers are separately dropped to their destinations or may be with Zonal Officers.

10. On the day of poll, the Micro Observer should reach the polling station at least one hour before the commencement of the poll. If for certain reason, it is not possible to reach in the morning, he should reach in the evening of the previous day.

11. Having reached the polling station, he should assess the preparedness for the poll. During the poll day, he should regularly note down the important points on the pre-printed Proforma (a Proforma for this is appended). It is made absolutely clear that in no case, the Micro Observer will act as Presiding Officer or the polling officer. He should also oversee the counting process and election of Upa-Sarpanch without actually getting involved in performing any act relating to the election process. His task is to observe that election process is being carried out in a free and fair manner and there is no vitiation of any kind.

12. In the process of observation on the day of election, the Micro Observer should specially observe: -

    a. Preparation of Ballot Box for the poll, fixing of paper seal and securing it in balloting position.

    b. Presence of Polling Agents and observance of SEC instructions with regard to them.

    c. The observance of entry pass system and access to Polling Station.

    d. Proper identification of electors in accordance with SEC guidelines.

    e. Application of indelible ink.

f. Secrecy of voting.

g. Conduct of polling agents, their complaints, if any, etc.

h. Arrangements made for counting at the counting centre of the Gram Panchayat.

i. Ensure that Postal ballot papers are counted first as specified under Rule 56 of Conduct of Election Rules, 2006.

j. Getting the ballot boxes on to the counting tables, checking of seals of ballot boxes, opening of ballot boxes containing polled ballot papers in an orderly manner.

k. Ensure that counting is conducted as per the procedure envisaged.

l. Observe declaration of results, issue of Certificate of election and publication of results by the Returning Officer concerned.

m. Observe the election of Upa-Sarpanch conducted by the Returning Officer after declaration of results as per the procedure prescribed in A.P.P.R. (Election of Upa-Sarpanch of a Gram Panchayat) Rules, 2006.

13. During the poll, if the Micro Observer feels that the poll is being vitiated for any reason, he will immediately bring it to the notice of Collector & DEA / General Observer through whatever means of communication is available, for example, phone or wireless or any other means. Similarly, during the counting process if he has noticed any discrepancy or electoral malpractice, he may report it to the Observer to take necessary action as specified in Sec. 232A of A.P.P.R. Act, 1994.

14. After the completion of the election process in the Gram Panchayat, the Micro Observer will submit a report in the format enclosed as **Annexure II** at the collection center and the report shall be handed passed on to the General Observer.

15. Observers will go through the report and if any further clarification is required then he should arrange for the Micro Observer to be called for ascertaining those further details.

ANNEXURE - II

Checklist for Micro Observers

1	Whether the Presiding Officer allowed the Ballot Box to be inspected by the polling agents and demonstrate that it is empty?	
2	Whether polling agents were allowed to note the serial numbers of ballot boxes and green paper seal?	
3	Whether Presiding Officer demonstrated the marked copy of the electoral roll to candidates or their polling agents present?	
4	Whether the entry pass system was enforced properly? Whether any unauthorized person was inside the polling station at any point of time?	
5	Whether marking of indelible ink was done properly?	
6	Whether the identification document particulars were being filled up on the counterfoil of the ballot paper of Ward Member?	
7	Whether the list of votes issued with Postal Ballot was available with the Presiding Officer & Polling Agents? Did any person already issued Postal Ballot appeared to vote again in person?	
8	Whether events are recorded from time to time as and when they occur in the Presiding Officer's Diary?	
9	Whether the Presiding Officer or Polling Officer was going towards voting compartment or giving any undue instructions to the voters?	
10	Whether a copy of ballot paper account prepared in Part-I of Form XXV has been given to the polling agents?	
11	Whether voting compartment was properly placed to ensure secrecy of voting?	

12	Whether sealing of ballot box was done according to instructions after completion of poll?	
13	Whether any complaint by polling agent, election agent was received? If yes, its substance.	
14	Whether proper arrangements have been at the counting centres to admit the persons entitled to as per election law?	
15	Whether the Returning Officer read out and explained the provisions of Sec.217 of A.P.P.R. Act, 1994 for the information of all present to maintain the secrecy of voting?	
16	Whether counting of postal ballot papers have been taken up first?	
17	Whether the polled ballot boxes have been brought on the counting tables in an orderly manner? Whether the checking of seals of ballot boxes and opening of ballot boxes was conducted systematically as per law?	
18	Whether the counting procedure was followed as per the instruction given by the Commission?	
19	Whether the result sheet was prepared and the result was declared in the prescribed forms?	
20	Whether the return of election and certificate of election has been issued in the prescribed form?	
21	Whether the result was published on the Notice Board of the Gram Panchayat specifying the names of candidates duly elected?	
22	Whether the election of Upa-Sarpanch was conducted as per the procedure envisaged in the relevant rules?	
23	Whether the proceedings of the Upa-Sarpanch were recorded as prescribed?	
24	Whether the result of election of Upa-Sarpanch was published as prescribed?	
25	Whether a report has been prepared for the entire election process observed by Micro Observer and handed over to the officer designated for onward transmission to the General Observer.	

Signature of Micro Observer :

Name (in full) :

Designation :

Date & Time :

Phone No. / Cell No.:

Illustrative Training Material for Micro Observers

Introduction

- Poll is conducted in designated **polling stations** specifically prepared for this purpose.

- Poll is conducted by a team of officials identified randomly and trained.
- Representatives of the candidates (called **Polling Agents**) also sit inside the polling station and watch the poll proceedings.

- Ballot box used for depositing polled ballot papers is kept in front of the Presiding Officer;

- The number of Polling Personnel to be attached to each polling station depends upon the number of voters assigned to that polling station.

No. of Voters	No. of Polling personnel to be appointed
Upto 200	One Presiding Officer and one Polling Officer
201 to 400	One Presiding Officer and two Polling Officers
Above 400	One Presiding Officer and three Polling Officers

The duties assigned to the Polling personnel may be seen in the Handbook for Presiding Officers in Gram Panchayat elections to be given to the Micro Observers.

Arrangements outside the Polling Stations

(i) Outside each Polling Station there shall be displayed prominently–
  * Notice specifying the polling area, serial number of the electors who are entitled to vote at the polling station.
  * Copy of the list of contesting candidates with serial numbers and symbols assigned to them.

(ii) Enough space for the voters to wait outside the polling station;

(iii) Separate waiting space for men and women as far as practicable.

Law & Order around Polling Station

- No vehicles to be allowed inside the 100 meter perimeter of a Polling Station;
- No canvassing of any kind allowed in this perimeter. It is an offence under Section 219 of A.P. Panchayat Raj Act,1994.
- Voter slips to be plain white slips without any party markings
- No posters or banners

Arrangements inside a Polling Station

- Separate entrance and exit for voters.
- Easy flow of voters from the time they enter the polling station to the time they leave it.
- The polling agents to be seated in such a way that they can see the face of an elector as and when he enters the polling station and able to see the entire operation without violating the secrecy of voting.
- Polling agent not to be in position to see voters actually casting their votes.

Placement of Voting Compartment

- The Voting Compartment has to be so placed that neither the Presiding Officer nor the agents or the polling officers should be able to see the actual votings.
- For this reason, the voting compartment cannot be near to the Presiding Officer or even near any window where one can see from outside.

Who all can come (or be) inside Polling Station?

- Voters in manageable numbers.
- Contesting Candidates.
- Contesting Candidate's Election Agent.
- One Polling Agent of each Candidate at a time.
- Authorized Media Personnel.
- Public Servants on duty in connection with election.
- Observer / Micro Observer appointed by the Commission or as per the instructions issued by the Commission.
- A child in arms accompanying an elector.
- A person accompanying a blind or an infirm voter who cannot move without help.
- Every one must have a valid pass properly displayed.

Polling Agents

- Polling agents are appointed by the contesting candidates.
- Must have a valid photo-identity card.
- Person provided with security can't be an Agent
- The presiding officer shall, after due verification, give them entry passes for the Polling Station.
- Every candidate can appoint one Polling Agent and one Relief Agent at each polling station. But only one Polling Agent of a candidate can be inside the polling station at any point of time. Entry pass system ensures this.
- Polling Agents can challenge bogus voters.

Activities inside Polling Station

- Presiding Officer shall arrange for setting up of polling station, seating arrangements and Ballot Box.
- He shall give entry pass to the polling agents after due verification.
- He shall allow the Ballot Box to be inspected by the polling agents and demonstrate to them that it is empty and also allow them to note the serial number of the ballot box.
- He shall also demonstrate the marked copy of the electoral roll to candidates or their polling agents present and take their signature.
- He will fix the paper seal, in position in the frame, so that the green back ground shows through the window of the ballot box, after taking the signatures of the polling agents present and affixing his signature on the white surface of the paper seal;
- Thereafter, electors shall be allowed to vote.

Verification of Voters

- Electors required to identify themselves – through EPIC or alternative identification documents approved by SEC
- Minor discrepancies in voter's EPIC can be overlooked
- Voters without establishing their identity should not be allowed to vote.

Challenged Vote

- Polling Agents can challenge voter's identity by depositing Rs.5/- in cash.
- Presiding Officer holds summary inquiry
- If challenge not established, voter proceeds to vote
- If challenge established, person is not allowed to vote and handed over to police

Tendered Vote

- Situation when a voter finds that his/her vote is already cast by someone else
- Such voter can tender his vote if he/she can establish the credentials, by tender ballot paper.
- Tendered ballot shall be kept in separate cover

Voting by blind & infirm

- Permitted a companion of 18+
- Same person cannot be companion to more than one person
- Companion will be required to declare that he will keep secret the vote recorded by him/her
- None of the polling staff or agent shall act as companion.

Presiding Officer's power to adjourn poll

Under Section 225-B of A.P. Panchayat Raj Act, 1994, can adjourn poll due to:

- If at an election it is not possible to take the poll on account of any Natural calamity;
- Interrupted or obstructed by any riot or open violence.
- Any other sufficient cause.

Supervisory Visits

- Observers will visit
- Zonal Officers will visit frequently
- Candidates may visit
- Candidate's Election Agents may visit
- All of them must record their visit and observations in the visit sheet

Closure time

- Presiding Officer to check if electors are in queue
- If they are, give numbered slips. Give slip no. 1 to the last person in the queue. This will ensure that no further person joins the queue thereafter
- When all electors have voted, Presiding Officer formally declare the poll as closed and should not permit any person to vote thereafter.
- After completion of poll, close the slit of the ballot box and secure it in the presence of the Polling Agents;
- After the ballot box / boxes were sealed by the Presiding Officer, the polling agents present should be asked to affix their seals, if they so desire.
- Verification of number of ballot papers issued to voters and preparation of ballot paper account.
- Presiding Officer required to furnish an attested true copy of the ballot paper account to every polling agent present at the close of poll under rule 52(2) A.P.P.R. (Conduct of Election) Rules, 2006, obtaining a receipt therefor from the agent.
- The Presiding Officer after the close of poll, seal all the election papers in separate packets as required by rule 51, and allow each candidate or his election agent or his polling agent, who may be present, to affix their seals on the envelopes and packets containing the election papers.
- Presiding Officer must complete his diary
- Micro Observer to complete his report in the prescribed format

Diary:

- Presiding Officer shall tally the vote counts every hour and keep an account of hourly poll.
- Presiding Officer shall mention all important events in the relevant columns.
- The Presiding Officer shall then deliver the ballot boxes and all such packets and papers used at the polling station to the Returning Officer.

Counting of Votes:

- The counting of votes will take place from 2 PM on the same day after completion of poll.
- The Returning Officer shall proceed with the counting non-stop except under unavoidable circumstances.

Persons entitled to be present at the Counting:

The following persons are entitled:

(i) the candidate
(ii) the election agent of each candidate;
(iii) one counting agent of each candidate;
(iv) counting assistants including the Class-IV Government servants drafted for duty by the Returning Officer;
(v) General Observers / Micro Observers;
(vi) Persons authorised by the State Election Commission.

Maintenance of secrecy:

- Every person inside the counting hall is required to maintain the secrecy of voting.
- The Returning Officer will read out and explain the provisions of Sec. 217 of A.P.P.R. Act, 1994 dealing with maintenance of secrecy of voting for information of all present in the counting hall and for its compliance.

Counting of votes received by post:

- Under Rule 56 of Conduct of Election Rules, 2006 the Postal ballot papers are to be counted first.

Checking of seals of ballot boxes and serial number of paper seals:

- Before a ballot box is opened, all counting agents and candidates should be allowed to check and satisfy themselves that the seals on box are in tact and not tampered with.
- As each box is opened, every candidate or his counting agent shall be allowed to check the identity marks and serial number on the paper seals.

Counting procedure:

- Counting of ballot papers of ward members (white colour) shall be done polling station wise.
- Counting of ballot papers of Sarpanch (Pink colour) shall be done by mixing after completion of counting of ballot papers of all wards in the Gram Panchayat.

Declaration of Results:

- The result sheet should be prepared by the Returning Officer in Form XXVI.
- The candidate who secured the largest number of votes for each seat of ward member and office of Sarpanch should be declared to have been elected in Form XXVII.

Certificate of election:

- The Returning Officer should grant a certificate of election to the candidate who has been declared elected in Form XXIX.

Publication of result:

- The Returning Officer shall publish on the notice board of the Gram Panchayat a notification signed by him specifying the names of the candidates duly elected.

Election of Upa-Sarpanch:

- The Returning Officer concerned shall preside over the meeting convened for election of Upa-Sarpanch on the same day after publication of results.
- The election shall be conducted in the manner prescribed in A.P.P.R. (Election of Upa-Sarpanch of a Gram Panchayat) Rules, 2006.
- The Returning Officer shall prepare a record of the proceedings of the meeting and sign it and also permit any member present at the meeting to affix his/her signature on it if he/she so desires.
- After the Returning Officer shall declare the result of Upa-Sarpanch and publish the notice on the notice board of the Gram Panchayat stating that name of the person elected as Upa-Sarpanch.

ANNEXURE – XXXVIII

STATE ELECTION COMMISSION

3rd Floor, Buddha Bhavan, M G Road, Secunderabad – 500 003

ORDER

No.168/SEC-B1/2011 **Dated:18.05.2011**

Sub:- A.P. SEC. Fourth Ordinary elections to Panchayat Raj Bodies, 2011– Election expenditure - Maintenance and Scrutiny of Election Expenditure Accounts - Orders – Issued.

* * *

Section 230-A of AP Panchayat Raj Act stipulates that every contesting candidates at an election held under Andhra Pradesh Panchayat Raj Act shall, either by himself or by his election agent, keep a separate and correct account of all expenditure incurred in connection with election between the date on which the candidate concerned has been nominated and the date of declaration of results of the election both days inclusive.

Sub-section (2) of section 230-A stipulates that the account of election expenditure shall contain such particulars as may, by order, be specified by the State Election Commission.

Sub-section 3 of section 230A empowers the State Election Commission to specify the ceiling limits on election expenditure to be incurred by the candidates for various seats in elections to Panchayat Raj Bodies. The maximum ceiling limits which can be incurred by the candidate contesting elections to ZPPTC & MPPTC and Gram Panchayats shall be as specified by the State Election Commission by notification.

Section 230B of AP Panchayat Raj Act, 1994, stipulates that every contesting candidate at an election shall, within 45 days from the date of declaration of result of election, lodge with the District Election Authority an account of his election expenses, which shall be a true copy of the account kept by him or by his election agent under section 230 A . The final return under the sections shall be submitted by the contesting candidates within 45 days from the date of declaration of result to the District Election Authority through MPDOs.

Under section 19 B of he APPR Act, 1994, the State Election Commission is empowered to disqualify a candidate from contesting election for a period of 3 years for

failure to lodge an account of election expenses within the time and in the manner required under the said Act and in case the candidate is elected, he is liable for cessation of office for such failure.

For the purpose of clarity, the explanations given under Section 230 A of AP PR Act, 1994 for the election expenses are reproduced below.

Explanation-I. *' **Election expenses'** for purpose of this Act shall mean all expenses in connection with the election,-*

(a) incurred, or authorized by the contesting candidate, or by his election agent;

(b) incurred by any association, or body of persons, or by any individual (other than the candidate or his election agent) aimed at promoting or procuring the election of the candidate concerned; and

(c) incurred by any political party, by which the candidate is set up, so as to promote or procure his election:

Provided that any expenses incurred by any political party as part of its general propaganda, (which is distinguishable from its election campaign, for the promotion or procuring the election of a particular candidate), by words, either written or spoken, or by signs or visible representations, or by audio-visual devises, or through print or electronic media or otherwise shall not constitute 'election expenses' for purposes of this Act.

Explanation-II*:- (1) For the removal of doubts, it is hereby declared that any expenses incurred in respect of any arrangements made, facilities provided or any other act or thing done by any person in the service of the Government and belonging to any of the classes mentioned in clause (7) of section 211 in the discharge or purported discharge of his official duty as mentioned in the proviso to that clause shall not be deemed to be expenses in connection with the election incurred or authorized by a candidate or by his election agent for the purposes of this sub-section.*

(2) the account of election expenses shall contain such particulars, as may by order, be specified by the State Election Commission.

(3) The total of the said expenses shall not exceed such amount, as may by order, be specified by the State Election Commission.

In exercise of the powers conferred under subsection (2) of section 230-A of the APPR Act, 1994, in supersesssion of the earlier instructions issued in the subject, the State Election Commission, hereby, issues orders in connection with maintenance of election expenditure in the ensuing elections to Panchayat Raj Bodies.

1. **Accounts to be in the proforma specified:-** The day to day account of election expenditure of the contesting candidates shall be maintained in Proforma I, and the periodical abstract of election expenditure account shall be maintained in Proforma II, by each of the contesting candidate. These accounts of election expenditure in the said two proformas shall be submitted for scrutiny on demand to the Returning Officers or other authorities designated by the State Election Commission.

2. The 'day-to-day' true account of election expenditure incurred by contesting candidate or his Election Agent and also by his supporters, any political party, or body or association or other individuals supporting the candidature or for furthering chances of the candidate in the election shall be recorded in Proforma I.
3. The day to day expenditure account so maintained in proforma I shall be supported by proper vouchers failing which it will not be treated as true account of election expenditure as required under the law, save in cases where it is not possible to obtain vouchers.
4. Each of the supporting vouchers, enclosed with the account of election expenditure, shall bear the signature in full of the contesting candidate or his election agent.
5. The candidate or his authorised agent shall prepare an abstract of the expenditure periodically during the campaign period in the proforma II enclosed to this Order and the same shall be duly signed by the candidate or his election agent certifying its correctness and shall be submitted to the designated authorities for inspection and scrutiny.
6. The attention of all political parties and contesting candidates is, hereby, drawn to the provisions of section 171 of the Indian Penal Code which reads as follows:

"171 H. **Illegal payments, in connection with an election:-** whoever, without the, general or special, authority in writing of a candidate, incurs or authorises expenses on account of the holding of any public meeting, or upon any advertisement, circular or publication, or in any other way whatsoever for the purpose of promoting or procuring the election of such candidate, shall be punished with fine which may extend to five hundred rupees:

Provided that if any person having incurred any such expenses not exceeding the amount of ten rupees without authority, obtains within ten days from the date on which such expenses were incurred the approval in writing of the candidate, he shall be deemed to have incurred such expenses with the authority of the candidate".

Thus, from the above provision of law, it may be noted that the expenditure incurred by the supporters in connection with election of a candidate, without the knowledge or consent of the contesting candidate, is a criminal offence under the above law and persons, supporters, political parties, body or associations are liable for prosecution. And if such expenditure has been incurred, with the knowledge or with the consent of the candidate, then the same should be included in the account of election expenses of the candidate.

6. In order to put effective curbs on the incurring or authorising of expenditure, in violation of the statutory provisions of the above-referred section 171 H of the Indian Penal Code and in the interests of free and fair electors, the State Election Commission, in exercise of its powers under Article 243 K of the Constitution and Section 230-A of APPR Act, hereby, directs as follows:

(i) No political party or any other association, body or individual, shall put up any cut-outs, hoardings, wall paintings, flags, banners, buntings, advertisements in newspapers, electronic media etc., without the general or special authority (in writing) of the candidate whose election is sought to be promoted by such cut-outs, hoardings, etc., as is statutorily and mandatorily required under Section 171 H of the Indian Penal Code. Strict penal action against those offending the above provisions of law will be taken and prosecutions launched against them

(ii) Since elections to Gram Panchayats are conducted on non-party basis, the contesting candidates or their supporters shall not put up any cut-outs, hoardings, wall paintings, banners etc., of the political parties in support of any candidate contesting in Gram Panchayat elections.

(iii) Subject to clause (iv) below, a political party or association or body may put up any cut-outs, hoarding, etc., referred in para 6 (i) above as part of its general propaganda, which is a distinguishable from its election campaign for the promotion the election of a particular candidate. For example if the poster, banner etc. appeals to the voter to vote for a party in words or picture or photo of party office bearers only then it is a case of general publicity. But if a poster, banner etc. also appeals to vote for a particular candidate in words or picture or photo then the cost thereof should be counted towards the expenditure of that candidate.

(iv) No political party, contesting candidate, association, body or individual shall put up any cut-outs, hoarding etc., either under clause (i) or under clause (iii) above, unless prior

written permission of the concerned Government authorities or local authorities like Zilla Parishad, Mandal Parishad and Gram Panchayat has been obtained under the relevant local laws before putting up such cut-outs, hoarding etc.

(v) Before granting any permission as envisaged in clause (iv) above, the concerned Government authorities or the local authorities mentioned above shall thoroughly examine the applications of the parties, association, bodies or individuals with a view to satisfying themselves that the putting up of such cut-outs, hoardings etc., on the proposed site does not compromise the safety and security of the general public and does not result in traffic and other hazards in any manner whatsoever. Such authorities shall also examine whether any authorisation from a particular candidate is required by the applicant in terms of clause (i)&(ii) above and, if so, whether such authorisation has been obtained by the applicant.

(vi) It shall be the responsibility of the Government authorities and local authorities mentioned above to ensure that no cut-outs, hoardings etc., are put up by any political party, association, body or individual on any highways, road-sides, traffic intersection and crossings, government buildings and property, like electricity and telephone poles, etc., without prior written permission of the concerned department or local body and the written authorisation of the candidate, where required, as mentioned above. Any cut-out,hoardings, etc. which have been put up without the required permission and authorisation should be got removed/demolished forthwith at the cost of the party, association, body or individual responsible for the unauthorised putting up of the same.

(vii) Penal action shall also be initiated forthwith against such defaulting parties, associations, bodies or individuals by the aforementioned authorities under section 171 H, IPC and section 4 and 5 of "A.P. Prevention of Disfigurement of Open Places and Prohibition of Obscene and Objectionable posters and Advertisements Act, 1997 (Act 28 of 1997)" the provisions whereof have been violated by the putting up of such unauthorised cut-outs, hoardings etc.

(viii) If any such instances either come, or are brought, to the notice of the election expenditure observer, District Election Authorities, Returning Officers or other authorities concerned with the conduct of elections, including the Police authorities, they shall take up forthwith the matter with the aforementioned authorities for prompt action as directed in clauses (vi) and (vii) above.

7. The Commission, hereby, warns all concerned that any violation of the above directions will be viewed by the Commission with the utmost gravity and most stringent action possible under the law will be taken against the parties, associations, bodies or individuals responsible for such violations.

8. If any Officers is found to have failed to take prompt and expeditious action as envisaged above, he will render himself liable to strict disciplinary action for failure to discharge the official duty.

9. The State Election Commission directs that the "day to day basis true" account of expenditure in the proforma I and the periodical abstract of expenditure in the proforma II attached to this Order should be submitted by the contesting candidates to the authorities designated by the State Election Commission on the dates specified by the State Election Commission separately.

10. In connection with third ordinary elections to Mandal Praja Parishad & Zilla Paja Parishad and Gram Panchayats in the State the Commission, hereby, **designate the Returning Officers for the inspection and scrutiny of the day to day expenditure accounts and the** periodical abstract of expenditure during the election campaign period and issue the following instructions in this behalf:-

1. The contesting candidates or their agents shall submit the election expenditure accounts maintained in Proforma-I and Proforma-II to the designated officers or officers nominated by them once in every three days from the date of publication of list of contesting candidates.
2. The Returning Officers are authorized to nominate officers to receive the accounts filed by the candidates and also notify the place at which and the hour when the candidates or their election agents can file the election expenditure accounts on the dates indicated. The nominated officers shall be available on the date and time indicated above at the places notified and shall receive and inspect and scrutinize the accounts submitted by the candidates and give consolidated report to the Returning Officer and to the election expenditure observer.
3. The election expenditure observers will also undertake inspection and scrutiny of all the expenditure accounts whenever they feel convenient on the said dates and they may also summon the expenditure accounts of any candidate from the officers nominated by the Returning Officers.

11. With a view to minimise the possibility of contesting candidates, their supporters, political parties, bodies or associations incurring expenditure in excess of the ceilings prescribed by the State Election Commission, it is felt necessary that the daily returns and the periodical returns of expenditure <u>should be made transparent</u> by making them available to the public and the other contesting candidates, who, can help the Election Commission to effectively check the veracity of the returns with actual expenditure being incurred by the

contesting candidates and their supporters. It is, therefore, decided that the designated officers should make photo copies of these returns available to other contesting candidates, any member of the public or Non-Governmental Organisation, on demand and on payment of xeroxing charges or a certified copy as per Section 76 of the Indian Evidence Act, 1872 and to the media, free of cost, so as to enable them to assist the Election Commission in effectively implementing the ceilings imposed on the expenditure to be incurred by the contesting candidates for various offices. The Commission is of the considered opinion that this exercise in bringing transparency in election expenditure will enhance the purity of elections and help in conduct of free and fair elections.

12. The final of return of election expenditure including the abstract shall be submitted by the contesting candidates to the District Election Authority through the MPDO within 45 days from the date of declaration of the results of the Office for which they had contested. The District Election Authority, shall make these returns public and take up follow up action in the manner in rule 101, 102 and 103 (1) of APPR (Conduct of Election) Rules, 2000.

13. The District Election Authority shall also take follow up action in respect of candidates who failed to lodge election expenditure accounts within the time and in the manner required by or under the APPR Act, 1994, as per the procedure envisaged in sub rules (2) and (7) of Rule 103 of APPR (Conduct of Election) Rules, 2000.

The election authorities relating to Mandal Praja Parishad & Zilla Praja Parishad and Gram Panchayat elections are directed to furnish a copy of these instructions to the contesting candidates under acknowledgement.

(BY ORDER AND IN THE NAME OF THE STATE ELECTION COMMISSIONER)

Sd/- Dr. G.M.Ramesh Kumar
Secretary

To

All the Collectors and District Election Authorities.

All the Chief Executive Officers of Zilla Praja Parishad with the directions to transmit these instructions to all Returning officers in their district.

All the District Panchayat Officers with the directions to transmit these instructions to all Returning officers in their district.

PROFORMA – I

PROFORMA FOR THE MAINTENANCE OF ACCOUNTS OF ELECTION EXPENSES

Name of the Candidate : 4) Name of the territorial constituency :

Office contested : Ward Member (specify ward)/ Sarpanch /Member, MPPTC / ZPPTC

Name of the GP/ Mandal Praja Parishad / Zilla Praja Parishad : 5) Date of Election :

Date of expenditure	Name of Expenditure	Amount of Expenditure		Date of payment	Name & address of payee	Serial No. of voucher in case of amount paid	Serial No. of bill in case of an amount outstanding	Name & address of person to whom the amount outstanding is payable	Remarks
		Paid	Outstanding						
(1)	(2)	(3)	(4)	(5)	(6)	(7)	(8)	(9)	(10)

N.B: It is not necessary to give the particulars (the name and address of payee) in regard to expenditure for which vouchers are not required to be obtained.

Signature of the Candidate / Election Agent

Certified that this is a true copy of the account kept by me / my Election Agent

Signature of the Contesting Candidate

(FOR OFFICIAL USE ONLY) (Acknowledgement)

The account of election expenses of……..(Candidate) from…….(Constituency) result of which declared on……..filed by him / or on his behalf by…….has been received by me today, the……(date)…….(month)……..(year).

Returning Officer

PROFORMA - II

ABSTRACT OF ELECTION EXPENDITURE ACCOUNT

1) Name of the Candidate : 5. Date of Election :

2) Office contested: Ward Member (specify ward)/ Sarpanch /Member, MPPTC / ZPPTC

6. Expenditure as on_____/Final return.

3)Name of the GP/Mandal Parishad / Zilla Praja Parishad :

4. Name of the territorial constituency

S. No	*Item of Expenditure*	Expenditure incurred or authorised by candidate or his election agent		Expenditure by Political party/parties for promoting his candidature		Expenditure incurred by his suporters,(individuals/body/associations etc.)		Total Expenditure	
		Paid	Committed but not paid	Paid	Committed but not paid	Paid	Committed but not paid	Paid	Committed but not paid
1.	2.	3.		4.		5.		6.	
1.	Expenditure on Printing of election Campaign material								
2.	Expenditure on pasting of posters and distribution of handbills.								
3.	Expenditure on hoardings, Wall writings, cutouts etc.								
4.	Expenditure on advertisements in print & electronic media by candidates, agents & supporters for campaign								

5.	Expenditure on propaganda for public meetings & for all arrangements for public meetings				
6.	Hiring charges for campaign office & office establishment				
7.	Hiring charges for vehicles, cost of petrol, oil, lubrication charges etc. for vehicle use				
8.	Hiring charges of loud-speakers				
9.	Expenditure on production & use of audio & video Cassettes, films slides etc.				
10.	Expenditure on gates, arches & visits of VIPs and Party leaders for campaign				
11.	Expenditure on refreshments given to supporters, polling agents, counting agents and to those for doing house to house campaign				
12.	Travel expenses by candidate or his agent or supporters etc. authorised by him.				

13.	Expenditure on rallies, etc. organised by the candidate.				
14.	Expenditure incurred by other individuals, body, association supporters etc., towards election campaigns				
15.	Value of the publicity material supplied by political party / parties to the candidate.				
16.	Misc. expenses not covered in above items.				
	Total :				

Declaration:

Certified that the particulars given above are true and correct to the best of my knowledge.

Signature of contesting candidate

N.B:

The account shall be countersigned by the candidate, if it is lodged by his election agent and should be certified by the candidate to be correct copy of the account kept.

ANNEXURE – XXXIX

STATE ELECTION COMMISSION

3rd Floor, Buddha Bhavan, M G Road, Secunderabad – 500 003

No.401/SEC-B1/2011, **Dated:02.07.2013.**

NOTIFICATION

In exercise of the powers conferred under Article 243-K of the Constitution of India read with sub-section (3) of section 230-A of Andhra Pradesh Panchayat Raj Act, 1994, the State Election Commissioner, hereby specifies in column 2 of the table below the maximum election expenditure which can be incurred by a contesting candidate in the elections to the Zilla Parishads, Mandal Parishads and Gram Pachayats for the directly elected offices indicated in the column No.1 thereof.

T A B L E

Name of the post	Election Expenditure (Rs.)
(1)	**(2)**
Member, Zilla Parishad	2,00,000
Member, Mandal Parishad	1,00,000
Sarpanch of a Gram Panchayat having a population of 10,000 and above as per Census 2011	80,000
Sarpanch of a Gram panchayat having a population of less than 10,000 as per the Census 2011	40,000
Ward Member of a Gram Panchayat having a population of 10,000 and above as per Census 2011	10,000
Ward Member of a Gram Panchayat having a population of less than 10,000 as per Census 2011	6,000

These orders shall come into force with immediate effect.

Sd/- P.RAMAKANTH REDDY
STATE ELECTION COMMISSIONER

To
All the District Collectors & District Election Authorities,

Copy to:
The Principal Secretary to Government, PR&RD Department.
The Commissioner of Panchayat Raj & Rural Employment, A.P., Hyd,
All the Chief Executive Officers of Zilla Parishads.
All the District Panchayat Officers in the State.
All the Political Parties.